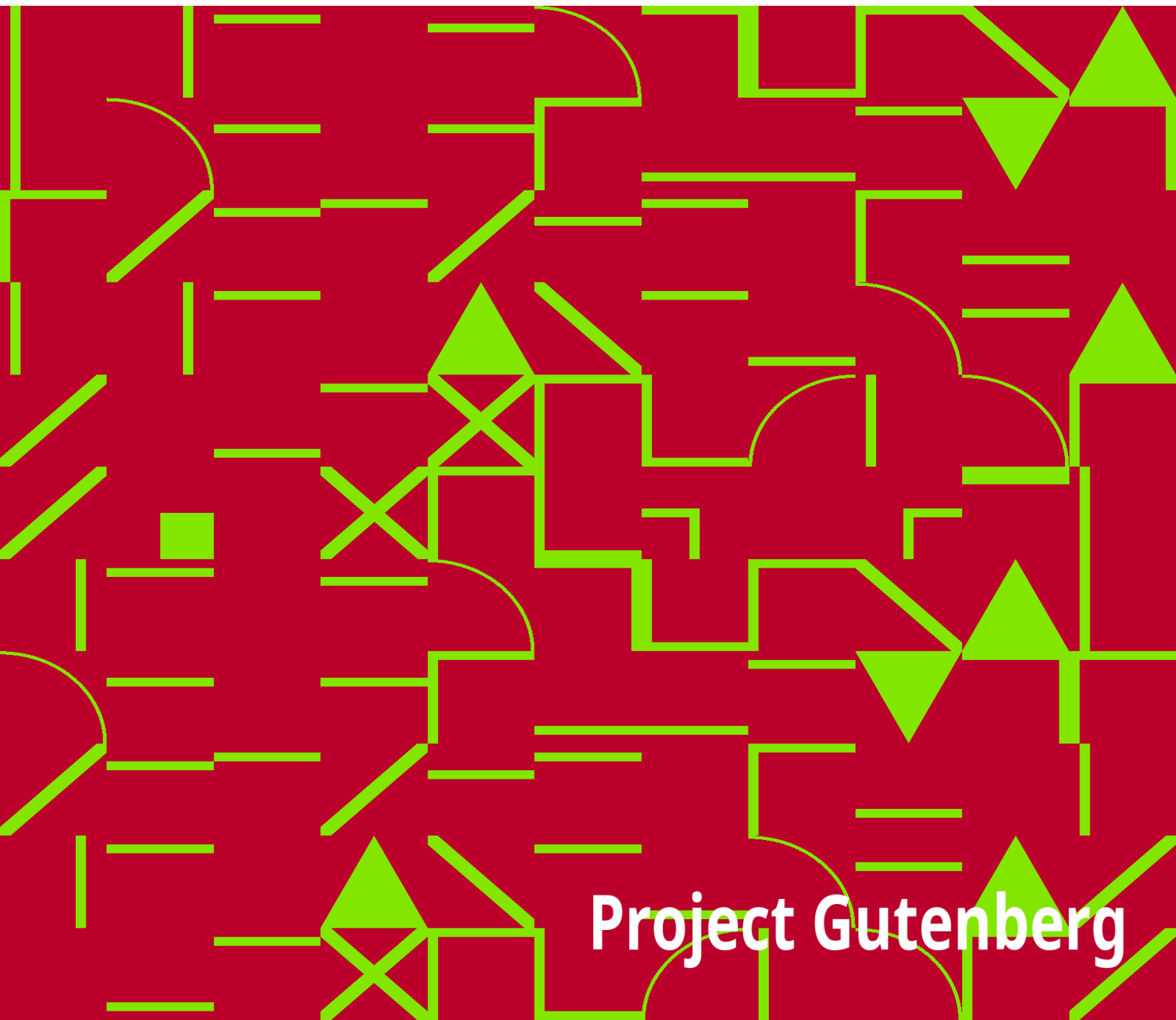


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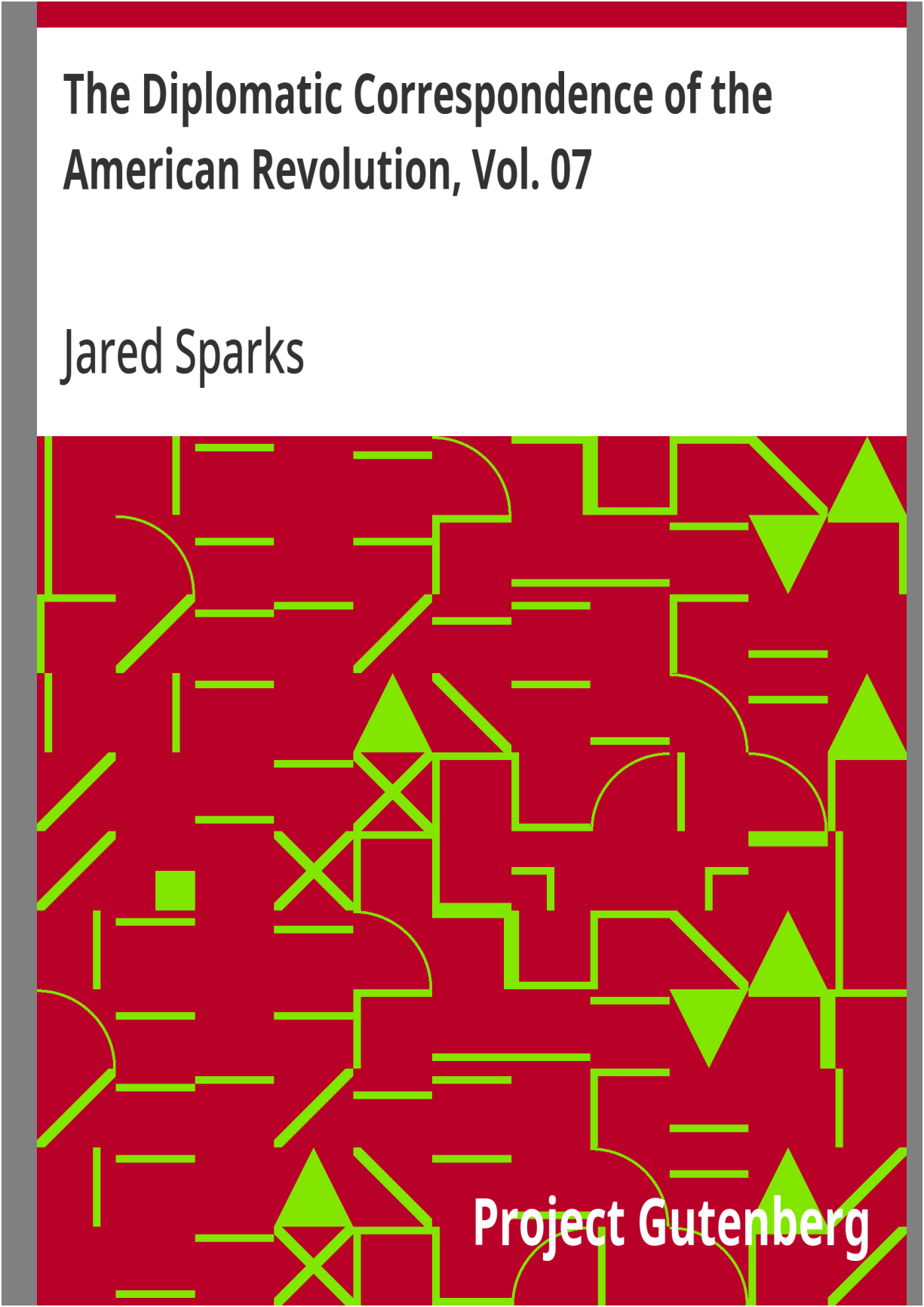
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The Diplomatic Correspondence of the American Revolution, Vol. 07

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DIPLOMATIC CORRESPONDENCE OF THE AMERICAN
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THE
DIPLOMATIC
CORRESPONDENCE
OF THE
AMERICAN REVOLUTION.

VOL. VII.

THE
DIPLOMATIC
CORRESPONDENCE

OF THE
AMERICAN REVOLUTION;

BEING

THE LETTERS OF BENJAMIN
FRANKLIN, SILAS DEANE, JOHN
ADAMS, JOHN JAY, ARTHUR LEE,
WILLIAM LEE, RALPH IZARD,
FRANCIS DANA, WILLIAM
CARMICHAEL, HENRY LAURENS,
JOHN LAURENS, M. DE LAFAYETTE, M.
DUMAS, AND OTHERS, CONCERNING
THE FOREIGN RELATIONS OF THE
UNITED STATES DURING THE WHOLE
REVOLUTION;

TOGETHER WITH

THE LETTERS IN REPLY FROM THE
SECRET COMMITTEE OF CONGRESS,
AND THE SECRETARY OF FOREIGN
AFFAIRS.

ALSO,

THE ENTIRE CORRESPONDENCE OF
THE FRENCH MINISTERS, GERARD
AND LUZERNE, WITH CONGRESS.

Published under the Direction of the
President of the United States, from the
original Manuscripts in the Department of
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Congress, of March 27th, 1818.

EDITED

BY JARED SPARKS.

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when the bills lately arrived will become due.—News of the capture of Charleston.—Mr Jay's notes of a conference with the Count de Florida Blanca, July 5th; capture of Charleston; death of M. Miralles; the Count advises Mr Jay to be cautious of Messrs Joyce, who hold the bills; regrets the precipitancy of Congress in drawing; specie might have been remitted from the Spanish Colonies directly to the United States; remarks on the deranged state of the finances of the United States; the difficulty of raising money in Europe; wishes to wait the arrival of a certain person; Mr Jay observes, that Congress have adopted measures for restoring the finances; suggests that Spain might furnish aid by bills on Havana; states in reply to a question of the Count, that ship timber may be furnished from America; urges the importance of accepting the bills; reminds the Minister of the promise of clothing; evasive and uncertain nature of this conference.—Note from Mr Jay to the Count de Florida Blanca (Madrid, July 11th, 1780), informing him that new bills have been presented; the Messrs Joyce consent to have their bills payable at Bilboa.—Answer of the Count to the preceding, desiring a delay till the arrival of a certain person.—Mr Jay requests that Mr Harrison be allowed to remain at Cadiz.—Note from the Count de Florida Blanca (July 29th), granting Mr Harrison permission to remain at Cadiz; still waits the arrival of the person above mentioned.—Note from Mr Jay to the Count de Florida Blanca (August 11th), announcing the presentation of more bills.—Reply of the Count de Florida Blanca, regretting that he must still wait the arrival of a certain person.—Letter of Mr Jay (Madrid, August 16th, 1780), to the Count de Florida Blanca, stating that the holders of the bills grow impatient.—Letter of Mr Jay to the Count de Florida Blanca (Madrid, August 18th, 1780), informing him that bills have been received by the Gardoquis, which will be immediately presented.—Letter from Mr Jay to the Count de Florida Blanca (St Ildefonso, August 25th, 1780), urging the necessity of providing for the acceptance of the bills.—Mr Jay's notes of a conference with the French Ambassador, August 27th; Mr Jay gives an account of his proceedings since his arrival, and requests the Ambassador to obtain an answer for him from the Spanish Minister; Mr Jay was encouraged to expect that he should be supplied with money to meet the bills;

the Ambassador thinks that the Spanish Minister will pay the bills, and promises to speak to him on the subject.—Subsequent coolness of the French Ambassador.—Second visit to him; he advises Mr Jay to write again to the Count de Florida Blanca, praying an audience; Mr Jay declines making any supplications, or purchasing by concessions the acknowledgment of independence; declares his determination to write on the subject of the treaty, and if treated with the same neglect to return; conduct of France.—Mr Jay consents to send Mr Carmichael to the Minister.—Note from the Count de Florida Blanca introducing M. Gardoqui.—Conversation with M. Gardoqui on the subject of the bills; second conversation with M. Gardoqui, who proposes the surrender of the navigation of the Mississippi.—Objections to this measure.—Conversation with M. Del Campo on the same subjects.—Conversation with the Secretary of the French Ambassador.—M. Gardoqui informs him from the Count de Florida Blanca that no more bills can be paid by Spain.—Letter of Mr Jay (St Ildefonso, September 14th, 1780), to the Count de Florida Blanca, requesting to know if any aid is to be expected from Spain.—Answer to the preceding, dictated by M. Del Campo, in the name of the Count de Florida Blanca, to M. Gardoqui, declaring the readiness of his Majesty to assist the States.—Letter from Mr Jay to Count de Vergennes (St Ildefonso, September 22d, 1780), giving an account of his proceedings in Spain; requesting the aid of France in meeting the bills.—Letter of Mr Jay to Dr Franklin (same date), on the same subject.—Notes of a conference between Mr Jay and the Count de Florida Blanca (September 23d); satisfaction of the King with the measures of Congress for supplying the Spanish forces in the West Indies; plan of the English Court to attempt an accommodation with America; Mr Jay enters upon the points mentioned in the paper dictated to M. Gardoqui; on the manner of making known the King's responsibility; on the King's being disgusted with the drawing of bills without his consent, and without terms of recompense; the bills were drawn on Mr Jay, and the faith of the United States was pledged for the payment of any sum advanced; Mr Jay wishes the evidence of an understanding between America and England; Congress had given proofs of friendship by sending a Minister to negotiate treaties of amity and alliance; the

delaying of the negotiations owing to the Minister not sending the promised notes on the subject; terms of such a treaty; Spain ought not to expect the expenses of the war will be refunded; America will be ready to render every assistance possible.—Mr Jay returns to Madrid and accepts the bills.—Equivocal nature of the Spanish policy.—Extract of a letter from the Count de Vergennes to the French Ambassador, stating that it will be difficult to make advances to Mr Jay.—Letter from Messrs Couteulx and Co. to Mr Jay (Cadiz, October 3d, 1780), complaining of the expenses and difficulty of supplying and sending home American seamen.—Mr Jay to Messrs Couteulx and Co. (Madrid, October 15th, 1780), directing them to settle accounts with Mr Harrison.—Difficulties in the conveyance of correspondence.—A copy of the correspondence of the Commissioners in France in the hands of a certain foreigner.

To the President of Congress. Madrid,
November 30th, 1780,

Enclosing copies of papers from Morocco.—Delays of the Spanish Court.—Remarks on the enclosed account of the revenues and expenditures of Spain for 1778.

From D'Audibert Caille to John Jay.
Aranjues, April 21st, 1780,

Is authorised to declare the pacific intentions of the Emperor of Morocco towards the United States.

To D'Audibert Caille,

Expresses his satisfaction with the disposition of the Emperor of Morocco.

Copy of M. D'Audibert Caille's Appointment,

Copy of M. D'Audibert Caille's appointment to officiate as consul of all nations who have no consul in Morocco.

Copy of the Declaration by the Emperor of Morocco, February 20th 1778,

Certificate of Pedro Umbert, that the above is conformable to the truth.

Certificate of M. D'Audibert Caille.
December 1st, 1779,

Certificate of M. D'Audibert Caille that Don Pedro Umbert is employed for foreign affairs at the Court of Morocco.

D'Audibert Caille to Congress. Salé,
September 6th, 1779,

The Emperor of Morocco intends to be at peace with the United States.

General State of the Revenues of Spain in the
Year 1778,

To the Committee of Foreign Affairs.
Madrid, November 30th, 1780,

Necessity of providing means for the safe conveyance of the public correspondence.—His letters are opened and many kept back both in Spain and the United States.

Instructions to John Jay. In Congress,
February 15th, 1781,

Instructing him to recede from the demand of a free navigation of the Mississippi below 31°.

James Lovell to John Jay. February 20th,
1781,

Has received no letters from him of late.

James Lovell to John Jay. March 9th, 1781,
Ratification of the articles of the Confederacy.

To the President of Congress. Madrid, March
22d, 1781,

Supplies from Spain.—Russian mediation.—M. Necker's report.

To the President of Congress. Madrid, April 25th, 1781,

Spain insists on the exclusive navigation of the Mississippi.—Letter from Mr Jay to De Neufville and Son (Madrid, January 8th, 1781), renouncing the idea of a loan in Holland separate from that negotiated by Mr Adams.—Mr Jay's proceedings in regard to the payment of the bills.—Advises that the unfinished ships be sold to Spain.—Disposition of Portugal.—Dr Franklin.—Mr Cumberland's mission.—Disposition of Spain.

The President of Congress to John Jay. In Congress, May 28th, 1781,

Expressing the satisfaction of Congress with his conduct.—Instructs him to disavow any understanding between the United States and Great Britain; to avoid referring to the treaty with France in his negotiations with Spain; to declare that facilities will be granted for the exportation of naval stores for the Spanish marine; to continue to provide as far as possible for American seamen in Spain; to open a correspondence with M. D'Audibert Caille.

To the President of Congress. Aranjues, May 29th, 1781,

Conversation with the Count de Florida Blanca on the admission of letters.

James Lovell to John Jay. Philadelphia, June 4th, 1781,

The affair of the Dover cutter.

James Lovell to John Jay. Philadelphia, June 15th, 1781,

Case of Dumain and Lyon.

Robert Morris to John Jay. Philadelphia, July 4th, 1781,

Mr Morris is appointed Superintendent of Finance.
—Objects to be accomplished by this office.—
Expectations of aid from Spain.—State of the
finances.—Disposition of the nation.—State of the
army.—Advantages that will result to Spain by
aiding America.—The United States cannot be
dangerous to Spain.—Amount desired.

Robert Morris to John Jay. Philadelphia, July 7th, 1781,

Necessity of immediate aids.

Robert Morris to John Jay. Office of Finance, July 9th, 1781,

Proposes a plan for sending home American
seaman.

Robert Morris to John Jay. Philadelphia, July 13th, 1781,

Reasons which induced him to adopt the enclosed
plan of a national bank.—Wants aid from Spain.—
Suggests that an attempt should be made to obtain
money from Portugal.

Robert Morris to John Jay. Office of Finance, August 15th, 1781,

Directing to protest certain bills, assigning as a
reason his instructions.

James Lovell to John Jay. Philadelphia, August 15th, 1781,

Surrender of Pensacola.

To the President of Congress. St Ildefonso, September 20th, 1781,

Regrets that instructions should have been given
the American Ministers to concur in any terms to
which France should accede.

To the President of Congress. St Ildefonso,
October 3d, 1781,

Conversation with the Count de Florida Blanca, who complains that Congress has not shown any disposition to oblige the King; remarks relative to M. Gardoqui.—Mr Jay regrets that the instructions concerning the Mississippi had not been kept secret; use that might have been made of the claim.—Has another interview with the Minister; stoppage of the letters from America; the affair of the Dover cutter; cession of the claims of the United States to the navigation of the Mississippi; the Count remarks that these affairs can be settled at a general peace.—Letter from Mr Jay (Madrid, July 2d, 1781), to the Count de Florida Blanca, declaring that he has been instructed to cede the exclusive navigation of the Mississippi.—Letter from Mr Jay (Madrid, July 2d, 1781), to the Count de Montmorin, communicating the above.—Receiving no answer from the Minister, Mr Jay calls upon him, and is informed that he cannot attend to the matter.—Letters from Mr Jay (Madrid, July 13th, 1781), to the Count de Florida Blanca communicating his instructions.—Note from the Count de Florida Blanca (St Ildefonso, July 1st, 1781), to Mr Jay proposing to attend to American affairs.—Mr Jay visits the Minister with Major Franks; general conversation.—Renewed delays.—Letter from Mr Jay (St Ildefonso, September 16th, 1781), to the Count de Montmorin, enclosing the draft of a letter to the Count de Florida Blanca, and requesting the advice of the Ambassador.—Note from the Count de Florida Blanca to Mr Jay requesting him to call upon him.—Notes of the conference between Mr Jay and the Count de Florida Blanca (September 19th, 1781); the Count requests Mr Jay to draw up an outline of the proposed treaties; aids; commercial connexion; treaty of alliance; the Count observes that Congress has done nothing to gratify the King; a person will be appointed to confer further with Mr Jay.—Letter from Mr Jay (St Ildefonso, September 22d, 1781), to the Count de Florida Blanca requesting that some decisive measure be taken in regard to American affairs.—Propositions toward a plan of a treaty, with remarks; the subject of aids will require a separate convention; also the regulation of the mutual conduct of the parties during the war.—Mr Jay's reason for limiting the duration of the offer contained in the sixth proposition, relating to the

navigation of the Mississippi; arts of Spain.—Note from the Count de Florida Blanca to Mr Jay, expressing a hope that some progress will soon be made in the consideration of the propositions.—Embarrassments in providing for the payment of the bills.—Mr Harrison's services.—Proposes the sending of an agent to Portugal.

To the President of Congress. Madrid,
October 18th, 1781,

Has protested some of the bills.

Robert R. Livingston to John Jay.
Philadelphia, November 1st, 1781,

Organization of the new executive departments.—The debt of the United States not so large as might have been expected.—British American recruits.—Proposes that Spain should furnish a convoy between Havana and the United States.—Plan for paying the French troops in specie from Havana.

Robert R. Livingston to John Jay.
Philadelphia, November 28th, 1781,

State of military affairs.—The Marquis de la Fayette.

THE
CORRESPONDENCE

OF
J O H N A D A M S ,

**ONE OF THE COMMISSIONERS TO FRANCE, MINISTER
PLENIPOTENTIARY TO HOLLAND, AND ONE OF THE
COMMISSIONERS FOR NEGOTIATING THE TREATY OF
PEACE.**

THE
CORRESPONDENCE
OF
JOHN ADAMS.

CORRESPONDENCE CONTINUED.

TO ROBERT R. LIVINGSTON.

Paris, December 14th, 1782.

Sir,

There is more matter than time to write at present. The King of Sweden has done the United States great honor in his commission to his Minister here, to treat with them, by inserting, that he had a great desire to form a connexion with States, which had so fully established their independence, and by their wise and gallant conduct so well deserved it; and his Minister desired it might be remembered, that his sovereign was the first who had voluntarily proposed a treaty with us.^[1]

Mr Secretary Townshend announced, on the 3d of December, in a letter to the Lord Mayor, the signature of our preliminaries. On the 5th, his Majesty announced it in his speech to both Houses. Addresses of thanks, in both Houses, passed without a division.

There is a note in the *Courier de l'Europe*, of the 6th instant, worth transcribing, viz. "We mark these three lines in italics, to notice at present the assertion, which we shall consider more fully hereafter, that we do not owe to any of the causes assigned at present, even in the two Houses of Parliament, the peace, the blessings of which we consider as certain, but to the armed neutrality. This peace will be durable."

I have transcribed this note, because it falls in with an opinion, that I have long entertained. The armed neutrality, and even Mr Dana's mission to it, have had greater effects, than the world is yet informed of, and would have had much greater, if his hands had not been tied.

On the 4th instant, I wrote a resignation of all my employments in Europe, which I have now the honor to confirm, and to request, that the acceptance of it may be transmitted to me several ways, by the first ships.

I have the honor to be, &c.

JOHN ADAMS.

FOOTNOTE:

[\[1\]](#) See Dr Franklin's letter on this subject, dated June the 25th, 1782. *Franklin's Correspondence*, Vol. III. p. 371.

ROBERT R. LIVINGSTON TO JOHN ADAMS.

Philadelphia, December 19th, 1782.

Sir,

The enclosed letter for Mr Dana you will open and peruse. It may possibly contain information, that may be useful to you, which it will be unnecessary to repeat here.

I mentioned in my last, Mr Jefferson's appointment; I have the pleasure of adding now, that I have received an account from him of his acceptance of the place. He will be here in the course of ten or twelve days, and sail with Count de Rochambeau, who proposes to return to France. The French troops have embarked with the Marquis de Vaudreuil, and are to sail for the West Indies, unless they should receive counter orders, by a frigate, which is now in the river. Her letters are not yet come up, as she unfortunately ran ashore at Dover; it is yet uncertain whether she will be saved.

The great political question, which at present engages the attention of Congress, is the means of providing for the payment of the public debts, or

at least establishing such funds for the regular discharge of the interest, as may set their creditors at ease as to their capitals. It was imagined, that a duty of five per cent upon all imposts would afford a fund adequate to this. Congress accordingly recommended it to the several States to impose the duty. They have all complied, except Rhode Island. Her refusal renders the other laws nugatory, as they contain clauses suspending their operation until the measure is generally adopted. Congress are about to send down a committee to endeavor to persuade Rhode Island to comply with a measure, that they deem so essential to public credit. It is extremely difficult in a country, so little used to taxes as ours is, to lay them directly, and almost impossible to impose them so equally as not to render them too oppressive on some members of the community, while others contribute little or nothing. This difficulty is increased by the continued change of property in this country, and by the small proportion the income bears to the value of lands.

By a short letter just received from Mr Jay, it appears, that England has at length swallowed the bitter pill, and agreed to treat with the "Thirteen United States of America." I am still at a loss to account for this commission's being directed to Mr Oswald, while Mr Fitzherbert's continues in force; or is that revoked?^[2] I will not trouble myself with guesses, as I must receive despatches today, that will explain the mystery, if either Dr Franklin or Mr Jay have kept their words with me.

I have the honor to be, &c.

ROBERT R.
LIVINGSTON.

FOOTNOTE:

^[2] The two commissions were for distinct purposes; Mr Oswald's to treat with the American Commissioners alone; and Mr Fitzherbert's to treat for a general peace with the European powers, then at war with England.

TO CHARLES W.F. DUMAS.

Paris, January 1st, 1783.

Dear Sir,

Returning this evening from Versailles, where I had been to make the compliments of the season, I found your favors of the 26th and 27th of December. The letters enclosed shall be forwarded, as you desire.

The Dutch Ministers here have no occasion for my assistance. *Non tali auxilio*. I have the honor to be more particularly acquainted with M. Brantzen, who is certainly a very able man, and universally acknowledged to be so by all who know him. The arguments, which I know he has used with the British Minister, are such as can never be answered, both upon the liberty of navigation, and the compensation for damages. He is an entire master of his subject, and has urged it with a degree of perspicuity and eloquence, that I know has much struck his antagonists.

Unnecessary, however, as any exertions of mine have been, I have not omitted any opportunity of throwing in any friendly suggestions in my power, where there was a possibility of doing any good to our good friends, the Dutch. I have made such suggestions to Mr Fitzherbert. But with Mr Oswald, I have had several very serious conversations upon the subject. So I have also with Mr Vaughan and Mr Whiteford.

To Mr Oswald I urged the necessity of Great Britain's agreeing with the Dutch upon the unlimited freedom of navigation, from a variety of topics, some of which I may explain to you more particularly hereafter. Thus much I may say at present, that I told him, that it was impossible for Great Britain to avoid it; it would probably be insisted upon by all the other powers. France and Spain, as well as Russia, Sweden, Denmark, Prussia, the Emperor, and Portugal, as well as Holland, had already signed the armed neutrality. The United States of America had declared themselves ready to sign, and were ready. The combination being thus powerful, Great Britain could not resist it. But if she should refuse to agree to it with Holland, and the other powers should acquiesce, and Holland should make peace without it (which would never, however, be the case,) yet all would be ineffectual,

for Holland would forever be able to make use of other neutral bottoms, and would thus enjoy the benefit of this liberty and reality, though denied it by treaty, and in appearance. It would, therefore, be more for the honor and interest of Great Britain to agree to it with a good grace, in the treaty with Holland. Nay, the wisest part she could act would be to set on foot a negotiation immediately for signing herself the Treaty of Armed Neutrality, and then admitting it into the treaty with Holland would be a thing of course. At one of these conversations Dr Franklin was present, who supported me with all his weight; at another, Mr Jay seconded me with all his abilities and ingenuity. Mr Oswald has several times assured me, that he had written these arguments and his own opinion, in conformity with them, to the King's Ministers in London, and I doubt not they will be adopted.

With respect to the compensation for damages, it is impossible to add anything to the arrangements M. Brantzen has urged to show the justice of it, and if Britain is really wise, she will think it her policy to do everything in her power to soften the resentment of the Dutch, and regain their good will and good humor.

The rage of Great Britain, however, has carried her to such extravagant lengths, in a cause unjust from beginning to end, that she is scarcely able to repair the injuries she has done. America has a just claim to compensation for all her burnt towns and plundered property, and indeed for all her slaughtered sons, if that were possible. I shall continue to embrace every opportunity that presents, of doing all the little service in my power to our good friends the Dutch, whose friendship for us I shall not soon forget. This must be communicated with great discretion, if at all.

My best respects to all.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

Paris, January 22d, 1783.

Sir,

Upon a sudden notification from the Count de Vergennes, Dr Franklin and myself, in the absence of Mr Jay and Mr Laurens, went to Versailles, and arrived at the Count's office at ten o'clock on Monday, the 20th of this month. At eleven, arrived the Count d'Aranda and Mr Fitzherbert. The Ministers of the three Crowns, signed and sealed the preliminaries of peace and an armistice, in presence of Doctor Franklin and myself, who also signed and sealed a declaration of an armistice between the Crown of Great Britain and the United States of America, and received a counter declaration from Mr Fitzherbert. Copies of these declarations are enclosed.^[3]

The King of Great Britain has made a declaration concerning the terms, that he will allow to the Dutch; but they are not such as will give satisfaction to that unfortunate nation, for whom, on account of their friendship for us, and the important benefits we have received from it, I feel very sensibly and sincerely. Yesterday we went to Versailles again to make our court to the King and royal family upon the occasion, and received the compliments of the Foreign Ministers.

The Count d'Aranda invited me to dine with him on Sunday next, and said he hoped that the affairs of Spain and the United States would be soon adjusted *à l'aimable*. I answered, that I wished it with all my heart. The two Floridas and Minorca are more than a *quantum meruit* for what this Power has done, and the Dutch unfortunately are to suffer for it. It is not in my power to say when the definitive treaty will be signed. I hope not before the Dutch are ready, in six weeks or two months at farthest I suppose.

It is no longer necessary for Congress to appoint another person in my place in the commission for peace, because it will be executed before this reaches America. But I beg leave to renew the resignation of the credence to the States-General, and the commission for borrowing money in Holland, and to request, that no time may be lost in transmitting the acceptance of this resignation, and another person to take that station, that I may be able to go home in the spring ships.

I have the honor to be, &c.

JOHN ADAMS.

FOOTNOTE:

[\[3\]](#) Contained in the Correspondence of the Ministers for negotiating peace.

TO ROBERT R. LIVINGSTON.

Paris, January 23d, 1783.

Sir,

The letters you did me the honor to write on the 6th, and 18th of November, came safe to hand.

You do me honor, Sir, in applauding the judgment I have formed from time to time of the Court of Britain, and future ages will give me credit for the judgment I have formed of some other Courts. The true designs of a Minister of State are not difficult to be penetrated by an honest man of common sense, who is in a situation to know anything of the secret of affairs, and to observe constantly the chain of public events; for whatever ostensible appearances may be put on, whatever obliquities may be imagined, however the web may be woven, or the thread doubled and twisted, enough will be seen to unravel the whole.

My opinions, as you observe, sometimes run counter to those generally received; but the reason of this has generally been, that I have had earlier evidence than the generality, and I have had the satisfaction to find, that others have formed the same judgment, when they have had the same intelligence. I do not affect singularity, nor love to be in a minority, though truth and justice have sometimes obliged me to be so. You say, that nothing can be more conformable to your wishes than the instructions I transmitted. I am not surprised at this; it is very natural. Had I never been on this side of

the Atlantic, I believe I should have been of your mind in this particular. At present I cannot be, and I believe, by this time, the Dutch regret having given them. You will hear enough of the reason of it. I have lived long enough, and had experience enough of the conduct of governments, and people, nations, and courts, to be convinced, that gratitude, friendship, unsuspecting confidence, and all the most amiable passions in human nature, are the most dangerous guides in politics. I assure you, Sir, if we had not been more cautious than the Dutch, we should have been worse off than they, and our country would have suffered much more.

Mr Laurens has been here, and has behaved with great caution, firmness, and wisdom. He arrived so late, as only to attend the two last days of the conferences, the 29th and 30th of November. But the short time he was with us, he was of great service to the cause. He has done great service to America in England, where his conversation has been such as the purest and firmest American could wish it, and has made many converts. He is gone again to Bath, and his journey will do as much good to his country as to his health. He will return to the signature of the definitive treaty.

The ratifications of my contracts have been received.

The release of Captain Asgill was so exquisite a relief to my feelings, that I have not much cared what interposition it was owing to. It would have been a horrid damp to the joys of peace, if we had received a disagreeable account of him.

The difference between Denmark and Holland is of no serious nature. The clue to the whole is, the Queen Dowager is sister to the Duke of Brunswick; but there is nothing to fear from Denmark. As to the northern powers, we have nothing to fear from any of them. All of them, and all the neutral powers, would have acknowledged our independence before now, by receiving Mr Dana to sign the principles of the armed neutrality, if he had not been restrained from acting. The unlimited confidence of Congress has been grossly abused, and we should have been irreparably injured, if we had not been upon our guard. As our liberties and most important interests are now secured, as far as they can be, against Great Britain, it would be my wish to say as little as possible of the policy of any Minister of our first ally, which has not been as we could desire, and to retain forever a grateful

remembrance of the friendly assistance we have received. But we have evidence enough to warn us against unlimited confidence in any European Minister of State.

I have never drawn upon Dr Franklin for any money, since the end of my two and a half years' salary; and he tells me he has made no use of the bills. I had received money for my subsistence of Messieurs Willinks, and as it will be but a few months more, at farthest, that I shall have to subsist in Europe, I beg leave to proceed to the end in the same way. I shall receive only the amount of my salary, and settle the account with Congress on my return.

I hope to be safely landed on my native shore in the month of June; and to this end, I beg that an appointment may be made to the Dutch mission, and the acceptance of my resignation be transmitted to me by the first ships.

I have the honor to be, &c.

JOHN ADAMS.

TO C. W. F. DUMAS.

Paris, January 29th, 1783.

Sir,

Upon receiving the letter, which you did me the honor to write me on the 24th, late last evening, I went immediately to consult with my colleague, Mr Jay, and we agreed to go this morning to Dr Franklin. Accordingly today we went together to Passy, and communicated your letter to him, and after recollecting the powers we have received, we all agreed that I should make you the following answer.

You will readily recollect the resolutions of Congress, which I did myself the honor two years ago to communicate to the President of their High

Mightinesses, and to the Ministers of Russia, Sweden, and Denmark, at the Hague. The letter to the President was sent "*au greffe*," and there may, perhaps, be now found. These resolutions contained the approbation of Congress, of the principles of the declaration of the Empress of Russia, and authorised any of the American Ministers in Europe, if invited thereto, to pledge the faith of the United States to the observance of them.

Sometime after this, Congress sent Mr Dana a commission with full power to accede to the principles of the Marine Treaty between the neutral powers, and he is now at Petersburg, vested with these powers, and, according to late intelligence received from him, has well founded expectations of being soon admitted.

It is the opinion of my colleagues, as well as my own, that no commission of mine to their High Mightinesses contains authority to negotiate this business, and we are all of opinion, that it is most proper that Mr Dana should negotiate it.

But as there has been no express revocation of the power given to all or any of us, by the first resolutions, and if the case should happen, that Mr Dana could not attend in season, on account of the distance, for the sake of accelerating the signature of the definitive treaty of peace, we should not hesitate to pledge the faith of the United States to the observance of the principles of the armed neutrality. I wish it were in my power to give you a more satisfactory answer, but candor will warrant no other.

With great respect to the gentlemen, as well as to you,

I have the honor to be, Sir, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

Paris, February 5th, 1783.

Sir,

The resolution of Congress of the 12th of July, 1781, "That the commission and instructions, for negotiating a Treaty of Commerce between these United States and Great Britain, given to the Honorable John Adams, on the 29th day of September, 1779, be, and they are hereby revoked," was duly received by me in Holland; but no explanation of the motives to it, or the reasons on which it was founded, was ever transmitted to me by Congress, or the Committee of Foreign Affairs, or any individual member, nor has anybody in Europe, or America, ever once attempted, that I know of, to guess at the reason. Whether it was intended as a punishment to me, or with a charitable design not to lead me into temptation; whether it was intended as a punishment to the English for their insolence and barbarity; whether it was intended to prevent or remove suspicions of allies, or the envy and green eyed jealousy of copatriots, I know not. Of one thing, however, I am fully satisfied, that Congress had reasons, and meant well; but whether those reasons were founded on true or mistaken information, I know not.

When I recollect the instructions, which were given and revoked with that commission, I can guess, and only guess, at some considerations, which might, or might not, operate with Congress. In these instructions, Congress determined,

1st. That the common right of fishing should in no case be given up.

2dly. That it is essential to the welfare of all these United States, that the inhabitants thereof, at the expiration of the war, should continue to enjoy the free and undisturbed exercise of their common right to fish on the Banks of Newfoundland, and the other fishing banks and seas of North America, preserving inviolate the treaties between France and the said States, &c. &c.

3dly. "That our faith be pledged to the several States, that without their unanimous consent no Treaty of Commerce shall be entered into, nor any trade or commerce whatever carried on with Great Britain, without the explicit stipulation hereinafter mentioned. You are, therefore, not to consent to any Treaty of Commerce with Great Britain, without an explicit stipulation on her part, not to molest or disturb the inhabitants of the United States of America, in taking fish on the Banks of Newfoundland, and other

fisheries in the American seas, anywhere, excepting within the distance of three leagues of the shores of the territories remaining to Great Britain at the close of the war, if a nearer distance cannot be obtained by negotiation. And in the negotiation you are to exert your most strenuous endeavors to obtain a nearer distance in the Gulf of St Lawrence, and particularly along the shores of Nova Scotia; as to which latter we are desirous, that even the shores may be occasionally used for the purpose of carrying on the fisheries by the inhabitants of these States."

These instructions are very decisive in favor of our indubitable right to the fisheries; and it is possible, that Congress might be of opinion, that commerce would be the strongest inducement to the English to make peace, and at the same time, that there was something so naval in the fisheries, that the dread of acknowledging our right to them would be the strongest obstacle in the way of peace. They might think, too, that peace was of more importance to the United States, than a British acknowledgment of our right to the fisheries, which, to be sure, would have been enjoyed by our people in a good degree without it.

Reasonings like these might influence Congress to revoke the commission and instructions in question. But whatever probability there might appear in them at that time, experience has since shown, that they were not well founded. On the contrary, arguments have been found to convince the British Ministers themselves, that it was the interest of their King and country, not only to acknowledge the American right to the fisheries, but to encourage the unrestrained exercise of it. These considerations, therefore, can be no longer of any weight against a treaty of commerce with Great Britain, or against accrediting a Minister to the Court of St James. Nor can I conceive of any motive now existing against this measure. On the contrary, so many advantages present themselves to view, that I think it my duty to recommend them to Congress as proper to be adopted without loss of time. If there are in Congress any of those gentlemen, with whom I had the honor to serve in the years 1775 and 1776, they may possibly remember, that in arguing in favor of sending Ministers to Versailles, to propose a connexion with that Court, I laid it down as a first principle, that we should calculate all our measures and foreign negotiations in such a manner, as to avoid a too great dependence upon any one power of Europe; to avoid all

obligations and temptations to take any part in future European wars. That the business of America with Europe was commerce, not politics or war. And above all, that it never could be our interest to ruin Great Britain, or injure or weaken her any further than should be necessary to support our independence, and our alliances; and that as soon as Great Britain should be brought to a temper to acknowledge our sovereignty and our alliances, and consent that we should maintain the one, and fulfil the others, it would be our interest and duty to be her friends, as well as the friends of all the other powers of Europe, and enemies to none.

We are now happily arrived, through many tremendous tempests, at that period. Great Britain respects us as sovereign States, and respects all our political engagements with foreign nations, and as long as she continues in this temper of wisdom, it is our duty to respect her. We have accordingly made a treaty with her and mutually sworn to be friends. Through the whole period of our warfare and negotiations, I confess I have never lost sight of the principles and the system, with which I set out, which appeared to me to be the sentiments of Congress with great unanimity, and I have no reason to believe that any change of opinion has taken place; if there has not, every one will agree with me, that no measure we can pursue will have such a tendency to preserve the government and people of England in the right system for their own and our interest, and the interest of our allies too, well understood, as sending a Minister to reside at the Court of London.

In the next place, the Court of London is the best station to collect intelligence from every part, and by means of the freedom of the press to communicate information for the benefit of our country, to every part of the world. In time of peace, there is so frequent travelling between Paris, London, and the Hague, that the correspondence of our Ministers at those Courts may be carried on by private hands, without hazarding anything from the infidelity of the posts, and Congress may reasonably expect advantages from this circumstance.

In the third place, a treaty of commerce with Great Britain is an affair of great importance to both countries. Upon this occasion I hope I shall be excused if I venture to advise, that Congress should instruct their Minister not to conclude such a treaty, without sending the project to them for their

observations and fresh instructions, and I think it would not be improper, on this occasion, to imitate the Dutch method, and take the project, *ad referendum*, and transmit it to the Legislatures of all the States for their remarks, before Congress finally resolve. Their Minister may be authorised and instructed, in the mean time, to enter into a temporary convention for regulating the present trade, for a limited number of months or years, or until the treaty of commerce shall be completed.

In the fourth place, it is our part to be the first to send a Minister to Great Britain, which is the older, and as yet the superior State. It becomes us to send a Minister first, and I doubt not the King of Great Britain will very soon return the compliment. Whereas if we do not begin, I believe there will be many delicacies at St James', about being the first to send. I confess I wish a British Minister at Philadelphia, and think we should derive many benefits from his residence there. While we have any foreign Ministers among us, I wish to have them from all the great powers with whom we are much connected. The *Corps Diplomatique* at every Court is, or ought to be, a system representing at least that part of the system of Europe, with which that Court is most conversant.

In the same manner, or at least from similar reasons, as long as we have any one Minister abroad at any European Court, I think we ought to have one at every one to which we are most essentially related, whether in commerce or policy, and therefore while we have any Minister at Versailles, the Hague, or London, I think it clear we ought to have one at each, though I confess I have sometimes thought, that after a very few years, it will be the best thing we can do to recall every Minister from Europe, and send embassies only on special occasions.

If, however, any members of Congress should have any delicacies, lest an American Minister should not be received with a dignity becoming his rank and character at London, they may send a commission to make a treaty of commerce with Great Britain, to their Minister at Madrid, or Versailles, or the Hague, or St Petersburg, and instruct him to carry on the negotiation from the Court where he may be, until he shall be invited to London, or a letter of credence may be sent to one of these, with instructions to go to London, as soon as the King shall appoint a Minister to go to Philadelphia.

After all, however, my opinion is, that none of these manœuvres are necessary, but that the best way will be to send a Minister directly to St James', with a letter of credence to the King, as a Minister Plenipotentiary, and a commission to treat of a treaty of commerce, but with instructions not to come to any irrevocable conclusion, until Congress and all the States have an opportunity to consider of the project, and suggest their amendments.

There is one more argument in favor of sending a Minister forthwith; it is this, while this mission lies open, it will be a source of jealousy among present Ministers, and such as are or may be candidates to be foreign Ministers, a source of intrigue and faction among their partisans and adherents, and a source of animosity and division among the people of the States. For this reason, it is a pity, that the first choice had not been such as Congress could have continued to approve, and the first measure such as Congress could have constantly persevered in. If this had been the case, the door of faction would have been kept shut. As this, however, was once my department, by the voice of eleven States, in twelve present, and as I will be answerable at any hazard, it will never be the department of any one by a greater majority, there seems to be a propriety in my giving my advice concerning it, on taking leave of it, if such is the will of Congress, as I have before done in this letter, according to the best of my judgment. And if it should not be thought too presumptuous, I would beg leave to add, what is my idea of the qualifications necessary for an American foreign Minister in general, and particularly and above all to the Court of St James'.

In the first place, he should have had an education in classical learning, and in the knowledge of general history, ancient and modern, and particularly the history of France, England, Holland, and America. He should be well versed in the principles of ethics, of the law of nature and nations, of legislation and government, of the civil Roman law, of the laws of England, and the United States, of the public law of Europe, and in the letters, memoirs, and histories of those great men, who have heretofore shone in the diplomatic order, and conducted the affairs of nations, and the world. He should be of an age to possess a maturity of judgment, arising from experience in business. He should be active, attentive, and industrious, and above all, he should possess an upright heart, and an independent spirit, and

should be one, who decidedly makes the interest of his country, not the policy of any other nation, nor his own private ambition or interest, or those of his family, friends, and connexions, the rule of his conduct.

We hear so much said about a genteel address, and a facility in speaking the French language, that one would think a dancing master and a French master the only tutors necessary to educate a statesman. Be it remembered, the present revolution, neither in America nor Europe, has been accomplished by elegant bows, nor by fluency in French, nor will any great thing ever be effected by such accomplishments alone. A man must have something in his head to say, before he can speak to effect, how ready soever he may be at utterance. And if the knowledge is in his head, and the virtue in his heart, he will never fail to find a way of communicating his sentiments to good purpose. He will always have excellent translators ready, if he wants them, to turn his thoughts into any language he desires.

As to what is called a fine address, it is seldom attended to after a first or second conversation, and even in these, it is regarded no more by men of sense of any country, than another thing, which I heard disputed with great vivacity among the officers of the French frigate, the *Sensible*. The question was, what were the several departments of an Ambassador and a Secretary of Legation. After a long and shrewd discussion, it was decided by a majority of votes, "that the Secretary's part was to do the business, and that of an Ambassador to keep a mistress." This decision produced a laugh among the company, and no ideas of the kind will ever produce anything else, among men of understanding.

It is very true, that it is possible, that a case may happen, that a man may serve his country by a bribe well placed, or an intrigue of pleasure with a woman. But it is equally true, that a man's country will be sold and betrayed a thousand times by this infamous commerce, where it will be once served. It is very certain, that we shall never be a match for European statesmen in such accomplishments for negotiation, any more than, I must and will add, they will equal us in any solid abilities, virtues, and application to business, if we choose wisely among the excellent characters, with which our country abounds.

Among the Ministers, who have already crossed the Atlantic to Europe, there have been none exceeding Mr Jay and Mr Dana, in all the qualifications I have presumed to enumerate, and I must say, that if I had the honor to give my vote in Congress, for a Minister at the Court of Great Britain, provided that injustice must be finally done to him, who was the first object of his country's choice, such have been the activity, intelligence, address, and fortitude of Mr Jay, as well as his sufferings in his voyage, journeys, and past services, that I should think of no other object of my choice than that gentleman. If Congress should neglect all their old Ministers, and send a fresh one from America, they cannot be at a loss, for there are in that country great numbers of men well qualified for the service. These are most certainly better known by name to Congress than to me, and, therefore, I shall venture no further, but conclude, by wishing this arduous business well settled, and by assurances to Congress, and to you, Sir, of my warmest attachment and respect.

I have the honor to be, &c.

JOHN ADAMS.

ROBERT R. LIVINGSTON TO JOHN ADAMS.

Philadelphia, February 13th, 1783.

Dear Sir,

On my return, the night before last, from a journey to the State of New York, I found your favors of the 6th, the 7th, the 17th, the 19th, and the 23d of September. They contain important and useful information; and that particularly of the 6th is replete with matter, which deserves an attention, that I lament not having it in my power to give it at this moment, as the express, by which this goes to Baltimore, is on the wing.

I congratulate you most sincerely upon having surmounted all the obstacles, that opposed themselves to the completion of our important connexion with

the United States [of Holland]. It has, I think, given the last blow to the pride of Britain. Its power, so far as it could endanger us, was past recovery before, except as it derived force from its pride, which, like the last struggles of a dying man, gave an appearance of vigor to the body, which it was about to destroy.

This covers a ratification of the treaty. The first copy sent by Mr Jefferson has not been signed by me, owing to my absence. That gentleman has not yet sailed from Baltimore, having been delayed by a number of the enemy's cruisers, which infest the Bay.

We this day received the speech of his Britannic Majesty. It breathes so much the language of peace, that I begin to think it will be unnecessary to give Mr Jefferson the trouble of going over at all. The delays he has met with leave you longer without intelligence from hence, than I would ever wish you to be, though no important event has taken place, except the evacuation of Charleston. Our distress for want of money has rather increased, than diminished. This object will demand your attention, full as much if the war should be terminated, as if it should continue. The army, and the other public creditors, begin to grow very uneasy, and our present exhausted situation will not admit of internal loans, or such taxes as will suffice to give them relief.

I have sent you three different sets of cyphers, not thinking it advisable to send duplicates. Be pleased to let me know whether any and which have arrived safe.

I am, Sir, &c.

ROBERT R.
LIVINGSTON.

TO ROBERT R. LIVINGSTON.

Paris, March 2d, 1783.

Sir,

I am very much of your opinion, that all places in general, in foreign countries, under the United States, should be filled with Americans, but am sometimes requested to transmit to Congress applications and recommendations in so pressing a manner, and by persons of distinction, that it would be scarcely civil to refuse.

Such an instance is the following, and if Congress should depart from the general rule, I suppose, that no person at Leghorn has so good pretensions.

The application to me is this,—“Messrs Touissaint, Doutremont & Co., merchants of great credit at Leghorn, who obtained, fortyfive years ago, letters of nobility from the Court of France, pray the gentlemen, the deputies of the United States of America, to grant them the place of Consul, or of Agent of their commerce at Leghorn.”

At least, if Congress, or their Ministers, have occasion for a correspondent in that city, they will not be at a loss.

I have the honor to be, &c.

JOHN ADAMS.

ROBERT R. LIVINGSTON TO JOHN ADAMS.

Philadelphia, April 14th, 1783.

Sir,

I received two days ago your favors of the 22d and 23d of January, with the declarations for the cessation of hostilities, on which a doubt of much importance to the people of this country is started, to wit, to know at what period hostilities ceased on this coast, that is, what is meant by "as far as the Canaries." If it means in the same *latitude*, hostilities ceased here the 3d of

March, and a great number of vessels must be restored. If it does not mean a latitudinal line, what does it mean, which carries any certainty with it? The terms of the provisional treaty also occasion much debate. A variety of questions have been started, but these I shall speak of in my letter to you in conjunction with your colleagues, that you may, if opportunity should offer before the Definitive Treaty is concluded, find some means to rid them of their ambiguity.

It would give me pain to find, that the Dutch do not attain their objects in the close of the war, and still more to impute their misfortunes to any desertion of their interests by France, since I confess freely to you, that her conduct, as far as I have observed it, has appeared to me in the highest degree generous and disinterested. The extreme langour of the Dutch, their divisions, and the less than nothing that they have done for themselves, entitle them to little. Without the uncommon exertions of France, they would not have had a single settlement left, either in the East or West Indies. So that they lay absolutely at her mercy, and, therefore, I was pleased to find their instructions to their Ministers so expressed as to leave no room to fear, that they would obstruct the peace, when they contributed so little to the prosecution of the war. But I rather pitied, than blamed their weakness; they were torn by factions, and clogged by an executive, which strove to find reasons for having no execution.

Congress, the day before yesterday, agreed to ratify the Provisional Articles as such, and to release their prisoners, in which the British took the lead. The tories have little reliance upon the effect of the recommendations of Congress; great numbers of them have sailed, and are daily sailing for Nova Scotia.

With respect to your salary, I must pray you to settle with Dr Franklin the amount of bills drawn in your favor. You will, with those that go by this conveyance, receive the amount of three quarters' salary, at two thousand seven hundred and seventyseven dollars and sixtyeight ninetieths per quarter, which were laid out in bills at six shillings three pence, this money, for five livres, which was a very advantageous exchange for you. This, however, Congress have directed, by the enclosed resolution, to be altered, and your salaries to be paid in bills at the rate of five livres, five sous per

dollar. As this resolution retrospects you will have, with the bills transmitted to you, livres more than is due for three quarters' salary. This will be deducted from the last quarter, for which I will get a warrant, and leave it with the Treasury here for you or your order. By settling this matter with Dr Franklin, and redrawing upon your banker in Holland, you will leave my accounts unembarrassed, which is of consequence to me, as I have determined to quit the place I now hold, in the course of a few weeks, and enjoy in retirement the pleasures of peace. I have charged no commissions on these money transactions, nor do I propose to charge any.

Your account of contingent expenses is before a committee. Should Congress agree to accept your resignation, (which I am sorry to see you offer, since the connexions you have formed, and the experience you have acquired, might render you particularly serviceable in Holland) it will be best that you settle it with them yourself on your arrival. The want of permanent funds, and the opposition which some States have given to every attempt to establish them, the demands of the public creditors, and particularly of the army, have excited much uneasiness here. Satisfactory measures will, I hope, be adopted to calm it, and do ample justice. The army, whose proceedings I transmit, have done themselves honor by their conduct on this occasion. Too much praise could not be given to the commander-in-chief, for the share he had in the transaction, if he was not above all praise.

I have the honor to be, &c.

ROBERT R.
LIVINGSTON.

TO ROBERT R. LIVINGSTON.

Paris, April 14th, 1783.

Sir,

You may easily imagine our anxiety to hear from America, when you know that we have no news to this hour, either of your reception of the news of peace, or that of the treaty with Holland, four copies of which I put on board different vessels at Amsterdam, in October.

We have been in equal uncertainty about the turn, which affairs might take in England. But by letters from Mr Laurens we expect him every day, and Mr David Hartley with him, in order to complete the definitive treaty. It would have been more agreeable to have finished with Mr Oswald. But the present Ministry are so dissatisfied with what is past, as they say, though nobody believes them, that they choose to change hands.

It will be proposed, I believe, to make a temporary arrangement of commercial matters, as our powers are not competent to a durable one, if to any. Congress will, no doubt, soon send a Minister with full powers, as the treaty of commerce with Great Britain is of great importance, and our affairs in that country require an overseer.

It is confidently asserted, in letters from Holland, that M. Markow, the Minister Plenipotentiary from the Empress of Russia, has received from his mistress a full power to come to Paris, to the assistance of the Prince Bariatinski at a Congress for a general pacification. There is, as yet, no answer received from the Emperor. If the two Imperial Courts accept of the mediation, there will be a Congress; but I suppose it will relate chiefly to the affairs of Holland, which are not yet arranged, and to the liberty of neutral navigation, which is their principal point. I wish success to that Republic in this negotiation, which will help to compose their interior disorders, which are alarming.

I know not whether it will be insisted or expected, that we should join in the Congress, nor do I know what we have to do in it, unless it be to settle that point as far as it relates to us. There is nothing in difference between us and Great Britain, which we cannot adjust ourselves, without any mediation.

A spring passage to America is so great an object, that I should be very sorry to have the negotiations spun out to such a length as to oblige me to lose it, and I take it for granted, I shall now receive the acceptance of my resignation by the first ships.

I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT MORRIS.

Paris, May 21st, 1783.

Sir,

I am just now honored with yours of the 19th of January, by the way of London. We have not yet had the happiness to receive, as we should be disposed to do with open arms, our excellent old friend Jefferson, and begin to fear that the news of peace has determined him not to come.

I thank you, Sir, for your polite congratulations; when the tide turned, it flowed with rapidity, and carried the vessel, as I hope, into a safe harbor.

As to the loan in Holland, I have never troubled you, nor any one else in America, with details of the vexations of various kinds, which I met with in the negotiation of it; indeed, I never thought it prudent or safe to do it. If I had told the whole truth, it could have done no good, and it might have done infinite mischief. In general, it is now sufficient to say, that private interest, party spirit, factions, cabals, and slanderers, have obstructed, perplexed, and tortured our loan in Holland, as well as all our other affairs, foreign and domestic. But as there has been a greater variety of clashing interests, English, French, Stadtholderian, Republican, and American, mixing in the affair of our loan in Holland, it has been more puzzled than anything else. If, in the bitterness of my soul, I had described the fermentation, and mentioned names, and drawn characters, I might have transmitted a curious tale, but it would have only served to inflame old animosities, and excite new ones.

A great many things are said to me, on purpose that they may be represented to you or to Congress. Some of these I believe to be false, most

of them I suspect, and some of them that are true would do no good. I think it necessary, therefore, to employ a little discretion in such cases.

Messrs Willinks & Co. will write you from time to time, as they tell me they have done, the state of the loan. Mr Grand wants all the money, but they wait your orders. The loan has been and will be damped by transmitting the money to France, but your necessities were so urgent, that you could not avoid it.

In my opinion, if you had a Minister at St James's, and he were authorised to borrow money generally, in England or elsewhere, it would serve you greatly, by causing an emulation even in Holland, besides the money you would procure in London, which would not be a trifling sum.

I wish I were in Congress, that I might assist you in persuading our countrymen to pay taxes and build ships.

With great esteem and respect, I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

Paris, May 24th, 1783.

Sir,

I have the honor to enclose copies, to be laid before Congress, of several papers. 1st. Mr Hartley's full powers of May 14th. 2dly. The order of the King of Great Britain in Council, for regulating the American trade, of May 14th. 3dly. Articles proposed by the American Ministers to Mr Hartley, April 29th. 4thly. Mr Hartley's observations left with us May 21st. And 5thly. Mr Hartley's proposition of the same day.^[4]

This proposition, however, upon inquiry, we find Mr Hartley does not incline to subscribe to, before he sends it to his Court for their orders. So that we have not yet given him our opinion of it. He has sent a courier to London, before whose return we hope to have further intelligence from Philadelphia.

The present British Ministry discover an indecision and timidity, which indicate instability. Some persons from England imagine, that my Lord Shelburne will come in again. The change would produce a longer delay; but I think would be no disadvantage to America. If he had continued in power, I think we should have finished, or been ready to finish, before now with Mr Oswald. Mr Hartley's dispositions, however, are very good, and if left to his own judgment, would be liberal and fair.

The idea of reviving the trade, upon the plan of the laws of Great Britain before the war, although those laws were calculated so much for the advantage of that country and so little for the advantage of ours, might be admissible for a few months, until Ministers could be appointed on both sides to frame a treaty of commerce; provided no advantage should be ceded by it, in the negotiation of such treaty, and provided, that such a temporary convention for trade should neither delay nor influence the definitive treaty. It is much to be wished, that the definitive treaty of peace, and a permanent treaty of commerce, could be signed at the same time. This, however, seems now to be impossible; and, therefore, some temporary regulation of commerce seems unavoidable. But we are as yet too uncertain of the sentiments of the Court of St James, to be able to foresee, whether we shall be able to agree with them. Mr Hartley has been here four weeks, and nothing has been done, although he was very sanguine before he left London, that he should send home a convention in less than half of four days.

Congress will see by Mr Hartley's commission, that they are become the "good friends" of the King of Great Britain. Mr Hartley on his first arrival here communicated to us in form, an invitation from the Ministers, with the knowledge and consent of the King, to all the American Ministers to go to London, with the assurance, that we should be there presented at Court, and treated in all respects like the Ministers of any other sovereign State. He

also communicated the desire of his Court, that the two Powers should interchange Ministers as soon as possible. I hope that the first ship will bring a Minister for that Court, or a commission to some one to go there, because I think it would have been useful to us to have had one there three months ago, and that it would not be less useful now. The permanent treaty of commerce, nevertheless, should not be hastily concluded, nor before Congress shall have had an opportunity to judge of the project, suggest their amendments, and transmit their orders.

No preliminaries are yet signed with the Dutch, and I am very anxious for their lot.

With great respect, I have the honor to be, &c.

JOHN ADAMS.

FOOTNOTE:

[4] These papers will be found in the Correspondence of the Commissioners for making peace.

TO ROBERT R. LIVINGSTON.

Paris, May 30th, 1783.

Sir,

On the 28th of this month, the letter which you did me the honor to write me on the 13th of February, which arrived at the Hague, I received, enclosed with the ratification of the treaty with their High Mightinesses, which will be exchanged by M. Dumas, as the conferences here for the definitive treaty will not admit of my taking so long a journey at this time.

[5]

This arrival in season to exchange the ratifications before the departure of M. Van Berckel, which is to be in about three weeks, is fortunate. I hope that the first ships from America will bring my letter of recall from that Republic, and another Minister, or credence to some one now in Europe, to take my place.

I am happy to find that any letters of mine in September last contained information that you think of consequence, although, not having my letter book here, I am not able to recollect the subject. The final completion of the negotiation with Holland gives me a pleasure, which will not be equalled, but by that of the definitive treaty of peace, which languishes at present for want of decisive instructions from Mr Hartley, in such a manner, as gives cause to suspect that the present Ministry are not firm in their seats.

The presence of a Minister in Holland would encourage your loan of money there, but it would be quickened still more, by your sending a Minister to London, with powers to borrow money there. Emulation is the best spring; or call it rivalry, or jealousy, if you will, it will get you money if you put it in motion.

I have received two cyphers from you, Sir, one beginning with No. 1, and ending with No. 1011. The other beginning with Amsterdam, and ending with Provinces.

I have the honor to be, &c.

JOHN ADAMS.

FOOTNOTE:

[\[5\]](#) The particulars of the ratification will be seen in M. Dumas's Correspondence.

TO ROBERT R. LIVINGSTON.

Paris, June 9th, 1783.

Sir,

The enclosed, No. 121 of the *Politique Hollandais* having translated a few sentences of mine, and the author intending to insert more, as he has already inserted a good deal of the same correspondence, I think it proper to transmit you a short relation of it.

In 1780, at Paris, a number of pamphlets of Mr Galloway's were sent me from England. I wrote to a friend an answer to them. He sent it to London to be published. But whether the printers were afraid, or from what other motive, I know not. I heard nothing of them until the spring and summer of 1782, when some of them appeared in print, in Parker's General Advertiser, under the title of "*Letters from a distinguished American*," &c. but with false dates.

There are in those letters so many of the characteristic features of the Provisional Treaty, of the 30th of November, 1782, that the publication of them in England, at the time when they appeared, may be supposed to have contributed, more or less, to propagate such sentiments as the more private circulation of them before had suggested to a few. And as they were written by one of your Ministers at the conferences for peace, who repeated and extended the same arguments to the British Ministers in the course of the negotiation, it is proper that you should be informed of them. Whether I have in any former letter mentioned this subject, or not, I do not recollect. If I have, I pray you to excuse the repetition.

I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

Paris, June 16th, 1783.

Sir,

Yesterday afternoon, the duplicate of your letter of the 14th of April, No. 16, was brought in to me, with the post-mark "Brest" upon it. As soon as I had read it, I went out to Passy, in hopes that other despatches had arrived there, but I found none. While I was there, a packet of newspapers addressed to us all was brought in, with the post-mark of Brest on it. I still hope and believe, that other despatches, by the same conveyance, will appear in a few days, but whether they are still in the post office, or whether the Duc de Lauzun intends to bring them in person, is uncertain.

I think, Sir, there is no room to doubt the justice of your opinion, that the latitude of the Canaries is meant, and, consequently, that hostilities ceased on the whole coast of the United States on the 3d of March.

I am well aware, that a variety of questions may be started upon the provisional articles. The great points of sovereignty, limits, and fisheries, are sufficiently clear. But there are too many other things in much obscurity. No one of us alone would ever have put his hand to such a writing. Yet there is no one to blame. It must be confessed, that it was done in haste, but that haste was inevitable. The peace depended absolutely upon the critical moment, when that treaty was signed. The meeting of Parliament was so near, and the state of the Ministry so critical, that if that opportunity had been lost, there would have been at least another campaign. There were never less than three of us, and there were finally no less than three to be consulted on the other side. These inaccuracies are much to be lamented, but they were quite unavoidable. We shall endeavor to explain them in the definitive treaty, but I fear without success.

I hope, Sir, you will excuse me, if I think your expressions fall short of the real merit of the Dutch. If they had accepted the Russian mediation for a separate peace, we should have seen a very formidable difference. The vast weight of the Dutch in the East Indies, being added to that of France, has influenced the minds of the natives in such a manner, as to turn the scale against England. The Cape of Good Hope was indispensable to France, and we are not yet informed what proportion of the expense of French operations in the East Indies is to be borne by the Dutch East India Company, at whose solicitations, by their agents, sent early to Versailles,

they were undertaken. From twelve to fifteen British ships of the line, in the best condition, with the best officers and men, have been kept almost constantly in the North seas to watch the Dutch, a momentous diversion, which made the balance more clear in favor of the allies in the East and West Indies, as well as in the Channel; and it may be added, and that with strict truth, the battle of Doggerbank imprinted more terror on the imaginations of the British navy and nation, than all the other sea engagements of the war.

Your observations of their unfortunate situation are, however, very just, and their exertions have not been such as they might and ought to have been. But this was the fault of the enemies of France in Holland, not of their friends, and, unhappily, those enemies are to be gratified by the terms of peace prescribed to that power, and those friends mortified. And this misfortune probably arises from the instructions in question, by which they made themselves of no importance, instead of acting the part of a sovereign, independent, and respectable power. If they had held their own negotiations in their own hands, they would probably have obtained better terms. I could mention many facts and anecdotes of much importance; but these have been communicated to me in confidence, and as this is a discussion that concerns us only indirectly, and as our instructions were parallel to theirs, although the execution of them was different, and the event different, I shall waive any further observations upon the subject.

We are happy to learn, that Congress have ratified the treaty, imperfect as it is, and that each side has released its prisoners. Mr Hartley communicated to us officially, two days ago, that orders were gone to New York to evacuate the United States.

Dr Franklin has never made any use of the bills for my salary, and I have never received any part of them. I shall easily settle that matter when I get home, which your letter encourages me to hope will be very soon. The connexions I have formed in Holland may be of use to the public, wherever I may be, in America, or elsewhere, as well as even in that country itself. Those connexions will readily become those of any Minister Congress may send there. It cost me all my happiness, and had very nearly cost me my life, to form them; it cost me more; it has left me in an ill state of health,

which I never shall fully repair. I shall carry Holland in my veins to my grave. It will cost no man anything to go there now. His mind will be at ease, and he will have spirits necessary to take care to preserve his health. To me it has become physically necessary, as well as a moral and religious duty, to join my family. This can be done only by going to them, or bringing them to me; and to bring them to Holland is what I cannot think of, both because, that on account of my own health, as well as theirs, and on other considerations, I should not choose to live among those putrid lakes, and because I think I can do my country more and better service at home than there.

I will not disguise another motive, which would be altogether insurmountable, if it were alone. I do not think it consistent with the honor of the United States, any more than with my own, for me to stay in Holland, after the appointment of any other Minister whatsoever to the mission upon which I came to Europe, and which has been taken from me without assigning any reason. Congress are the sovereign judges for themselves and the public of the persons proper for all services, excepting that every citizen is a sovereign judge for himself. I have never adopted the principle, that it is a citizen's duty to accept of any trust, that is pointed out to him, unless he approves of it. On the contrary, I think it a right and a duty, that no law of society can take away, for every man to judge for himself, whether he can serve consistently with his own honor, and the honor and interest of the public.

When the existence of our country and her essential interests were at stake, it was a duty to run all risks, to stifle every feeling, to sacrifice every interest, and this duty I have discharged with patience and perseverance, and with a success, that can be attributed only to Providence. But in time of peace, the public in less danger abroad than at home, knowing I can do more good at home, I should do a very wrong thing to remove my family to stay in Holland, merely for the sake of holding an honorable commission, making and receiving bows, and compliments, and eating splendid suppers at Court.

There is one piece of advice I beg leave to offer to the Minister who may go to Holland, respecting a future loan of money. It is, to inquire whether the

house of Hope would undertake a loan for us, either in conjunction with the houses who have the present one, or with any of them, or alone. In my private opinion, which ought to be kept as secret as possible, we might obtain a large loan in that way, and that we cannot in any other. The people in that interest have the money. I am not personally known to that House, nor any one of them to me, but I know they are all powerful in money matters, and I believe they would engage.

The happy turn given to the discontents of the army, by the General, is consistent with his character, which, as you observe, is above all praise, as every character is whose rule and object are duty, not interest, nor glory, which I think has been strictly true with the General from the beginning, and I trust will continue to the end. May he long live, and enjoy his reflections, and the confidence and affections of a free, grateful, and virtuous people.

I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

Paris, June 23d, 1783.

Sir,

Your favor of the 14th of April, No. 16, acknowledged the receipt of mine of the 21st and the 22d of January, but took no notice of any letters, which went by Captain Barney. Neither Dr Franklin, Mr Jay, nor myself have any answer to the despatches, which went by this express; although yours to me, No. 16, gave cause to expect letters to us all, with instructions concerning the Definitive Treaty. This profound silence of Congress, and the total darkness in which we are left, concerning their sentiments, is very distressing to us, and very dangerous and injurious to the public.

I see no prospect of agreeing upon any regulation of commerce here. The present Ministry are afraid of every knot of merchants. A clamor of an interested party, more than an evil to their country, is their dread. A few West India merchants, in opposition to the sense and interest of the West India planters, are endeavoring to excite an opposition to our carrying the produce of the West India Islands from those islands to Europe, even to Great Britain. There are also secret schemes to exclude us, if they can, from the trade of Ireland, to possess themselves of the carrying trade of the United States, by prohibiting any American vessel to bring to Great Britain any commodity but those of the State to which it belongs. Thus, a Philadelphia vessel can carry no tobacco, rice, or indigo, nor a Carolina vessel wheat or flour, nor a Boston vessel either, unless grown in its own State. In this way, a superficial party think they can possess themselves of the carriage of almost all the productions of the United States, annihilate our navigation and nurseries of seamen, and keep all to themselves more effectually than ever. They talk too of discouraging the people of the United States, and encouraging those of Canada and Nova Scotia, in such a manner as to increase the population of those two Provinces, even by migrations from the United States. These are dreams, to be sure; but the dreamers are

so many, as to intimidate the present Ministry, who dare venture upon nothing that will make a clamor. I have lately heard, that the merchants in America are waiting to hear the regulations of trade made here. They will wait, I know not how long. There is no present prospect of our agreeing at all upon any regulations of trade.

I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

Paris, June 23d, 1783.

Sir,

The British nation and Ministry are in a very unsettled state; they find themselves in a new situation, and have not digested any plan. Ireland is in a new situation; she is independent of Parliament, and the English know not how to manage her. To what an extent she will claim a right of trading with the United States, is unknown. Canada too, and Nova Scotia, are in a new situation; the former, they say, must have a new government. But what form to give them, and, indeed, what kind of government they are capable of, or would be agreeable to them, is uncertain. Nothing is digested.

There is a party, composed probably of refugees, friends of the old hostile system, and fomented by emissaries of several foreign nations, who do not wish a cordial reconciliation and sincere friendship between Great Britain and the United States, who clamor for the conservation of the navigation act, and the carrying trade. If these should succeed so far as to excite Parliament or the Ministry to adopt a contracted principle, to exclude us from the West India trade, and from trading with Canada and Nova Scotia, and from carrying freely, in vessels belonging to any one of the Thirteen States, the production of any other to Great Britain, the consequences may be to perplex us for a time, may bind us closer to France, Spain, Holland,

Germany, Italy, and the northern nations, and thus be fatal to Great Britain, without being finally very hurtful to us.

The nations of Europe, who have islands in the West Indies, have, at this moment, a delicate part to take. Upon their present decisions, great things will depend. The commerce of the West India Islands, is a part of the American system of commerce. They can neither do without us, nor we without them. The Creator has placed us upon the globe in such a situation, that we have occasion for each other. We have the means of assisting each other, and politicians and artful contrivances cannot separate us. Wise statesmen, like able artists of every kind, study nature, and their works are perfect in proportion as they conform to her laws. Obstinate attempts to prevent the islands and the continent, by force or policy, from deriving from each other those blessings, which nature has enabled them to afford, will only put both to thinking of means of coming together. And an injudicious regulation at this time may lay a foundation for intimate combinations, between the islands and the continent, which otherwise would not be wished for, or thought of by either.

If the French, Dutch, and Danes, have common sense, they will profit of any blunder Great Britain may commit upon this occasion. The ideas of the British cabinet and merchants, at present, are so confused upon all these subjects, that we can get them to agree to nothing. I still think, that the best policy of the United States is, to send a Minister to London to negotiate a treaty of commerce, instructed to conclude nothing, not the smallest article, until he has sent it to Congress, and received their approbation. In the meantime, Congress may admit any British or Irish ships, that have arrived, or may arrive, to trade as they please.

For my own part, I confess I would not advise Congress to bind themselves to anything, that is not reasonable and just. If we should agree to revive the trade upon the old footing, it is the utmost that can, with a color of justice or modesty, be requested of us. This is not equal, but might be borne. Rather than go further, and deny ourselves the freight from the West Indies to Europe, at least, to Great Britain, especially rather than give away our own carrying trade, by agreeing that the ships of one State should not carry to Great Britain the produce of another, I would be for entering into still closer

connexions with France, Spain, and Holland, and purchase of them, at the expense of Great Britain, what she has not wisdom enough to allow us for her own good.

I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

Paris, June 24th, 1783.

Sir,

The gazettes of Europe still continue to be employed, as the great engines of fraud and imposture to the good people of America. Stockjobbers are not the only people, who employ a set of scribblers to invent and publish falsehoods for their own peculiar purposes. British and French, as well as other politicians, entertain these fabricators of paragraphs, who are stationed about in the various cities of Europe, and take up each other's productions in such a manner, that no sooner does a paragraph appear in a French, Dutch, or English paper, but it is immediately seized on, and reprinted in all the others; this is not all; in looking over the American newspapers, I observe, that nothing is seized on with so much avidity by the American *nouvellists*, for republication in their gazettes, as these political lies. I cannot attribute this merely to the credulity of the printers, who have generally more discernment than to be deceived. But I verily believe, there are persons in every State employed to select out these things, and get them reprinted.

Sometimes the invention is so simple, as really to deceive. Such, I doubt not, will be that of a long paragraph in the English papers, all importing that Mr Hartley had made a treaty of commerce with us, or was upon the point of concluding one. Nothing is further from the truth. We have not to this

hour agreed upon one proposition, nor do I see any probability that we shall at all, respecting commerce.

We have not, indeed, as yet, agreed upon a point respecting the definitive treaty. We are waiting for those instructions of yours, which you mentioned in yours of the 14th of April, which I have not yet received.

Americans should be cautious of European newspapers, as well as of their own; more so, indeed, because they have not so much knowledge, and so good opportunities to detect the former as the latter. There is a great number of persons in Europe, who insert things in the papers in order to make impressions in America. Characters are in this way built up and pulled down, without the least consideration of justice, and merely to answer sinister purposes, sometimes extremely pernicious to the United States.

I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

Paris, June 27th, 1783.

Sir,

Yesterday Dr Franklin, Mr Jay, and myself, met to prepare the definitive treaty, and made so much progress in it, that tomorrow we shall be ready to communicate to Mr Hartley the result. But I have small hopes of obtaining anything more by the definitive treaty.

The Duke of Manchester, and Count d'Aranda have arranged everything between England and Spain, and are ready to finish for their two Courts. France, I presume, waits only for Holland, or perhaps for some other negotiation with the Imperial Courts. If all the other parties were now to declare themselves ready, we should be puzzled. In such a case, however, I

am determined (and I believe, but do not know, that my colleagues would join me) to declare myself ready to sign the provisional treaty, *totidem verbis*, for a definitive treaty.

From all I can learn, I am persuaded we shall gain nothing by any further negotiation. If we obtain anything by way of addition or explanation, we shall be obliged to give more for it than it is worth. If the British Minister refuses to agree to such changes as we may think reasonable, and refuses to sign the provisional articles as definitive ones, I take it for granted, France will not sign till we do. If they should they are still safe, for the provisional articles are to constitute the treaty as soon as France has made peace, and I should rather have it on that footing, than make any material alteration.

I have put these several cases, because I should be surprised at nothing from the present British Ministry. If they have any plan at all, it is a much less gracious one towards America, than that of their immediate predecessors. If Shelburne, Townshend, Pitt, &c. had continued, we should have had everything settled long ago, to our entire satisfaction, and to the infinite advantage of Great Britain and America, in such a manner as would have restored good humor and affection, as far as in the nature of things they can now be restored.

After the great point of acknowledging our independence was got over, by issuing Mr Oswald's last commission, this Shelburne administration conducted towards us like men of sense and honor. The present administration have neither discovered understanding nor sincerity. The present British administration is unpopular, and it is in itself so heterogeneous a composition, that it seems impossible it should last long. Their present design seems to be not to commit themselves by agreeing to anything. As soon as anything is done, somebody will clamor. While nothing is done, it is not known what to clamor about. If there should be a change in favor of the Ministry that made the peace, and a dissolution of this profligate league, which they call the coalition, it would be much for the good of all who speak the English language. If fame says true, the coalition was formed at gambling tables, and is conducted as it was formed, upon no other than gambling principles.

Such is the fate of a nation, which stands tottering on the brink of a precipice, with a debt of two hundred and fiftysix millions sterling on its shoulders; the interest of which, added to the peace establishment only, exceeds by above a million annually all their revenues, enormously and intolerably as they are already taxed. The only chance they have for salvation is in a reform, and in recovering the affection of America. The last Ministry were sensible of this, and acted accordingly. The present Ministry are so far from being sensible of it, or caring about it, that they seem to me to be throwing the last dice for the destruction of their country.

I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

Paris, June 27th, 1783.

Sir,

A few vessels have arrived in England from various parts of America, and have probably made the Ministry, merchants, and manufacturers less anxious about a present arrangement of commerce. Whether these vessels have rashly hazarded these voyages against the laws of their country, or whether they have permission from Congress, or their States, we are not informed.

It would have been better, no doubt, to have had an agreement made before the trade was opened, but the eagerness of both sides may not easily be restrained. Whether it is practicable for Congress to stop the trade, I know not, or whether it would be expedient if practicable, I doubt.

The balance of parties in England is so nicely poised, that the smallest weight shifts the scales. In truth nothing can be done without changing the Ministry, for whatever is done raises a cry sufficient to shake those who do

it. In this situation, it is a question whether it is best to keep things in suspense, or bring them to a decision. If Congress were to prohibit all trade with England, until a Treaty of Commerce were made, or some temporary convention at least, it might bring on a decision, by exciting a cry against the Ministry for not making a convention. But the moment a convention is made, a cry will be raised against them for making it. The present Ministry, to judge by their motions hitherto, will hazard the clamor for not making one, rather than that for making one. They think it least dangerous to them, especially since they have seen so many American vessels arrive in England, and have heard, that British ships are admitted to an entry in the ports of America, particularly Philadelphia.

The most difficult thing to adjust in a Treaty of Commerce, will be the communications we shall have with the West India Islands. This is of great importance to us, and to the islands, and I think to Great Britain too. Yet there is a formidable party for excluding us at least from carrying the produce of those islands to Great Britain.

Much will depend upon the Minister you first send to London. An American Minister would be a formidable person to any British Minister whatever. He would converse with all parties, and if he is a prudent, cautious man, he would at this moment have more influence there than you can imagine.

We are chained here on the only spot in the world, where we can be of no use. If my colleagues were of my mind, we would all go together to London, where we could negotiate the Definitive Treaty, and talk of arrangements of commerce to some purpose. However, one Minister in London, with proper instructions, would do better than four. He would have the artifices of French emissaries to counteract, as well as English partizans; for you may depend upon it, the French see with pleasure the improbability of our coming soon and cordially together, as they saw with manifest regret, the appearances of cordial reconciliation under the former administration. These sentiments are not unnatural, but we are under no obligation, from mere complaisance, to sacrifice interests of such deep and lasting consequence. For it is not merely mercantile profit and convenience, that is at stake; future wars, long and bloody wars, may be either avoided or

entailed upon our posterity, as we conduct wisely or otherwise the present negotiation with Great Britain.

I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

Paris, July 3d, 1783.

Sir,

On the last Ambassador's day, which was last Tuesday, Dr Franklin, Mr Jay, and myself waited on the Count de Vergennes, who told us, he thought he had agreed with the Duke of Manchester, but that his Grace had not yet received the positive approbation of his Court. The Count advised us to make a visit altogether to the Ambassadors of the two Imperial Courts. Accordingly, yesterday morning we went, first to the Count de Mercy Argenteau, the Ambassador of the Emperor of Germany, and King of Hungary and Bohemia. His Excellency was not at home, so we left our card.

We went next to the Prince Bariatinski, Minister Plenipotentiary from the Court of Russia; our servant asked if the Prince was at home, and received for answer, that he was. We were shown into the Prince's apartment, who received us very politely. While we were here, Mr Markoff came in. He also is a Minister Plenipotentiary, adjoined to the Prince in the affair of the mediation. I told him we proposed to do ourselves the honor of calling on him. He answered, "As you are an old acquaintance I shall be very happy to see you." Whether this was a turn of politeness, or whether it was a political distinction, I know not. We shall soon know, by his returning, or not returning, our visit. The Prince asked where I lodged, and I told him. This indicates an intention to return the visit.

We went next to the Dutch Ambassador's, M. de Berkenrode. He was not at home, or not visible. Next to the Baron de Blome, Envoy Extraordinary of the King of Denmark; not at home. Next to M. Markoff's. The porter answered, that he was at home. We alighted, and were going to his apartment, when we were told he was not come in. We left a card, and went to the other Dutch Ambassador's, M. Brantzen, who was not at home; *en passant*, we left a card at the Swedish Minister's, and returned home, the heat being too excessive to pursue our visits any further.

Thus, we have made visits to all the Ministers, who are to be present at the signature of the definitive treaty. Whether the Ministers of the Imperial Courts will be present, I know not. There are many appearances of a coldness between France and Russia, and the Emperor seems to waver between two opinions, whether to join in the war that threatens, or not. Perhaps the Ministers of the Imperial Courts will write for instructions whether to return or not our visit.

After I had begun this letter, Captain Barney came in, and delivered me your duplicate of No. 12, November the 6th, 1782; duplicate of No. 14, December the 19th, 1782, and triplicate of No. 16, April the 14th, 1783, and the original of your letter of the 18th of April, 1783, not numbered. The last contained my account. But as I have never received any of this money from Dr Franklin, or M. Gerard, but have my salary from Messrs Willinks & Co. at Amsterdam, I am extremely sorry you have had so much trouble with this affair.

Although in your later letters you say nothing of my resignation, or the acceptance of it, I expect to receive it soon, and then I shall have an opportunity to settle the affair of my salary at Philadelphia.

After reading your letters to me, I went out to Passy to see those addressed to us all. Dr Franklin, Mr Jay, and myself, (Mr Laurens being still in England) read them all over together. We shall do all in our power to procure the advantages in the definitive treaty, you mention. The state of parties is such in England, that it is impossible to foresee when there will be a Ministry, who will dare to take any step at all. The coalition between Lord North and his connexions, and Mr Fox and his, is a rope of sand. Mr Fox, by pushing the vote in the House of Commons disapproving the peace, and

by joining so many of the old Ministers in the new administration, has justly excited so many jealousies of his sincerity, that no confidence can be placed in him by us. I am extremely sorry, that the most amiable men in the nation, Portland, and the Cavendishes, should have involved themselves in the same reproach.

In short, at present, Shelburne, Pitt, Townshend, and the administration of which they were members, seem to have been the only ones, who, for a moment, had just notions of their country and ours. Whether these men, if now called to power, would pursue their former ideas, I know not. The Bible teaches us not to put our trust in Princes, and *à fortiori* in Ministers of State.

The West India commerce now gives us most anxiety. If the former British Ministry had stood, we might have secured it from England, and, in that case, France would have been obliged to admit us to their islands, *se defendendo*. The first maxim of a statesman, as well as that of a statuary, or a painter, should be to study nature; to cast his eyes round about his country, and see what advantages nature has given it. This was well attended to, in the boundary between the United States and Canada, and in the fisheries. The commerce of the West India Islands, falls necessarily into the natural system of the commerce of the United States. We are necessary to them and they to us; and there will be a commerce between us. If the government forbid it, it will be carried on clandestinely; France can more easily connive at a contraband trade than England. But we ought to wish to avoid the temptation to this. I believe, that neither France nor England will allow us to transport the productions of their Islands to other parts of Europe.

The utmost we may hope to obtain would be permission to import the productions of the French Islands into France, giving bond to land them in some port of that kingdom, and the productions of the English Islands into some port of Great Britain, giving bonds to land them there. It must, however, be the care of the Minister, who may have to negotiate a treaty of commerce with Great Britain, to obtain as ample freedom in this trade as possible.

While I was writing the above, my servant announced the Imperial Ambassador, whom I rose to receive. He said, that he was happy that the

circumstances of the times afforded him an opportunity of forming an acquaintance with me, which he hoped would be improved into a more intimate one. I said, his Excellency did me great honor, and begged him to sit, which he did, and fell into a conversation of an hour. We ran over a variety of subjects, particularly the commerce which might take place between the United States and Germany, by the way of Trieste and Fiume, and the Austrian Netherlands, and the great disposition in Germany to migration to America. He says he knows the country round about Trieste very well, having an estate there; that it is a very extensive and a very rich country, which communicates with that maritime city, and that the navigation of the Adriatic sea, though long, is not dangerous. I asked him what we should do with the Barbary powers. He said, he thought all the powers of the world ought to unite in the suppression of such a detestable race of pirates, and that the Emperor had lately made an insinuation to the Porte upon the subject. I asked him if he thought France and England would agree to such a project, observing that I had heard that some Englishmen had said, "if there were no Algiers, England ought to build one." He said, he could not answer for England.

It is unnecessary to repeat any more of the conversation, which turned upon the frugal and industrious character of the Germans, the best cultivators in Europe, and the dishonorable traffic of some of the German Princes in men, a subject he introduced and enlarged on himself. I said nothing about it. Rising up to take leave, he repeated several compliments he had made when he first came in, and added, "The Count de Vergennes will do me the honor to dine with me one of these days, and I hope to have that of your company. We will then speak of an affair upon which the Count de Vergennes and you have already conversed."

This shows there is something in agitation, but what it is I cannot conjecture; whether it is to induce us to make the compliment to the two Imperial Courts to sign the definitive treaty as mediators, whether there is any project of an association for the liberty of navigation, or whether it is any other thing, I cannot guess at present, but I will write you as soon as I know. Whatever it is, we must treat it with respect, but we shall be very careful how we engage our country in measures of consequence without being clear of our powers, and without the instructions of Congress.

I went out to Passy, and found from Mr Jay, that he had made his visit there, in the course of the day, but had said nothing to Dr Franklin or him about the dinner with the Count de Vergennes. In the course of the day, I had visits from the Prince Bariatinski and M. de Markoff, the two Ministers of the Empress of Russia. The porter told these gentlemen's servants, that I was at home, but they did not come up, but only sent up their cards.

While I was gone to Passy, Monsieur de Blome, Envoy Extraordinary from the King of Denmark, called and left his card. Thus the point of etiquette seems to be settled, and we are to be treated in character by all the Powers of Europe.

I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT MORRIS.

Paris, July 5th, 1783.

Sir,

Your favors of the 12th and 29th of May were delivered to me on the 3d of this month by Captain Barney. Every assistance, in my power, shall be given to Mr Barclay. Mr Grand will write you the amount of all the bills which have been paid in Holland, which were accepted by me. You may banish your fears of a double payment of any one bill. I never accepted a bill without taking down in writing a very particular description of it, nor without examining the book, to see whether it had been accepted before. I sent regularly, in the time of it, copies of these acceptances to Dr Franklin, and I have now asked him to lend them to me, that I may copy them and send them to you. The Doctor has promised to look up my letters, and let me have them. The originals are at the Hague, with multitudes of other papers, which I want every day.

Among the many disagreeable circumstances attending my duty in Europe, it is not the least, that instead of being fixed to any one station, I have been perpetually danced about from "post to pillar," unable to have my books and papers with me, unable to have about me the conveniences of a house-keeper for health, pleasure, or business, but yet subjected in many articles to double expenses.

Mr Livingston has not informed me of any determination of Congress upon my letter to you of the 17th of November, which distresses me much on Mr Thaxter's account, who certainly merits more than he has received, or can receive, without the favor of Congress.

I thank you, Sir, most affectionately for your kind congratulation on the peace. Our late enemies always clamor against a peace, but this one is better for them than they had reason to expect after so mad a war. Our countrymen too, I suppose, are not quite satisfied. This thing and that thing should have been otherwise, no doubt. If any man blames us I wish him no other punishment than to have, if that were possible, just such another peace to negotiate, exactly in our situation. I cannot look back upon this event without the most affecting sentiments, when I consider the number of nations concerned, the complications of interests, extending all over the globe, the characters of actors, the difficulties which attended every step of the progress, how everything labored in England, France, Spain, and Holland, that the armament at Cadiz was upon the point of sailing, which would have rendered another campaign inevitable, that another campaign would have probably involved France in a continental war, as the Emperor would in that case have joined Russia against the Porte; that the British Ministry was then in so critical a situation, that its duration for a week or a day depended upon its making peace; that if that Ministry had been changed, it could have been succeeded only either by North and Company, or by the coalition; that it is certain, that neither North and Company, nor the coalition, would have made peace upon any terms, that either we or the other Powers would have agreed to; and that all these difficulties were dissipated by one decided step of the British and American Ministers. I feel too strongly a gratitude to Heaven for having been conducted safely through the storm, to be very solicitous whether we have the approbation of mortals or not.

A delay of one day might, and probably would, have changed the Ministry in England, in which case all would have been lost. If, after we had agreed with Mr Oswald, we had gone to Versailles to show the result to the Count de Vergennes, you would have been this moment at war, and God knows how or when you would have got out. What would have been the course? The Count de Vergennes would have sprinkled us with compliments, the holy water of a Court. He would have told us; "you have done, gentlemen, very well for your country. You have gained a great deal. I congratulate you upon it, but you must not sign till we are ready; we must sign altogether here in this room." What would have been our situation? We must have signed against this advice, as Mr Laurens says he would have done, and as I believe Mr Jay and I should have done, which would have been the most marked affront, that could have been offered, or we must have waited for France and Spain, which would have changed the Ministry in England, and lost the whole peace, as certainly as there is a world in being. When a few frail vessels are navigating among innumerable mountains of ice, driven by various winds, and drawn by various currents, and a narrow crevice appears to one, by which all may escape, if that one improves the moment and sets the example, it will not do to stand upon ceremonies, and ask, which shall go first, or that all may go together.

I hope you will excuse this little excursion, and believe me to be, with great respect and esteem, your most obedient and most humble servant,

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

Paris, July 7th, 1783.

Sir,

We cannot as yet obtain from Mr Hartley, or his principals, an explicit consent to any one proposition whatever. Yet England and France, and England and Spain are probably agreed, and Holland, I suppose, must

comply. Our last resource must be to say, we are ready to sign the Provisional Treaty, *totidem verbis*, as the Definitive Treaty.

I think it is plain, that the British Ministry do not intend to sign any treaty till Parliament rises. There are such dissensions in the Cabinet, that they apprehend a treaty laid before Parliament, if it did not obtain advantages, of which they have no hope, would furnish materials to overthrow them. A new administration is talked of, under Lord Temple. The West India commerce is now the object, that interests us the most nearly. At dinner with the Duc de la Vauguyon, on Saturday last, he told me, that he believed the commerce between the French West India Islands and the United States, would be confined to ships built in France, and navigated by French seamen.

"So then, M. le Duc," said I, laughing, "you have adopted the ideas of the British navigation act. But suppose the United States should adopt them too, and make a law, that no commerce should be carried on with any West India Islands, French, English, Spanish, Dutch, or Danish, but in ships built in America, and navigated with American seamen? We can import sugar from Europe. But give me leave to tell you, that this trade can never be carried on without a great number of seamen, which the French vessels being all large require, and your navigators are too slow. The trade itself was only profitable to us as a system, and little vessels, with a few hands, run away at any season of the year, from any creek or river, with a multitude of little articles, collected in haste. Your merchants and mariners have neither the patience to content themselves with much and long labor, and dangerous voyages for small profits, nor have they the economy, nor can they navigate vessels with so few hands." "Aye, but we think," said the Duke, "if we do not try, we shall never learn to do these things as well and as cheap as you." The Duke told me, some days before, that he had had a great deal of conversation with the Count de Vergennes, and he found he had a great many good ideas of commerce. The Count himself told me a few weeks ago, "in our regulations of the commerce between our Islands and you, we must have regard to our shipping, and our nurseries of seamen for our marine; for," said he, smiling politely enough, "without a marine, we cannot go to your succor."

In short, France begins to grow, for a moment, avaricious of navigation and seamen. But it is certain, that neither the form of government, nor the national character, can possibly admit of great success in it. Navigation is so dangerous a business, and requires so much patience, and produces so little profit among nations who understand it best, and have the best advantages for it, where property is most secure, lawsuits soonest and cheapest ended, (and by fixed certain laws,) that the French can never interfere much with the Dutch, or Americans, in ship building or carrying trade. If any French merchants ever begin to carry on this commerce, between America and the Islands, they will break to pieces very soon, and then some new plan must be adopted. The English, for aught I know, will make a similar law, that the communications between us and their Islands shall be carried on in British built ships, or ships built in Canada or Nova Scotia, and navigated by British seamen. In this case, we must try what we can do with the Dutch and Danes. But the French and English will endeavor to persuade them to the same policy, for the Duc de la Vauguyon told me, that he thought it a common tie (*lien commun.*) In this they will not succeed, and we must make the most we can of the Dutch friendship, for luckily, the merchants and Regency of Amsterdam had too much wit to exclude us from their Islands by the treaty. Happily, Congress will have a Dutch Minister, with whom they may consult upon this matter, as well as any others, but I should think it would not be convenient to invite an English or French Minister to be present at the consultation.

I am at a loss, Sir, to guess what propositions made to us Congress have been informed of, which they had not learned from us. None have been made to us. The Dutch Ambassadors did once propose a meeting to us, and had it at my house. Dr Franklin came, but Mr Jay did not, and Mr Laurens was absent. The Ambassadors desired to know, whether we had power to enter into any engagements, provided France, Spain, and Holland, should agree to any, in support of the armed neutrality. We showed them the resolution of Congress, of the 5th of October, 1780, and told them, that Mr Dana had been since vested with a particular commission to the same effect. We never heard anything further about it.

Not seeing, at the time, any probability that anything would come of this, nor intending to do anything of any consequence in it, if we should hear

further of it, without the further orders of Congress, we did not think it necessary to write anything about it, at least, till it should put on a more serious appearance. If the Count de Mercy's dinner, to which we are to be invited, with the Count de Vergennes, should produce any insinuations on this subject, (which I do not, however, expect) we shall inform you, and request the orders of Congress.

I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

Paris, July 9th, 1783.

Sir,

Since the dangerous fever I had in Amsterdam, two years ago, I have never enjoyed my health. Through the whole of the last winter and spring, I have suffered under weaknesses and pains, which have scarcely permitted me to do business. The excessive heats of the last week or two have brought on me a fever again, which exhausts me in such a manner, as to be very discouraging, and incapacitates one for everything. In short, nothing but a return to America will ever restore my health, if even that should do it.

In these circumstances, however, we have negotiations to go through, and your despatches to answer. The liberal sentiments in England respecting the trade are all lost for the present, and we can get no answer to anything. It is the same thing with the Dutch. One of the Dutch Ambassadors told me yesterday at Versailles, that now, for five weeks, the English had never said one word to them, nor given them any answer. These things indicate, that the Ministry do not think themselves permanent.

The Count de Vergennes asked Dr Franklin and me, yesterday, if we had made our visits. We answered, that we had, and that they had been promptly

returned. "The thing in agitation," says the Count, "is for you to determine whether your definitive treaty shall be signed under the mediation of the two Imperial Courts, or not. Ours and the Spanish treaty with England are to be so finished, and if you determine in favor of it, you have only to write a letter to the Ministers of the Imperial Courts, who are here." I told him, in the present case, I did not know what a mediation meant. He smiled, but did not seem to know any better than I; at least, he did not explain it. We told him we would determine upon it soon.

How we shall determine, I cannot say. For my own part, I see no harm in accepting the mediation, nor any other good, than a compliment to the two empires. In Europe it may be thought an honor to us, and, therefore, I shall give my voice, as at present informed, in favor of it, as it seems rather to be the inclination of the Count de Vergennes that we should.

Your late despatches, Sir, are not well adapted to give spirits to a melancholy man, or to cure one sick with a fever. It is not possible for me, at present, to enter into a long detail in answer to them. You will be answered, I suppose, by all the gentlemen jointly. In the meantime, I beg leave to say to you a few words upon two points.

1st. The separate article never appeared to me of any consequence to conceal from this Court. It was an agreement we had a right to make; it contained no injury to France or Spain. Indeed, I know not what France has, or ever had, to do with it. If it had been communicated to this Court, it would probably have been communicated to Spain, and she might have thought more about it than it was worth. But how you could conceive it possible for us to treat at all with the English, upon supposition, that we had communicated every, the minutest thing, to this Court, when this Court were neither obliged, nor thought proper, to communicate anything whatever to us, I know not. We were bound by treaty no more than they to communicate. The instructions were found to be absolutely impracticable. That they were too suddenly published, is very true.

2dly. A communication of the treaty to this Court, after it was agreed upon, and before it was signed, would have infallibly prevented the whole peace. In the first place, it was very doubtful, or rather, on the contrary, it is certain, the English Minister never would have consented that we should

have communicated it. We might, it is true, have done it without his consent or knowledge; but what would have been the consequence? The French Minister would have said, the terms were very good for us, but we must not sign till they signed; and this would have been the continuance of the war for another year, at least. It was not so much from an apprehension, that the French would have exerted themselves to get away from us terms that were agreed on, that they were withheld. It was then too late, and we have reasons to apprehend, that all of this kind had been done, which could be done. We knew they were often insinuating to the British Ministers things against us, respecting the fisheries, tories, &c. during the negotiation, and Mr Fitzherbert told me, that the Count de Vergennes had "fifty times reproached him for ceding the fisheries, and said it was ruining the English and French commerce both." It was not suspicion, it was certain knowledge, that they were against us on the points of the tories, fisheries, Mississippi, and the western country.

All this knowledge, however, did not influence us to conceal the treaty. We did not, in fact, conceal it. Dr Franklin communicated the substance of it to the Count and M. de Rayneval. So did I. In a long conversation with the Count and M. de Rayneval together, I told them the substance of what was agreed upon, and what we further insisted on, and the English then disputed. But the signing before them is the point. This we could not have done, if we had shown the treaty, and told them we were ready. The Count would certainly have said to us, you must not sign till we sign. To have signed after this would have been more disagreeable to him, and to us too. Yet we must have signed or lost the peace. The peace depended on a day.

Parliament had been waiting long, and once prorogued. The Minister was so pressed, he could not have met Parliament and kept his place, without an agreement upon terms, at least, with America. If we had not signed, the Ministry would have been changed, and the coalition come in, and the whole world knows the coalition would not have made peace upon the present terms, and, consequently, not at all this year. The iron was struck in the few critical moments when it was of a proper heat, and has been moulded into a handsome vessel. If it had been suffered to cool, it would have flown in pieces like glass. Our countrymen have great reason to rejoice, that they have obtained so good a peace, when, and as they did.

With the present threatening appearances of a northern war, which will draw in France, if our peace was still to be made we might find cause to tremble for many great advantages, that are now secured. I believe the Count himself, if he were now to speak his real sentiments, would say, he is very glad we signed when we did, and that without asking his consent.

The Duc de la Vauguyon told me and M. Brantzen together, last Saturday, "if you had not signed when you did, we should not have signed when we did." If they had not signed when they did, d'Estaing would have sailed from Cadiz, and in that case nobody would have signed to this day. It is not possible for men to be in more disagreeable circumstances than we were. We are none of us men of principles or dispositions to take pleasure in going against your sentiments, Sir, much less those of Congress. But in this case, if we had not done it, our country would have lost advantages beyond computation.

On Monday, Sir, we pursued our visits, and today we finish. Yesterday at Court all the foreign Ministers behaved to us without reserve, as members of the *Corps Diplomatique*, so that we shall no longer see those lowering countenances, solemn looks, distant bows, and other peculiarities, which have been sometimes diverting, and sometimes provoking, for so many years.

I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

Paris, July 10th, 1783.

Sir,

In the present violent heat of the weather, and feverish state of my health, I cannot pretend to sit long at my pen, and must pray you to accept of a few

short hints only.

To talk in a general style of confidence in the French Court, &c. is to use a general language, which may mean almost anything, or almost nothing. To a certain degree, and as far as the treaties and engagements extend, I have as much confidence in the French Court as Congress has, or even as you, Sir, appear to have. But if, by confidence in the French Court is meant an opinion, that the French Office of Foreign Affairs would be advocates with the English for our rights to the fisheries, or to the Mississippi river, or our Western Territory, or advocates to persuade the British Ministers to give up the cause of the refugees, and make Parliamentary provision for them, I own I have no such confidence, and never had. Seeing and hearing what I have seen and heard, I must have been an idiot to have entertained such confidence, I should be more of a Machiavelian, or a Jesuit, than I ever was, or will be, to counterfeit it to you, or to Congress.

M. Marbois' letter is to me full proof of the principles of the Count de Vergennes. Why? Because I know, (for it was personally communicated to me upon my passage home, by M. Marbois himself,) the intimacy and confidence there is between these two. And I know further, that letter contains sentiments concerning the fisheries, diametrically opposite to those, which Marbois repeatedly expressed to me upon the passage, viz. "That the Newfoundland fishery was our right, and we ought to maintain it." From whence I conclude, M. Marbois' sentiments have been changed by the instructions of the Minister. To what purpose is it where this letter came from? Is it less genuine, whether it came from Philadelphia, Versailles, or London? What if it came through English hands? Is there less weight, less evidence in it for that? Are the sentiments more just, or more friendly to us for that?

M. de Rayneval's correspondence too with Mr Jay. M. de Rayneval is a *Chef de Bureau*. But we must be very ignorant of all Courts not to know that an Under Secretary of State dares not carry on such a correspondence without the knowledge, consent, and orders of the principal.

There is another point now in agitation, in which the French will never give us one good word. On the contrary, they will say everything they can think of to persuade the English to deprive us of the trade of their West India

Islands. They have already, with their emissaries, been the chief cause of the change of sentiment in London on this head against us. In general they see with pain every appearance of returning real and cordial friendship, such as may be permanent between us and Great Britain. On the contrary, they see with pleasure every seed of contention between us. The tories are an excellent engine of mischief between us, and are, therefore, very precious.

Exclusion from the West India Islands will be another. I hold it to be the indispensable duty of my station, not to conceal from Congress these truths. Do not let us be dupes, under the idea of being grateful. Innumerable anecdotes happen daily to show, that these sentiments are general. In conversation, a few weeks ago, with the Duc de la Vauguyon, upon the subject of the West India trade, I endeavored to convince him, that France and England both ought to admit us freely to their islands. He entered into a long argument to prove, that both ought to exclude us. At last, I said, the English were a parcel of sots to exclude us, for the consequence would be, that in fifteen or twenty years we should have another war with them. "*Tant mieux! tant mieux! je vous en felicite,*" cried the Duke, with great pleasure. "*Tant mieux pour nous,*" said I, because we shall conquer from the English in that case all their islands, the inhabitants of which would now declare for us, if they dared. But it will not be the better for the English. They will be the dupes, if they lay a foundation for it. "Yes," said the Duke, "I believe you will have another war with the English." And in this wish he expressed the vows of every Frenchman upon the face of the earth. If, therefore, we have it in contemplation to avoid a future war with the English, do not let us have too much confidence in the French, that they will favor us in this view.

[6]

I have the honor to be, &c.

JOHN ADAMS.

FOOTNOTE:

[6] See a letter from Dr Franklin, containing remarks on Mr Adams's opinions of the policy and designs of the French Court, dated July the 22d, 1783. *Franklin's*

TO ROBERT MORRIS.

Paris, July 10th, 1783.

Sir,

Upon the receipt of the despatches by Barney, I sent off your letters for Messrs Willinks & Co. and I received last night an answer to the letter I wrote them upon the occasion. They have engaged to remit Mr Grand a million and a half of livres in a month, which has relieved Mr Grand from his anxiety.

This Court has refused to Dr Franklin any more money. They are apprehensive of being obliged to take a part in the northern war, and their own financiers have not enough of the confidence of the public to obtain money for their own purposes.

Your design of sending cargoes of tobacco and other things to Amsterdam, to Messrs Willinks & Co. is the best possible to support our credit there. The more you send, the more money will be obtained. Send a Minister too; residing there, he may promote it much. It is a misfortune, that I have not been able to be there, but this post cannot be deserted. Instruct your Minister to inquire whether the House of Hope could be persuaded to engage with Willinks in a new loan. This should be done with secrecy and discretion. If that House would undertake it, you would find money enough for your purpose, for I rely upon it, the States will adopt a plan immediately for the effectual payment of interest. This is indispensable. The foundation of a happy government can only be laid in justice; and as soon as the public shall see, that provision is made for this, you will no longer want money.

It is a maxim among merchants and monied men, that "every man has credit who does not want it." It is equally true of States. We shall want it but little longer, if the States make provision for the payment of interest, and

therefore we shall have enough of it. There is not a country in the world whose credit ought to be so good, because there is none equally able to pay.

Enclosed is a pamphlet of Dr Price's, for your comfort. You will see by it, that the only nation we have reason to fear wants credit so much, that she is not likely to have it always, and this is our security. By some hints from Mr Hartley, he will probably return to London, and not be here again. The present Ministry is so undecided and feeble, that it is at least doubtful whether they will make the definitive treaty of peace.

With great respect, &c.

JOHN ADAMS.

TO ROBERT MORRIS.

Paris, July 11th, 1783.

Sir,

In my letter to you of yesterday, I hinted in confidence, at an application to the house of Hope. This is a very delicate measure. I was induced to think of it merely by a conversation which M. Van Berckel, (who will soon be with you, as he sailed the 26th of June from the Texel,) had with M. Dumas. It would be better to be steady to the three Houses already employed, if that is possible. You will now be able to converse freely with that Minister upon the subject. I should not advise you to take any decisive resolution at Philadelphia, but leave it to your Minister to act as shall appear to him best upon the spot. The Houses now employed are well esteemed, and I hope will do very well. But no House in the Republic has the force of that of Hope.

All depends, however, upon the measures to be taken by Congress and the States for ascertaining their debts, and a regular discharge of the interest. The ability of the people to make such an establishment cannot be doubted;

and the inclination of no man who has a proper sense of public honor can be called in question. The Thirteen States, in relation to the discharge of the debts of Congress, must consider themselves as one body animated by one soul. The stability of our confederation at home, our reputation abroad, our power of defence, the confidence and affection of the people of one State towards those of another, all depend upon it. Without a sacred regard to public justice no society can exist; it is the only tie which can unite men's minds and hearts in pursuit of the common interest.

The commerce of the world is now open to us, and our exports and imports are of so large amount, and our connexions will be so large and extensive, that the least stain upon our character in this respect will lose us in a very short time advantages of greater pecuniary value than all our debt amounts to. The moral character of our people is of infinitely greater worth than all the sums in question. Every hesitation, every uncertainty about paying or receiving a just debt, diminishes that sense of moral obligation of public justice, which ought to be kept pure, and carefully cultivated in every American mind. Creditors at home and abroad, the army, the navy, every man who has a well founded claim upon the public, have an unalienable right to be satisfied, and this by the fundamental principles of society. Can there ever be content and satisfaction? Can there ever be peace and order? Can there ever be industry or decency without it? To talk of a sponge to wipe out this debt, or of reducing or diminishing it below its real value, in a country so abundantly able to pay the last farthing, would betray a total ignorance of the first principles of national duty and interest.

Let us leave these odious speculations to countries that can plead a necessity for them, and where corruption has arrived at its last stages; where infamy is scarcely felt, and wrong may as well assume one shape as another, since it must prevail in some.

I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

Paris, July 11th, 1783.

Sir,

As there are certain particulars, in which it has appeared to me, that the friendship of a French Minister has been problematical, at least, or rather, not to exist at all, I have freely mentioned them to Congress; because I hold it to be the first duty of a public Minister, in my situation, to conceal no important truth of this kind from his masters.

But ingratitude is an odious vice, and ought to be held in detestation by every American citizen. We ought to distinguish, therefore, between those points, for which we are not obliged to our allies, from those in which we are.

I think, then, we are under no particular obligations of gratitude to them for the fisheries, the boundaries, exemption from the tories, or for the progress of our negotiations in Europe.

We are under obligations of gratitude, for making the treaty with us when they did; for those sums of money, which they have generously given us, and for those, even, which they have lent us, which I hope we shall punctually pay, and be thankful still for the loan; for the fleet and army they sent to America, and for all the important services they did. By other mutual exertions, a dangerous rival to them, and I may be almost warranted in saying, an imperious master, both to them and us, has been brought to reason, and put out of the power to do harm to either. In this respect, however, our allies are more secure than we. The House of Bourbon has acquired a great accession of strength, while their hereditary enemy has been weakened one half, and incurably crippled.

The French are, besides, a good natured and humane nation, very respectable in arts, letters, arms, and commerce, and, therefore, motives of interest, honor, and convenience, join themselves to those of friendship and gratitude, to induce us to wish for the continuance of their friendship and alliance. The Provinces of Canada and Nova Scotia in the hands of the

English are a constant warning to us to have a care of ourselves, and, therefore, a continuance of the friendship and alliance of France is of importance to our tranquillity, and even to our safety. There is nothing, which will have a greater effect to overawe the English, and induce them to respect us and our rights, than the reputation of a good understanding with the French. My voice and advice will, therefore, always be for discharging, with the utmost fidelity, gratitude, and exactness, every obligation we are under to France, and for cultivating her friendship and alliance by all sorts of good offices. But I am sure, that to do this effectually, we must reason with them at times, enter into particulars, and be sure that we understand one another. We must act a manly, honest, independent, as well as a sensible part.

With great respect, I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

Paris, July 12th, 1783.

Sir,

Reports have been spread, that the Regency of Algiers has been employed in fitting out ships to cruise for American vessels. There are reports too, that Spain has an armament prepared to attack their town. How much truth there may be in either, I cannot pretend to say.

Whether Congress will take any measures for treating with these piratical States, must be submitted to them. The custom of these Courts, as well as those of Asia and Africa, is to receive presents with Ambassadors. The Grand Pensionary of Holland told me, that the Republic paid annually to the Regency of Algiers a hundred thousand dollars. I hope a less sum would serve for us; but in the present state of our finances, it would be difficult to make any payment. Mr Montgomery, of Alicant, has ventured to write a

letter to the Emperor of Morocco, in consequence of which, his Majesty was pleased to give orders to all his vessels to treat American vessels with all friendship. Mr Montgomery ventured too far, however, in writing in the name of the United States, and what will be the consequences of the deception I know not.

Dr Franklin lately mentioned to Mr Jay and me, that he was employed in preparing, with the Portuguese Ambassador, a treaty between the United States and Portugal. The next Ambassador's day at Versailles, I asked him if we could be admitted to the Brazils? He said, no, they admitted no nation to the Brazils. I asked, if we were admitted to the Western Islands? He said he thought Madeira was mentioned. I told him, I thought it would be of much importance to us to secure an admission to all the Azores, and to have these Islands, or some of them, made a depot for the sugars, coffee, cotton, and cocoa, &c. of the Brazils. He liked this idea, and went immediately, and spoke to the Ambassador upon it. He said, the Ambassador had told him, that they could furnish us with these articles at Lisbon, fifteen per cent cheaper than the English could from their West India Islands.

This treaty, I suppose, will be submitted to Congress before it is signed, and I hope Congress will give a close attention to it, in order to procure an exemption from as many duties as possible, and as much freedom and security of trade in all their ports of Europe and the Western Islands as possible. If any particular stipulations should be necessary, concerning the free admission of all the articles of our produce, as rice, wheat, flour, salt-fish, or any other, the members of Congress may readily suggest them.

I could wish that the Court of Lisbon had sent a Minister to Philadelphia to negotiate a treaty there. I wish that advantages may not be lost by this method of preparing treaties here, by Ministers who have made no particular study of the objects of them.^[7] Benefits on both sides may escape attention in this way. A good treaty with Portugal is of so much consequence to us, that I should not wonder if Congress should think it necessary to send a Minister to Lisbon to complete it.

I have the honor to be, &c.

JOHN ADAMS.

FOOTNOTE:

[\[Z\]](#) See the draft of a Treaty with Portugal, in *Franklin's Correspondence*, Vol. IV. p. 150.

TO ROBERT R. LIVINGSTON.

Paris, July 13th, 1783.

Sir,

Yesterday Colonel Ogden arrived with the originals of what we had before received in duplicates by Captain Barney. The ratification of the Dutch treaty had been before received and exchanged. The ratification of their High Mightinesses is in the safe custody of M. Dumas, at present at the Hague.

I believe we shall accept of the mediation of the two Imperial Courts at the definitive treaty, as it is a mere formality, a mere compliment, consisting wholly in the Imperial Ministers putting their names and seals to the parchment, and can have no ill effect. The inclination of the Count de Vergennes seems to be, that we should accept it, and as he calls upon us to decide in the affirmative or negative, I believe we shall give an answer in the affirmative.

The Empress has promised to receive Mr Dana, as soon as the definitive treaty shall be signed, and he has prepared a treaty of commerce, which will be valuable if he can obtain it.

The Emperor of Germany has caused to be intimated several ways, his inclination to have a treaty of commerce with us; but his rank is so high, that his House never makes the first formal advance. I should think it advisable, that we should have a treaty with that power for several reasons.

1st. Because, as Emperor of Germany, and King of Bohemia and Hungary, he is at the head of one of the greatest interests and most powerful connexions in Europe. It is true it is the greatest weight in the scale, which is, and has been, from age to age, opposite to the House of Bourbon. But for this very reason, if there were no other, the United States ought to have a treaty of commerce with it, in order to be in practice with their theory, and to show to all the world, that their system of commerce embraces, equally and impartially, all the commercial States and countries of Europe.

2dly. Because the present Emperor is one of the greatest men of this age. The wisdom and virtue of the man, as well as of the monarch; his personal activity, intelligence, and accomplishments; his large and liberal principles in matters of religion, government, and commerce, are so much of kin to those of our States, (perhaps indeed so much borrowed from them, and adopted in imitation of them,) that it seems peculiarly proper we should show this respect to them.

3dly. Because, that if England should ever forget herself again so much as to attack us, she may not be so likely to obtain the alliance or assistance of this Power against us. A friendship once established in a treaty of commerce, this power would never be likely to violate, because she has no dominions near us, and could have no interest to quarrel with us.

4thly. Because the countries belonging to this power upon the Adriatic sea, and in the Austrian Flanders, are no inconsiderable sources of commerce for America. And if the present negotiations between the two Imperial Courts and the Porte shall terminate in a free navigation of the Danube, the Black sea, and the Archipelago, the Emperor's hereditary dominions will become very respectable commercial countries.

5thly. Because, although we have at present a pleasant and joyful prospect of friendship and uninterrupted alliance with the House of Bourbon, which I wish may never be obscured, yet this friendship and alliance will be the more likely to continue unimpaired, for our having the friendship and commerce of the House of Austria. And (as in the vicissitudes of human affairs all things are possible) if in future times, however unlikely at present, the House of Bourbon should deal unjustly by us, demand of us things we are not bound to perform, or any way injure us we may find in the

alliance, of Austria, England, and Holland a resource against the storm. Supernumerary strings to our bow, and provisions against possible inconveniences, however improbable, can do us no harm.

If we were not straitened for money, I should advise Congress to send a Minister to Vienna. But as every Mission abroad is a costly article, and we find it difficult, at present, to procure money for the most necessary purposes, I should think it proper for Congress to send a commission to their Minister at Versailles, London, Madrid, Petersburg, or the Hague, who might communicate it to the Court of Vienna, by means of the Imperial Ambassador. The Emperor in such a case would authorize his Ambassador at that Court to prepare and conclude a treaty, and in this way the business may be well done, without any additional expense.

M. Favi, *Chargé d'Affaires* of the Grand Duke of Tuscany, the Emperor's brother, has called upon me so often to converse with me upon this subject, that I doubt not he has been employed, or at least knows that it would be agreeable to his Court and their connexions, although he has never made any official insinuations about it. This gentleman has been employed by the Republic of Ragusa to consult American Ministers upon the subject of commerce too. I have told him, that the American ports were open to the Ragusan Vessels, as well as to all others, and have given him the address, by which they propose to write to Congress.

I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

Paris, July 14th, 1783.

Sir,

A jealousy of American ships, seamen, carrying-trade, and naval power, appears every day more and more conspicuous. This jealousy, which has been all along discovered by the French Minister, is at length communicated to the English. The following proclamation, which will not increase British ships and seamen in any proportion as it will diminish those of the United States, will contribute effectually to make America afraid of England, and attach herself more closely to France. The English are the dupes, and must take the consequences.

This proclamation is issued in full confidence, that the United States have no confidence in one another; that they cannot agree to act in a body as one nation; that they cannot agree upon any navigation act, which may be common to the Thirteen States. Our proper remedy would be to confine our exports to American ships, to make a law, that no article should be exported from any of the States in British ships, nor in the ships of any nation, which will not allow us reciprocally to import their productions in our ships. I am much afraid there is too good an understanding upon this subject between Versailles and St James's.

Perhaps it may be proper for Congress to be silent upon this head until New York, Penobscot, &c. are evacuated. But I should think, that Congress would never bind themselves by any treaty built upon such principles. They should negotiate, however, without loss of time, by a Minister in London. A few weeks' delay may have unalterable effects.

PROCLAMATION

At the Court of St James, the 2d of July, 1783.

Present, the King's Most Excellent Majesty in Council.

"Whereas, by an Act of Parliament, passed this session, entitled an 'Act for preventing certain instruments from being required from ships belonging to the United States of America, and to give his Majesty, for a limited time, certain powers for the better carrying on trade and commerce, between the subjects of his Majesty's dominions, and the inhabitants of the said United States;' it is amongst other things enacted, that, during the

continuance of the said act, 'it shall and may be lawful for his Majesty in Council, by order or orders to be issued and published from time to time, to give such directions, and to make such regulations, with respect to duties, drawbacks, or otherwise, for carrying on the trade and commerce between the people and territories belonging to the Crown of Great Britain, and the people and territories of the said United States, as to his Majesty in Council shall appear most expedient and salutary, any law, usage, or custom to the contrary notwithstanding;' his Majesty doth, therefore, by and with the advice of his Privy Council, hereby order and direct, that pitch, tar, turpentine, hemp and flax, masts, yards, and bowsprits, staves, heading, boards, timber, shingles, and all other species of lumber, horses, neat cattle, sheep, hogs, poultry, and all other species of live stock, and live provisions; peas, beans, potatoes, wheat, flour, bread, biscuit, rice, oats, barley, and all other species of grain, being the growth, or production of any one of the United States of America, may, until further order, be imported by British subjects, in British built ships, owned by his Majesty's subjects, and navigated according to law, from any port of the United States of America, to any of his Majesty's West India Islands; and that rum, sugar, molasses, coffee, cocoa-nuts, ginger, and pimento, may, until further order, be exported by British subjects, in British built ships, owned by his Majesty's subjects, and navigated according to law, from any of his Majesty's West India Islands, and to any port or place within the said United States, upon payment of the same duties on exportation, and subject to the like rules, regulations, securities, and restrictions, as the same articles by law are, or may be, subject and liable to, if exported to any British colony or plantation in America. And the Right Honorable the Lords Commissioners of his Majesty's Treasury, and the Lords Commissioners of the Admiralty, are to give the necessary directions herein, as to them may respectively appertain.

STEPHEN
COTTRELL."

One of the most remarkable things in this proclamation is, the omission of salt-fish, an article, which the islands want as much as any that is enumerated. This is, no doubt, to encourage their own fishery, and that of Nova Scotia, as well as a blow aimed at ours. There was, in a former proclamation concerning the trade between the United States and Great Britain, an omission of the articles of *potash* and *pearlash*. These omissions discover a *choice love* for New England. France, I am afraid, will exclude fish too, and imitate this proclamation but too closely; if, indeed, this proclamation is not an imitation of their system adopted, as I believe it is, upon their advice and desire.

These, however, are important efforts. Without saying, writing, or resolving anything suddenly, let us see what remedies or equivalents we can obtain from Holland, Portugal and Denmark. Let us bind ourselves to nothing, but reserve a right of making navigation acts when we please, if we find them necessary or useful. If we had been defeated of our fisheries, we should have been wormed out of all our carrying-trade too, and should have been a mere society of cultivators, without any but a passive trade. The policy of France has succeeded, and laid, in these proclamations, if persisted in, the sure source of another war between us and Great Britain.

The English nation is not, however, unanimous in this new system, as Congress will see by the enclosed speculations,^[8] which I know to have been written by a confidential friend of my Lord Shelburne; I mean Mr Benjamin Vaughan. This Minister is very strong in the House of Lords, and Mr Pitt, in the House of Commons, has attached to him many members in the course of this session. If that set should come in again, we shall have a chance of making an equitable treaty of commerce. To this end a Minister must be ready; and I hope in mercy to our country, that such an opportunity will not be lost in delays, in compliance to our allies.

I have the honor to be, &c.

JOHN ADAMS.

FOOTNOTE:

TO ROBERT R. LIVINGSTON

Paris. July 14th, 1783.

Sir,

The United States of America have propagated far and wide in Europe the ideas of the liberty of navigation and commerce. The powers of Europe, however, cannot agree, as yet, in adopting them in their full extent. Each one desires to maintain the exclusive dominion of some particular sea, or river, and yet to enjoy the liberty of navigating all others. Great Britain wishes to preserve the exclusive dominion of the British seas, and, at the same time, to obtain of the Dutch a free navigation of all the seas in the East Indies. France has contended for the free use of the British and American seas; yet she wishes to maintain the Turks in their exclusive dominion of the Black sea, and of the Danube, which flows into it through some of their Provinces, and of the communication between the Black Sea and the Archipelago, by the Dardanelles. Russia aims at the free navigation of the Black Sea, the Danube, and the passage by the Dardanelles, yet she contends, that the nations, which border on the Baltic, have a right to control the navigation of it. Denmark claims the command of the passage of the Sound, and by the late Marine Treaty between the neutral powers, it was agreed, that the privateers of all the belligerent powers should be excluded from the Baltic. France and Spain too begin to talk of an exclusive dominion of the Mediterranean, and of excluding the Russian fleet from it; or, at least, France is said to have menaced Russia with a fleet of observation in the Mediterranean, to protect her commerce to the trading seaport towns of the Levant. But, as England possesses Gibraltar, and the Emperor of Morocco the other side of the Straits, France and Spain cannot command the entrance; so that it will be difficult for them to support their pretensions to any exclusive dominion of the Mediterranean, upon the

principle on which the northern powers claim that of the Baltic, and the Porte the passage of the Dardanelles.

France, at present, enjoys a large share of the trade to the Levant. England has enjoyed a share too, and wishes, no doubt, to revive it. The Emperor and the Empress, if they succeed in their views of throwing open the Danube, Black Sea, and Archipelago, will take away from France and England a great part of this trade; but it is not likely that England will join with France in any opposition to the Emperor and Empress.

In order to judge of the object, which the two Empires have in view, we should look a little into the geography of those countries.

The project of setting at liberty the whole country of ancient Greece, Macedonia, and Illyricum, and erecting independent Republics in those famous seats, however splendid it may appear in speculation, is not likely to be seriously entertained by the two Empires, because it is impracticable. The Greeks of this day, although they are said to have imagination and ingenuity, are corrupted in their morals to such a degree, as to be a faithless, perfidious race, destitute of courage, as well as of those principles of honor and virtue, without which nations can have no confidence in one another, nor be trusted by others.

The project of conquering the Provinces of Albania, Romelia, Wallachia, Moldavia, and Little Tartary, from the Turks, and dividing them between the two Empires, may be more probable; but the Turks, in Asia and Europe together, are very powerful, and, if thoroughly awakened, might make a great resistance; so that it is most probable, the two Imperial Courts would be content, if they could obtain by negotiation, or by arms, the free navigation of the Danube, Black Sea, and Archipelago. This freedom alone would produce a great revolution in the commerce of Europe. The river Don or Tanais, with its branches, flows through the Ukraine, and a considerable part of the Russian dominions, into the Black Sea. The Danube flows very near Trieste, through the Kingdom of Hungary, and then through a Turkish Province into the Black Sea. If, therefore, the Black Sea and the Danube only were free, a communication would be immediately opened between Russia and Hungary quite to Trieste, to the great advantage of both Empires. But if, at the same time, the passage of the Dardanelles was laid

open, all the Levant trade would be opened to the two Empires, and might be carried to Trieste, either by the Danube, or through the Archipelago and the Gulf of Venice. This would be such an accession of wealth, commerce, and naval power to the two Empires, as France is jealous of, and may be drawn into a war to prevent.

It is a question how the King of Prussia will act. It is the general opinion, that, as he is advanced in years, loves and enjoys his laurels and his ease, and cannot hope to gain anything by the war, he will be neuter. If he is, the issue cannot be foreseen. The Emperor is vastly powerful, and his preparations are immense. Perhaps France may not think it prudent to declare war. I should be sorry to see her again involved in a war, especially against the principles she has lately espoused with so much glory and advantage.

For my own part, I think nature wiser than all the Courts and States in the world, and, therefore, I wish all her seas and rivers upon the whole globe free, and am not at all surprised at the desire of the two Empires to set those near them at liberty.

I think, however, that whatever turn these negotiations may take, they cannot directly affect us, although we may be remotely interested in the freedom of the Levant trade, and of the seas and rivers in the neighborhood of it.

I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

Paris, July 15th, 1783.

Sir,

Enclosed are copies of papers, which have passed between Mr Hartley and the American Ministers. We have not thought it prudent to enter into any written controversy with him, upon any of these papers. We have received whatever he has offered us. But he has offered nothing in the name of his Court, has signed nothing, and upon inquiry of him we have found that he has never had authority to sign officially any proposition he has made.

I think it is evident, that his principals, the coalition, do not intend to make any agreement with us about trade, but to try experiments by their proclamations. I think, too, that they mean to postpone the definitive treaty as long as possible. We can get no answer, and I believe Mr Hartley gets no decisive answers to anything.

Enclosed also is a pamphlet, entitled, "Observations on the American States," said to have been published by Lord Sheffield, and to have been composed by four American renegadoes. The spirit of it needs no comments. It deserves to be attended to, however, by Congress. It is a fatal policy, as it appears to me, to see a British Ambassador at Versailles, and a French Ambassador at St James's, and no American Minister at the latter. This is admired at Versailles, I doubt not, but not because they think it for our interest.

I have the honor to be, with great respect, Sir, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

Paris, July 16th, 1783.

Sir,

Yesterday we waited on the Count de Vergennes at Versailles, and showed him the project of a letter to the Ministers of the two Imperial Courts, which he read and approved. We told him, that we were at a loss what might be the

effect of the mediation; possibly we might be involved in difficulties by it; possibly the British Ministers might persuade the mediators to offer us their advice upon some points, respecting the royalists for example, which we could not comply with. The Count said, that he had told them, that as soon as he had fully agreed with England upon all points, their mediation should be accepted, and they should sign the treaty as such; and we might agree to it in the same manner. He said we were not obliged to this, but as they were to be present and sign one treaty, it would look better to sign both. It would be a very notorious, public, and respectable acknowledgment of us, as a power, by those Courts. Upon this footing we left the letter with him to be shown to the Imperial Ministers.

We asked the Count if he had seen the British proclamation of the 2d of July. He answered, that he had. I asked him if the King had determined anything on the subject of salt provisions, and salt-fish, whether we might import them into his islands. He said we might depend upon it, they could not supply their islands with fish, that we had two free ports in their islands, St Lucia, and a port in Martinique. By the thirtysecond article of the Treaty of Commerce, these free ports are secured to us; nothing, he said, was determined concerning salt beef and pork, but the greatest difficulty would be about flour. I told the Count, that I did not think it would be possible either for France or England to carry on this commerce between the islands and continent; it was profitable to us only as it was a part of a system; that it could not be carried on without loss in large vessels, navigated by many seamen, which could sail only at certain seasons of the year, &c. Upon the whole, I was much pleased with this conversation, and conclude from it, that we shall do very well in the French West India Islands, perhaps the better in them the worse we are treated by the English.

The Dutch and Danes will, I doubt not, avail themselves of every error, that may be committed by France or England. It is good to have a variety of strings to our bow; and, therefore, I wish we had a Treaty of Commerce with Denmark, by which a free admission of our ships into their ports in the West Indies might be established. By means of the Dutch, Danes, and Portuguese, I think we shall be able to obtain finally proper terms of France and England.

The British proclamation of the 2d of this month, is the result of refugee politics; it is intended to encourage Canada and Nova Scotia, and their fisheries, to support still the ruins of their navigation act, and to take from us the carriage even of our own productions. A system, which has in it so little respect for us, and is so obviously calculated to give a blow to our nurseries of ships and seamen, could never have been adopted but from the opinion, that we had no common legislature for the government of commerce.

All America from the Chesapeake Bay to St Croix I know love ships and sailors, and those ports to the southward of that bay have advantages for obtaining them when they will, and therefore I hope the Thirteen States will unite in some measures to counteract this policy of Britain, so evidently selfish, unsocial, and I had almost said hostile. The question is, what is to be done? I answer, perhaps it will be most prudent to say little about it at present, and until the definitive treaty is signed, and the States evacuated. But after that, I think in the negotiation of a treaty of commerce with Great Britain, Congress should tell them, that they have the means of doing justice to themselves. What are these means? I answer, let every State in the Union lay on a duty of five per cent on all West India articles imported in British ships, and upon all their own productions exported in British ships. Let this impost be limited in duration, until Great Britain shall allow our vessels to trade to their West Indies. This would effectually defeat their plan, and encourage our own carrying trade more than they can discourage it.

Another way of influencing England to a reasonable conduct, is to take some measures for encouraging the growth in the United States, of West India articles; another is to encourage manufactures, especially of wool and iron among ourselves. As tilt-hammers are now not unlawful, and wool may be water-borne, much more may be done now than could have been done before the war. But the most certain method is, to lay duties on exports and imports by British ships. The sense of a common interest and common danger, it is to be hoped, will induce a perfect unanimity among the States in this respect. There are other ways of serving ourselves, and making impressions upon the English to bring them to reason. One is to send ships immediately to China. This trade is as open to us as to any nation, and if our

natural advantages at home are envied us, we should compensate ourselves in any honest way we can.

Our natural share in the West India trade, is all that is now wanting to complete the plan of happiness and prosperity of our country. Deprived of it, we shall be straitened and shackled in some degree. We cannot enjoy a free use of all our limits without this; with it, I see nothing to desire, nothing to vex or chagrin our people, nothing to interrupt our repose or keep up a dread of war.

I know not what permission may be expected from Spain to trade to the Havana, but should think that this resource ought not to be neglected.

I confess I do not like the complexion of British politics. They are mysterious and unintelligible. Mr Hartley appears not to be in the secret of his Court. The things which happen appear as unexpected to him as to us. Political jealousies and speculations are endless. It is possible the British Ministers may be secretly employed, in fomenting the quarrel between the two Imperial Courts and the Porte, and in secretly stirring up the French to join the Turks in the war. The prospect of seeing France engaged in a war may embolden them to adopt a system less favorable to us. The possibility of these things should stimulate us, I think, to form as soon as possible treaties of commerce with the principal powers, especially the Imperial Courts, that all our questions may be decided. This will be a great advantage to us, even if we should afterwards be involved in a war. I put this supposition with great reluctance. But if England should in the course of a few years or months have the art to stir up a general war in Europe, and get France and Spain seriously involved in it, which is at least a possible case, she may assume a tone and conduct towards us, which will make it very difficult for us to avoid taking a part in it. If such a deplorable circumstance should take place, it will be still a great advantage to us, to have our sovereignty explicitly acknowledged by these powers, against whom we may be unfortunately obliged to act. At present they are all disposed to it, and seem desirous of forming connexions with us, that we may be out of the question.

The politics of Europe are such a labyrinth of profound mysteries, that the more one sees of them, the more causes of uncertainty and anxiety he

discovers.

The United States will have occasion to brace up their confederation, and act as one body with one spirit. If they do not, it is now very obvious, that Great Britain will take advantage of it in such a manner as will endanger our peace, our safety, and even our very existence.

A change of Ministry may, but it is not certain that it will, give us better prospects.

I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

Paris, July 17th, 1783.

Sir,

Last evening Mr Hartley spent two hours with me, and appeared much chagrined at the proclamation, which had never been communicated to him by his principals. He has too much contempt of the commercial abilities of the French, and, consequently said, that the French could derive but little benefit from this step of his Court, but he thought the Dutch would make a great advantage of it. I endeavored to discover from him, whether he suspected that his Court had any hand in stirring up the two Imperial Courts to make war upon the Turks. I asked him what was the state of their Mediterranean trade, and Levant trade. He said, it was dead, and that their Turkey Company was dead, and, therefore, he did not think his Court cared much about either, or would ever do anything to prevent the Empires. He thought it possible, that they might rather encourage them.

I am quite of Mr Hartley's mind, that the Dutch will profit by all the English blunders in regulating the West India trade, and am happy that M. Van

Berckel will be soon with Congress, when its members and Ministers may communicate through him anything they wish to their High Mightinesses. They may inquire of him what are the rights of the East and West India Companies? To what an extent our vessels may be admitted to Surinam, Curaçoa, Demerara, Essequibo, Berbice, St Eustatia? What we may be allowed to carry there? and what bring from thence to the United States, or to Europe? Whether we may carry sugars, &c. to Amsterdam, Rotterdam, &c.? There are at Rotterdam and Amsterdam one hundred and twentyseven or eight refineries of sugar. How far these may be affected, &c.?

I lay it down for a rule, that the nation which shall allow us the most perfect liberty to trade with her Colonies, whether it be France, England, Spain, or Holland, will see her Colonies flourish above all others, and will draw proportionally our trade to themselves; and I rely upon it, the Dutch will have sagacity to see it, and as they are more attentive to mercantile profit, than to a military marine, I have great hopes from their friendship. As there will be an interval before the signature of the definitive treaty, I propose a journey of three weeks, to Amsterdam and the Hague, in hopes of learning in more detail the intentions of the Dutch in this respect. I am in hopes too of encouraging the loan to assist our Superintendent of Finance. The Dutch may be a great resource to us in finance and commerce. I wish that cargoes of produce may be hastened to Amsterdam to Messrs Willinks & Co. for this will give vigor to the loan, and all the money we can prevent England and the two Empires from obtaining in Holland, will not only be nerves for us, but, perhaps, be useful too to France in her negotiations.

I have spent the whole forenoon in conversation with the Duc de la Vauguyon. He thinks that England wishes to revive her trade to the Levant, to Smyrna, Aleppo, &c. and her carrying trade in Italy; and although she might be pleased to see France involved in a war with the Emperor and Empress, yet he thinks her funds are not in a condition to afford subsidies to either, and, therefore, that she will be perfectly neutral. Quere, however, whether if by a subsidy or a loan of a million or two a year, she could make France spend eight or ten millions, she would not strive hard to do it? The Duke thinks, that France will proceed softly, and endeavor, if possible, to avert the furious storm that threatens, and to compose the disputes of the three Empires, if possible; but she will never suffer such a usurpation as the

conquest of the Turkish Provinces in Europe. France will certainly defend Constantinople. He thinks that the Empress of Russia has not revenues, and cannot get cash to march and subsist vast armies, and to transport great fleets, and that the Emperor has not revenues to support a long war.

This is, however, a serious business, and France lays it so much to heart, and looks upon the chance of her being obliged to arm, as so probable, that I presume this to be the principal motive of her refusal to lend us two or three millions of livres more.

As to our West India questions, the Duke assures me, that the French Ministry, particularly the Count de Vergennes, are determined to do everything they can consistent with their own essential interests, to favor and promote the friendship and commerce between their country and ours. That they, especially the Count, are declared enemies of the French fiscal system, which is certainly the most ruinous to their commerce, and intend to do everything they can to make alterations to favor commerce; but no change can be made in this, without affecting their revenues, and making voids, failures, and deficiencies, which they cannot fill up. They must, therefore, proceed softly. That France would favor the commerce between Portugal and America, because it would tend to draw off that kingdom from her dependence on England. That England, by her commercial treaty with the Portuguese, in 1703, has turned them into an English Colony, made them entirely dependent, and secured a commerce with them of three millions value. France would be glad to see this, or as much of it as possible, turned to America.

The Duke agrees fully with me in the maxim, that those Colonies will grow the most in wealth, improvement, population, and every sort of prosperity, which are allowed the freest communication with us, and that we shall be allowed to carry lumber, fish, and live stock, to their islands, but that the export of their sugars to us, he thinks, must be in their own ships, because they are afraid of our becoming the carriers of all their commerce, because they know and say, that we can do it cheaper than they can. These sentiments are different from those, which he mentioned to me a few days ago, when he said, the West India trade with us must be carried on in French bottoms.

The Duke said, the English had been trying to deceive us, but were now developing their true sentiments. They pretended, for awhile, to abolish the navigation act and all distinctions, to make one people with us again, to be friends, brothers, &c. in hopes of drawing us off from France, but not finding success, they were now showing their true plan. As to the pretended system of Shelburne, of a universal free commerce, although he thought it would be for the good of mankind in general, yet, for an English Minister, it was the plan of a madman, for it would be the ruin of that nation. He did not think Shelburne was sincere in it; he only meant an illusion to us. Here I differ from the Duke, and believe, that the late Ministry were very sincere towards us, and would have made a treaty with us, at least to revive the universal trade between us, upon a liberal plan. This doctrine of ruin, from that plan, to the English, has been so much preached of late in England by the French and the American refugees, who aim at establishments in Canada and Nova Scotia, and by the old Butean administration and their partisans, that I do not know whether any Ministry could now support a generous plan. But if Temple, Thurlow, Shelburne, Pitt, &c. should come in, I should not despair of it. It is true, the Shelburne administration did encourage the ideas of cordial, perfect friendship, of entire reconciliation of affections, of making no distinction between their people and ours, especially between the inhabitants of Canada and Nova Scotia and us, and this, with the professed purpose of destroying all seeds of war between us. These sentiments were freely uttered by Fitzherbert, Oswald, Whiteford, Vaughan, and all who had the confidence of that Ministry; and in these sentiments they were, I believe, very sincere. And they are, indeed, the only means of preventing a future war between us and them, and so sure as they depart from that plan, so sure, in less than fifteen years, perhaps less than seven, there will break out another war. Quarrels will arise among fishermen, between inhabitants of Canada and Nova Scotia and us, and between their people and ours in the West Indies, in our ports, and in the ports of the three kingdoms, which will breed a war in spite of all we can do to prevent it. France sees this and rejoices in it, and I know not whether we ought to be sorry; yet I think we ought to make it a maxim to avoid all wars, if possible; and to take care that it is not our fault if we cannot. We ought to do everything, which the English will concur in, to remove all causes of jealousies, and kill all the seeds of hostility as effectually as we can; and to be upon our guard to prevent the French, Spaniards, and Dutch, from

sowing the seeds of war between us, for we may rely upon it they will do it if they can.

I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

Paris, July 18th, 1783.

Sir,

There is cause to be solicitous about the state of things in England. The present Ministry swerve more and more from the true system, for the prosperity of their country and ours. Mr Hartley, whose sentiments are at bottom just, is probably kept here, if he was not sent at first, merely to amuse us, and to keep him out of the way of embarrassing the coalition. We need not fear, that France and England will make a common cause against us, even in relation to the carrying-trade to and from the West Indies. Although they may mutually inspire into each other false notions of their interests at times, yet there can never be a concert of operations between them. Mutual enmity is bred in the blood and bones of both, and rivals and enemies at heart they eternally will be.

In order to induce both to allow us our natural right to the carrying-trade, we must negotiate with the Dutch, Danes, Portuguese, and even with the Empires; for the more friends and resources we have, the more we shall be respected by the French and English; and the more freedom of trade we enjoy with the Dutch possessions in America, the more will France and England find themselves necessitated to allow us.

The present Ministers in England have very bad advisers; the refugees, and emissaries of various other sorts, and we have nobody to watch and counteract, to correct or prevent anything.

The United States will soon see the necessity of uniting in measures to counteract their enemies, and even their friends. What powers Congress should have for governing the trade of the whole, for making or recommending prohibitions, or imposts, deserves the serious consideration of every man in America. If a constitutional legislative authority cannot be given them, a sense of common danger and necessity should give to their recommendations all the force upon the minds of the people, which they had six years ago.

If the union of the States is not preserved, and even their unity, in many great points, instead of being the happiest people under the sun, I do not know but we may be the most miserable. We shall find our foreign affairs the most difficult to manage of any of our interests; we shall see and feel them disturbed by invisible agents, and causes, by secret intrigues, by dark and mysterious insinuations, by concealed corruptions of a thousand sorts. Hypocrisy and simulation will assume a million of shapes; we shall feel the evil, without being able to prove the cause. Those, whose penetration reaches the true source of the evil, will be called suspicious, envious, disappointed, ambitious. In short, if there is not an authority sufficiently decisive to draw together the minds, affections, and forces of the States, in their common foreign concerns, it appears to me we shall be the sport of transatlantic politicians of all denominations, who hate liberty in every shape, and every man who loves it, and every country that enjoys it. If there is no common authority, nor any common sense to secure a revenue for the discharge of our engagements abroad for money, what is to become of our honor, our justice, our faith, our universal, moral, political, and commercial character? If there is no common power to fulfil engagements with our citizens, to pay our soldiers, and other creditors, can we have any moral character at home? Our country will become the region of everlasting discontents, reproaches, and animosities, and instead of finding our independence a blessing, we shall soon become Cappadocians enough to wish it done away.

I may be thought gloomy, but this ought not to discourage me from laying before Congress my apprehensions. The dependence of those who have designs upon us, upon our want of affection to each other, and of authority over one another, is so great, that in my opinion, if the United States do not

soon show to the world a proof, that they can command a common revenue to satisfy their creditors at home and abroad, that they can act as one people, as one nation, as one man, in their transactions with foreign nations, we shall be soon so far despised, that it will be but a few years, perhaps but a few months only, before we are involved in another war.

What can I say in Holland, if a doubt is started, whether we can repay the money we wish to borrow? I must assure them in a tone, that will exclude all doubt that the money will be repaid. Am I to be hereafter reproached with deceiving the money-lenders? I cannot believe there is a man in America, who would not disdain the supposition, and therefore I shall not scruple to give the strongest assurances in my power. But if there is a doubt in Congress, they ought to recall their borrowers of money.

I shall set off tomorrow for Holland, in hopes of improving my health, at the same time that I shall endeavor to assist the loan, and to turn the speculations of the Dutch merchants, capitalists and statesmen, towards America. It is of vast importance that the Dutch should form just ideas of their interests respecting the communication between us and their islands, and other colonies in America. I beg that no time may be lost in commencing conferences with M. Van Berckel upon this subject, as well as that of money; but this should not be communicated to the French nor the English, because we may depend upon it, both will endeavor to persuade the Dutch to adopt the same plan with themselves. There are jealousies on both sides the Pass of Calais, of our connexions and negotiations with the Dutch. But while we avoid as much as we can to inflame this jealousy, we must have sense and firmness and independence enough not to be intimidated by it, from availing ourselves of advantages, that Providence has placed in our power. There ever have been, and ever will be, suspicions of every honest, active, and intelligent American, and there will be as there have been insidious attempts to destroy or lessen your confidence in every such character. But if our country does not support her own interests, and her own servants, she will assuredly fall. Persons, who study to preserve or obtain the confidence of America, by the favor of European statesmen, or Courts, must betray their own country to preserve their places.

For my own part, I wish Mr Jay and myself almost anywhere else but here. There is scarce any other place where we might not do some good. Here we are in a state of annihilation.

I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

The Hague, July 23d, 1783.

Sir,

On Saturday last I left Paris, and arrived here last night. This morning I sent M. Dumas to M. Van Berckel and M. Gyselaer, to inform them of my arrival, and to desire a conversation with them, upon the subject of the commerce between the United States and the Dutch establishments in the West Indies.

M. Van Berckel told M. Dumas, "that St Eustatia and Curaçoa were open to the vessels of all nations, and to the commerce of all the world; but that it was not the interest of the West India Company alone, but that of the whole State, that obliged them to confine the commerce of their sugars to themselves, because of the great number of their refineries of sugar. That all their own sugars were not half enough to employ their sugar-houses, and that at least one half of the sugars refined in Holland were the production of the French West India Islands."

I suppose that some of these sugars may have been carried first to St Eustatia, and brought from thence to Holland, and some others may have been purchased in the ports of France, and imported raw from thence. I do not know that Dutch vessels were permitted to purchase sugars in the French Islands, and export them from thence. This matter deserves to be examined to the bottom. If France has not sugar-houses for the refinement

of her own sugars, but is obliged to carry them, or to permit their being carried, to Amsterdam and Rotterdam for manufacture, why should she not be willing, that the same sugars should be carried by Americans to Boston, New York, and Philadelphia? Surely France has no predilection for Holland rather than America. But what is of more weight, all the sugars, which America takes, will be paid for in articles more advantageous to the Islands, and to France, than the pay that is made by the Dutch. If any sugars refined in Holland are afterwards sold in France, surely it would be more for the interest of France, or rather less against her interests, to have the same sugars refined in America, and afterwards sold in France, because the price of them would be laid out by us in France. There is this difference between us and the Dutch, and all other nations, we spend in Europe all the profits we make and more, the others do not. But if the French sugars, refined in Holland, are afterwards sold in other parts of Europe, it would be just as well that we should sell them. We have sugar-houses as well as the Dutch, and ours ought not to be more obnoxious to French policy or commerce than theirs.

Sugars are a great article. There is a great consumption in America. It is not the interest of any nation, that has sugars to sell, to lessen the consumption there. All such nations should favor that consumption, in order to multiply purchasers, and quicken the competition, by which the price is raised. None of these nations then will wish to prevent our having sugar, provided we offer as high, or a higher price. How they will be able to arrange their plans, so that we may have enough for our own consumption, without having more, without having some for exportation, I do not know.

We have now St Eustatia and Curaçoa, St Lucia and Martinique, St Thomas and St Martin's, no less than six free ports in the West Indies; and perhaps England may be induced, necessitated indeed, to add two more to the number, and make eight. At these free ports, it will be hard if we cannot find sugars, when we carry thither all our own productions, in our own ships. And if the worst should happen, and all the nations, who have sugar Islands, should forbid sugars to be carried to America in any other than their own bottoms, we might depend upon having enough of this article at the free ports, to be brought away in our own ships, if we should lay a prohibition or a duty upon it in foreign ships. To do either, the States must

be united, which the English think cannot be. Perhaps the French think so too, and in time, they may persuade the Dutch to be of the same opinion. It is to be hoped we shall disappoint them all. In a point so just and reasonable, when we are contending only for an equal chance for the carriage of our own productions, and the articles of our own consumption, when we are willing to allow to all other nations even a free competition with us in this carriage, if we cannot unite, it will discover an imperfection and weakness in our constitution, which will deserve a serious consideration.

M. Visscher, Pensionary of Amsterdam, who came in to visit me, when I had written thus far, showed me a list of the Directors of the West India Company, and refers me to M. Bicker, of Amsterdam, as one of the most intelligent of them. He says, that the Colonists of Surinam, Berbice, Essequibo, and Demarara, have been in decay, and obliged to borrow money of the merchants at home, and have entered into contracts with those merchants, to send them annually all the productions of their plantations to pay the interest and principal of their debts; that this will make it difficult to open the trade.

Soon after M. Visscher went out, M. Van Berckel came in. I entered into a like conversation with him, and told him that I thought the decay of their plantations in the West Indies had been owing to the rivalry of other nations, especially the English, whose Islands had greater advantages from a freer communication with North America; and I thought it might be laid down as a rule, that those Islands would flourish most in population, culture, commerce, and wealth, which had the freest intercourse with us, and that this intercourse would be a natural means of attracting the American commerce to the metropolis. He thought so too.

I then mentioned to him the loan; and asked him, if he thought that the States-General, the States of Holland, or the Regency of Amsterdam, would be likely, in any way, to aid us? He said, no; that the country was still so much divided, that he could not depend upon any assistance in that way. That the Council of Amsterdam was well enough disposed; but that the Burgomasters were not so. That M. Temmink, M. Huggens, and M. Rendorp, were not to be depended on in such an affair. That, therefore, our

only resource was, to endeavor to gain upon the public opinion and the spirit of the nation, and that, in this respect, he would do me all the service in his power. He thought that the present uncertainty about the definitive treaty, and the fate of the Republic, would be an obstacle; but the definitive treaty once signed, he thought our loan would succeed very well. I asked him, whether he thought that the junction of three houses in my loan was any obstruction to it? and whether any one of them, or whether any other house, would do better? I told him what his brother, (now I hope in Philadelphia,) had said to M. Dumas, viz. that the house of Wilkem and Van Willink alone would succeed sooner than the three. I asked him, whether he thought the house of Hope, either alone, or in conjunction with that of the Willinks, or any other, would undertake it? He said, this might well be, and that if they saw their interest in it they would, for those mercantile houses had no other object in view. He promised me to make inquiry into this matter, and let me know the result.

Upon this occasion, I must inform Congress, that it is absolutely necessary they should send another Minister to this Republic, without loss of time; because our three present houses, before they would undertake the loan, extorted a promise from me, not to open another with any other house until the five millions should be full. This engagement I took for myself alone, however, and expressly premised that Congress should not be bound by it; that Congress should be perfectly free, and that any other Minister they might send here should be perfectly free to open another loan, when and with whom they pleased. A new Minister, therefore, may open a loan when he will, with Hope, Willink, or whom he will, and I am persuaded it would succeed to a good amount.

I made visits to day, the 25th of July, to the Grand Pensionary, the Secretary Fagel, the President of the week, and M. Gyselaer; and returned visits to M. Van Berckel and M. Visscher. M. Gyselaer says, that at present there is no ready money (*argent comptant*) in the Republic, but in two months there will be, and the loan will go very well.

At noon I went to the house in the Grove, to make my court to the Prince and Princess of Orange.

The Prince either happened to be in a social humor, or has had some political speculations lately, for he thought fit to be uncommonly gracious and agreeable. He made me sit, and sat down by me, and entered into familiar conversation about the negotiations of peace. He asked many questions about it, and the probability of a speedy conclusion of the definitive treaty. At length, he asked me, if Dr Franklin was left alone? I answered, that Mr Jay was with him. He asked, if I returned before the signature? I answered, that such was my intention. He asked, whether Dr Franklin was an Ambassador? I answered, that he was a Minister Plenipotentiary only. He asked, if none of us were Ambassadors? I answered, that we all had the same rank of Ministers Plenipotentiary, and that Congress had never yet made an Ambassador. He said, he was astonished at that; that he had a long time expected to hear, that we had displayed the character of Ambassadors. I asked his Highness, what reason he had for this, and what advantage there was in it? "Why," said he, "I expected that your Republic would early assert her right to appoint Ambassadors. Republics have been generally fond of appointing Ambassadors, in order to be on a footing with crowned heads. Our Republic began very early. We had eight Ambassadors at the peace of Munster; one for each Province, and one supernumerary. And we always choose to appoint Ambassadors, for the sake of being upon an equality with crowned heads. There are only crowned heads, Republics, and the Electors of the Empire, who have a right to send Ambassadors; all others can only send Envoys, and Ministers Plenipotentiary. Princes cannot send Ambassadors. I cannot, as Stadtholder, nor as Prince, nor in any other quality, send a Minister of any higher order, than an Envoy, or Minister Plenipotentiary." He asked me, what was the reason the Congress had not made use of their right? I answered his Highness, that really I did not know. It was a subject I had never much reflected on; perhaps Congress had not. Or they might think it a matter of ceremony and of show, rather than substance; or might think the expense greater than the advantage. He said, it was very true, the dignity of the rank must be supported, but he thought the advantage worth more than the expense.

I am utterly at a loss for his Highness' motives for entering so minutely into this subject. Whether M. Van Berckel, before his departure, had mentioned it; whether he thought he should please me by it; whether he thought to

please Congress by it; whether he affected to interest himself in the honor of the United States; or whether any of the politicians of this, or any other country, have put him upon it, or whether it is mere accident, I know not. They are the words of a Prince, and I have reported them very exactly.

I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

The Hague, July 25th, 1783.

Sir,

It is the general opinion here both among the members of the States, and at the *Hôtel de France*, that the delays of the definitive pacification are contrived by the Court of London, in order to set all their instruments at work in this Republic, to induce it to renew its ancient connexions with Great Britain, particularly their alliance, offensive and defensive, by which each power was bound to furnish the other, if attacked, a certain number of ships and troops. Against this the patriotic party is decided, and they are now very well satisfied with the Grand Pensionary, Bleiswick, because he openly and roundly takes their side, and the Court is said to be discontented with him for the same reason. There is, no doubt, an intelligence and correspondence between the two Courts of London and the Hague, to bring about this point. The Grand Pensionary told me yesterday, that the Court of London desired it, and there were persons here who desired it, and he knew very well who they were; but that most certainly they would not carry their point. Van Berckel, Visscher, and Gyselaer, all assured me of the same, and added, that the fear of this had determined them not to send a Minister to London, but to go through with the negotiation at Paris, although they were all highly dissatisfied with the conduct of France, and particularly with that of the Count de Vergennes.

They all say, he has betrayed and deserted them, played them a very bad trick, (*tour*) and violated his repeated promises to them. They do not in the least spare M. Berenger and M. Merchant, who conduct the French affairs here in the absence of the Duc de la Vauguyon, but hold this language openly and freely to them. These gentlemen have sometimes found it hard to bear, and have winced, and sometimes even threatened; but their answer has been more mortifying still; "Do as you please, drive the Republic back into the arms of England, if you will. Suppress all the friends of France, if you choose it." And some of them have said, "we will go to America." They all say, that France had the power to have saved them. That the acquisition of Tobago was no equivalent to France for the loss of the Republic, &c. &c. &c. They are all highly pleased with the conduct of their own Ambassador, Brantzen, with his activity, intelligence, and fidelity. They all say, that they would send a Minister to London to negotiate there, if they were sure of being able to carry an election for a man they could depend upon. But the Court here would have so much influence in the choice, that they would run a risk of sending a man, who would insensibly lead them into a revival of the old ties with England, which, they say, is enslaving the Republic to that kingdom.

I learn here from all quarters, a confirmation of what I had learned before at Paris from M. Brantzen and the Duc de la Vauguyon, viz. that the Duke of Manchester had given them no answer, nor said a word to them for six weeks, in answer to the propositions they had made; among which was an offer of an equivalent for Negapatnam. They offered some establishments in Sumatra and Surat. Lately the Duke of Manchester has received a courier, and has given an answer, that a real equivalent might be accepted. No answer is given to any other point, and this is vague; so that another courier must go to London and return. Parliament is now up, and perhaps the Ministers may now be more attentive, and less timorous.

I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

Amsterdam, July 28th, 1783.

Sir,

I find, upon inquiry, that there are in this Republic, at Amsterdam, Rotterdam, and Dort, near one hundred and thirty sugar-houses. The whole of the raw sugars produced in Surinam, Berbice, Essequibo, and Demarara, are wrought in these houses; and, besides, raw sugars were purchased in Bordeaux and Nantes, after being imported from the French islands, in French bottoms. Raw sugars were also purchased in London, which went under the general name of Barbadoes sugars, although they were the growth of all the English Islands, and imported to London in British bottoms. I have learnt further, that great quantities of raw Brazil sugars were purchased in Lisbon, and that these were cheaper than any of the others. All these raw sugars were imported into Amsterdam, Rotterdam, and Dort, and there manufactured for exportation. We must endeavor to obtain a share in this trade, especially with Lisbon, or the Western Islands.

Since it is certain, that neither Portugal, France, nor England has been able to manufacture all their raw sugars, but each of them sold considerable quantities to the Dutch, I suppose that we may undoubtedly purchase such sugars in future in Lisbon, Bordeaux, Nantes, London, and perhaps Ireland, and carry them where we please, either home to America, or to Amsterdam, or to any part of Europe, and there sell them, and in this way promote our own carrying-trade, as well as enable ourselves to make remittances. I cannot see why the English, or French, should be averse to their sugars going to America directly; and if they insist upon carrying them in their own ships, we may still have enough of them. The Dutch have the most pressing commercial motives to bring home their West India produce; yet they would really gain the most by opening a free communication with us, because they would the most suddenly make their colonies flourish by it.

Molasses and rum we shall have, probably, from all the islands, English, French, and Dutch, in our own bottoms, unless the three nations should

agree together to keep the whole trade of their islands in their own ships, which is not likely.

I have made all the inquiries I could, and have sown all the seeds I could, in order to give a spur to our loan. Three thousand obligations have been sold, and the other two thousand are signed; but at this time there is a greater scarcity of money than ever was known. The scarcity is so great, that theagio of the bank, which is commonly at four or five per cent, fell to one and a half. The Directors, at length, shut up the bank, and it continues shut. The English omnium, which at first was sold for eight or ten per cent profit, fell to one and a half. The scarcity of money will continue until the arrival of the Spanish flotilla at Cadiz. Seven eighths of the treasures of that flotilla will come here, and make money plenty. Then we may expect, that my obligations will sell.

In the meantime, I have great pleasure in assuring you, that there is not one foreign loan open in this Republic, which is in so good credit, or goes so quick as mine. The Empress of Russia opened a loan of five millions, about the same time that I opened mine. She is far from having obtained three millions of it. Spain opened a loan with the House of Hope, at the same time, for two millions only, and you may depend upon it, it is very far from being full. Not one quarter part of the loan of France upon life-rents, advantageous as it is to the lender, is full. In short, there is not one power in Europe, whose credit is so good here as ours. Russia and Spain, too, allow of facilities to undertakers and others, in disposing of their obligations, much more considerable than ours; yet all does not succeed. You will see persons and letters in America, that will affirm, that the Spanish loan is full, and that France and Spain can have what money they please here. Believe me, this is all stockjobbing gasconade. I have made very particular inquiries, and find the foregoing account to be the truth. Of all the sons of men, I believe the stockjobbers are the greatest liars. I know it has been given out, that the Spanish loan, which was opened at Hope's, was full the first day. This I know has been affirmed in the hearing of Americans, with a confidence peculiar, and with a design, I suppose, that it should be written or reported to Congress. But I am now assured, that it is so far from being true, that it is not near full to this hour. Let me beg of you, Sir, to give Mr

Morris an extract of this, because I am so pressed for time, that I cannot write to him.

Upon further inquiry concerning sugars, I find, that the Dutch were used to purchase annually considerable quantities of the raw sugars of Spain, as well as of France, England and Portugal. Some of these they obtained by a clandestine trade between Curaçoa and Havana, and St Domingo; but the greater part were purchased at Cadiz.

I suppose our merchants and musters of vessels will be as adroit at inventing and executing projects of illicit trade, as others. But this is a resource, that Congress and the States cannot depend on, nor take into their calculations. Illicit trade will ever bear but a small proportion to that which is permitted. And our governments should take their measures for obtaining by legal and honorable means from Spain, Portugal, France, England, Holland, and Denmark, all the productions which our people may want for consumption, for manufacture, and for exportation.

I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT MORRIS.

Amsterdam, July 28th, 1783.

Sir,

Upon inquiry of those who best know, I see no probability of success from any application to authority in this country, for reasons which I have explained to our Minister of Foreign Affairs. Our only resource is in the public opinion, and the favor of the nation.

I know of nothing which would operate so favorably upon the public, as the arrival of a few vessels with cargoes of American produce, addressed to

your bankers, and appropriated to the payment of interest. The report of such an event would greatly augment our credit, by spreading the opinion of our ability and disposition to pay.

It would be presumption in me, at this distance, to undertake to advise you, who are upon the spot, and much better informed. But I beg leave to suggest the question, whether an application of Congress to the States would not succeed? Suppose Congress should represent to the States the necessity of an exertion, in order to obtain a loan at present, to enable you to satisfy the most urgent demands of the army, and other public creditors, until the States can agree upon some permanent establishment, and should recommend to each State to furnish a cargo of its produce, in proportion to its rate upon the list. For example, South Carolina and Georgia a quantity of rice or indigo; Virginia and Maryland, of tobacco; Pennsylvania, of wheat or flour; and the Northern States, of fish or any other thing. Suppose these cargoes, which need not be expensive for the Thirteen States, should be sent to Amsterdam or anywhere else in Europe, the proceeds of sale to be remitted to Amsterdam to your bankers. The reputation of this, if well planned, adopted, and executed, would give a strong impulsion to your loan, if adopted here.

I am but just arrived, and have not yet seen our bankers. Saturday and Sunday are usually spent at country seats. But before I leave this place, I shall be able to inform you more precisely, whether you may depend on anything from hence. No pains of mine shall be spared. The British stocks are so low that we may hope for something. If a Minister is sent to London, you should give him a commission to borrow money. If he conducts the matter with secrecy and caution, he may probably obtain a considerable sum there. There are monied men in that country who wish us well. There are others who may easily be inspired with more faith in our funds, than they can rationally have in their own. If upon advising with proper persons, he should not judge it prudent to open a loan there, he might easily put things in a train for some individuals to purchase obligations in your loan in Amsterdam. So dismal are the prospects in England, that many men are on the wing to fly, and some would be willing to transfer their property across the Atlantic.

I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

The Hague, July 30th, 1783.

Sir,

I have been the more particular in my letters to you concerning that extensive manufacture and commerce of refined sugars in this country, because the proximity of all the sugar colonies to us renders a share in it naturally useful and convenient, both to us and them. Fifty thousand hogsheads of raw sugar are annually wrought in this Republic, and exported at a great profit to Germany, Denmark, Sweden, Russia, Poland, and Italy. At Amsterdam I visited a number of respectable merchants, in order to discover their sentiments concerning the communication between us and their Islands and sugar colonies. They all agree, that St Eustatia and Curaçoa are and will be commercial Islands, open and free to all our vessels. St Martin's is divided between the French and Danes and the Dutch, whose share of it does not flourish. The colonies upon the continent, Surinam, Berbice, Demarara, and Essequibo, are at a greater distance from us. But they will be open to our vessels and their cargoes, because they all agree, that those colonies cannot subsist without our horses, lumber and provisions, nor without the sale to us of their molasses. We shall be allowed to take in return molasses, with which some quantities of sugar, coffee, and other produce are always smuggled, as they say. But although nothing has been as yet determined, it is the general opinion, that the produce of the colonies must be brought home in Dutch ships, as heretofore, molasses excepted.

From the Secretary of the West India Company I have obtained a few minutes, in so bad French, that I almost despair of rendering them intelligible. I have attempted it, however, in the following translation, viz.

"In the grant of the West India Company, renewed, or more properly newly erected, in the year 1700, continued in 1730, prolonged afterwards in the year 1760 for two years, and in the year 1762, from the first of January to the thirtyfirst of December, 1791, are found the limits fixed, only for the inhabitants of these Seven United Provinces, under the name of the United Company of these Provinces, upon the coasts and country of Africa, computing from the Tropic of Cancer to the southern latitude of the Equinoctial Line, with all the Islands in this district, situated upon the said coast, and particularly the Islands of St Thomas, Annebon, Islands of Principia and Fernando Po, as also the places of Essequibo and Baumenora, situated upon the Continental Coasts of America, as also the Islands of Curaçoa, Amaba and Buen Aire. All the other limits of the ancient grant being open for the commerce of all the inhabitants of the Republic, without exception, upon condition, however, that if the Company, oriental and occidental, should judge proper to navigate to the Islands situated between the coasts of Africa and America, beginning at the Ascension and further south, or any of them, and should occupy it before any other should have a private grant, with exclusion of all others for so long time as it shall occupy its places, and in case they should desist, these places should return under the second class, open for the navigation of every individual of the Republic, paying an acknowledgment, &c. That the said particulars, trading in the said districts, shall be obliged to acknowledge the Western Company, and to pay them for the right of convoy, and consequently in form of acknowledgment, viz. for the productions and merchandises for the West Indies, two per cent, and returning from thence into these Provinces, two per cent more for the commodities in return. And further, the ships navigating to places farther distant in America, contained in the ancient grant, both in going and returning, should pay five florins per last, or more or less as their High Mightinesses shall judge proper to determine hereafter; observing, nevertheless, that these five florins per last shall not be demanded of ships navigating to the Caribee Islands, which shall pay the ordinary

duty for convoy to the Colleges of the Admiralty from which they sail, and the said private navigators shall be held, moreover, for the satisfaction of the Western Company, to give sufficient caution, that they will not navigate, nor cause to be navigated, the places contained in the first class, ceded to the Company with exclusion of all others. And if any one is found to act contrary, and to navigate to any place situated in the prescribed limits, and granted to the Company, his ship and cargo shall be confiscated and attacked in force, by the ships belonging to the said Company; and if such ships and merchandises or commodities, shall be sold or entered into any other country or foreign port, the owner and his accomplice shall be liable to execution, for the value of the said ships and merchandises or commodities.

"The Company has also the right to require an acknowledgment of all those who shall navigate, import or export any merchandise to or from places belonging to the said Company, notwithstanding they may be subject, and may belong to the domination of other Kings or Princes, situated within the limits stipulated in the grant; and especially of every foreign vessel, bringing any commodities or merchandises from the West Indies, or the limits stipulated in the grants into the Provinces, whether upon its own account, or freight, or on commission, whether such foreign vessel shall come directly from the West Indies; and the limits of the grant, into the Provinces, or whether she shall have carried her cargo to other countries or kingdoms, for what reason soever this may be done. Excepting only in case the merchandises of the proprietor should by negotiation be changed in nature, and that the duty of this country fixed to the place should be paid, which any one alleging shall be obliged to prove sufficiently, according to the amount of the merchandises. Declaring, moreover, for the further elucidation of the said grant, that under the name of the New Low Countries, in consequence of the three per cent, which the Company has a right to require for the merchandises sent there, or brought from thence, is understood that part of North America, which extends

itself west and south of the northern part of Newfoundland as far as the Cape of Florida, and for what regards the payment of the two per cent under the name of the West Indies, to be computed from the Cape of Florida, to the river Oronoco, and the Islands of Curaçoa. For what concerns the other places of America, contained in the most ancient and precedent grant, in regard to the five florins per last, upon the vessels there navigating, shall be understood all the Caribbee Islands, Cuba, Jamaica, Hispaniola and Porto Rico, as also all the other coasts and countries, computing from the river Oronoco aforesaid, by the straits of Magellan, Le Maire, or other passages or straits, situated under these, as far as the strait of Aryan, both upon the sea of the north, and the Islands situated upon the other side, and between them, as also the southern countries, situated between the two meridians, touching at the east the Cape of Good Hope, and in the west the eastern part of New Guinea, inclusively."

If this paper is not very clear to Congress, it is not more so to me, and perhaps to the Dutch themselves. There is a dispute likely to arise between the West India Company and the College of the Admiralty about it, which will be explained further as it proceeds, by whatever Minister you may send here.

Upon the whole matter of our communications with the European establishments in the West Indies; we shall carry freely our commodities to the French and Dutch, excepting, perhaps, flour to the French, which however will be carried, I suppose, to St Lucia and Port Royal, as well as St Eustatia and Curaçoa, St Thomas's and St Martin's, and there sold to any nation that will purchase it. Molasses and rum we shall bring away freely from the French and Dutch. And if we can obtain of them the liberty of carrying sugars, coffee, &c. from their possessions in the West Indies to their ports in Europe, giving bonds with surety to land them in such ports, it will be as much as we can expect. If they will allow raw sugars, coffee, cotton, &c. to be sent freely to the United States in their own vessels, this would be an advantage for us, though not so considerable as to bring them in ours. What the English will do is uncertain. We are not to take the late proclamation for a law of the Medes. The Ministry who made it are not firm in their seats. If Shelburne comes in we shall do better; and, to be prepared

to take advantage of so probable an event, you should have a Minister ready. We have one infallible resource, if we can unite in laying a duty or a prohibition. But this measure must not be hastily taken, because by negotiation, I apprehend, the point may be carried in England. To this end it may be proper to instruct your Minister, and authorise him to say, that the States will find themselves obliged, against their inclination, to lay a prohibition or heavy duty upon all West India goods imported, and all American productions exported in British bottoms, if the trade is not regulated by treaty upon an equitable footing.

I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

The Hague, July 31st, 1783.

Sir,

The last evening at Court in the house in the Grove, where all the foreign Ministers supped, the Count Montagnini de Mirabel, the Minister Plenipotentiary from the King of Sardinia, took an opportunity to enter largely into conversation with me. As he and I were at a party of politics, while the greatest part of the company were at cards, for two or three hours, we ran over all the world, but nothing occurred worth repeating except what follows.

The Count said, that his advice to Congress would be to write a circular letter to every power in Europe, as soon as the definitive treaty should be signed, and transmit with it a printed copy of the treaty. In the letter, Congress should announce, that on the 4th of July, 1776, the United States had declared themselves a sovereign State, under the style and title of the United States of America; that France, on the 6th of February, 1778, had acknowledged them; that the States-General had done the same on the 19th of April, 1782; that Great Britain, on the 30th of November, 1782, had signed with them a treaty of peace, in which she had fully acknowledged their sovereignty; that Sweden had entered into a treaty with them, on the 5th of February, 1783; and that Great Britain had concluded the definitive treaty under the mediation of the two Empires, if that should be the fact, &c. Such a notification to all the other powers would be a regular procedure, a piece of politeness, which would be very well received, and the letter would be respectfully answered by every power in the world, and these written answers would be explicit, and undeniable acknowledgments of our sovereignty.

It might have been proper to make this communication in form, immediately after the declaration of independence; it might have been more

proper to do it after the signature of the provisional treaty; but that it was expected it would be done after the definitive treaty. That these circular letters might be transmitted to your Ministers for peace, or such of them as may remain, or to any of your Ministers in Europe, to be by them delivered to the Ministers at the Court where they are, or transmitted any other way. That Congress must be very exact in the etiquette of titles, as this was indispensable, and the letters could not be answered nor received without it. That we might have these titles at the Count de Vergennes' office with precision, &c.

The Count then proceeded to commerce, and said, that all the cabinets of Europe had lately turned their views to commerce, so that we should be attended to and respected by all of them. He thought we should find our account in a large trade in Italy, every part of which had a constant demand for our tobacco, and salt-fish, at least. The dominions of the King, his master, could furnish us in exchange, oranges, citrons, olives, oil, raisins, figs, anchovies, coral, lead, sulphur, alum, salt, marble of the finest quality and gayest colors, manufactures of silk, especially silk stockings twenty per cent cheaper than France, hemp, and cordage. He said, we might have great advantages in Italy in another respect. We had it in our power to become the principal carriers for the people of Italy, who have little skill or inclination for navigation or commerce. The (*cabotage*) carrying-trade of Italy had been carried on by the English, French, and Dutch; the English had now lost it, the French had some of it, but the Dutch the most, who made an immense profit of it; for to his knowledge they sold in the Baltic, and even in Holland, many Italian productions, at a profit of five or six for one. That we should have the advantage of them all. By bringing our tobacco and fish to Italy, we might unload at some of their ports, take in cargoes upon freight for other ports of Italy, and thus make coasting voyages, until we had made up our cargoes for return, or we might take in cargoes on freight for Germany, or the Baltic. The Dutch, he said, would be the greatest losers by this rivalry, but as long as the Italians and Americans would be honestly gainers, neither need be anxious for that. That there was a very good port in his master's dominions, which was perfectly free, where we might go in and out at pleasure, without being subject to duties, searches, or visits.

We then made a transition to Turkey; the Count could not, for his part, blame the Emperor for wishing to open the navigation of the Danube; his kingdom of Hungary was one of the finest countries in the world; it was one of the most fertile, producing in great abundance wines of various sorts, all excellent, though Tokay was the best; grains of every sort in great quantities, metals of all sorts, gold, silver, copper, iron, quicksilver; yet all these blessings of nature were rendered in a manner useless by the slavery of the Danube. The Emperor was very unfortunate, in having the Danube enslaved on one side, and the Scheldt on the other; and in this age, when the liberty of navigation and commerce was the universal cry, he did not wonder at his impatience under it. He did not think, that England would meddle in the dispute, as her trade to the Levant had declined. The Dutch had some still, but France had now the greatest part of it to Smyrna, Alexandria, Aleppo, in short, to all the trading towns of Turkey in Asia, for this is what is understood by the Levant trade. France, he thought, could not venture to engage in the war in earnest, in the present state of her finances.

I have learnt, since I came here, that France is desirous that this Republic should declare herself concerning this Turkish war. But she will avoid it. Unhappily, France has lost much of her influence here. Her friends fear, that the odium of losing Negapatnam will fall upon them among the people. The English and the Stadtholderians are endeavoring to detach the Republic entirely from France, and to revive the ancient connexions, particularly the ancient alliance, offensive and defensive in the treaty of 1674. A Mr Shirley, at Paris, has lately proposed to M. Boers, and M. Van der Pere, two agents of the Dutch East India Company, who have been a year or two at Paris, and are reputed to be in the Stadtholder's interest, that England had the best dispositions towards the Republic, and would give them ample satisfaction if they would treat distinctly from France, and renew the ancient cordial friendship, and proposed an interview with the Dutch Ambassadors upon this subject. The agents proposed it, but Brantzen refused, to the great satisfaction of the principal republicans. Yet M. Berenger tells me, that some of the republican members begin to be afraid, and to think they shall be obliged to fall in with the English.

Upon conversing with many people in the government and out of it, in Amsterdam as well as the Hague, they all complain to me of the conduct of

France. They all confess, that the Republic has not done so much in the war as she ought, but this is the fault of the friends of England, they say, not those of France, and the worst evils of all, that befall the latter, are the reproaches of the former, who now say insultingly, "this comes of confiding in France, we always told you, that you would be cheated," &c. France ought, they say, to have considered this, and not have imputed to the Republic the faults of her enemies, because the punishment falls wholly on her friends.

I mention these things to you, because, although we are not immediately interested in them, they may have consequences which may affect us; and, therefore, you ought to know them. I think, however, upon the whole, the Republic will stand firm, and refuse to receive the alliance, though they sacrifice Negapatnam. France wishes to win the Republic into an alliance, but feels an awkwardness about proposing it, and, indeed, I doubt whether she would now succeed; she might have succeeded heretofore. But, in plain English, Sir, the Count de Vergennes has no conception of the right way of negotiating with any free people, or with any assembly, aristocratical or democratical. He cannot enter into the motives which govern them; he never penetrates their real system, and never appears to comprehend their constitution. With empires, and monarchs, and their Ministers of State, he negotiates aptly enough.

I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

The Hague, August 1st, 1783.

Sir,

I had last evening some conversation with D. Joas Theolonico de Almeida, the Envoy Extraordinary of Portugal, who desired to meet me today at any

hour at his house or mine. I promised to visit him at twelve, which I did.

He said, he had heard that the French Minister had proposed to the Duke of Manchester, at Versailles, to reduce the duties upon French wines in England to the level of those upon Portugal wines, and begged of me to inform him if it were true, because, if it were, Portugal must endeavor to indemnify herself by opening a trade with America, or some other way, for such a project will be ruinous to the sale of their wines in England, which was their only market. I answered, that I had heard of such a project among multitudes of others in private conversation, but knew no authority for it. We have a treaty, says he, made in 1703, by which we have stipulated with the English, to permit the importation of their cloths, upon condition that they allow the importation of Portugal wines upon paying one third of the duty upon French wines; if they violate the treaty, says he, we shall be rid of it.

I asked him, if his Court permitted the English, or any other nation, to go to the Brazils? In the last century, said he, between 1660 and 1670, we did agree with Charles the Second, who married a daughter of Portugal, that the English should go to the Brazils, and after that, the Dutch sued for permission to go there too, and we granted it. But we found it inconvenient, and in 1714 or 1715, at the treaty of Utrecht, we agreed upon an article with Spain, to exclude all nations from the Brazils, and as the English Ambassadors were there, we have since held that nation bound, and have confiscated their vessels as well as the Dutch which venture there. The English have sometimes made strong remonstrances, but we have always told them, if we admit you, we must admit the Dutch too, and such has been their jealousy of the Dutch, and dread of their rivalry, that this has always quieted them, choosing rather to be excluded themselves, than that the Dutch should be admitted. So that this commerce has been a long time carried on in Portuguese ships only, and directly between the Brazils and Lisbon.

I asked him, whether we might not have free communication with all their Western Islands, and whether one or all of them might not be made a depot for the produce of the Brazils, so that Portuguese ships might stop and deposit cargoes there, and American vessels take them? He said, he would

write about it to his Court by the next post. At present, Brazil communicated only with Lisbon, and, perhaps, it might be difficult for government to secure the duties at the Western Islands. I asked, if there were any refineries of sugar at Lisbon? He said, none. Their sugars had all been brought here by the Dutch for refining; that all their carrying-trade with other parts of Europe had been carried on by the English and Dutch; that their mercantile navigation (*marine marchand*) before this war, had been upon a very poor footing, but it was now much changed, and they began to carry on their trade in their own vessels. I observed, if their trade should continue to be carried on by others, it must be indifferent to them whether it were done in English, Dutch, or American vessels, provided it was done to their equal advantage. But if they should persist in the desire to conduct it in their own vessels, they might purchase ships ready built in America cheaper than they could build them or buy them elsewhere. All this, he said, was true. That they could supply us with sugars, coffee, cocoa, Brazil wood, and even with tea, for they had an island, called Macao, near China, which was a flourishing establishment, and sent them annually a good deal of tea, which the Dutch usually bought very cheap at Lisbon to sell again.

He asked, whether Portugal wines had been much used in America. I answered, that Port wines, common Lisbon, and Caracavalles, had been before the war frequently used, and that Madeira was esteemed above all other wine. That it was found equally wholesome and agreeable, in the heats of summer and the colds of winter, so that it would probably continue to be preferred, though there was no doubt that a variety of French wines would now be more commonly used than heretofore. He said, they should have occasion for a great deal of our fish, grain, and perhaps ships or ship-timber, and naval stores, and other things, and he thought there was a prospect of a very beneficial trade with us, and he would write largely to his Court upon it. I replied, that I wondered his Court had not sent a Minister to Philadelphia, where the members and Ministers of Congress, and even the merchants of the city, might throw much light upon the subject, and assist in framing a treaty to the greatest possible advantage for both countries. He said, he would write for a commission and instructions to negotiate a treaty with me. I told him, that I believed his Court had already instructed their Ambassador at Versailles to treat with Dr Franklin; but that I thought that

Philadelphia or Lisbon were the proper places to treat, and that I feared mutual advantages might be lost by this method of striking up a bargain in haste in a distant country, between Ministers who could not be supposed to have made of commerce a study.

In a letter from Paris yesterday, I am informed that a project of a treaty with Portugal, and another with Denmark, are to go home by Captain Barney.^[9] These projects have never been communicated to me, nor to Mr Jay. I hope that Congress will not be in haste to conclude them, but take time to inform themselves of everything which may be added to the mutual advantage of the nations and countries concerned. I am much mistaken, if we have not lost advantages by a similar piece of cunning in the case of Sweden.

With great respect and esteem, I have the honor to be, &c.

JOHN ADAMS.

FOOTNOTE:

^[9] For these treaties, and some account of them, see *Franklin's Correspondence*, Vol. IV. pp. 114, 115, 130, 141, 150.

TO ROBERT R. LIVINGSTON.

The Hague, August 2d, 1783.

Sir,

M. Berenger, the Secretary of the French Legation, has this moment left me. He came in to inform me of the news. The Empress of Russia has communicated to the King of Prussia, a treaty of alliance between the Emperor of Germany and her, defensive against the Christian powers and offensive against the Turks. The King of Prussia has answered her, "that he

is very sensible, upon this communication, as one is upon the communication of things of great importance." Thus wrapped up in an impenetrable reserve is this great warrior and statesman. We may discern by this answer, what all the world would know without it, viz. that his Majesty has no joy in this new alliance. Still he expresses no sorrow; and maintains a perfect liberty to take which side he will, or neither, at his pleasure, and the same reserve he will probably hold to the end of the war.

M. Berenger says, if Prussia is neutral France must be so too, for she cannot cope by land with the two Empires; that this Republic is desired to declare, but does not choose it; that they are dissatisfied, and the republicans murmur a good deal, and are wavering, and that the other party will do nothing; that England hitherto has favored an accommodation between Russia and the Turks; that the British Ambassador, at Constantinople, has co-operated with the French to bring about an accommodation; that the Turks have offered Russia the free navigation of the Black Sea and passage of the Dardanelles, and the same with a free navigation of the Danube to the Emperor, but they will not accept it, but are determined to drive the Turks from Europe; that France has determined to put her army upon a war footing, because it has been much neglected during the late war; that he believes France and Spain will shut the Mediterranean against a Turkish fleet, as Russia, Sweden, and Denmark excluded warlike vessels from the Baltic in the last war; that this state of things gives him great pain, and must embarrass the Count de Vergennes. It is a great and difficult question, whether France should take a side. If she does not, and the Empires should prevail, it will be an immense aggrandizement of the House of Austria, which, with Russia, will become two great maritime powers; that England will act an insidious part; pretend to favor peace, secretly foment war, and join in, at the end, if she sees a favorable opportunity to crush France. These are sensible observations of M. Berenger, who added, that a new difficulty in the way of the definitive treaty had arisen between England and Spain, respecting the Musquito shore, so that more couriers must go and return.

I confess myself as much in pain at this state of things as M. Berenger, and, therefore, I wish most ardently, that we may omit no proper means of settling our question with every Court in Europe, and especially our plan of commerce with Great Britain. If this is too long left in uncertainty, the face

of things may soon change, so as to involve us in the complicated, extensive, and long war, which seems to be now opening.

The prospect of returning to Paris, and living there without my family, in absolute idleness, at a time when so many and so great things want to be done for our country elsewhere, is very disagreeable. If we must live there, waiting for the moving of many waters, and treaties are to be there negotiated with the powers of Europe, or only with Denmark and Portugal, I pray that we may all be joined in the business, as we are in the commission for peace, that, at least, we may have the satisfaction of knowing what is done, and of giving a hint for the public good, if any one occurs to us, and that we may not be made the sport and ridicule of all Europe, as well as of those who contrive such humiliations for us.

With the greatest respect, I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

The Hague, August 3d, 1783.

Sir,

The fiscal systems of the powers of Europe have such an ill influence on commerce, that they deserve the serious attention of Congress and their Ministers, whenever they have under consideration a treaty with any foreign power. In conversation yesterday with M. d'Asp, the *Chargé d'Affaires* of Sweden, I inquired of him what imposts were payable in their ports upon the importation and exportation of merchandises, and observed to him, that I had lately seen in the gazettes, that the King had taken off certain duties upon the importation of merchandises from America, in Swedish ships. He agreed that such a thing had been done. This ought to alarm us. All the powers of Europe, who are called neutral, have felt a sudden increase of their navigation in the course of the late war, and the profits they have made

have excited a desire to augment it still further. If they should generally exact duties of our ships, and none of their own upon the importation of our produce, this will be as great a discouragement to our navigation as it will be an encouragement to theirs. Whether this has been attended to in the treaty with Sweden I know not, for I have not seen it. But it ought to be carefully considered by those who negotiate the treaties with Denmark and Portugal, the Emperor and Empress, and all other powers. We have a good right to insist, that no distinction shall be made in their ports between their ships and ours; that we should pay in their ports no higher duties than they pay in ours.

I should think it therefore advisable for Congress to instruct their negotiators, to endeavor to obtain equity in this respect. This is the time for it, if ever. If we cannot obtain it by negotiation, we must think and talk of doing ourselves justice by making similar distinctions in our own ports between our vessels and theirs. But here again comes in the difficulty of uniting our States in such measures; a difficulty which must be surmounted, or our commerce, navigation, and marine will still be ruined, notwithstanding the conservation of the fisheries. It deserves to be considered by whom this new method of huddling up treaties at Paris is contrived, and for what purposes. It may well be conjectured, that it is done with the secret intention of preventing these things from being attended to; for there are persons who had rather that any other people should have navigation than the Americans. I have good reason to believe that it was known at Versailles, that Mr Dana had well digested his thoughts upon this subject, which was reason enough for some people to endeavor to take Sweden out of his hands, in whose department it was. Their success is much to be lamented. [\[10\]](#)

I had yesterday and the day before long conversations with the Baron Van der Capellen de Pal, and M. Gyselaer. They both complain to me, in the most pathetic terms, of the cruel situation of the friends of America and France in this Republic. They both say, that they are looking round every way like drowning men for support. The Province of Friesland, their great dependence, wavers, and many of their fellow-laborers are discouraged. They both inquired of me very earnestly, if closer connexions could not be formed with us; if we could not agree to warrant to each other the liberty of

navigation, or enter into an alliance, offensive and defensive. They see they shall be obliged to make a shameful peace, and that the blame of it will fall upon them, which will give a triumph to the Court, and put their persons even in danger. They say, the King of France, by his Ambassador, in July, 1782, gave them a positive assurance that he would never separate his cause from theirs. In consequence of this, they had instructed their Ambassadors never to separate their cause from his. On their part the agreement had been sacredly observed, but not on the other. With Great Britain enraged against them, with a formidable party in the Republic furious against them, with the King of Prussia threatening them, and abandoned by France, their prospects are, they say, as disagreeable as can be conceived.

There are many appearances of designs to excite the people to seditions, and I think it probable that the Court of London studies delays of the Definitive Treaty in this hope. I still believe, however, that the people will be wise and the Republic firm, and submit to the immense losses of the war, and that of Negapatnam, rather than renew their old submission to the Court and to England.

I have the honor to be, &c.

JOHN ADAMS.

FOOTNOTE:

[\[10\]](#) The plan of the treaty with Sweden was sent out to Dr Franklin by Congress, and adopted with hardly a verbal alteration. See the plan, and the treaty as adopted, in the Secret Journals of Congress, Vol. III. pp. 227, 369.

TO ROBERT R. LIVINGSTON.

Paris, August 10th, 1783.

Sir,

On the 6th I left the Hague, and last night arrived here. I had several interviews, on some of the last days at the Hague, which I had not time to give you an account of, as a great part of my time was taken up with visits to take leave of the Court, the President, the Grand Pensionary, Greffier, &c. ceremonies which must be repeated at every coming and going, and upon many other occasions, to the no small interruption of business of more importance.

I asked the Count de Sanafeé, the Spanish Minister, with whom I have always lived upon very good terms, whether it might not be possible to persuade his Court, that it would be good policy for them to allow to the citizens of the United States of America a free port, in some of their islands at least, if not upon the Continent of South America? He said he did not know; that he thought, however, his Court would be afraid of the measure, as free ports were nests of smugglers, and afforded many facilities of illicit trade, (*le commerce interlope.*)

I asked him further, whether measures might not be taken at Madrid, to the end that the sugars, coffee, cocoa, &c. of their Colonies might be carried to the free ports of France, Holland, and Denmark, in the West Indies or one of them, in Spanish vessels, that they might be there purchased by Americans? He said he was not able to foresee any objection against this. I asked him again, what objections there could be to admitting American vessels to the Spanish Islands of Cuba and Hispaniola, to carry their produce and purchase molasses, as they did in the French and Dutch Colonies. Such a commerce would be useful and profitable both to them and to us. He said that he could not pretend to give any opinion upon any of these points. But that we must negotiate them at Madrid. I hope Congress will instruct their Minister at the Court of Madrid to propose all these things, and endeavor to obtain them.

The Portuguese Envoy, Don Almeida, returned my visit, and brought with him a copy of the treaty between Spain and Portugal, made at Utrecht in 1715. This treaty was signed under the warranty of Great Britain, and one article of it is, that each nation shall confine the commerce with its possessions in America to its own subjects. I had much satisfaction in the conversation of this Minister, who, though a young man, appears possessed

of more than common intelligence, and a desire to inform himself of everything which can affect his nation. He is, as he told me, a nephew of the present Prime Minister at the Court of Lisbon. He says, that the *King his master*, (a style which they continue to use, although the Queen is the sovereign, and her husband is but her subject) allows but sixty thousand Dutch guilders a year to his Ambassador at Versailles, which not being sufficient for his expenses at that Court, he is continued there because he is very rich; but that he is not a man of business.

He again enlarged upon the subject of Portuguese navigation, which has been prettily increased, (*tres joliment augmenté*) during the late war, and would have been still doubled if the war had continued another year; that their merchants and mariners had pushed their navigation with more spirit than skill; had sent their wines and other things in prize vessels purchased in France and Spain, all over Europe; but that their seamen not being experienced, many vessels had been lost, so that the price of insurance was ten per cent with them, when it was not more than three or four with other neutral nations; that the profits had nevertheless been so considerable, as to excite a strong inclination still to increase their shipping and carrying-trade. These observations are worth repeating to Congress, because all the other neutral powers have felt a like advantage. The commerce of the northern powers was so increased, and had turned the course of business that way to such a degree, as occasioned to the Danish Minister at Versailles, for example, a loss of forty per cent upon his salary. So much was exchange affected.

The late belligerent powers, having observed this sudden increase of the commerce of the neutrals, and that it was owing to the sudden growth of their navigation, are alarmed. So that the attention of all the commercial nations is now turned to navigation, carrying-trade, coasting-trade, &c. more than ever. We should be apprised of this, and upon our guard. Our navigation and carrying-trade is not to be neglected. We have great advantages for many branches of it, and have a right to claim our natural share in it.

This morning I went out to Passy, and found from Dr Franklin and Mr Jay, that nothing farther had been done since my departure, but to deliver to Mr

Hartley a fair copy of the project of a definitive treaty, which I had left with my colleagues; that Mr Laurens had been here in my absence, and returned to England; that he was of opinion, the present British Ministry would not remain a fortnight; that Mr Hartley had been seven weeks without a letter from his principals, and then received only an apology for not having written, a promise to write soon, and authority to assure the American Ministers that all would go well. These last are words of course. There are but three ways in which I can account for this conduct of the British Ministry. 1st. The fact is, that they foresee a change, and do not choose to commit themselves, but wish to reserve everything for the foundation of a future opposition, that they may attack the definitive treaty which may be made by a future Ministry, as they attacked the provisional and preliminary one, made by the last. 2dly. That they are exciting secretly and insidiously the troubles in the north, in hopes of involving France, and then assuming a higher tone. 3dly. That they are in expectation, that seditions may be excited in Holland, and the Dutch induced to renounce France, and renew the ancient alliance with England.

I see no more appearance of the definitive treaty, than I have done these six months. Mr Hartley, I am told by Mr Jay, thinks that the French Court wish to delay the signature; that they do not wish to see the peace finished between England and America, while matters are uncertain in the north. There are so many considerations on both sides of the question, whether the French Minister wishes to finish soon or not, that it is hard to decide it. Neither Court possibly is very zealous to finish, while so great a scene as the northern war lies under so much obscurity.

I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

Paris, August 13th, 1783.

Sir,

Yesterday I went to Court with Dr Franklin, and presented to the Count de Vergennes our project of a definitive treaty, who told us he would examine it and give us his sentiments upon it.

It was Ambassadors' day, and I had conversations with a number of Ministers, of which it is proper I should give you an account.

The Dutch Ambassador, Berkenrode, told me, that last Saturday the Count de Vergennes went to Paris, and dined with the Imperial Ambassador, the Count de Mercy, in company with the Duke of Manchester, the Count d'Aranda, the Prince Bariatinski, and M. Markoff, with their Secretaries; that after dinner the Secretaries in presence of all the Ministers read over, compared, and corrected the definitive treaties between France and Great Britain, and between Spain and Great Britain, and finally agreed upon both. So that they are now ready for signature by the Ministers of Great Britain, France, and Spain as principals, and by those of the two Imperial Courts as mediators.

The Duke of Manchester told me, that Mr Hartley's courier, who carried our project of a treaty, arrived in London last Saturday, and might be expected here on next Saturday on his return.

In the evening, on my return from Versailles, Mr Hartley called upon me at my house, and informed me, that he had just received a courier from Westminster, who had brought him the ratification of our provisional treaty, under the King's own hand, and under the great seal of the kingdom, enclosed in a silver box, ornamented with golden tassels as usual, which he was ready to exchange tomorrow morning. He informed me farther, that he had received very satisfactory letters from the Duke of Portland and Mr Fox, and the strongest assurances, that the dispositions of his Court were very good to finish immediately, and to arrange all things upon the best footing; that he had farther received plenary authority to sign the definitive treaty tomorrow, or tonight, if we pleased; that he had received a draft ready formed, which he would show us.

We agreed to go together in the morning to my colleagues, and this morning we went out in Mr Hartley's carriage, exchanged the ratifications, and he produced to us his project of a definitive treaty. It is the provisional treaty in so many words; without addition or diminution. It is only preceded with a preamble, which makes it a definitive treaty. And he proposed to us, that all matters of discussion respecting commerce or other things should be left to be discussed by Ministers, to be mutually appointed to reside in London and Philadelphia. We told him, that it had been proposed to us, that the Ministers of the two Imperial Courts should sign the treaty as mediators, and that we had answered, that we had no objection to it.

He said, he had unanswerable ones. First, he had no authority, and could not obtain any certainly under ten days, nor probably ever. For secondly, it would, he thought, give great offence to his Court, and they never would agree that any nation should interfere between them and America. Thirdly, for his part, he was fully against it, and should write his opinion to his Court. If he was about to marry his daughter, or set up a son in the world, after he was of age, he would never admit any of his neighbors to interfere, and sign any contract he might make, as mediators. There was no need of it.

We told him there was no need of warmth upon the occasion, or any pretence for his Court to take offence; that it had been proposed to us, that the Imperial Ministers should sign as mediators. Our answer had been, that we had no objections, that we were willing and ready to consent to it, or even to request it. His Court had a right to consent or dissent, as it thought proper. To be sure, the mediation could not take place without their consent. That he might write to his Court the proposition, and if he received orders to consent or dissent, it would be equally well. In the meantime, we were ready to sign the definitive treaty, either with or without the mediation, whenever the other parties were ready to sign, according to his project just received from his Court, that is, simply a repetition of the provisional treaty.

We have agreed to this, because it is plain, that all propositions for alterations in the provisional articles will be an endless discussion, and that we must give more than we can hope to receive. The critical state of things in England, and at the Court of Versailles, and in all the rest of Europe, affords pressing motives to get this business finished.

Mr Hartley told us from his Court, that they had expected an American Minister at St James's these three months, and that all further matters might be there discussed.

He also announced to us the birth of another Princess, the fifteenth child of the Queen, upon which event he received our congratulations, which I hope Congress will approve and repeat by their Minister in London; for these personal and family compliments are more attended to in Courts, and have greater effects than may be imagined.

I lament very much, that we cannot obtain an explanation of the article respecting the refugees, and that respecting debts; but it is plain, we must give more than they are worth for such explanations; and what is of more decisive importance, we must make a long delay, and put infinitely greater things at hazard by this means.

I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

Paris, August 13th, 1783.

Sir,

The question before the French cabinet, whether they shall involve themselves in a war against two Christian Empires, in order to support a Turkish one, is of a serious nature on many accounts. If the Turks should be driven out of Europe, France would lose some of the Levant trade, and some of the coasting trade of Italy; and these commercial and naval considerations are enforced by others, which lie deeper in the human heart, the ancient rivalry between the great Houses of Bourbon and Austria, and between the vast countries of Germany and France, and between all the lesser powers, which depend upon them. To these considerations is to be

added, that an Austrian Princess is now upon the throne of France, to whom it is no doubt a melancholy consideration, that there is danger of a war between a husband and a brother.

The city politicians are looking out for alliances with Prussia, Holland, and even England, but can find none. It cannot be expected that either will engage; yet the French Minister has gone far towards compromising his master, by augmenting the array to a war establishment, and by threatening to shut up the Mediterranean Sea.

In this posture of affairs, it is not surprising, that there should be a fermentation at Versailles, and since my return to Paris, I find it is the general topic of conversation. Monsieur de Breteuil, late Ambassador to the Court of Vienna, who is supposed to be esteemed by the Queen, and connected with her friends, is lately, about a fortnight ago, called to the King's council, and the Maréchal de Castries, who is in the same interest, is said to be now modelling the subordinate offices in his department.

From these, and many other considerations, it is generally concluded, that Count de Vergennes' continuance in the Ministry is precarious. Mr Hartley last night and today began conversation with me upon the subject, and is very sanguine that his Minister will continue in place but a very short time, and assures me that the Duke of Manchester is of the same opinion. I pretend to form no opinion, because I have ever carefully avoided conversations and connexions, which might be misinterpreted into an attachment to persons or parties in this kingdom.

I know, that for the last nine months many sensible people have thought this Minister in a tottering situation; others think he will weather out the storm, which all people agree is preparing for him. Time will discover. One thing is agreed on all hands, that he is not in favor with the Queen, and as he has taken up the cause in a pretty high tone against the Emperor and Empress, if he should be now displaced, Congress, I think, may infer from it, that France will not take a part in the war; on the contrary, if he remains, it is probable she will.

I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

Paris, August 13th, 1783.

Sir,

Yesterday at Versailles, the Baron de Walterstorff came to me and told me he had delivered to Dr Franklin, a project of a treaty between the Court of Denmark and the United States, and asked me if Dr Franklin had shown it to me? I answered him, that I knew nothing of it. He said, he wondered at that, he presumed it was because of my absence at the Hague, for that it had been shown to Mr Jay. There by the way he was misinformed, for upon my return from Versailles, I called upon Mr Jay on purpose to ask him, and he assured me he had not seen it. I asked Walterstorff, if his orders were to propose his project to us all. He said no, this Court had been informed, that Dr Franklin was the Minister authorised and empowered by Congress to treat with all the powers of Europe, and they had for this reason sent him orders to deliver the project to Dr Franklin, but he supposed Dr Franklin would consult his colleagues. The same information, I doubt not, has been given to the Court of Portugal, and every other Court in Europe, viz. that Dr Franklin is alone empowered to treat with them; and in consequence of it, very probably, propositions have been or will be made to him from all of them, and he will keep the whole as secret as he can from Mr Jay, Mr Laurens, Mr Dana, and me. [\[11\]](#)

Now I beg to be informed by Congress, whether he has such authority or not? Having never been informed of such powers, I do not believe he has them. I remember there was seven years ago a resolution of Congress, that their Commissioners at Versailles should have power to treat with other powers of Europe; but upon the dissolution of that commission this authority was dissolved with it; or if not, it still resides in Mr Deane, Mr Lee, and myself, who were once in that commission, as well as Dr Franklin. And if it is by virtue of this power he acts, he ought at least to communicate

with me, who alone am present. I think, however, that neither he nor I have any legal authority, and therefore that he ought to communicate everything of this kind to all the Ministers here or hereabout, Mr Jay, Mr Laurens, and myself, at least.

It is not from the vain wish of seeing my poor name upon a treaty, that I write this. If the business is well done, it is not of much importance in itself who does it.

But my duty to my country obliges me to say, that I seriously believe this clandestine manner of smuggling treaties is contrived by European politicians on purpose, that Mr Jay and I may not have an opportunity of suggesting ideas for the preservation of American navigation, transport-trade, and nurseries of seamen. But in another point of view it is of equal importance. This method reflects contempt and ridicule on your other Ministers. When all Europe sees, that a number of your Ministers are kept here as a kind of satellites to Dr Franklin in the affair of peace, but that they are not to be consulted or asked a question, or even permitted to know the important negotiations which are here going on with all Europe, they fall into contempt. It cannot be supposed that Congress mean to cast this contempt upon us, because it cannot be supposed they mean to destroy the reputation, character, influence, and usefulness of those to whom in other respects they intrust powers of so much consequence; and therefore I am persuaded, that Congress is as much imposed on by it as the Courts of Europe are.

I asked the Baron, what was the substance of the treaty. He said his Court had taken for a model, my treaty with Holland. I said nothing to him in answer to this, but I beg leave to say to Congress, that the negotiation with Holland was in very different circumstances. We were then in the fiercest rage of the war. A treaty with that Republic was at that time of as much weight in the war, as the captivity of Burgoyne or Cornwallis. A treaty with any power was worth a battle or a siege, and no moments of time were to be lost, especially in a country so divided, that unanimity being necessary, every proposition was dangerous. At present the case is altered, and we may take time to weigh and inquire. The Baron tells me, that St Thomas and St John, two of their Islands, are free ports, but that St Croix, which is of more

importance than both, is not. That foreign vessels, our vessels, are permitted to bring our produce, and carry away half the value in sugar, &c. The Island produces, *communibus annis*, twenty thousand hogsheads of sugar, and their molasses is better than that of the French, because they make only "*sucres crutes*." He says, they have some sugar-houses at Copenhagen. But notwithstanding this, I think it is worth while for Congress to try if they cannot, by the treaty, obtain a right to take away cargoes, to the full value of those they bring. It is worth while to try too, if we cannot obtain a tariff, to ascertain the duties to be paid in exportation and importation. It is worth while too, to endeavor to get the duties ascertained in the Danish ports in Europe, at least that we may not pay in their ports more than they pay in ours; or that our vessels may not be obliged to pay more than theirs, especially when we import our own produce. I pretend not to be a master of these commercial subjects, but I think that Dr Franklin has not studied the subject more than myself, that both of us need the advice of Mr Laurens and Mr Jay, and that all of us want that of American merchants, and especially of Congress. I am therefore against this secret and hasty method of concluding treaties, at this time, when they may be more maturely reflected on.

I know very well to what ill-natured remarks these reflections are liable, but they shall not hinder me from doing my duty. I do sincerely believe, there are clandestine insinuations going about to every commercial nation in the world, to excite them to increase their own navigation and seamen at the expense of ours, and that this smuggling of treaties is one means of accomplishing the design, although Dr Franklin may not be let into the secret of it. For, from long experience and observation, I am persuaded that one Minister at least and his dependants would prefer, that the navigation of any nation in the world, even that of the English, should grow, rather than ours. In the last *Courier de l'Europe*, it is said, that all the commercial powers are concerting measures to clip the wings of the eagle, and to prevent us from having a navy. I believe it. That is to say, I believe measures are taken with them all to bring them into this system, although they are not let into the secret design, and do not know from whom the measures come, nor with what views promoted.

With great regard, I have the honor to be, &c.

JOHN ADAMS.

FOOTNOTE:

[11] Franklin did not assume this authority, but reported to Congress, that propositions for treaties had been made, and desired that authority to conclude them might be sent to him, or *some other person*. See on this subject, *Franklin's Correspondence*, Vol. IV. pp. 74, 97, 99, 110, 114, 141. For the treaty with Sweden he had a special authority. *Secret Journals*, Vol. III. p 240.

TO ROBERT R. LIVINGSTON.

Paris, August 15th, 1783.

Sir,

France, England, Spain, and America are all agreed; but Mr Hartley is sanguine, that the treaty will not be signed, because, he says, the Count de Vergennes does not mean to sign it. His reasons for this opinion I know not, and I think he is mistaken. It is very certain, however, that the French Minister is embarrassed, and would not, perhaps, be sorry to find good reasons for postponing the signature for some time.

Congress may judge in some degree of the situation of things, by the following conversation, which I had this morning with M. Brantzen, the Ambassador Extraordinary from the States-General, to whom I returned the visit he made me yesterday, when I was abroad.

He told me, "that he was as far, and indeed farther than ever, from an agreement with the Duke of Manchester. He had given up, he said, all pretensions to a compensation for the unjust damages of the war, and he had in a manner waived his claim of the restitution of Negapatnam. But the Duke of Manchester now insisted peremptorily upon, not only all the ancient salutations from the Dutch flag to the English, but upon an

unlimited liberty of navigation in all the seas of the East Indies. He had despatched an express to the Hague the day before yesterday, who would arrive today; but the Grand Pensionary was sick, and the States of Holland not sitting; so that there must be some time before he could have an answer. Concerning the salutes to the flag, there would be different opinions, but they would be all of a mind against the liberty of navigation in the Indies. He could not, therefore, expect from their High Mightinesses permission to sign, and the Count de Vergennes would be embarrassed. All the other powers were ready, and to make them wait would raise a cry.

"To sign without Holland would raise a terrible storm in Holland against the Count, and no small one in France. And even, if the States should authorise him to sign a shameful peace, this would raise no less clamor in Holland and France against the Count. He will, therefore, not know what to do, and will seek to postpone; for the parties of the Marquis de Castries and of M. de Breteuil will take advantage of every clamor against the Count, as these parties wish M. de Breteuil in his place. I am persuaded, therefore, that the Count himself looks upon his own situation as very hazardous. It has been so a long time. It was his instability in his place that made him sign the preliminaries, for money to carry on the war could not be obtained without M. Necker, and M. Necker would not come in with the Count, as they were and are sworn enemies to each other. He was, therefore, reduced to the dilemma to make peace or go out. I have good reasons to believe, that the Maréschal de Castries disapproves of the Count's conduct towards our Republic. He certainly deceived me. The States-General did very wrong to bind me to leave so much to the French Minister; but I thought him an honest man, and that I could trust him; so I left things to him, according to my instructions, depending on his word, and, at last, I found myself the dupe. No, not a dupe, for I am always upon my guard not to be a dupe. But he deceived me; and when one, whom I have reason to believe an honest man, deceives me, I cannot call myself a dupe, for I can do no other than believe an honest man, when he gives me his word."

In several of your letters, Sir, you have insisted on my reciting to you my conversations with foreign Ministers. You must not esteem them infallible oracles. They are often mistaken in their facts, and sometimes wrong in their reasonings. But these sentiments of M. Brantzen are of so much

importance, that I thought proper to recite them. It will, indeed, be necessary for your foreign Ministers to be more inquisitive than we have been, and to transmit to Congress more information concerning the intrigues of Courts, than we have done. If the Maréchal de Castries and M. de Breteuil, who is now in the Council, and M. Necker are not friends to the Count de Vergennes, and all the world here agree they are not, Congress ought to know it. Although I would have so much respect to the Queen, as not to name her Majesty upon unnecessary occasions, yet, upon this, when she is sister to the Emperor, and the question at Court is, whether there shall be a war with her brother, it is obviously a matter of so much importance, as to make it a duty to communicate to Congress her sentiments, which all men here agree are favorable to de Castries and Breteuil, but not partial to the present Minister of foreign Affairs. I said in a former letter, if this Minister continues, there will be war; but I am told by some, if there is war, he cannot continue; for neither he, nor his friends, can raise the money. M. de Rayneval, however, affirmed positively to Mr Hartley, that nothing but death could remove the Count. [\[12\]](#)

All these things show the critical and uncertain constitution of this Court, and the uncertainty when the definitive treaty will be signed, notwithstanding that four powers are agreed, and, therefore, I can give Congress no clear information upon that head. This is a great chagrin to me, both on account of the public and myself, because I am as uncertain about my own destiny as that of the public.

With great respect, I have the honor to be, &c.

JOHN ADAMS

FOOTNOTE:

[\[12\]](#) This affirmation was verified. The Count de Vergennes continued in the Ministry till his death, which happened, February 13th, 1787.

TO THE PRESIDENT OF CONGRESS.

Paris, September 5th 1783.

Sir,

On Wednesday, the 3d day of this month, the American Ministers met the British Minister at his lodgings at the *Hôtel de York*, and signed, sealed, and delivered the Definitive Treaty of Peace between the United States of America and the King of Great Britain. Although it is but a confirmation or repetition of the provisional articles, I have the honor to congratulate Congress upon it, as it is a completion of the work of peace, and the best that we could obtain. Nothing remains now to be done but a treaty of commerce; but this in my opinion cannot be negotiated without a new commission from Congress to some one or more persons. Time, it is easy to foresee, will not be likely to render the British nation more disposed to a regulation of commerce favorable to us, and therefore my advice is to issue a commission as soon as may be.

There is another subject on which I beg leave to represent to Congress my sentiments, because they seem to me of importance, and because they differ from many sanguine opinions, which will be communicated to the members of that assembly from partisans both of England and France.

In the late deliberations concerning an acceptance of the mediation of the Imperial Courts, the British Minister refused it, and in the conferences we had with the Count de Vergennes upon this subject, it was manifest enough to me that he was not fond of our accepting it; for although he maintained a perfect impartiality of language, neither advising us for, nor against the measure, yet at last, when it was observed that Mr Hartley was averse to it, he turned to Dr Franklin and said, that we must agree with Mr Hartley about it, with such a countenance, air, and tone of voice (for from these you must often collect the sentiments of Ministers) as convinced me he did not wish the mediation should take place.

It was not a subject which would bear insisting on either way. I therefore made no difficulty. But I am, upon recollection, fully of opinion that we should have done wisely to have sent our letter to the Imperial Ministers,

accepting the mediation on our part. The signature of these Ministers would have given reputation in Europe and among our own citizens. I mention these, because I humbly conceive that Congress ought, in all their proceedings, to consider the opinion that the United States or the people of America will entertain of themselves. We may call this national vanity or national pride, but it is the main principle of the national sense of its own dignity, and a passion in human nature, without which nations cannot preserve the character of man. Let the people lose this sentiment, as in Poland, and a partition of their country will soon take place. Our country has but lately been a dependent one, and our people although enlightened and virtuous, have had their minds and hearts habitually filled with all the passions of a dependent and subordinate people; that is to say, with fear, with diffidence, and distrust of themselves, with admiration of foreigners, &c. Now I say, that it is one of the most necessary and one of the most difficult branches of the policy of Congress to eradicate from the American mind, every remaining fibre of this fear and self-diffidence on one hand, and of this excessive admiration of foreigners on the other.

It cannot be doubted one moment, that a solemn acknowledgment of us by the signature of the two Imperial Courts would have had such a tendency in the minds of our countrymen. But we should also consider, upon every occasion, how our reputation will be affected in Europe. We shall not find it easy to keep up the respect for us, that has been excited by the continual publication of the exploits of this war. In the calm of peace, little will be said about us in Europe unless we prepare for it, but by those who have designs upon us. We may depend upon it, everything will be said in Europe and in the gazettes, which anybody in Europe wants to have repeated in America, to make such impressions upon the minds of our citizens, as he desires. It will become us, therefore, to do everything in our power to make reasonable and just impressions upon the public opinion in Europe. The signature of the two Imperial Courts would have made a deep and important impression in our favor, upon full one half of Europe, as friends to those Courts, and upon all the other half as enemies.

I need not explain myself further. I may however add, that Americans can scarcely conceive the decisive influence of the governments of Europe upon their people. Every nation is a piece of clockwork, every wheel is under the

absolute direction of the sovereign as its weight or spring. In consequence of this, all that moiety of mankind that are subject to the two imperial Courts and their allies, would, in consequence of their mediation have been openly and decidedly our friends at this hour, and the other half of Europe would certainly have respected us more for this. But at present, the two Imperial Courts not having signed the treaty, all their friends are left in a state of doubt and timidity concerning us. From all the conversations I have had with the Count de Mercy and M. Markoff, it is certain that the two Courts wished, as these Ministers certainly were ambitious to, sign our treaty. They and their sovereigns wished that their names might be read in America, and there respected as our friends. But this is now past. England and France will be most perfectly united in all artifices and endeavors to keep down our reputation at home and abroad, to mortify our self-conceit, and to lessen us in the opinion of the world. If we will not see, we must be the dupes; we need not, for we have in our own power, with the common blessing, the means of everything we want. There is but one course now left to retrieve the error, and that is to send a Minister to Vienna with power to make a treaty with both the Imperial Courts. Congress must send a Minister first, or it will never be done. The Emperor never sends first, nor will England ever send a Minister to America, until Congress shall have sent one to London.

To form immediate commercial connexions with that half of Europe, which ever has been, and with little variations ever will be, opposite to the House of Bourbon, is a fundamental maxim of that system of American politics, which I have pursued invariably from the beginning of this war. It is the only means of preserving the respect of the House of Bourbon itself; it is the only means in conjunction with our connexions with the House of Bourbon, already formed, to secure us the respect of England for any length of time, and to keep us out of another war with that kingdom. It is, in short, the only possible means of securing to our country that peace, neutrality, impartiality, and indifference in European wars, which, in my opinion, we shall be unwise in the last degree, if we do not maintain. It is, besides, the only way in which we can improve and extend our commercial connexions to the best advantage.

With great respect, I am,

JOHN ADAMS.

TO ELIAS BOUDINOT, PRESIDENT OF CONGRESS.

Paris, September 8th, 1783.

Sir,

Yesterday morning Mr Jay informed me, that Dr Franklin had received, and soon after the Doctor put into my hands, the resolution of Congress of the 1st of May,^[13] ordering a commission and instructions to be prepared to those gentlemen and myself for making a Treaty of Commerce with Great Britain. This resolution, with your Excellency's letter, arrived very seasonably, as Mr Hartley was setting off for London with information from us, that our powers were executed.

I am very sensible of the honor, that is done me by this resolution of Congress, and of the great importance of the business committed to our care; and shall not, therefore, hesitate to take a part in it. I can attend to this business, and at the same time have some care of your affairs in Holland; and in case the present loan should be full in the course of the next winter, I can open a new one, either by going to Amsterdam, or by having the obligation sent to me in Paris to be signed. In this way there will be no additional expense to the public, as I have informed M. Dumas, that there must be no expense made at the Hague on my account, or on account of Congress, but that all his expenses must be borne by himself, or he must at least settle them with Congress. I have so much regard for this gentleman, and such an opinion of his worth and merit, that I cannot but recommend him upon this occasion to Congress, for the commission of Secretary of that Legation, but as economy is and ought to be carefully attended to, I presume not to point out the salary, which will be proper. There are so many ways of pillaging public men in Europe, that it will be difficult for Congress to conceive the expenses, which are unavoidable in these countries.

If the principle of economy should restrain Congress from sending Ministers to Vienna, Petersburg, Copenhagen and Lisbon, they will probably send a commission to Paris to negotiate treaties there, because I think it will appear to be of great importance, both in a political and commercial light, to have treaties with these powers. If this should be the case, as three of us will be now obliged to attend at Paris the tedious negotiation with every Court, we can all at the same time and with the same expense attend to the negotiations with the other powers; which will afford to all an opportunity of throwing in any hints, which may occur for the public good, and will have a much better appearance in the eyes of Europe and America. I do not hesitate, therefore, to request, that if such a commission or commissions should be sent, that all your Ministers in Europe may be inserted in it. If the arrangement should make any difficulty in America, it will make none with me; for although I think there was good reason for the order in which the names stand in the new commission for peace, and in the resolution for a new commission for a treaty of commerce, that reason will not exist in any future commission.

Mr Hartley's powers are sufficient to go through the negotiation with us, and I suppose it will be chiefly conducted at Paris, yet we may all think it proper to make a tour to London, for a few weeks especially, in case any material obstacle should arise. We are told, that such a visit would have a good effect at Court and with the nation; at least, it seems clear it would do no harm.

With the greatest respect and esteem, I have the honor to be, Sir, your most obedient and most humble servant,

JOHN ADAMS.

FOOTNOTE:

[\[13\]](#) "Ordered, That a commission be prepared to John Adams, Benjamin Franklin, and John Jay, authorising them, or either of them in the absence of the others, to enter into a treaty of commerce between the United States of America and Great Britain, subject to the revisal of the contracting parties previous to its

final conclusion; and, in the meantime, to enter into a commercial convention, to continue in force one year."

TO THE PRESIDENT OF CONGRESS.

Paris, September 8th, 1783.

Sir,

As the resolution of Congress of the 1st of May has determined it to be my duty to remain in Europe, at least another winter, I shall be obliged to say many things to your Excellency by letter, which I hoped to have had the honor of saying upon the floor of your house. Some of these things may be thought at first of little consequence, but time, and inquiry, and consideration, will show them to have weight. Of this sort, is the subject of this letter.

The views and designs, the intrigues and projects of Courts, are let out by insensible degrees, and with infinite art and delicacy in the gazettes.

These channels of communication are very numerous; and they are artificially complicated in such a manner, that very few persons are able to trace the sources from whence insinuations and projects flow. The English papers are an engine, by which everything is scattered all over the world. They are open and free. The eyes of mankind are fixed upon them. They are taken by all Courts and all politicians, and by almost all gazetteers. Of these papers, the French emissaries in London, even in time of war, but especially in time of peace, make a very great use; they insert in them things which they wish to have circulated far and wide. Some of the paragraphs inserted in them will do to circulate through all Europe, and some will not do in the *Courier de l'Europe*. This is the most artful paper in the world; it is continually accommodating between the French and English Ministry. If it should offend the English essentially, the Ministry would prevent its publication; if it should sin against the French unpardonably, the Ministry would instantly stop its circulation; it is, therefore, continually under the

influence of the French Ministers, whose under-workers have many things translated into it from the English papers, and many others inserted in it originally, both to the end, that they may be circulated over the world, and particularly that they may be seen by the King of France, who reads this paper constantly. From the English papers and the *Courier de l'Europe*, many things are transferred into various other gazettes, the *Courier du Bas Rhin*, the *Gazette de Deux Ponts*, the *Courier d'Avignon*, and the *Gazette des Pays Bas*. The Gazettes of Leyden and Amsterdam, are sometimes used for the more grave and solid objects, those of Deux Ponts and d'Avignon for popular topics, the small talk of coffee-houses, and still smaller and lower circles.

All these papers and many others discover a perpetual complaisance for the French Ministry, because they are always in their power so entirely, that if an offensive paragraph appears, the entrance and distribution of the gazette may be stopped by an order from Court, by which the gazetteer loses the sale of his paper in France, which is a great pecuniary object. Whoever shall hereafter come to Europe in any public employment, and take in the papers above enumerated, will acknowledge his obligations to me for mentioning them. He will find them a constant source of amusement, and sometimes of useful discoveries. I may hereafter possibly entertain Congress with some curious speculations from these gazettes, which have all their attention fixed upon us, and very often honor us with their animadversions, sometimes with their grave counsels, but oftener still with very subtle and sly insinuations.

With great respect, I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Paris, September 10th, 1783.

Sir,

As I am to remain in Europe for some time longer, I beg leave to take a cursory view of what appears necessary or expedient to be further done in Europe; for I conceive it to be not only the right but the duty of a Foreign Minister, to advise his Sovereign, according to his lights and judgments, although the more extensive information and superior wisdom of the Sovereign, may frequently see cause to pursue a different conduct.

With Spain no doubt Congress will negotiate by a particular Minister, either the present one or another, and perhaps it would be proper that the same should treat with Naples. With the two Empires, Prussia, Denmark, Portugal, Sardinia and Tuscany, I humbly conceive, it might be proper to negotiate, and perhaps with Hamburg; but there are other powers with whom it is more necessary to have treaties than it ought to be, I mean Morocco, Algiers, Tunis, and Tripoli.

I presume that Congress will not think it expedient to be at the expense of sending Ministers to all these powers, if to any. Perhaps in the present state of our finances it may not be worth while to send any. Yet the present time is the best to negotiate with all. I submit it to consideration then, whether it is not advisable to send a commission to such Minister as you judge proper, with full powers to treat with all, to the Ministers now in Paris, or to any others. But I humbly conceive, that if powers to treat with all or any of these States are sent to any of your Ministers now here, it would be for the public good, that they should be sent to all. If Congress can find funds to treat with the Barbary Powers, the Ministers here are the best situated, for they should apply to the Court of Versailles and their High Mightinesses in the first place, that orders should be sent to their Consuls according to treaties to assist us. Ministers here may carry on this negotiation by letters, or may be empowered to send an agent if necessary. I have no private interest in this business. My salary will be the same, my expenses more, and labor much increased by such a measure. But as it is of public importance, I think, that no unnecessary delicacies should restrain me from suggesting these hints to Congress. Whatever their determination may be, will be satisfactory to me.

I have the honor to be, with the greatest respect, your Excellency's, &c.

JOHN ADAMS.

THE
CORRESPONDENCE
OF
J O H N J A Y ;
MINISTER PLENIPOTENTIARY TO THE COURT OF
SPAIN, AND ONE OF THE COMMISSIONERS FOR
NEGOTIATING PEACE.

John Jay was a member of the first Congress, which assembled at Philadelphia in September, 1774, having been, with four other persons, chosen a delegate from the city and county of New York. He was also in the Congress of the following year, but after the organization of the government of New York he was made Chief Justice of the State, and retired from Congress. On the 21st of October, 1778, even while he held the office of Chief Justice, he was elected by the Assembly a delegate to Congress for a specific object, till the first of March following. The Assembly at the same time declared, that by the constitution of New York both these stations were consistent with each other.

Mr Jay joined the Congress on the 7th of December, and was elected President of that body three days afterwards, as the successor of Henry Laurens. He discharged this office with great dignity and credit to himself till September 27th, 1779, when he was appointed Minister Plenipotentiary to negotiate a treaty of amity and alliance with Spain. He sailed for France about the first of November in the same ship with M. Gerard, who had been the late French Minister in the United States. Accidents at sea compelled the Captain of the vessel to put into Martinique, whence Mr Jay sailed in another vessel for Europe, and arrived at Cadiz on the 22d of January, 1780. Here he remained between two and three months, and then proceeded to Madrid, and entered on the duties of his mission.

The two principal objects, which Mr Jay was instructed to obtain, were a grant of aids in money and military supplies from Spain, to assist in prosecuting the war against the common enemy, and a treaty between Spain and the United States. After encountering for more than two years innumerable embarrassments, vexatious delays, cold treatment, and a provoking indifference, that would have exhausted the patience, if not ruffled the temper of most men, he met with very little success in the former object, and none at all in the latter. The Spanish Court seemed nowise inclined to recognize the independence of the United States, or to show them any substantial marks of friendship, and yet there was evidently a willingness to keep on terms, and be prepared to act according to the issue of events. Tardy promises of money were made by the Minister, which he was reluctant to fulfil, and it was with extreme difficulty at last, that Mr Jay succeeded in procuring from his Catholic Majesty the pitiful loan of one hundred and fifty thousand dollars. In the treaty he made no progress, but was put off from time to time, with pretences as frivolous as they were insincere. He was never received in his public capacity, nor in any other character than that of a private gentleman empowered to act as Agent for the United States. In short, it must be confessed, that the conduct of Spain, in regard to this country during the revolutionary war, was not such as to inspire the gratitude or respect of succeeding generations.

Meantime, on the 13th of June, 1781, Mr Jay was chosen one of the Commissioners for negotiating a peace, when the parties at war should be prepared for such an event. Having already made considerable progress

with Mr Oswald in the treaty; and being persuaded that the British government were in earnest as to their professed desire for peace, Dr Franklin wrote to Mr Jay requesting him to repair to Paris, and join in the negotiation. He arrived in that city on the 23d of June, 1782, and shortly afterwards engaged in the duties of his commission with his colleague. Mr Adams did not arrive till the 26th of October. The preliminary articles were signed on the 30th of November.

Mr Jay continued in Europe the year following, and signed, with the other Commissioners, the Definitive Treaty, September 3d, 1783. Several months previously he had asked permission to return home, but he did not embark till June 1st, 1794. He arrived in New York on the 24th of July following.

It having been understood that he would soon return, Congress had elected him Secretary of Foreign Affairs on the 7th of May, as successor to Mr Livingston, who had resigned some time before. He accepted this appointment, and took charge of the office, which he filled with the same dignity and ability, that had marked his conduct in every public station.

THE

CORRESPONDENCE

OF

J O H N J A Y .

**INSTRUCTIONS TO JOHN JAY, MINISTER FOR
NEGOTIATING
A TREATY WITH SPAIN.**

In Congress, September 29th, 1779.

Sir,

By the treaties subsisting between his Most Christian Majesty and the United States of America, a power is reserved to his Catholic Majesty to accede to the said treaties, and to participate in their stipulations, at such time as he shall judge proper, it being well understood, nevertheless, that if any of the stipulations of the said treaties are not agreeable to the Court of Spain, his Catholic Majesty may propose other conditions analogous to the principal aim of the alliance, and conformable to the rules of equality, reciprocity, and friendship. Congress is sensible of the friendly regard to these States manifested by his Most Christian Majesty, in reserving a power

to his Catholic Majesty of acceding to the alliance entered into between his Most Christian Majesty and these United States; and, therefore, that nothing may be wanting on their part to facilitate the views of his Most Christian Majesty, and to obtain a treaty of alliance, and of amity and commerce with his Catholic Majesty, have thought proper to anticipate any propositions, which his Catholic Majesty might make on that subject, by yielding up to him those objects, which they conclude he may have principally in view; and for that purpose have come to the following resolution;

That if his Catholic Majesty shall accede to the said treaties, and, in concurrence with France and the United States of America, continue the present war with Great Britain for the purpose expressed in the treaties aforesaid, he shall not thereby be precluded from securing to himself the Floridas; on the contrary, if he shall obtain the Floridas from Great Britain, these United States will guaranty the same to his Catholic Majesty; provided always, that the United States shall enjoy the free navigation of the river Mississippi into and from the sea.

You are, therefore, to communicate to his Most Christian Majesty the desire of Congress to enter into a treaty of alliance, and of amity and commerce with his Catholic Majesty, and to request his favorable interposition for that purpose. At the same time, you are to make such proposal to his Catholic Majesty, as in your judgment, from circumstances, will be proper for obtaining for the United States of America equal advantages with those, which are secured to them by the treaties with his Most Christian Majesty; observing always the resolution aforesaid as the ultimatum of the United States.

You are particularly to endeavor to obtain some convenient port or ports below the thirtyfirst degree of north latitude, on the river Mississippi, for all merchant vessels, goods, wares, and merchandises, belonging to the inhabitants of these States.

The distressed state of our finances, and the great depreciation of our paper money, inclined Congress to hope that his Catholic Majesty, if he shall conclude a treaty with these States, will be induced to lend them money; you are, therefore, to represent to him the great distress of these States on that account, and to solicit a loan of five millions of dollars upon the best

terms in your power, not exceeding six per cent per annum, effectually to enable them to co-operate with the allies against the common enemy. But before you make any propositions to his Catholic Majesty for a loan, you are to endeavor to obtain a subsidy in consideration of the guarantee aforesaid.^[14]

FOOTNOTE:

^[14] The above is the form in which the instructions were reported by a committee.

TO THE PRESIDENT OF CONGRESS.

St Pierre's, Martinique, December 20th, 1779.

Sir,

This is the only opportunity of transmitting a letter to Philadelphia since our arrival; and as the route, which this is to take, will be very circuitous and doubtful, it will be short and general.

Having lost our bowsprit, all our masts, and many of our sails, as well as split our rudder, off the Banks of Newfoundland, we steered for this Island, and arrived yesterday afternoon. The Governor and Admiral are at Port Royal. They are informed of our being here, and I shall see them either at this or that place, according as we shall find it to be their intention to come to the one, or remain at the other. Till then, it must continue doubtful, whether we shall be able to obtain a passage in a French frigate, or speedily refit our own; neither of which can be done without the interposition of government.

Two days hence, a vessel will sail for St Eustatia. I shall write more particularly by her, and it is more than probable, that those letters will come

to hand before this.

Yesterday, a fleet of twentyfive merchant-men under the convoy of a frigate, bound from France to this place, were attacked on the southern coast of Martinique, near Port Royal, by a number of the enemy's ships of war from St Lucia. Fourteen merchant-men were captured, and two driven on shore. The rest escaped during a very severe action between three line of battle ships under Monsieur le Motte Piquet, (who went from Port Royal to their relief) and double the number of the enemy. This intelligence was communicated to me this morning by the commanding officer here.

I have the honor to be, &c.

JOHN JAY.

TO THE PRESIDENT OF CONGRESS.

St Pierre's, Martinique, December 22d, 1779.

Sir,

By a message received yesterday afternoon from the Marquis de Boulliè, I find there is no reason to expect him or the Admiral here very soon. We shall, therefore, set out for Port Royal early tomorrow morning, and endeavor to get our ship refitted as soon as possible. She will follow us in a day or two, and, as the enemy's ships of war are frequently cruising near the Island, she will go under convoy; four of them are now in sight of this town.

It seems agreed on all hands, that the expense of refitting the Confederacy will be very considerable. To reduce this matter to greater certainty, I have desired the captain to make out an estimate of his wants; he promised to prepare it, and give me a copy this evening. If I receive it before nine o'clock, it will accompany this letter, otherwise it will be transmitted by the next conveyance.

The agent here tells me, he is without cash, and in debt on the public account. I fear he has been neglected. I shall, however, defer saying anything further on his subject till I shall be better informed. Should an opportunity offer of writing to your Excellency from Port Royal, I shall embrace it, if not, I shall take the first after my return. As the government here will, I hope, advance the money necessary for preparing the frigate for sea, I am anxious that you may have the earliest intelligence of it, that timely provision may be made for the payment.

Of the fleet mentioned in my letter of the 20th instant, only nine were taken or destroyed.

7 o'clock.—I had written thus far, when Captain Harding called upon me. He has made out an estimate of the ship's wants, and given it to Mr Bingham, without having made a copy for me, which it is now too late to do to go by this vessel.

On our return from Port Royal, the captain will transmit particular accounts of everything respecting the ship, which he ought to communicate. He has been too much engaged to prepare his despatches to go by this vessel, and, therefore, postpones writing for the present, especially as he would have leisure only to repeat the general account of our misfortune contained in my letter.

I have the honor to be, &c.

JOHN JAY.

TO THE PRESIDENT OF CONGRESS.

St Pierre's, Martinique, December 24th, 1779.

Sir,

My former letters to your Excellency of the 20th and 22d instant, (a triplicate of the former, and a duplicate of the latter are herewith enclosed) have already informed Congress of the disaster, which imposed upon us the necessity of coming hither. But as that necessity has been and still continues the subject of much inquiry and investigation, it is proper that the facts from which it arose be minutely stated.

On the 7th day of November last, between the hours of five and six in the morning, in latitude 41 03 N. and longitude 50 39 W. the Captain being in bed indisposed, and the master and second lieutenant on deck, the ship going nine knots an hour in a brisk breeze and rough sea, but by no means hard weather, her bowsprit and all her masts gave way in less than three minutes. The day was employed in clearing the ship of the wreck, and getting up a little sail; towards evening a heavy gale came on. During the night, the tiller was lashed fast, and she lay too very well, the wind blowing hard at south east. The next morning the shank of the rudder was found to be so much wrenched and split, that the Captain then told me he thought it a greater misfortune than the loss of the masts. There were two French gentlemen on board, who, it was said, and I believe with truth, were well skilled in maritime affairs, having been bred to that business from their infancy, viz. Monsieur Roche, a Knight of the Order of St Louis, and a Captain Remuy, of Marseilles. Either this day or the next, I am not certain which, M. Gerard remarked to me, that without any previous counsel, it seemed to be the unanimous opinion of all the naval officers on board to go to the West Indies, and that he believed it would be best, though he said he was at first inclined to oppose it. The first expedient to steer the ship was by the cable and a spar; below the split in the rudder there was a bolt with two rings, to which it had been intended to fix a chain for the purpose of steering the ship in case of such accidents, but the fixing the chains had been omitted; through this ring the Captain passed a chain, and to each end of it fastened a strong rope, which was conducted over the quarters, and this was the second mode of steering her; but from the uncommon breadth of the rudder by which its power became unusually great, and the acuteness of the angle between it and the chains rendering a greater force necessary than if it had approached nearer to a right angle; the bolt, though to appearance a good one, broke nearly in the middle, and came out.

It seems the rudder of this ship was hung after she had been launched, and that to do it the more easily an eyebolt had been fixed in each side of the rudder below the shank; to these eyebolts two chains were then fixed, which crossing the edge of the rudder in opposite directions, were fastened to pennants made of cordage, provided for the breechings of our twelve pounders. These pennants passed through blocks at the end of spars, run out of the ports of the cabin. From thence they were led through blocks in opposite ports of the main deck to the capstan, by means of which they were very conveniently managed, and the ship without much difficulty steered. Such however was the force and wear they underwent before our arrival in calmer latitudes and smoother seas, that they generally gave way every day or two; and the Captain tells me, no less than six hundred weight of that cordage has been consumed in that service.

So great was the swell off the Banks, and so high, though not severe the winds, that near a fortnight elapsed before the ship was put in her present condition for sailing. The same obstacles also retarded the repairing of the rudder, which after all was so weak that it was not thought advisable to steer by the tiller, and to prevent any further injury from its striking against the ship, which it constantly did in calm weather, bags stuffed with oakum were placed on each side of it, and a man employed night and day to tend them.

Some days before the 23d day of November, the Captain told me, he thought it advisable to call a council of his officers, and submit to their consideration the propriety of continuing our course towards Europe. M. Gerard shortly after mentioned to me the sitting of this council, and said, he could assure me that the Chevalier Roche and Monsieur Remuy would not give their opinions on the subject but in writing, and on being requested to do it in writing by the Captain. This intelligence appeared to me extraordinary, but as it was not necessary that my sentiments relative to it should be known, I made no reply to M. Gerard, but by degrees turned the conversation to another subject; nor did I give the least hint of it to the Captain, but observed a perfect silence relative to it. It appeared to me that those gentlemen either overrated their importance, or entertained improper ideas of the merit of our officers, and I confess it gave me pleasure to hear that they were not consulted at all.

The council of officers was held the 23d of November last. The Captain gave me their report, together with a return of the provisions and water on board, and assured me of his readiness to proceed to any port whatever, that M. Gerard and myself should direct. I gave these papers to M. Gerard, and although I did not think it expedient by consulting the French officers to give them reason to suppose, that I concurred in sentiments with them as to the importance of their opinions, yet I told M. Gerard, I was well satisfied he should communicate to them the report of our officers, and obtain their sentiments on the question stated in it, and the better to enable him to do it, I proposed that we should postpone the discussion of the subject till the next day, or longer if necessary. He took the papers, said it was very well, and that he would speak to those gentlemen. A day or two after, being on deck, M. Gerard took me aside and gave me the papers, telling me he had seen these gentlemen, and that they both declined giving any opinion about it; that they had always been, and still were, ready to do anything for the benefit of the ship; that had they been requested to give their opinions while the matter was in agitation, they would have done it; that it was now over, and determined; that under these circumstances their opinion would be of no avail, and that they did not choose, by declaring their sentiments, either to confirm the report, or give it ineffectual opposition. M. Gerard further intimated, that those gentlemen seemed to think their giving their advice in the course of our troubles had given offence to the officers of the ship; but I had never reason to think their apprehensions well founded. Upon this conduct of those gentlemen, I briefly observed to M. Gerard, that as they were passengers, we had no right to demand their opinions, and that they had a right to withhold them, or not, as they pleased, and for such reasons as they might think proper; but that as the Captain of the ship had been directed by the marine committee to obey such orders as he should receive from us, it was necessary that in the present conjuncture we should decide on the report; that the Captain, in my opinion, would not be justifiable in further pursuing his course against the solemn and unanimous opinion of all the officers, unless by our express orders; and he would be culpable in changing it, without a previous application to us for direction. M. Gerard observed, that he was sensible of the honor done him by the order alluded to, but that it was not convenient to him to give any opinion or direction on the subject. It did not appear to me prudent to reply to this, and therefore I took the first opportunity of turning the conversation to another topic. As

this circumstance prevented the Captain's receiving any positive orders from us on the subject, he was of course left to pursue his own judgment, but being desirous of my opinion, I gave it to him, in the manner endorsed on the report of the council, of which a copy is herewith enclosed.

The reasons on which this opinion was grounded are, in part, contained in this report, but there were others not mentioned in it. That Congress may the better judge of their force, it is necessary that they be informed of some previous circumstances.

The first fair day after losing our masts, I went to the door of M. Gerard's room on the deck, which was open, to bid him good morning. Chevalier Roche was with him; they were conversing on the course most proper for us to steer, and the port most proper to make for. M. Gerard was for going to Cadiz; he had an excellent set of charts, and he had then one of the Atlantic Ocean, with its American, European, and African Coasts, and the intervening islands, before him. By the assistance of this map we perfectly understood his reasoning. The Chevalier at that time inclined to the West Indies, and I heard him, on leaving the room, tell M. Gerard, that to endeavor to get to Europe in the present condition of the ship, would be to "*run a very great risk of perishing in the ocean.*" Some time after this, M. Gerard perceiving that I had adopted no decided opinion on the subject, (and that was really the case) in the course of an evening he spent with us in the cabin, (none of the officers of the ship being present) desired me to attend particularly to his several reasons for going to Cadiz, and consider them maturely before I made up my judgment. I promised him to do it, and was as good as my word. He proceeded to observe;

1st. That the distance to Cadiz and to Martinique differed but little, and that no weighty argument could be drawn from this difference.

2dly. That between us and Cadiz lay the Western and Canary Islands, into some one or other of which we might run, if necessary.

3dly. That if, on our arrival at either of these Islands, it should appear impracticable or imprudent to proceed further, our persons at least would be safe, and we might get to Europe in one of the many vessels, which frequent those Islands; whereas, on the other hand, there were no Islands

between us and Martinique, and we should, in steering southward, be obliged to run all that distance without finding any place by the way, at which we might touch, or, in case of danger, find shelter.

4thly. That if calmer seas were our object, we should find them in going eastward as well as southward; that we must not expect to meet with the trade winds at that season but in a very remote southern latitude; that in crossing the latitude of Bermudas, we should meet with heavy squalls, and bad weather; that in the latitude between that and the trade winds, we must expect variable winds, and particularly long calms, which are often more dangerous, and more to be dreaded than hard winds.

5thly. That in a voyage to Cadiz, we should have nothing to apprehend from the enemy, but to Martinique, everything.

6thly. That if we should arrive safe at Martinique, we should probably be detained there until next Spring; that the vessels, which usually sail from thence for France every fall, would have departed before the time we should reach the Island; that he had reason to believe it would be very difficult, if not impracticable, to obtain a frigate, and, among other reasons, urged the absence of Count d'Estaing, and the improbability that any subordinate officer would undertake without his orders to grant us one, even admitting what was very unlikely, that one might be spared from the service.

7thly. That the ship might remain long at Martinique without being made ready for sea, for want of naval stores, provisions, &c.

These were M. Gerard's reasons for our steering for Cadiz, by the way of the Azores, and I do not remember to have afterwards heard an additional one. Whether the French officers really thought them conclusive, or whether they found it convenient to make a compliment of their sentiments to a gentleman very able to serve them, is uncertain; but I believe they in appearance inclined to M. Gerard's opinion, and gave him implied reasons to think their sentiments corresponded with his.

The matter appeared to me in a serious light, and to require caution on many accounts. Every consideration called me to Spain; private as well as public good forbade a difference with M. Gerard. I had reason to believe

him well disposed towards me; I perceived, clearly, that he could not with any patience admit the idea of being absent from Europe at so important a season, and that he could scarcely treat with common decency the reasons urged for going to Martinique. Hence it appeared obvious, that should I be the means of his losing his objects, or should any public inconveniences result from our not being in Europe during the winter, I should be censured, not only by him, but by all those who judge of the propriety of a measure only by its consequences, of which number are the far greater part of mankind. Thus circumstanced, I found myself in a very unpleasant situation, without any way of extricating myself, but by agreeing to a sort of middle proposal; viz. to order the Captain to land us on one of the Western Islands, and then leave the ship to shift for herself. This would have satisfied M. Gerard, and we should have been as good friends as ever. I thought it my duty, however, to form my decision carefully, and honestly, and abide by it firmly. It was that we should proceed to Martinique. Some of the reasons for it are set forth in the report of the council of officers. The whole together were briefly these.

1st. That the officers of the ship, including the carpenter, who were to be presumed to be better judges than M. Gerard or myself, were of opinion, that we ought not to attempt to go to Europe, and had this reason stood single and unexplained, I should not readily have ventured to reject it, especially as it appeared to me against the interest of the officers to come to the West Indies, and I have heard them constantly and uniformly regret the necessity of it; but I also thought they decided on good grounds; for

2dly. The rudder daily gave us infinite trouble, almost everyday a pennant breaking, and on every such occasion the ship for some time left to the direction of the wind and waves, a circumstance which might be fatal in hard weather, and near land; the quantity of cordage consumed in this way of steering; the doubt of our having sufficient for the purpose without stripping the guns, which would thereby be rendered useless; the rudder irons daily becoming more and more loose, and, by the nails drawing out, opening a passage for the water into the stem of the ship. By this circumstance our bread had been damaged; the danger of our being obliged to get rid of the rudder entirely, and steering only by the cable, which in northern seas, and winter season, is very inadequate. This event would have

arrived in case either of the eye bolts in the rudder had given way, as the first mentioned one had done, or the upper irons become entirely loose; and for this event it was thought necessary to prepare, by removing the obstacles to unhooking the rudder. Indeed the upper irons in the course of our passage here, with fair winds and no storms, became so loose as to render it necessary to lash the head of the rudder with ropes to a bolt fixed for the purpose in the cabin floor.

3dly. The sails we had left were bad, having been originally made, as Mr Vaughan the second Lieutenant told me, of damaged canvass; they frequently split; we had none to replace them, nor a sufficient stock of twine to mend them, eight pounds only being left of the twenty odd we brought from Philadelphia; nor were we much better supplied with cordage, for which there was a daily demand and some of which was very bad.

4thly. Our jury masts were not calculated for hard weather, the foremast being sprung a few feet below the top, and not able to endure a hard storm.

For these reasons the rough weather common in northern latitudes was by all means to be avoided, and smooth seas sought.

As to the conveniences to be derived from the Islands laying between us and Cadiz, I took some pains to examine into that matter. We had maps and descriptions of them all, and our master had been at many of them. I found there was not a single harbor in any one of them in which a ship could ride at anchor in every wind; on the contrary neither of them has anything more than open roads, out of which it is necessary for ships to make the best of their way, and put to sea whenever certain winds blow, a task which our ship was very far from being in condition to perform.

From this and other circumstances it was evident we could not refit in either of those Islands, not even so much as get a new rudder; for admitting materials for the latter could be had, yet such was the difficulty, if not impossibility, of hanging it in an open road, from whence the ship was every moment exposed to the necessity of going to sea by an unfavorable wind, that we could expect to derive no advantage from these Islands, except the prospect of obtaining some refreshments, which we could do

without, and the value of which would not have compensated for the risk of approaching them in our condition.

As to the idea of our steering that course with a view of being landed on one of those Islands, and from thence going to Europe in another vessel, leaving our own to her fate, no earthly consideration could ever have reconciled me to it. The reasoning which was insisted on, that our being seasonably in Europe was of more importance to the United States than a frigate, and that in time of war, and for the public good, lives were to be risked by sea as well as by land, was a species of reasoning which applied to this case led to conclusions, which never have been, and I pray God never may be, among my principles of action. Had this plan of being landed on one of the Azores or Canaries been adopted, we should have either landed the crew with us or not; if the first, the frigate would have been given to destruction. This appeared to me inconsistent with the public good, because, if we reached Martinique, I had no doubt of a passage, and my arrival in France eight weeks sooner or later did not appear to me of equal importance to the United States with the frigate. Had the crew been left on board, it must have been with a view of saving the ship, either by her reaching Europe or the West Indies. The probability of her effecting either became then a most important question, as the lives of between two and three hundred Americans depended on the event. Against it were opposed the dangers of the seas, and the want of provisions; the former would have increased with the approach of winter, and therefore the longer the ship was detained to the northward, the more she had to suffer, and to fear. The frigate after having landed us on either of the Islands, must either have gone on towards Europe, or endeavored to get to the West Indies.

All the considerations abovementioned opposed the first, and whoever compares the time necessary for a voyage for a ship under jury masts, and almost without a rudder, from the banks of Newfoundland to the Azores or Canaries, and from thence to the West Indies, with our stock of provisions, will find them inadequate to the purpose, and be convinced of the cruelty of subjecting one's fellow citizens to such extremities. For these reasons I positively refused to join in this system.

As to the position in favor of going to Europe, that we should find the seas calmer as we advanced eastward, equally as we went southward, all the officers of the ship testified against it, nor would they admit that we had as much to dread from calms as from hard gales. The supposed difficulty of obtaining a passage from Martinique made but little impression on me. I could not suppose the Islands left unprotected by ships of war, or that the commanding officer would refuse to order a frigate on this service, if M. Gerard would represent it to be of importance, which I was sure he would do. How long our ship might be refitting here was not to be ascertained, but I could not prevail upon myself to believe, that the King of France would keep so considerable a fleet in those seas, without providing for the usual accidents they would be exposed to from the sea and the enemy. At the worst the ship would be in a safe port, and among a people bound by treaties and by interest to afford aid and protection, at least until Congress should be informed of her situation, and have an opportunity of providing for her wants. As to ourselves, in case we meet with the imagined difficulties respecting a passage, it would be easy by passing over to St Eustatia to get very safely in a Dutch ship to Holland.

On these reasons the advice I gave to the captain to come here was founded. I thought them right then, and was daily more and more confirmed in an opinion of their propriety. In the course of our run here, we had all the way fine, fair breezes; and, except in the latitude of Bermuda, smooth seas and scarce any calms. The night before we made the land, it was thought proper to lay the ship too, after the moon set, which was between twelve and one o'clock, and she continued in that position only four hours and a half. Such, however, was the effect of it upon the rudder, and so much damage did it receive from it, that had the ship continued as much longer in the same state, it was agreed on all sides, that the rudder would have been rendered useless.

M. Gerard, hurt by being disappointed in his expectation of being seasonably in France, and perhaps mortified at my preferring my own sentiments to his, ceased to observe that cordiality and frankness, which had before attended his conduct towards me. Nay, he once went so far as to tell me I had my reasons for coming here. I appeared not to understand him, and continued to endeavor to render the conversation as light and general as

possible. This was a tax imposed on my feelings by regard to public good; as a private man, I should have acted differently.

Thus matters continued till about ten or twelve days before our arrival here, when M. Gerard observed to me in the presence of the captain, that it was time to think which side of the island of Martinique it would be most prudent for the ship to go, the north or south side, and proceeded to state the reasons which ought to induce us to prefer the north; particularly, that in the present condition of the ship, she would if she went to the south side be in great danger of running by the island to the leeward; for that as we might expect the wind at northeast, she would not be able to lay sufficiently close to the wind, to reach Port Royal or St Pierre's; besides, that she would be in danger of calms, and being in sight of St Lucia, would be exposed to the enemy's ships of war, without having reason to expect succor from any French ships of war; none of which, he said, cruised off the eastern part of the island, between Martinique and St Lucia. He then showed the advantages of going the other side, by an enumeration of many circumstances, of which I have notes, but which it would be too tedious to mention. The obvious meaning of all this appeared to me to be, that we should direct the captain to go to the northward of the island; but as I neither thought myself authorised, nor found myself inclined to interfere with the particular navigation of the ship, to which I was not competent, I only observed to M. Gerard, that his reasoning appeared to me to have weight; that it was a subject I did not understand, but that I thought his observations merited attention. On this the captain remarked, and I thought with propriety, that it was impossible to determine on which side of the island it would be best to go, until we were at or near the parting point, for that circumstances at present unforeseen might render that way rash, which we might now think prudent; for instance, an unexpected change in the wind, or the appearance of an enemy. He therefore thought a decision on the question improper, till we arrived off the eastern part of the island. This appeared to me so perfectly reasonable, that I thought no more about the matter, and I did not suspect that M. Gerard would have felt any further anxiety about it; but it nevertheless so happened, that in the afternoon of the 14th instant, there was a conversation in the cabin relative to a wager, which of the two we should see first, land or a sail. In the course of this conversation, M. Gerard observed, that it would depend on our going on the

north or south side of the island, and insensibly leaving the subject of the wager, proceeded minutely to recapitulate his reasons for the one, and his objections to the other. In the progress of this disquisition, he grew warmer and warmer, and at length addressing himself more particularly on the captain, said, he was surprised that those facts and observations should meet with so little attention; that he owed it to his conscience and personal safety to mention and enforce them, and that he should represent the whole matter to his Court, &c. The captain repeated what he had before said relative to the impropriety of deciding on which side of the island we were to go, until we had made the land, observed whether any vessels were on the coast, and knew how the wind would be. He then questioned some matters relative to the navigation round the island, on which M. Gerard had insisted.

For my own part, as the subject was so serious, I wished to be informed of some others, which appeared to me to want explanation. The captain had informed me, that the master had been at the taking of Martinique last war, and was well acquainted with its bays, harbors, and coasts. I desired the captain to send for the master, which was immediately done. On this, M. Gerard more animated than usual, said, he pretended to no extraordinary knowledge on the subject, but that he had made inquiries, and was satisfied with the opinion he had given; then repeated what he had before said, about his conscience, personal safety, and Court, and was opening the door to go on deck, when I asked him if he would not stay, and hear what the master had to say. He said, no, he did not want to hear anything farther about it; he had done his duty in delivering what he had to us, and we might do as we pleased about the matter. I made no reply, but proceeded to examine the master, and one of the lieutenants. On the whole it did not appear to me necessary, but on the contrary invidious to give the captain any positive orders on the subject; nor did I enter into any farther conference respecting it with M. Gerard. I knew that no good would result from altercation, and that the best way of treating unreasonable propositions, cavalierly dictated, was silently to go my own way, uninfluenced by them.

This last business rendered M. Gerard still more dissatisfied with me. We observed, nevertheless, and still observe great politeness towards each other, but it proceeds more from the head than the heart. On coming ashore, I flattered myself we should have left all these controversies behind us; but

this city was soon entertained with them. The opinions of French officers were taken by M. Gerard about the sufficiency of the rudder to have gone to Europe; the question about the northern and southern navigation was stated and agitated. M. Gerard claims the merit of having saved the ship, by having, as he insinuates, dragged us into the measure of taking the northern passage, &c. &c. As we are safe in the harbor, these matters are now of no consequence, and therefore I constantly avoid the subject. How they may be represented at Philadelphia is of some moment, and therefore it appears to me expedient to trouble myself and Congress with this narration.

I cannot conclude this letter without expressing my satisfaction with the attention and politeness observed by the captain and other officers towards the passengers, as far at least as my knowledge extends.

I have the honor to be, &c.

JOHN JAY.

TO THE PRESIDENT OF CONGRESS.

St Pierre's, Martinique, December 25th, 1779.

Sir,

As singular instances of humanity and patriotism always merit, and sometimes meet with public notice, I take the liberty of transmitting to Congress a copy of the Rev. Mr Keith's narrative of the conduct of a Mrs Smith, at New York, to the Americans there, who had been taken at Fort Washington.

Conversing, while at sea, with Mr Keith (our chaplain, who had been one of those prisoners) respecting the cruelties exercised towards them by the enemy, and the manner in which they were treated by the inhabitants of the city, he mentioned the behavior of this Mrs Smith; whose conduct appeared to me so remarkably liberal, disinterested, and christianlike, that I desired

him to commit it to paper, with a design to enclose it to your Excellency. I know nothing more of this woman than what Mr Keith told me; but, as from his profession and character I am induced to credit what he says, I transmit this account of her, that if, on further inquiry, it be found to be just, Congress may have an opportunity of saving from poverty and distress a widow, who generously divested herself of a decent maintenance, and applied it to the relief of many citizens and servants of the United States, who were then gloriously enduring the most extreme cruelties, for their faithful attachment to the rights of their country and mankind.

I have the honor to be, &c.

JOHN JAY.

TO THE PRESIDENT OF CONGRESS.

St Pierre's, Martinique, December 25th, 1779.

Sir,

I have done, what perhaps I shall be blamed for, but my pride as an American, and my feelings as a man, were not on this occasion to be resisted. The officers of the Confederacy were here without money, or the means of getting any. The idea of our officers being obliged to sneak, as they phrase it, from the company of French officers, for fear of running in debt with them for a bottle of wine, or a bowl of punch, because not able to pay for their share of the reckoning, was too humiliating to be tolerable, and too destructive to that pride and opinion of independent equality, which I wish to see influence all our officers. Besides, some of them wanted necessaries too much to be comfortable, or, in this country, decent. In a word, I have drawn on the fund, pointed out for the payment of part of my salary, for one hundred guineas in their favor, to be divided among them according to their respective ranks. Indeed, it would have given me pleasure to have done something towards covering the nakedness of the crew; but

the expense I have been put to by coming here; and the preparations for another voyage, would not admit of it.

I have the honor to be, &c.

JOHN JAY.

TO THE PRESIDENT OF CONGRESS.

St Pierre's, Martinique, December 26th, 1779.

Sir,

On our arrival here, M. Gerard told me that he was about to write to the Governor and Admiral at Port Royal, and asked me whether I also chose to write, or would leave to him the necessary communication; offering to mention to them whatever I might desire. As I was well satisfied that he should take the lead in the business, I replied, that I was obliged to him, but did not think it necessary for him to communicate anything to those gentlemen from me, except our arrival, and the confidence I had in their readiness to afford us aid.

I thought it would have been improper to apply for a passage in one of their ships, till I know in what time our own could be refitted, and on this subject it appeared to me most advisable, that application should be made by our agent here; and that I should reserve all interference, till it should be rendered necessary by obstacles. Mr Bingham accordingly wrote without delay to the Governor, and had immediate and full assurances of his readiness to afford us every aid in his power. Nothing now remained to be ascertained, but the time in which the repairs could be made, and this depended on the state of their naval stores.

Mr Bingham went with us to Port Royal, on a visit to the officers of government, (a compliment paid them by all strangers.) The Governor again assured him, that everything should be done for the ship that was possible,

and some orders were given for the purpose. This passed, I believe, without M. Gerard's knowledge. About two hours after our arrival at Port Royal, he took me aside, observed that great difficulties and delays would attend the Confederacy's refitting there; that there were no masts or spars in store, and the expectation of supplies uncertain; that an old mast of a merchant-man had been purchased for one of their ships of war, and that a main yard for another had been made of four pieces for want of a proper spar, and, after some general hints about expenses, provision, &c. proposed, that the frigate should be provided with a new rudder, and proceed to America to refit. I objected, that, contrary to our expectations, the English had an acknowledged superiority in these seas; that three French frigates were at that instant flying from four ships of the line, which were in full chase of them; that a frigate under jury masts would find no safety in flight; that it would be more prudent for Captain Harding to remain here without being refitted, till he could get materials and supplies from America, or receive orders from Congress, than expose his ship to such imminent danger, and, therefore, that I could not possibly come into the measure he proposed.

M. Gerard replied, that she might be convoyed to sea by the French squadron here; but this required no answer. It was not to be supposed, that the French squadron, which, in their present state of inferiority, choose to keep their eyes constantly on Port Royal, would expose themselves to very unequal combat, for no higher object than that of convoying the Confederacy seventy or eighty leagues off the coast, or, that if they did, she would then be out of that degree of danger, to which no ship in her condition ought to be exposed. Besides, I could not reconcile it to the wisdom of France long to leave their fleet here destitute of naval stores, or to disgust their allies by a conduct neither just nor politic. We agreed to leave the matter till the next day, when we expected to see the Admiral; but in an hour or two afterwards the Admiral came in; and a very little time elapsed when the Governor, and shortly after M. Gerard told me, the "*whole arrangement* was completed; that the same attention should be paid to the Confederacy as if she had been a French frigate, and that the Aurora, of thirty odd guns, should carry us to France." The fact is, that the officers of government in general, and the Governor in particular, are strongly attached to everything that is American.

Our agent here is in high estimation. I really believe, from everything I hear, that he has done his duty faithfully, and that he well deserves the notice and approbation of Congress. This leads me to take the liberty of remarking, that it would, probably, be much for the public interest, if Congress were to pay off all private debts due from them to subjects of France, and have none but national engagements with that kingdom. The debts unavoidably contracted here, for the outfit of the Deane, &c. ought certainly to be paid. Our credit and reputation suffer from such delay. We sail tomorrow morning, at six o'clock.

I have the honor to be, &c.

JOHN JAY.

TO ARTHUR LEE.

Cadiz, January 26th, 1780.

Sir,

As a knowledge of the measures you may have taken and the information you may have acquired, relative to the objects of your commission from the United States of America to conclude treaties with his Catholic Majesty, would probably enable me with greater facility and advantage to execute the duties of my appointment, permit me, Sir, to request the favor of you to communicate the same to me in such manner as you may judge most prudent.

I have in my possession some letters directed to you; they are voluminous, and probably contain printed papers. They may also be confidential and important to you. Under these circumstances I can only judge of your inclination by what would be my own in a similar situation. I should wish that they might be detained till I could have an opportunity of directing the manner of their conveyance. Upon this principle they shall remain among my papers till I receive your orders what to do with them. [\[15\]](#)

I am, Sir, &c.

JOHN JAY.

FOOTNOTE:

[\[15\]](#) See the answer to this letter in Arthur Lee's Correspondence, Vol. II, p. 276.

TO THE COUNT DE VERGENNES.

Cadiz, January 27th, 1780.

Sir,

It is with very sensible pleasure that I commence a correspondence with a Minister, of whose disposition and abilities to promote the happiness of my country we have received repeated proofs, and on a subject that affords His Most Christian Majesty an opportunity of perceiving the desire and endeavors of the United States to become cordial and steadfast friends and allies to an illustrious branch of his royal house.

By the treaties subsisting between His Most Christian Majesty and the United States of America, His Most Christian Majesty, in consequence of his intimate union with the King of Spain, did expressly reserve to his Catholic Majesty the power of acceding to the said treaties, and to participate in their stipulations at such time as he should judge proper. It being well understood, nevertheless, that if any of the said stipulations should not be agreeable to the King of Spain, his Catholic Majesty might propose other conditions analogous to the principal aim of the alliance, and conformable to the rules of equity, reciprocity, and friendship. And the Deputy of the said States, empowered to treat with Spain, did promise to sign, *on the first requisition* of his Catholic Majesty, the act or acts necessary to communicate to him the stipulations of the treaties

abovementioned, and to endeavor in good faith the adjustment of the points in which the King of Spain might propose any alteration, conformable to the principles of equality, reciprocity, and perfect amity.

But as the above reservation has always been no less agreeable to the United States than to their great and good ally, both considerations conspired in inducing them to make the first advances towards attaining the object of it. And, therefore, instead of waiting till the requisitions mentioned in the said article should be made, they have thought proper to assure his Most Catholic Majesty, not only of their readiness to comply with the terms of it, but of their desire to obtain his confidence and alliance, by carrying it immediately into execution on the most liberal principles. Trusting also that the same wise reasons which induced his Most Christian Majesty to give birth to the said article, would lead him to facilitate the endeavors of his allies to execute it, they resolved that their desire to enter into the said treaties should be communicated to his Majesty, and that his favorable interposition should be requested.

The more fully to effect these purposes, the Congress were pleased, in September last, to do me the honor of appointing me their Minister Plenipotentiary, and, in pursuance of this appointment, I sailed from America for France on the 26th of October last, with M. Gerard, who was so obliging as to wait till I could embark in the frigate assigned for his service. After being thirteen days at sea, the frigate was dismasted, and her rudder so much damaged that it was thought imprudent to proceed on our voyage. We therefore steered for Martinique, and arrived there on the 18th of December. I cannot, on this occasion, forbear expressing my warmest acknowledgments for the very polite attention and hospitality with which we were received and treated, both by the officers of government and many respectable inhabitants of that island. We left Martinique on the 28th day of the same month, in the Aurora, in which I expected to have gone to Toulon, but on touching at this place, it appeared that the further prosecution of our voyage had become impracticable, without running risks that could not be justified.

Thus circumstanced, the respect due to his most Catholic Majesty demanded an immediate communication of my appointment and arrival,

which I had the honor to make in a letter to his Excellency, Don Joseph Galvez, of the Council of his Catholic Majesty, and general Secretary of State for the Department of the Indies, of which the enclosed is a copy.

Will you, therefore, Sir, be so obliging as to lay this circumstance before his Most Christian Majesty, and permit me through your Excellency to assure him of the desire of Congress to enter into a treaty of alliance, and of amity and commerce with his Catholic Majesty, and to request his favorable interposition for that purpose?

I am happy in being able to assure you, that the United States consider a cordial union between France, Spain and them as a very desirable and most important object, and they view the provision, which his Most Christian Majesty has made for it by the abovementioned article, not only as evinsive of his attention to his royal ally; but of his regard to them.

Under these views and these impressions, they are most sincerely disposed, by the liberality and candor of their conduct, to render the proposed treaties speedy in their accomplishment, and perpetual in their duration.

Your Excellency will receive this letter by M. Gerard, who is so obliging as to take charge of it, and to whom the Congress have been pleased to give such ample testimonies of their esteem and confidence, as to enable him to exert his talents with great advantage on every occasion interesting to them.

I cannot conclude without indulging myself in the pleasure of acknowledging how much we are indebted to the politeness and attention of the Marquis de La Flotte and the other officers of the Aurora, during the course of our voyage.

With great respect and esteem, I have the honor to be, &c.

JOHN JAY.

TO DON JOSEPH GALVEZ, MINISTER OF THE SPANISH COURT.

Cadiz, January 27th, 1780.

Sir,

Permit me through your Excellency to have the honor of representing to his most Catholic Majesty, that on the sixth day of February, 1778, the respective Plenipotentiaries of his most Christian Majesty, and the United States of America, by whom the treaties now subsisting between them were concluded, did make and subscribe a secret article in the words following, viz.

"The Most Christian King declares, in consequence of the intimate union which subsists between him and the King of Spain, that in concluding with the United States of America this treaty of amity and commerce, and that of eventual and defensive alliance, his Majesty had intended, and intends to reserve expressly, as he reserves by this present separate and secret act, to his Catholic Majesty, the power of acceding to the said treaties and to participate in their stipulations, at such time as he shall judge proper. It being well understood, nevertheless, that if any of the stipulations of the said treaties are not agreeable to the King of Spain, his Catholic Majesty may propose other conditions analagous to the principal aim of the alliance, and conformable to the rules of equality, reciprocity and friendship. The deputies of the United States, in the name of their constituents, accept the present declaration to its full extent; and the deputy of the said States, who is fully empowered to treat with Spain, promises to sign, on the first requisition of his Catholic Majesty, the act or acts necessary to communicate to him the stipulations of the treaties above written. And the said deputy shall endeavor, in good faith, the adjustment of the points in which the King of Spain may propose any alteration, conformable to the principles of equality, reciprocity, and perfect amity; he the said deputy not doubting but the person or persons, empowered by his Catholic Majesty to treat with the United States, will do the same with regard to any alterations of the same kind, that may be thought necessary by the said Plenipotentiary of the United States."

The Congress willing to manifest their readiness fully to comply with an article, which they have reason to believe particularly agreeable to their great and good ally, and being desirous of establishing perpetual amity and harmony with a Prince and nation whom they greatly respect, and with whom various circumstances lead them to wish for the most cordial and permanent friendship, have thought proper to request his most Catholic Majesty to accede to the said treaties, and thereby preclude the necessity of that measure's originating in the manner specified in the article. For this purpose they have done me the honor to appoint me Minister Plenipotentiary, and directed me to communicate to his Most Christian Majesty the desire of Congress on this subject, and to request his favorable interposition. They also made it my duty to give his Most Catholic Majesty the fullest assurances of their sincere disposition to cultivate his friendship and confidence; and authorised me, in their behalf, to enter into such treaties of alliance, amity, and commerce, as would become the foundations of perpetual peace to Spain and the United States, and the source of extensive advantages to both.

Thus commissioned I embarked without delay on board the frigate, which had been appointed to carry the Sieur Gerard to France, and sailed with him for that kingdom, from Pennsylvania, on the 26th day of October last.

But after having been thirteen days at sea, the frigate was dismasted, and her rudder so greatly injured, as to oblige us to alter our course and steer for Martinique. We arrived there on the 18th day of December last; and sailed from thence on the 28th day of the same month in a French frigate which was bound to Toulon, but had orders to touch at this port for intelligence. We arrived here the 22d instant, and received information of recent events, which rendered the further prosecution of our voyage too hazardous to be prudent.

Providence having thus been pleased to bring me directly to Spain, the respect due to his most Catholic Majesty forbids me to postpone communicating to him my appointment and arrival; and the same motive will induce me to remain here till he shall be pleased to signify to me his pleasure. For although nothing would afford me more sensible pleasure, than the honor of presenting to his Majesty the despatches, which I am

charged by Congress to deliver to him, yet on this, as on every other occasion, it shall be my study to execute the trust reposed in me, in the manner most pleasing to his Majesty, agreeable to the true intent and meaning of the article abovementioned.

And that his most Christian Majesty may have the highest evidence of the intention and desire of Congress fully and faithfully to execute this article, I shall immediately do myself the honor of communicating the same, together with my appointment and arrival; and I flatter myself, that the request of Congress for his favorable interposition, will meet with the same friendly attention, which he has uniformly extended to all their concerns, and of which I am too sensible not to derive the highest satisfaction from acknowledging it on every occasion.

Mr Carmichael, my Secretary, will have the honor of delivering this despatch to your Excellency, as well as of giving every information in his power to afford. This gentleman was a member of Congress at the time of his appointment, and will be able more fully to express the ardor with which the United States desire to establish a union with France and Spain, on principles productive of such mutual attachment and reciprocal benefits, as to secure to each the blessings of uninterrupted tranquillity.

I have the honor to be, with great consideration and respect, &c.

JOHN JAY.

P. S. I do myself the honor of transmitting to your Excellency, herewith enclosed, a copy of my letter to his Excellency the Count de Vergennes.

TO THE PRESIDENT OF CONGRESS.

Cadiz, January 27th, 1780.

Sir,

This morning M. Gerard set out from this city for France, and Mr Carmichael, charged with despatches from me to the Spanish Ministry, accompanies him as far as Madrid.

We arrived here the 22d inst. and I have been so much engaged ever since in preparing letters, &c. as not to have an opportunity of writing circumstantially to your Excellency by Captain Proctor, who I am told, is to sail early in the morning for the Delaware or Chesapeake.

We left Martinique on the 28th of December, in the Aurora frigate, bound to Toulon. On touching here for intelligence we were informed that the enemy had acquired a decided superiority in the Mediterranean, and that the coast was infested by their cruisers, all of whom we had fortunately escaped. Hence it became improper for me to proceed to France by water, and it would in my opinion have been indelicate, and therefore imprudent to have passed silently through this kingdom to that, for the purpose of making a communication to his most Christian Majesty, which could be fully conveyed by paper. On this subject I shall take the liberty of making a few further remarks in a future letter.

Congress will be enabled to judge of the propriety and plan of my conduct, from the papers herewith enclosed, viz. a copy of a letter to M. Galvez, the Spanish Minister; a copy of a letter to the Count de Vergennes; of both these I have sent copies to Dr Franklin; a copy of a letter to Mr Arthur Lee; and a copy of my instructions to Mr Carmichael.

It is in pursuance of what appears to me to be my duty, that I shall render frequent, particular, and confidential accounts of my proceedings to

Congress. I flatter myself care will be taken to prevent the return of them to Europe.

I have the honor to be, &c.

JOHN JAY.

INSTRUCTIONS TO WILLIAM CARMICHAEL.

Cadiz, January 27th, 1780.

You will proceed to Madrid with convenient expedition, and, if M. Gerard, with whom you set out, should travel too deliberately, I advise you to go on before him. The propriety of this, however, will depend much on circumstances, and must be determined by your own discretion.

On delivering my letter to M. Galvez, it would be proper to intimate, that I presumed it would be more agreeable to him to receive my despatches from you, who could give him information on many matters about which he might choose to inquire, than in the ordinary modes of conveyance. And it may not be amiss to let him know, that his not receiving notice of our arrival from me by M. Gerard's courier, was owing to a mistake between that gentleman and me.

Treat the French Ambassador with great attention and candor, and that degree of confidence only, which prudence, and the alliance between us may prescribe. In your conversations with people about the Court, impress them with an idea of our strong attachment to France; yet, so as to avoid permitting them to imbibe an opinion of our being under the *direction* of any counsels but our own. The former will induce them to think well of our constancy and good faith, the latter, of our independence and self respect.

Discover, if possible, whether the Courts of Madrid and Versailles entertain, in any degree, the same mutual disgusts, which we are told prevail at present between the two nations, and be cautious when you tread on this

delicate ground. It would also be useful to know who are the King's principal confidants, and the trains leading to each.

To treat prudently with any nation, it is essential to know the state of its revenues. Turn your attention, therefore, to this object, and endeavor to learn whether the public expenditures consume their annual income, or whether there be any, and what overplus or deficiency, and the manner in which the former is disposed of or the latter supplied.

If an opportunity should offer, inform yourself as to the regulations of the press at Madrid, and, indeed, throughout the kingdom; and the particular character of the person at the head of that department. Endeavor to find some person of adequate abilities and knowledge in the two languages, to translate English into Spanish with propriety, and, if possible, elegance. I wish also to know, which of the religious orders, and the individuals of it, are most esteemed and favored at Court.

Mention, as matter of intelligence, rather than in the way of argument, the cruelties of the enemy, and the influence of that conduct on the passions of Americans. This will be the more necessary, as it seems we are suspected of retaining our former attachments to Britain.

In speaking of American affairs, remember to do justice to Virginia, and the western country near the Mississippi. Recount their achievements against the savages, their growing numbers, extensive settlements, and aversion to Britain, for attempting to involve them in the horrors of an Indian war. Let it appear also from your representations, that ages will be necessary to settle those extensive regions.

Let it be inferred from your conversation, that the expectations of America, as to my reception and success, are sanguine; that they have been rendered the more so by the suggestions of persons generally supposed to speak from authority, and that a disappointment would be no less unwelcome than unexpected.

I am persuaded, that pains will be taken to delay my receiving a decided answer as to my reception, until the sentiments of France shall be known. Attempts will also be made to suspend the acknowledgment of our

independence, on the condition of our acceding to *certain* terms of treaty. Do nothing to cherish either of these ideas; but, without being explicit, treat the latter in a manner expressive of regret and apprehension, and seem to consider my reception as a measure, which we hoped would be immediately taken, although the business of the negotiation might be postponed till France could have an opportunity of taking the steps she might think proper on the occasion.

You will offer to transmit to me any despatches, which M. Galvez may think proper to confide to you; or to return with them yourself, if more agreeable to him.

You will be attentive to all other objects of useful information, such as the characters, views, and connexions of important individuals; the plan of operations for the next campaign; whether any, and what secret overtures have been made by Britain to France, or Spain, or by either of them to her, or each other; whether any of the other powers have manifested a disposition to take a part in the war; and whether it is probable that any, and which of them, will become mediators for a general peace, and on what plan. If the war should continue, it would be advantageous to know whether Spain means to carry on any serious operations for possessing herself of the Floridas, and banks of the Mississippi, &c. &c. &c.

Although I have confidence in your prudence, yet permit me to recommend to you the greatest circumspection. Command yourself under every circumstance; on the one hand, avoid being suspected of servility, and on the other, let your temper be always even, and your attention unremitted.

You will oblige me by being very regular and circumstantial in your correspondence, and commit nothing of a private nature to paper unless in cypher.

JOHN JAY.

WILLIAM CARMICHAEL TO JOHN JAY.

Madrid, February 15th, 1780.

Dear Sir,

I arrived in this city late in the evening of the 11th, after a tedious and disagreeable journey. The next day, although much indisposed, I waited on the French Ambassador, who had by a message over night, requested M. Gerard to engage me to dinner. I was received by him and all his family in the most friendly manner, and was offered every service in his power, to render us without those personal professions, which give birth to many unmeaning words and more suspicion. Indeed, I have neither expressions nor time to represent the apparent candor and liberality of his sentiments. He entered fully into the good disposition of his Court, and informed me, that the King, as a further proof of his friendship for us, had agreed to pay us annually the additional sum of three millions of livres during the continuance of the war, in order to enable us to purchase the necessaries for our army, &c. &c. and that his Majesty had also determined to send a considerable marine and land force early in the year to America, to be at the disposition and under the direction of our General. Seventeen sail of the line, and four thousand troops, are also to be sent to the West Indies, if they have not already sailed. Judge after this, if attention, candor, and apparent unreservedness, were not the more necessary on my part.

On inquiring, I found that M. Galvez was at the Pardo, about two leagues from Madrid, where the King resides at present, and in the course of conversation discovered, that the proper channel of address ought to have been through the Count de Florida Blanca.

The Ambassador offered to introduce me, but as this could not be done with propriety without previous application, he undertook to make it the day following, and to fix the time for my reception by both, and I think the manner will be the sole difficulty.

Among other circumstances, which induce this conclusion, is the certain knowledge I have obtained, that M. Mirales received instructions several months past to enter into engagements with Congress, to take into pay a body of troops to assist in the conquest of Florida. Your own good sense will point out the use, which may be made of this intelligence. It answers to

the point of the instructions, which I had the honor to receive from you. The short time I have been in this city has not hitherto given me an opportunity of writing so circumstantially as I could wish, in the matters abovementioned, and much less of giving a decided opinion on many objects contained in your instructions. I find, however, hitherto no difficulty in acquiring in time a knowledge on most of the subjects recommended to my attention.

I have reason to believe, that the same disgusts do not subsist between the Crowns as between the nations, but the most perfect harmony and good understanding.

I have been positively assured, and from good authority, that no overtures have been made for peace.

The Dutch are arming, which is a circumstance in our favor, as their preparations originate from their discontent with England, on account of the late affair of the convoy.

Mr Harrison is here, and proposes to proceed to Cadiz next week, which will furnish me a good opportunity of writing to you. I enclose you the last paper received from America; the people were in high spirits, and everything in a good state in the beginning of January.

I cannot conclude without mentioning the very polite manner in which the French Ambassador offered his personal civilities in everything, that depended on him, to be useful to you in this place.

M. Gerard will write to you himself, yet I must do him the justice to mention his personal kindness to me, and the candid representations he has made in every public company here of the prosperous situation of our affairs.

I have the honor to be, &c.

WILLIAM
CARMICHAEL

TO THE PRESIDENT OF CONGRESS.

Cadiz, February 20th, 1780.

Sir,

The papers herewith enclosed are duplicates of those, which I had the honor of transmitting to your Excellency by Captain Desaussure. As yet I have received no intelligence from Madrid, owing I believe to the extreme badness of the roads.

When at Martinique, I informed Congress by letter, dated the 25th of December last, that I had drawn a bill in favor of the officers of the Confederacy on Dr Franklin, for one hundred guineas. At the time that letter was written, I had made the officers that promise, and had directed the bills to be made out accordingly, but just as I was coming away and closing accounts with Mr Bingham, he, perceiving that the money I was about to draw for the officers was to come out of my salary, in the first instance, was so obliging as to offer to advance that sum on the credit of Congress, and thereby save me the necessity of drawing. I accepted his offer, and gave notice of it to the officers by Mr Lawrence, the clerk of the frigate.

I have the honor to be, &c.

JOHN JAY.

COUNT DE FLORIDA BLANCA TO JOHN JAY.

Translation.

Pardo, February 24th, 1780.

Sir,

Having received by the hands of Don Joseph de Galvez, the letter which your Excellency sent by Mr Carmichael, and having communicated the contents to his Majesty, I have it in command to inform you, that his Majesty highly approves the choice, which the American Congress have made of you to the trust mentioned in your letter, as well on account of the high estimation in which his Majesty holds the members who made the choice, as the information he has received of your probity, talents, and abilities. His Majesty also received with pleasure the information of the desire which the Colonies have to form a connexion with Spain, of whose good disposition they have already received strong proofs. Nevertheless, his Majesty thinks it necessary in the first place, that the manner, the forms, and the mutual correspondence should be settled, upon which that Union must be founded, which the United States of America desire to establish with this monarchy. For this purpose there is no obstacle to your Excellency's coming to this Court, in order to explain your intentions and those of the Congress, and to hear those of his Majesty, and by that means settling a basis upon which a perfect friendship may be established, and also its extent and consequences.

His Majesty thinks, that until these points are settled, as he hopes they will be, it is not proper for your Excellency to assume a formal character, which must depend on a public acknowledgment and future treaty. But your Excellency may be assured of the sincerity and good dispositions of his Majesty towards the United States, and of his earnest desire to remove every difficulty, for the mutual happiness of them and of this monarchy. This has been intimated to Mr Carmichael, who can communicate the same to your Excellency, to whom I beg leave to make a tender of my service, being, &c.

COUNT DE FLORIDA
BLANCA.

TO WILLIAM CARMICHAEL.

Cadiz, February 25th, 1780.

Dear Sir,

Your favor of the 15th instant was delivered to me last evening. I congratulate you on your safe arrival, and hope the agreeable circumstances of your present situation will compensate for the fatigue and trouble you experienced on the way to it.

It gives me pleasure to hear the French Ambassador has been so obliging, and I am glad to find from your letter, that your attentions to him at least keep pace with his civilities, especially as you are no stranger to the distinction between the candor and politeness of a gentleman, and that unbounded confidence which is seldom necessary.

The intelligence you received from him is so agreeable and so interesting, that although the nature of it leaves me no room to doubt of this having been signified by the Court of France to Congress, either through Dr Franklin or the Count de la Luzerne, yet as unexpected accidents may have retarded its arrival, I shall also transmit it by a vessel, which will sail in a few days for Boston.

I regret your not having been more particular on the subject of the mistake you have been led to suppose in the direction of my letter, as I wish to have the means of determining whether it was from decisive authority that M. Gerard, whose opinion I requested on that subject, without hesitation told me, that M. Galvez was the Minister with whom all business with the United States was to be transacted, and urged several reasons for his being of that opinion. From that gentleman's knowledge of the Courts of Europe, and the departments established for the despatch of business in each, particularly with that of Madrid, with which his Court had been so long and so intimately acquainted, I was induced to desire and confide in his information on that point. Very conclusive reasons, therefore, are necessary to induce a belief of his having been mistaken. But as it is of importance that all errors of this kind be known, and, if possible, corrected, I must request your attention to this matter in your next.

I am at a loss to determine from your letter whether or not you have sent my despatches to M. Galvez. From your not having seen that gentleman, nor expecting to be introduced to him till the 17th instant, I conjecture that my

letter did not reach him till that day; if so, I fear the delay will appear as singular to him as I confess it does to me. It does the more so to me, as my letter would have introduced you, and as you were apprised of my apprehension that pains would be taken to delay my receiving a decided answer, as to my reception, until the sentiments of France should be known. Perhaps the advice you received, as to the time and manner most proper for the delivery of it, was a little influenced by a desire of gaining time. I wished to have felt the pulse of Spain, and, by their conduct on this occasion, to have been enabled to determine whether their councils, with respect to the United States, are in any and in what degree independent of those of France, or whether directed by them. This would have been very useful in the further progress of the business, and might have been easily obtained, had my letter been delivered immediately on your arrival, because in that case, before the sentiments of the French Court could have been asked and received, sufficient time would have elapsed to justify your applying to M. Galvez for an answer; and, whatever that might have been, certain inferences would have been deducible from it. For these reasons, and not from an expectation of opposition from France, I regret this delay. But as my conjectures may prove groundless, and if just, you may have very cogent reasons, I forbear further remarks till I shall again have the pleasure of hearing from you.

Are you sure that the intelligence you heard respecting M. Mirales is *certain*? I am sorry by this question to lengthen your next letter, especially as writing in cypher is tedious and disagreeable. But that intelligence is important; if credited, it may have an influence on American measures, which, if it should be groundless, might be injurious. The transmission of information to Congress, by which their councils and determinations may be affected, is a very delicate business, and demands the greatest care and precision. It is not uncommon, you know, for one gentleman to think a matter certain, which another of no greater discernment, and judging by the same evidence, will deem somewhat doubtful. I would choose, therefore, with respect to all interesting intelligence, and particularly such as I may transmit to Congress, to possess as far as possible every circumstance necessary to form a judgment of its credibility, such as the rank and character of the informants, and the means they have of acquiring the information they give, that I may represent it as entitled to that degree of

credit only, which, on full consideration, it may appear to deserve. I observe this less with reference to the case in question than as a general rule. Besides, as we correspond in cypher, no danger can result from being explicit.

I am well satisfied that the short time you had been at Madrid did not admit of your writing on the several subjects contained in your instructions, on all of which, if allowed sufficient time, I am persuaded you will be able to obtain important information. However, as the object of your going to Madrid was to prevent delays in my receiving an answer to the letter to M. Galvez, the other instructions, however important, are to be considered as secondary, and though I wish that great and constant attention may be paid them, yet by no means to the neglect or prejudice of the first.

I am much obliged to you for the American paper enclosed in your letter. Everything from our country is interesting. If you should find any more of them, whose contents afford either information or entertainment, send them, and you shall receive from me all I may meet with here, which come under that description.

The letter you gave me reason to expect from M. Gerard has not yet arrived; perhaps the next post will bring it. On the first occasion I have of writing to him, I shall take the liberty of mentioning the sense you have of his personal kindness and attention to you.

The polite offers of the French Ambassador to be useful to me in all things that depend on him at Madrid, as well as his civilities to you, demand my acknowledgments, which I must beg the favor of you to present to him.

I am, Dear Sir, &c.

JOHN JAY.

TO THE PRESIDENT OF CONGRESS.

Cadiz, February 29th, 1780.

Sir,

I have the honor of transmitting to your Excellency in the enclosed papers, [\[16\]](#) all the intelligence I have received from Madrid. Mr Secretary Thompson will decypher them. An opinion begins to prevail, that America will be the theatre of war the ensuing campaign, and that the islands there will be the principal objects of contention.

I have the honor to be, &c.

JOHN JAY.

FOOTNOTE:

[\[16\]](#) See above, p. [207](#), Mr Carmichael's letter, dated February 15th, and Mr Jay's reply, p. [211](#), dated February 25th. See also a letter in *Carmichael's Correspondence*, dated February 18th.

TO THE PRESIDENT OF CONGRESS.

Cadiz, March 3d, 1780.

Sir,

Agreeably to my promise to the Marquis de la Flotte, I must inform your Excellency, that a Monsieur Jean Guy Guatier, merchant at Barcelona, recommended to the Marquis by Monsieur Aubere, the French consul there, is desirous of becoming the consul of the United States at that port. He had been encouraged, as M. Aubere says, to expect this appointment by Dr Franklin, but as he supposed my arrival would prevent the Doctor's interference, it became necessary to make the application to me. I told the Marquis that my commission did not authorise me to comply with his

request, and that all I could do would be to mention his friend's application to Congress.

How far it may be proper to grant appointments of this sort to any but citizens of America, is a question whose importance will not, I am persuaded, escape the notice of Congress. A sensible, active consul is a very useful officer in many respects, and has many opportunities of doing essential services to those who employ him, or to whom he may be most attached. It is most certain, that for want of proper persons appointed to take care of our distressed seamen, who, escaping from captivity at Lisbon, Gibraltar, &c. daily arrive here, America loses many of them. Humanity as well as policy calls for this provision. I have some of them now with me, destitute of bread and money, and almost of clothes, and of the means of getting either, unless by entering into the French or Spanish service. Such as may arrive here after my going to Madrid will be friendless unless I employ some person to take a little care of them, which I shall take the liberty of doing, being fully persuaded that the same principles which press me into that measure will induce Congress to approve it.

I have the honor to be, &c.

JOHN JAY.

TO THE PRESIDENT OF CONGRESS.

Cadiz, March 3d, 1780.

Sir,

Captain Morgan being still here, waiting for a fair wind, I have an opportunity of transmitting to your Excellency a copy of a letter^[17] just come to hand from the Count de Florida Blanca, in answer to mine to M. Galvez.

Being apprehensive that if present I should probably be amused with verbal answers capable of being explained away if necessary, until the two courts could have time to consult and decide on their measures, I thought it more prudent that my first application should be by letter rather than in person.

The answer in question, divested of the gloss which its politeness spreads over it, gives us, I think, to understand, that our independence shall be acknowledged, provided we accede to certain terms of treaty, but not otherwise; so that the acknowledgment is not to be made because we are independent, which would be candid and liberal, but because of the previous considerations we are to give for it, which is consistent with the principles on which nations usually act.

I shall proceed immediately to Madrid. There are many reasons (hereafter to be explained,) which induce me to suspect that France is determined to manage between us, so as to make us debtors to their influence and good correspondence with Spain for every concession on her part, and to make Spain hold herself obligated to their influence and good correspondence with us for every concession on our part. Though this may puzzle the business, I think it also promotes it.

M. Gerard has often endeavored to persuade me, that a certain resolution of Congress would, if persisted in, ruin the business, which however he did not appear much inclined to believe, but, on the contrary, that if every other matter was adjusted you would not part on that point. I assured him that ground had, in my opinion, been taken with too much deliberation now to be quitted, and that expectations of that kind would certainly deceive those who trusted them. And, indeed, as affairs are now circumstanced, it would, in my opinion, be better for America to have no treaty with Spain, than to purchase one on such servile terms. There was a time when it might have been proper to have given that country something for their making common cause with us, but that day is now past. Spain is at war with Britain.

I do not like the cypher in which I write, and shall therefore defer further particulars till Mr Thompson shall receive the one now sent him.

I have the honor to be, with great respect and esteem, your Excellency's most obedient servant,

JOHN JAY.

FOOTNOTE:

[\[17\]](#) See this letter above, dated February 24th, p. [210](#).

DE NEUFVILLE & SON TO JOHN JAY.

Amsterdam, April 6th, 1780.

Sir,

We beg leave to congratulate your Excellency on your safe arrival in Europe. By principle warmly attached to the American cause, we could wish that we saw our States in a situation to acknowledge the independence of their sister Republic, and though we could only cultivate private connexions as yet, we took the liberty to address some intelligence to your Excellency when President of Congress. We should reckon ourselves extremely happy to know whether our letter came to hand before your Excellency left Philadelphia, and whether we may form any hopes that our zeal may prove successful for the benefit, as we intended, of both countries.

Meanwhile we have the honor to be, with all possible regard, &c.

JOHN DE NEUFVILLE
& SON.

ANSWER TO DE NEUFVILLE & SON.

Madrid, April 27th, 1780.

Gentlemen,

I have had the pleasure of receiving your favor of the 6th instant, and am much obliged by your kind congratulations on my arrival in Europe.

The letters you mention to have written to Congress had been received before I left Philadelphia, and referred to a committee. This mark of attention was justly due to the interest you take in the American cause, and the disposition you manifest to serve it. I presume that the committee soon made a report, and that answers to your letters have been written, although perhaps the many hazards to which letters from America are exposed may have prevented their reaching you.

When the rulers of your republic recollect in what manner and on what occasion they became free, I am persuaded they cannot but wish duration to our independence, nor forbear considering it as an event no less interesting to every commercial nation in Europe than important to America. These and similar considerations, added to the injustice they daily experience from England, will, I hope, induce them to call to mind that spirit of their forefathers, which acquired a glorious participation in the empire of the ocean, and laid the foundation of the commerce, affluence, and consideration they transmitted to their posterity.

Permit me to assure you that I shall consider your correspondence as a favor, and that I am, with great respect, &c.

JOHN JAY.

TO THE PRESIDENT OF CONGRESS.

Madrid, May 26th, 1780.

Sir,

Since my departure from America I have had the honor of writing the following letters to your Excellency, viz. 20th, 22d, 24th, 25th, 25th, 26th and 27th of December, 1779, from Martinique; and 27th of January, 20th, 28th and 29th of February, and 3d of March, 1780, from Cadiz. I am still uncertain whether any, and which of them, have come to your hands, and request the favor of particular information on this subject.

Of such of them as respect immediately the business committed to me I now send duplicates, as well as copies of such other papers as, taken collectively, will give Congress a full and accurate state of their affairs here.

This packet, of which an exact copy goes by another vessel, will appear voluminous. It will nevertheless be found interesting. I have interspersed such observations as to me appeared proper for the purpose of explanation.

On the 22d of January, 1780, I arrived at Cadiz, without letters of credit or recommendation to any person there. The Chevalier Roche (a passenger with us) was so obliging as to procure me credit for about two hundred pounds sterling with a relation of his, to whom I was obliged to give a bill on Dr Franklin at a more than usual short sight. I afterwards became acquainted with the house of Le Couteulx and Company, who offered me what money I might want, and furnished me accordingly, with great cheerfulness. I was very disagreeably circumstanced.

Finding reports ran hard against American credit, and that bills on Dr Franklin were held very cheap, by reason of his having, as was there said, postponed, delayed, and in some instances refused payment of them, on very frivolous pretences, I did, on the 26th of January, 1780, inform him by letter of my arrival, and of these reports.

In answer to this, the Doctor, on the 7th of April, 1780, wrote me a very friendly letter, asserting these reports to be false, and enclosing a certificate of his banker, which proved them to be so. Of this I have made the proper use, and as the same reports prevailed in Martinique, and probably in the other islands, I wish the remedy to be as extensive as the mischief, and therefore transmit the following extract from his letter on that subject, and a copy of the certificate mentioned in it.

***Extract of a Letter from his Excellency Dr Franklin, dated
April 7th, 1780.***

"The reports you tell me prevail at Cadiz, that the Loan Office Bills, payable in France, have not been duly honored, are wicked falsehoods. Not one of them, duly endorsed by the original proprietor, was ever refused by me, or the payment delayed a moment. And the few not so endorsed have been also paid on the guarantee of the presenter, or some person of known credit. No reason whatever has been given for refusing payment of a bill, except this very good one that either the first, second, third or fourth of the same set had been already paid. The pretence that it was necessary for the whole set to arrive before the money could be paid, is too absurd and ridiculous for anyone to make use of, who knows anything of the nature of exchange. The unexpected large draughts made upon me by Congress and others, exclusive of these from the Loan Office, have indeed sometimes embarrassed me not a little, and put me to difficulties. But I have overcome those difficulties, so as never to have been obliged to make the smallest excuse, or desire the least delay of payment from any presenter of such bills. Those reports must therefore have been contrived by enemies to our country, or by persons who proposed an advantage to themselves by purchasing them at an under rate. Enclosed I send you a certificate of our banker in refutation of those calumnies."

Copy of the abovementioned Certificate.

Translation.

"I, the subscriber, banker at Paris, and alone charged with the payment of the bills of the Loan Office, declare, that I have paid, without exception or delay, all such bills to this date, accepted by his Excellency Dr Franklin; that, to my knowledge, no such bill has been refused payment; but that several have been presented after they had been once paid."

"I declare further, that whatever is contradictory to this present is false.

"In testimony of which I have here signed my name at Paris, this 15th of March, 1780.

GRAND."

It appearing to me of importance that I should as soon as possible be informed of the measures, which Mr Arthur Lee might have taken leading to a treaty between the United States and Spain, I did, on the 26th of January, 1780, write him a letter, of which the following is a copy.^[18]

Mr Lee, in answer to this, wrote me a polite letter on the 17th of March, 1780. The following is a copy of it.^[19]

As, for reasons, which will appear in the course of the following papers, and which I hope will meet with the approbation of Congress, it became proper for me to remain in Spain, I apprised the Court of France of it by a letter to his Excellency the Count de Vergennes, on the 27th of January, 1780, of which the following is a copy.^[20]

The Count's answer to this is in the following words.

Translation.

"Versailles, March 13th, 1780.

"Sir,

"I have received your favor of the 27th of January, and I am fully sensible of the confidence you have reposed in me, by communicating to me the object of your mission. You know too well the attachment of his Majesty to the United States, not to feel assured that he sincerely wishes you success, and will be eager to contribute to it. The Count de Montmorin has received instructions accordant with this disposition, and I do not doubt

that your confidence in him will enable him to fulfil them to your entire satisfaction.

"I have the honor to be, &c.

DE VERGENNES."

On the 9th of May, 1780, I replied to the Count as follows.

"Aranjues, May 9th, 1780.

"Sir,

"The letter which your Excellency did me the honor to write me, on the 13th of March last, was delivered to me by the Count de Montmorin on my arrival at Madrid.

"I should not have thus long delayed the pleasure of replying to it, if I could have prevailed upon myself to have given your Excellency complimentary professions, instead of sincere assurances. Unreserved confidence in an Ambassador of our great and good ally was just, as well as natural; and I am exceedingly happy to find that personal considerations, instead of forbidding, prompt it. M. Gerard, whose judgment I greatly respect, had given me a very favorable impression of this gentleman, and I am convinced from my own observation, that he was not mistaken. His conduct towards me has been that of a wise minister, and a candid gentleman. Your Excellency may therefore rely upon his receiving all that confidence from me, which these considerations dictate. Permit me to add, that I never indulge myself in contemplating the future happiness and independence of my country, without feeling the warmest attachment to the Prince and people, who are making such glorious exertions to establish them.

"With the most lively sentiments of respect and esteem, I have the honor to be, &c.

JOHN JAY."

I requested the favor of M. Gerard to inform me, to which of the Ministers of Spain it would be proper to address any letters, which I might think proper to write to that court. He told me M. Galvez, and enumerated his reasons for thinking so. On the 27th of January, 1780, I wrote a letter to that Minister. The following is a copy of it. [\[21\]](#)

Mr Carmichael was the bearer of this letter, and as his going to Madrid to expedite an answer to it would give him an opportunity of acquiring, as well as giving information on several subjects, I gave him the following instructions. [\[22\]](#)

I have desired Mr Carmichael, for greater certainty, to give me notes in writing of all the information he gained in pursuance of these instructions, but he has postponed it for the sake of enlarging them by some important additions.

My letter to M. Galvez was answered the 24th of February, 1780, by the Count de Florida Blanca, in the words following, viz. [\[23\]](#)

To this letter I replied as follows, viz.

"Cadiz, March 6th, 1780.

"Sir,

"I have been honored with your Excellency's favor of the 24th ultimo, which did not come to my hands till sometime after its arrival.

"The sentiments which his Majesty is pleased to entertain of me, together with the polite manner in which your Excellency has been so obliging as to express them, demand my warmest acknowledgments, and give additional force to the many motives, which render me desirous of a permanent union between his Majesty and the United States.

"The honor and probity, which have ever characterised the conduct of Spain, together with the exalted reputation his Majesty has acquired, by being an eminent example of both, have induced the people of the United States to repose the highest confidence in the proofs they have received of his friendly disposition towards them; and to consider every engagement with this monarchy as guaranteed by that faith, and secured by that ingenuousness, which have so gloriously distinguished his Majesty and this kingdom among the other Princes and nations of the earth.

"Permit me to request the favor of your Excellency to assure his Majesty, that the people of the United States are convinced, that virtue alone can animate and support their governments; and that they can in no other way establish and perpetuate a national character, honorable to themselves and their posterity, than by an unshaken adherence to the rules which religion, morality, and treaties may prescribe for their conduct. His royal mind may also be persuaded, that gratitude will never cease to add the influence of inclination to the power of dignity, in rendering them solicitous for the happiness and prosperity of those generous nations, who nobly strengthened their opposition to a torrent of oppression, and kindly aided in freeing them from the bondage of a nation, whose arrogance and injustice had become destructive of the rights of mankind, and dangerous to the peace and tranquillity of Christendom.

"Having therefore the most perfect conviction, that the candor and benignity of his Majesty's intentions are equal to the uprightness and sincerity of those of Congress, I shall set out in a few days for Madrid, with the pleasing expectation that there will be little delay or difficulty in adjusting the terms of a union between a magnanimous Monarch and a virtuous people, who wish to obtain, by an alliance with each other, only reciprocal benefits and mutual advantages.

"I have the honor to be, with perfect respect and consideration, your Excellency's most obedient, and most humble servant,

JOHN JAY."

On the 4th of April, 1780, I arrived at Madrid, and Mr Carmichael delivered to me the following questions from the Count de Florida Blanca, to which he had declined giving answers, viz.

Questions from the Count de Florida Blanca, dated the 9th of March, 1780.

Translation.

"Before entering into a discussion with Mr Jay or Mr Carmichael, jointly or separately, on the subject of the affairs of the United States of North America, and their mutual interest with respect to Spain, it is judged indispensable at Madrid, that the Catholic King should be exactly informed of the civil and military state of the American Provinces, and of their resources to continue the present war, not only for the defence of their own liberty, but also with respect to the aid and succors they may be able to afford Spain in its operations, in case hereafter this Crown should become the ally of America. The *Civil Affairs* ought to comprehend,

"1st. A true account of the population and form of government of each Province of the Union, and the resolution of the inhabitants to continue the war with vigor, as long as it is necessary.

"2dly. Whether there is any powerful party in favor of England, and what consequences are to be apprehended from it; whether the heads of this party suffer themselves to be seduced by the great promises of the British government.

"3dly. A statement of the revenues of these Provinces, and of their ability to contribute to the general expense; to which may be added, whether they will be able long to support this burthen, and even to increase it should it be judged necessary.

"4thly. A statement of the public debts, and of the particular debts of each State, taken collectively or separately, of their resources to lessen them, and the possibility of their being able to support their credit in all the operations of government, in the commerce of their inhabitants, and above all in the protection of national industry.

"5thly. By what means, or with what branches of commerce, will the States of America have it in their power to indemnify Spain, whenever this power may second the views and operations of the Americans; and particularly the Court wishes to know, whether it may be convenient for the said States to furnish ships of war of the best construction for the Spanish marine, and likewise timber and other articles for the King's arsenals, and the whole without loss of time, and fixing the terms on which they would make an agreement of this nature, and who would be commissioned to bring the vessels and these naval stores to Spain.

"With respect to the *Military State* of America, it is necessary to be informed first, of the number and strength of the different bodies of troops armed by the Provinces, and of their present situation, in order to judge whether they are sufficient to oppose the enemy wherever they may go, and particularly in Carolina and Georgia.

"Further, it may be expedient to know the means of augmenting the American army in case it is necessary, or to keep it always on the same footing, notwithstanding its daily losses. In what condition their clothing and arms are at present; whether they are partly in want of those articles, and how much it would require to remedy those defects.

"The subsistence of an army being an object of the greatest consequence, the Court desires to know if proper measures have been taken for that purpose, that it may be ascertained whether it can act everywhere, if necessary, even in the above mentioned Provinces, without danger of being in want of necessaries.

"It is highly essential for the Provinces of America to keep a marine to act against the common enemy, and to secure their own possessions during the present war. The Spanish Minister therefore is desirous of knowing its strength, including the armed vessels belonging to individuals, and by what means it may be augmented, and what succors will be necessary for that purpose.

"The Court of Spain, desirous of information on these subjects with all possible frankness and precision, does not pretend to dive into matters, which Mr Jay or Mr Carmichael may regard as reserved to themselves. Its only aim is to be acquainted with the present state of the American forces, their resources, and ability to continue the war, so that if it was in consideration for new allies to supply them with succors of any kind, the former might be able to plan on solid grounds their operations convenient for the common cause, and for the particular advantage of these States, without running the risk of being misled by false calculations for want of foresight and proper information."

"Pardo, March 9th, 1780."

My answer to these questions is contained in a letter I wrote to the Count de Florida Blanca, on the 25th of April, 1780; the removal of the Court to Aranjues, and his attending the King at that time at an annual chase, rendering it useless, and perhaps improper, to endeavor to call his attention to these matters sooner. The following is a copy of it.

"Madrid, April 25th, 1780.

"Sir,

"Mr Carmichael has delivered to me a paper he had the honor of receiving from your Excellency before my arrival here, containing heads of many important inquiries respecting which it was thought necessary, that his Catholic Majesty should be exactly informed before entering into a discussion with me and Mr Carmichael jointly or separately, on the subject of the affairs of the United States of North America, and their mutual interest with respect to Spain; but that the Court, though desirous of information on these several articles, with all possible frankness and precision, did not mean to dive into matters which Mr Carmichael and myself might regard as reserved to ourselves only.

"Being persuaded, that direct and accurate information respecting the nature and extent of the commissions given to that gentleman and myself, would be very agreeable to your Excellency, I take the liberty of transmitting the following copies of each.

'The delegates of the United States of New Hampshire, Massachusetts Bay, Rhode Island and Providence Plantations, Connecticut, New York, New Jersey, Pennsylvania, Delaware, Maryland, Virginia, North Carolina, South Carolina, and Georgia, in Congress assembled, to all who shall see these presents, Greeting.

'Whereas an intercourse between the subjects of his Catholic Majesty, and the citizens of these United States, founded on the principles of equality, reciprocity, and friendship, may be of mutual advantage to both nations, and it being the sincere desire of the United States to enter into a treaty of alliance and of amity and commerce with his Catholic Majesty, know ye, therefore, that we, confiding in the integrity, prudence, and ability of the Honorable John Jay, late President of Congress, and Chief Justice of

the State of New York, have nominated and constituted, and by these presents do nominate and constitute him, the said John Jay, our Minister Plenipotentiary; giving him full power general and special to act in that quality, to confer, treat, agree, and conclude, with the Ambassador or Plenipotentiary of his Catholic Majesty vested with equal powers, of and concerning a treaty of amity and commerce, and of alliance, and whatever shall be so agreed and concluded for us and in our names, to sign, and thereupon make such treaty or treaties, conventions and agreements, as he shall judge conformable to the ends we have in view, in as ample form, and with the same effect, as if we were personally present and acted therein, hereby promising in good faith, that we will accept, ratify, fulfil, and execute whatever shall be agreed, concluded, and signed by our said Minister Plenipotentiary, and that we will never act, nor suffer any person to act, contrary to the same in the whole, or in any part.

'In witness whereof, we have caused these presents to be given in Congress, at Philadelphia, the 29th day of September, in the year of our Lord one thousand seven hundred and seventynine, and the fourth year of the independence of the United States of America.

'Signed by the President, and sealed with his seal.

'SAMUEL HUNTINGTON,
President.

'Attest, CHARLES THOMSON, *Secretary.*'

'The United States of America, in Congress assembled.
To the Honorable William Carmichael, a delegate in Congress from the State of Maryland. Greeting.

'We, reposing especial trust and confidence in your patriotism, ability, conduct, and fidelity, do, by these presents, constitute and appoint you, during our pleasure, Secretary to our Minister Plenipotentiary, appointed to negotiate a treaty of amity and commerce, and of alliance with his Catholic Majesty. You are, therefore, carefully and diligently to discharge the duty of Secretary, by doing and performing all things thereunto belonging, and, in case of the death of our said Minister, you are to signify it to us by the earliest opportunity, and on such event, we authorise and direct you to take into your charge all our public affairs, which were in the hands of said Minister at the time of his death, or which may be addressed to him before notice thereof, and proceed therein, according to the instructions to our said Minister given, until our further orders.

'Witness, his Excellency, Samuel Huntington, President of the Congress of the United States of America, at Philadelphia, the 29th day of September, in the year of our Lord, 1779, and in the fourth year of our independence.

'SAMUEL HUNTINGTON,
President.

'Attest, CHARLES THOMSON, *Secretary.*'

"The inquiries in question are numerous and important. They do honor to the sagacity which suggested them, and, if fully answered, would produce a very interesting history of the present condition of the American States. On some of the subjects proposed, I can give your Excellency full and positive intelligence; on others, only general and by no means precise information. On all, however, I shall write with candor.

"Such is the nature of the American governments and confederacy, that the Congress, and all other rulers of the people, are responsible to them for their conduct, and cannot withhold from their constituents a knowledge of their true situation, without subjecting themselves to all the evils, which they experience, who substitute cunning in the place of wisdom. Hence it is, that a knowledge of their affairs is easily attainable by all who will be at the trouble of collecting it, and as it is neither the policy nor inclination of America to draw a veil over any part of their affairs, your Excellency may be persuaded, that every consideration forbids their servants, by a suppression, or misrepresentation of facts, to deceive or mislead those whose amity they so sincerely endeavor to cultivate, as they do that of Spain.

I. THE CIVIL STATE OF NORTH AMERICA.

"Your Excellency has with great propriety arranged the subjects of your inquiry under two heads; the *Civil* and *Military* States of North America. The first of these is again branched into several subdivisions, at the head of which, is the

Population of each State.

"The exact number of inhabitants in the United States has not, I believe, been ascertained by an actual census in more than two or three of them. The only computation made by Congress was on the 29th of July, 1775; the manner and occasion of which exclude every suspicion of its exceeding the true number. Congress had emitted bills of credit to a very considerable amount, and were apprised of the necessity of emitting more. Justice demanded that this debt should be apportioned among the States according to their respective abilities; an equitable rule whereby to determine that ability became indispensable. After much consideration, Congress resolved, 'that the proportion, or quota of each Colony, should be determined according to the number of the inhabitants of all ages (including negroes and mulattoes) in each Colony,' but as that could not

then be ascertained *exactly*, they were obliged to judge of, and compute the number from circumstantial evidence. The delegates gave to Congress an account of the population of their respective Colonies, made from the best materials then in their power, and so great was their confidence in each other, that from those accounts that computation was principally formed. Your Excellency will readily perceive, that the delegates were far from being under any temptations to exaggerate the number of their constituents; they were not ignorant, that by such exaggerations they would increase their portion of aids, both of men and money, and that whatever errors they might commit, could not be rectified by an actual numeration during the war. The computation then formed was as follows.

New Hampshire,	124,069	and a half
Massachusetts Bay,	434,244	
Rhode Island,	71,959	and a half
Connecticut,	248,139	
New York,	248,139	
New Jersey,	161,290	and a half
Pennsylvania,	372,208	and a half
Delaware,	37,219	and a half
Maryland,	310,174	and a half
Virginia,	496,278	
North Carolina,	248,139	
South Carolina,	248,139	
		3,000,000

Exclusive of the inhabitants of Georgia, who were not at that time represented in Congress, and of whose numbers I have no information that I can confide in.

The Form of Government of each State.

"In the pamphlets I have now the honor of transmitting to your Excellency, viz. No. 1, No. 2, No. 3, No. 4, and No. 5, you will find the constitutions of New York, New Jersey, Pennsylvania, Delaware, and South Carolina. The others I have not with me.

The great outlines of them all are very similar. By the last accounts from America, it appears that Massachusetts Bay had not as yet agreed upon their constitution, but had it then under consideration.

"It cannot be necessary to observe to your Excellency, that these new modes of government were formed by persons named and authorised by the people for that express purpose; that they were, in general, instituted with great temper and deliberation upon such just and liberal principles, as on the one hand to give effectual security to civil and religious liberty, and on the other make ample provision for the rights of justice, and the due exercise of the necessary powers of government.

"The articles of confederation agreed upon by Congress, and approved by every State in the Union except Maryland, provide for the general government of the Confederacy, and the ordering of all matters essential to the prosperity and preservation of the Union in peace and war. I ought also to inform your Excellency, that the reasons why Maryland has as yet withheld her assent to those articles, do not arise from any disaffection to the common cause, but merely from their not having adopted certain principles respecting the disposition of certain lands.

*The Union and Resolution of the Inhabitants to continue
the War with Vigor as long as may be necessary.*

"On this subject I can give your Excellency certain and positive information; the storm of tyranny and oppression, which had for some years been constantly growing more black and more terrible, began to burst with violence on the people of North America in the year 1774. It was seen and felt and deprecated by all except those, who expected to gather spoils in the ruins it was designed to occasion. These were those who enjoyed, or expected, emoluments from Great Britain, together with their immediate dependants and connexions; such as the officers of government throughout the Colonies, but with some very distinguished exceptions; those of the clergy of the church of

England almost without exception, who received annual salaries from the society established in England for Propagating the Gospel in Foreign Parts; foreign adventurers, buyers and sellers, who, being no further attached to the country than as it afforded the means of gain, soon prepared to speculate in confiscations, and courted the notice of their sovereign by intemperate zeal for the ruin of his subjects. With these exceptions, the great body of the people moved together, and united in such firm and considerate measures for the common safety, and conducted their affairs with such regularity, order, and system, as to leave no room to suppose them to be the work of only a prevailing party, as our enemies have always represented and affected to consider them.

"There was, it is true, another class of persons not much less dangerous, though far more contemptible than those I first mentioned; persons who in every revolution, like floating weeds in every storm, obey the strongest wind, and pass from side to side as that happens to change. I mean the *neutrals*, a pusillanimous race, who having balanced in their minds the advantages and disadvantages, the gains and dangers of joining either side, are seduced by their fears to form a thousand pretexts for joining neither; who, to manifest their loyalty to their King, when his armies were successful, gave them every aid in their power, except drawing their swords against their country, and who, when their countrymen prevailed, were ready to render them all possible service, except taking arms against their Prince.

"The auxiliaries, whom the British measures and forces found in the country, consisted of persons from these classes. And although when these first appeared in, and wounded the bosom of America, she was obliged to extend her arms to repel the assaults of a foreign enemy, yet such was the union and spirit of her inhabitants, that she was soon enabled not only to put them under her feet, but on the ruins of her former governments to erect new ones in the midst of invasions from without, and

treacherous combinations from within. Being able to obtain no other terms of peace than unconditional obedience, she had sufficient courage to declare herself independent in the face of one of the best appointed armies Britain could ever boast of, as well as sufficient strength to limit its operations, and reduce its numbers.

"It may perhaps be observed, that the first object of the war was a redress of grievances; that the present object is *independence*; and it may be asked whether the people are as much united with respect to the last as they were with respect to the first.

"I am certain that the people of America never were so well united as they are at present, in that of their independence. Exclusive of actual observation on the spot, I think so because,

"1st. The Declaration of Independence was made by Congress at a time, when the great body of their constituents called for it.

"2dly. Because that declaration was immediately recognised by the general assemblies and legislatures of the several States, without exception.

"3dly. Because the successful army under General Burgoyne was defeated and captured by a great collection of the neighboring militia, to whom he had offered peace and tranquillity on their remaining at home, terms which it was natural to suppose a great many of them would have accepted, had the Declaration of Independence been disagreeable to them.

"4thly. Because the Congress, consisting of members annually elected, have repeatedly, expressly, and unanimously declared their determination to support it at every hazard.

"5thly. Because their internal enemies have been either expelled or reduced, and their estates to a very great amount in some of the States confiscated and actually sold.

"6thly. Because constitutions and forms of government have since been instituted and completely organised, in which the people participate, from which they have experienced essential advantages, and to which they have of consequence become greatly attached.

"7thly. Because Congress unanimously refused to enter into treaty with the British Commissioners on any terms short of independence, and because every State, though afterwards separately solicited, refused to treat otherwise than collectively by their delegates in Congress.

"8thly. Because the inhuman and very barbarous manner in which the war has been conducted by the enemy, has so alienated the affections of the people from the King and government of Britain, and filled their hearts with such deep rooted and just resentments, as render a cordial reconciliation, much less a dependence on them, utterly impossible.

"9thly. Because the doctrine propagated in America by the servants of the King of Great Britain, that no faith was to be kept with Americans in arms against him, and the uniformity with which they have adhered to it, in their practice as well as professions, have destroyed all confidence, and leave the Americans no room to doubt, but that, should they again become subjects of the King of Britain on certain terms, those terms would as little impede the progress of future oppression, as the capitulation of Limerick, in 1691, did with respect to Ireland.

"10thly. Because the treaty with France, and consequently virtue, honor, and every obligation due to the reputation of a rising nation, whose fame is unsullied by violated compacts, forbid it.

"11thly. Because it is the evident, and well known interest of North America to remain independent.

"12thly. Because the history of mankind, from the earliest ages, with a loud voice calls upon those who draw their swords against a Prince, deaf to the supplication of his people, to throw away that scabbard.

"13thly. Because they do not consider the support of their independence as difficult. The country is very defensible and fertile; the people are all soldiers, who with reason consider their liberty and lives as the most valuable of the possessions left them, and which they are determined shall neither be wrested or purchased from them but with blood.

"14thly. Because for the support of their independence, they have expressly, by a most solemn act, pledged to each other their lives, their fortunes, and their sacred honor; so that their bond of union, for this very purpose, thus formed of all the ties of common interest, common safety, mutual affection, general resentments, and the great obligations of virtue, honor, patriotism, and religion, may with reason be deemed equal to the importance of that great object.

Whether there is any powerful Party in Favor of England, and what Consequences are to be apprehended from it? Whether the Heads of this Party suffer themselves to be seduced by the Promises of the British Government?

"What has been already said, on the subject of the union of the people in North America, will I imagine in a great measure answer these questions.

"If by a party in favor of England is meant a party for relinquishing the independence of the United States, and returning to the dominion of Britain, on any terms whatever, I answer there is no such party in North America; all the open adherents of the Crown of Great Britain having either voluntarily quitted or been expelled from the country.

"That Britain has emissaries and masked adherents in America, industrious in their little spheres to perplex the public measures, and disturb the public tranquillity, is a fact of which I have not the most distant doubt, and it is equally true, that some of these wicked men are by a few weak ones thought to be patriots, but they cannot with any propriety be called a party, or even a faction. The chief mischief they do, is collecting and transmitting intelligence, raising false reports, and spreading calumnies of public men and measures; such characters will be found in every country so circumstanced, and America has not been negligent in providing laws for their punishment.

"The obvious policy of the Court of London has induced them to boast perpetually of their party in America; but where it is? of whom composed? what it has done, or is doing? are questions to which they constantly give evasive answers. Much also have they said of the numbers that have joined their arms in America. The truth is, that at Boston, Rhode Island, New York, and Philadelphia, they gleaned some of that refuse of mankind, to be found and purchased by any body in all commercial cities. It is also true, that some men of weight and influence in the country, who joined the enemy on their first successes, did draw away with them several of their immediate dependents, whom they persuaded or otherwise influenced to enlist in their service. To these may also be added the prisoners, who at different times they forced into their service by famine, and other severities too numerous as well as barbarous to be here particularized. But I have no reason to believe, that all these aids put together ever exceeded three thousand men. This business, however, (except with respect to prisoners,) has long been over, and before I left America many of those deluded people had returned and implored the pardon of their country.

"In America, as in all other popular governments, your Excellency knows there must and ever will be parties for and against particular measures and particular men. The enemy, advertng to this circumstance, have had address enough to

ascribe differences and temporary heats arising from this source, in which they were not interested, to causes much higher, and more flattering to their importance; and this they have done with so much art, as to have imposed in some instances on the credulity of men high in reputation for sagacity and discernment.

"If your Excellency will be pleased to peruse a pamphlet marked No. 6, which you will find enclosed with the other papers I herewith transmit, and entitled 'Observations on the American Revolution,' you will perceive that nothing is to be apprehended from this supposed party in North America.

A Statement of the Revenues of the States, and of their Ability to contribute to the General Expense; whether they will be able long to support this Burthen, and increase it if necessary?

"The Confederated States have no fixed revenues, nor are such revenues necessary, because all the private property in the country is at the public service. The only restriction imposed by the people is, that it be taken from them with wisdom and justice, or to be more explicit, that the sums required be proportionate to the public exigencies, and assessed on the individuals in proportion to their respective abilities.

"A nation can seldom be destitute of the means of continuing a war, while they remain unsubdued in the field, and cheerfully devote their all to that service. They may indeed experience great distress, but no distress being equal to that of subjection to exasperated oppressors, whose most tender mercies are cruel, the Americans had little difficulty in making their election.

A Statement of the Public Debts.

"This subject your Excellency will find fully discussed in an address of Congress to their constituents, in which they compute their debts, and mention the means they had taken to preserve the public credit. It is also herewith enclosed, and marked No. 7.

A Statement of the Debts of each particular State.

"Although exact accounts of these debts are contained in the public printed acts of each State, yet as I neither have any of those acts or extracts from them with me, and my general knowledge on this hand is very imperfect, I am deterred from giving your Excellency any information respecting it, by the very great risk I should run of misleading you on this point.

The Resources to lessen these Debts.

"Taxes; foreign and domestic loans; sales of confiscated estates, and ungranted lands.

The possibility of their supporting their Credit in all the Operations of Government, in the Commerce of their Inhabitants, and, above all, in the Protection of National Industry.

"As to the possibility of supporting their credit in the cases mentioned, there is no doubt it is very *possible*. How far it is *probable*, is a question less easy to answer. If the taxes called for by Congress last fall be duly paid, all will be safe. But whether they have been paid or not I am wholly uninformed, except that I find in a public paper that Virginia had made good her first payment. As I daily expect to receive advices from America on this subject, I shall postpone saying anything further on it at present, but your Excellency may rely on my communicating to you a full state of what intelligence I may have respecting it.

"As to supporting their credit in *commerce*, it is attended with considerable, though not insurmountable difficulties. They are of two kinds, the want of sufficient commodities for remittances, and the risk of transporting them. North America abounds in valuable commodities, such as fish, oil, lumber, provisions of flesh and corn, iron, tobacco, and naval stores, peltry, indigo, potash, and other articles, all of which have greatly diminished since the war; the laborers formerly employed in producing

them having been often called to the field, and by other effects of the war been prevented from regularly following their usual occupations. Of some of these articles America still produces more than is necessary for her own consumption, but the risk of transporting them to Europe renders her remittances very uncertain. The asylum, which all British armed vessels find in the ports of Portugal, enables them to cruise very conveniently and with great advantage off the Western Islands, and other situations proper for annoying vessels from thence to France, Spain, or the Mediterranean. Hence it is that the trade from America to St Eustatia has of late so greatly increased, it being carried on principally in small, fast sailing vessels, that draw but little water, and that the chief remittances to Europe have been in bills of exchange instead of produce.

"With respect to the protection of *national industry*, I take it for granted that it will always flourish where it is lucrative, and not discouraged, which was the case in North America when I left it; every man being then at liberty, by the law, to cultivate the earth as he pleased, to raise what he pleased, to manufacture as he pleased, and to sell the produce of his labor to whom he pleased, and for the best prices, without any duties or impositions whatsoever. I have indeed no apprehensions whatever on this subject: I believe there are no people more industrious than those of America, and whoever recurs to their population, their former exports, and their present productions amidst the horrors of fire and sword, will be convinced of it.

By what Means, or what Branches of Commerce, will the States of America have it in their Power to indemnify Spain, whenever this Power may second the Views and Operations of the Americans?

"America will indemnify Spain in two ways, by fighting the enemy of Spain, and by commerce. Your Excellency will be pleased to remark that Spain as well as America is now at war with Britain, and therefore that it is the interest of both to

support and assist each other against the common enemy. It cannot be a question whether Britain will be more or less formidable if defeated or victorious in America; and there can be no doubt but that every nation, interested in the reduction of her power, will be compensated for any aids they may afford America, by the immediate application of those aids to that express purpose at the expense of American blood.

"Your Excellency's well known talents save me the necessity of observing, that it is the interest of all Europe to join in breaking down the exorbitant power of a nation, which arrogantly claims the ocean as her birthright, and considers every advantage in commerce, however acquired by violence, or used with cruelty, as a tribute justly due to her boasted superiority in arts and in arms.

"By establishing the independence of America, the empire of Britain will be divided, and the sinews of her power cut. Americans, situated in another hemisphere, intent only on the cultivation of a country more than sufficient to satisfy their desires, will remain unconnected with European politics, and not being interested in their objects, will not partake in their dissensions. Happy in having for their neighbors a people distinguished for love of justice and of peace, they will have nothing to fear, but may flatter themselves that they and their posterity will long enjoy all the blessings of that peace, liberty, and safety, for which alone they patiently endure the calamities incident to the cruel contest they sustain.

"While the war continues, the commerce of America will be inconsiderable; but on the restoration of peace it will soon become very valuable and extensive. So great is the extent of country in North America yet to be cultivated, and so inviting to settlers, that labor will very long remain too dear to admit of considerable manufactures. Reason and experience tell us, that when the poor have it in their power to gain affluence by tilling the earth, they will refuse the scanty earnings which

manufacturers may offer them. From this circumstance it is evident, that the exports from America will consist of raw materials, which other nations will be able to manufacture for them at a cheaper rate than they can themselves. To those who consider the future and progressive population of that country, the demands it will have for the manufactures and productions of Europe, as well to satisfy their wants, as to gratify their luxury, will appear immense, and far more than any one kingdom in it can supply. Instead of paying money for fish and many other articles as heretofore, Spain will then have an opportunity of obtaining them in exchange for her cloths, silks, wines, and fruits; notwithstanding which, it is proper to observe, that the commerce of the American States will forever procure them such *actual wealth*, as to enable them punctually to repay whatever sums they may borrow.

How far it may be convenient for these States to furnish Ships of War, Timber, and other Articles for the King's Arsenals, without Delay, and, if in their Power, on what Terms?

"I am much at a loss to determine at present, and therefore will by no means give your Excellency my conjectures for intelligence.

"It is certain, that in ordinary times, America can build ships as good, and cheaper than any other people, because the materials cost them less. The ships of war now in her service, as to strength and construction, are not exceeded by any on the ocean. On this subject I will write to America for information, and give your Excellency the earliest notice of it. Naval stores, and particularly masts and spars, may certainly be had there, and of the best quality, and I doubt not but that the Americans would carry them to the Havana or New Orleans, though I suspect, their being in a manner destitute of proper convoys for the European trade, would render them backward in bringing them to Spain, on terms equal to the risk of capture, on the one hand, and the expectations of purchasers on the other.

II. THE MILITARY STATE OF NORTH AMERICA.

The Number and Strength of the American Troops, their present Situation, and Ability to oppose the Enemy, especially in Georgia and Carolina.

"Six months have elapsed since I left America, and I had not seen a return of the army for some time before that period. It did not, I am certain, amount to its full complement, and, in my opinion, did not in the whole exceed thirty or thirtyfive thousand men; I mean regular troops.

"The Commander-in-Chief, whose abilities, as well as integrity, merit the highest confidence, was authorised to conduct all the military operations in the United States at his discretion, subject, nevertheless, to such orders as the Congress might think proper from time to time to give. It is impossible, therefore, for me (not having received a single letter from America on these subjects since my arrival) to decide in what manner or proportions these troops are employed or stationed, though I am confident it has been done in the best manner.

"All the men of proper age in America are liable to do military duty in certain cases, and with a few exceptions, in all cases. The militia is for the most part divided into a certain number of classes, and whenever reinforcements to the main army, or any detachment of it are wanting, they are supplied by these classes in rotation. These reinforcements while in the field are subject to the like regulations with the regular troops, and with them submit to the severest discipline and duty. Hence it is, that the people of America have become soldiers, and that the enemy have never been able to make a deep impression in the country, or long hold any considerable lodgments at a distance from their fleets. Georgia and South Carolina, indeed, enjoy these advantages in a less degree than the other States, their own militia not being very numerous, and speedy reinforcements from their neighbors of North Carolina and Virginia rendered difficult by the length of the way. They have, nevertheless, given

proofs of their spirit by various and great exertions, and I have reason to believe, that all possible care has been taken to provide for their safety, by furnishing them with a proper body of troops under Major General Lincoln, a very good officer, as well as a very good man.

"Arms are still wanting in America, many of those imported proving unfit for use, and the number of inhabitants who were without proper arms at the beginning of the war, calling for great supplies. The army, and a considerable part of the militia, especially in the Northern States, have in general good arms.

"The article of clothing has been, and still is a very interesting one to the American army. It is impossible to describe, and, indeed, almost impossible to believe, the hardships they have endured for want of it. There have been instances, and I speak from the most undoubted authority, of considerable detachments marching barefooted over rugged tracts of ice and snow, and marking the route they took by the blood that issued from their feet; but neither these terrible extremities, nor the alluring offers of the enemy, could prevail on them to quit their standard, or relax their ardor. Their condition, however, has of late been much bettered by supplies from France and Spain, and American privateers; but adequate provision has not yet been made for the ensuing winter, and I cannot conceal from your Excellency my anxiety on that head. A supply of clothing for twenty thousand men, added to what is engaged for them in France, would make that army and all America happy.

"I foresee no other difficulties in providing subsistence for the American armies in every station in which they may be placed, than those which may attend the transportation of it. But when I reflect on the obstacles of this kind, which they have already met with and surmounted, I have little uneasiness about future ones. The last crops in America promised to be plentiful when I left it, but whether there would be any and what considerable overplus for exportation was then undetermined, the damages

done the wheat in Maryland, Virginia, and North Carolina by a fly, which infested those countries, not being to my knowledge at that time ascertained.

"How many ships of war belong to Congress, is a question I cannot answer with certainty. I think there are not more than ten or twelve in the whole. Of privateers there are a great number, but how many exactly has not been computed. In my opinion, they exceed one hundred, several of them very fine ships. The Governor of Martinique told me, that in that Island alone, the American privateers had brought and sold above five thousand African slaves, which they had taken from the enemy. Nine tenths at least of all the rum and sugar used in North America, these three years past, have been obtained in the same way, and to their successes have the public been indebted for the most seasonable and valuable supplies of military stores which they have received. I left several vessels on the stocks at Philadelphia, and heard of more in other parts.

"Upon the whole, his Majesty may rest perfectly assured, that the Americans are determined, though forsaken by all mankind, to maintain their independence, and to part with it only with their lives; the desolations and distresses of war being too familiar to them to excite any other passions than indignation and resentment.

"That the country will supply its inhabitants with provisions, some clothing, and some articles of commerce.

"That there is no party in America in favor of returning under the dominion of Britain, on any terms whatever.

"That the King of France is very popular in America, being in all parts of it styled the protector of the rights of mankind, and that they will hold the treaty made with him inviolate.

"That the people in America have very high ideas of the honor and integrity of the Spanish nation, and of his Catholic Majesty

especially, and that this respect and esteem unite with their interest in rendering them so desirous of his friendship and alliance.

"That the greatest difficulty under which America labors arises from the great depreciation of her bills of credit, owing principally to a greater sum having been emitted than was necessary for a medium of commerce, and to the impossibility of remedying it by taxes before regular governments are established.

"That great attempts, seconded by the general voice of the people, have been made to retrieve the credit of those bills by taxation, the issue of which was as yet uncertain, but if unsuccessful, a recurrence to taxes in kind was still left, and would be practised, though it is an expedient which nothing but necessity can render eligible.

"That if France and Spain were to unite their endeavors to conquer Britain in America, by furnishing the latter with the necessary aids of ammunition, clothing, and some money, there is reason to believe, that the House of Bourbon would find it the most certain and least expensive method of reducing the power of their irreconcilable enemy, and not only command the gratitude and perpetual attachment of America, but the general approbation of all who wish well to the tranquillity of Europe, and the rights of mankind. Thus would that illustrious House erect glorious and lasting monuments to their virtues in the hearts of a whole people.

"I fear your Excellency will consider the intelligence here given, less full and precise than you expected. I regret that it is not in my power to render it more so but it is not. I hope however it will be thought sufficient to open a way to those further discussions, which must precede the measures necessary to bind America to Spain, as well as to France, and thereby complete the division and consequently the humiliation of the British Empire; a work too glorious and laudable not to merit the notice

of so magnanimous a Prince as his Majesty, and engage the attention of a Minister of such acknowledged abilities as your Excellency.

"I flatter myself that the importance of the subject will apologise for my trespassing so long on your Excellency's patience so soon after your return to Aranjues.

"I have the honor to be, &c.

JOHN JAY."

This letter gives occasion for many observations, which I am persuaded will not escape Congress, and therefore I forbear repeating them. Your Excellency will be pleased to observe, that on some of the subjects of it I ought to be without delay apprised of the intentions of Congress, and furnished with such information and instructions as may be necessary to enable me to fulfil them.

On the 27th of April last, I received at Madrid a letter from the Committee of Foreign Affairs, enclosing copies of the resolutions of Congress of the 23d and 29th of November, 1779, for drawing on Mr Laurens and myself for £100,000 sterling each. I went the next day to Aranjues, and the day after wrote to the Count de Florida Blanca, in the words following, viz.

"Aranjues, April 29th, 1780.

"Sir,

"By the address of Congress to their constituents on the subject of their finances, which I had the honor of transmitting to your Excellency, you have doubtless observed, that in September last Congress came to a resolution of emitting no more bills, than, with those already emitted and in circulation, would amount to 200,000,000 of dollars; that about the same time they called upon their constituents to raise money by taxes, and assigned the first day of January last for the first payment, at which day it

was supposed, that the bills to be emitted would be nearly expended.

"Congress perceiving that at once to stop the great channel of supplies, that had been open ever since the war, and to substitute another equally productive, was not one of those measures which operate almost insensibly without hazard or difficulty; and well knowing that if the first payment of these taxes should be delayed beyond the limited time, the treasury would be without money, and the public operations obstructed by all the evils consequent to it; they were of opinion, that collateral and auxiliary measures were necessary to ensure success to the great system for retrieving and supporting the public credit. So early, therefore, as the 23d day of November last, they took this subject into their most serious consideration, and although they had the highest reason to confide in the exertions of their constituents, yet having received repeated assurances of his Majesty's friendly disposition towards them, and being well persuaded, that they could avail themselves of his Majesty's friendship on an occasion more agreeable to him and advantageous to them, than on one so interesting to the United States, and important to the common cause, they adopted a measure, which, but for these considerations, might appear extraordinary, viz. to draw bills upon me for £100,000 sterling, payable at six months' sight.

"The drawing bills previous to notice of obtaining money to satisfy them may at first view appear indelicate, but when it is considered that the whole success of this measure depended on its taking place between the 23d of November, and the first of January last, in which period it was impossible to make the application, his Majesty's magnanimity will I am persuaded readily excuse it.

"As I shall always consider it my duty to give your Excellency all the information in my power, that may enable his Majesty from time to time to form a true judgment of the state of

American affairs, it is proper, that I should inform your Excellency, that Congress, having reasons to believe that a loan might be obtained in Holland, did shortly after my leaving America take measures for that purpose, and on the 23d of November last resolved to draw bills on Mr Henry Laurens, to whom that business had been committed, for the sum of £100,000 sterling.

"I greatly regret that it was not in my power to advise your Excellency of these matters sooner; but it was not until the 27th instant, at Madrid, that I received the letter which informed me of them.

"As further remarks would draw this letter into greater length, than the opinion I have of your Excellency's discernment will permit me to think necessary, I forbear longer to engage your time and attention, than to request the favor of your Excellency to lay it before his Majesty.

"The eyes of America are now drawn towards him by their opinion of his virtues, and the situation of their affairs; and I flatter myself it will not be long before their hearts and affections will also be engaged by such marks of his Majesty's friendship, as his wisdom and liberality may prompt, and their occasions render expedient.

"With great respect and esteem, I have the honor to be,
&c.

JOHN JAY."

On the subject of this and my former letter, I had a conference with the Count, on the 11th of May 1780, of which the following are notes, taken immediately after it ended.

Aranjues, May 11th, 1780.

Mr Jay having waited on the Count de Florida Blanca, in consequence of a message received on the evening of the 10th, the latter commenced the conversation by observing that he was sorry that his ignorance of the English language prevented him from speaking with that ease and frankness, with which he wished to speak in his conferences with Mr Jay, and which corresponded with his own disposition and character.

He observed that he intended to speak on two points. The first related to the letter Mr Jay had written to him, on the subject of bills of exchange drawn on him by Congress, that being an affair the most pressing and more immediately necessary to enter upon. He said that the last year he should have found no difficulty on that head, but that at present, although Spain had money, she was in the situation of Tantalus, who, with water in view, could not make use of it; alluding to the revenue arising from their possessions in America, which they were not able to draw from thence. That their expenses had been so great in the year 1779, particularly for the marine, as to oblige them to make large loans, which they were negotiating at present. He entered into a summary of those expenses, and particularized the enormous expense of supporting thirtyfive ships of the line and frigates in French ports. He observed, that to do this they had prepared a very expensive and numerous convoy at Ferrol and other ports of Spain, loaded with provisions, naval stores, and every other article necessary for the squadron before mentioned, which convoy did not arrive at Brest until the day on which the Spanish fleet sailed from thence. That the supplies so sent had emptied their magazines at Cadiz, Ferrol, and other ports, and had frequently obliged them to buy at enormous prices the necessary stores to supply the fleet under the admirals Cardova and Gaston, on their arrival in the ports of Spain. That they had been forced to sell these stores thus sent to France, and others purchased for the same purpose at Bourdeaux, Nantes, and elsewhere, at half price; and added, that their loss on this occasion could scarce be calculated. This, joined to the other expenses, and the great losses they had sustained in their marine

and commerce, but chiefly in the former, and the great expenses they were at in consequence thereof, rendered it difficult for the King to do for America what he could have done easily the last year, and which he declared repeatedly, and in the strongest manner, it was his intention to do, as might be judged from his conduct heretofore; touching slightly on the succors sent us from Spain, the Havana, and Louisiana, but dwelling on his conduct in the negotiation last year with Great Britain, in which he would on no account be brought to sacrifice the interests of America.

Such being his Majesty's disposition and intentions previous to the war, Mr Jay might easily judge, that he was not less determined at present to support their interests, whether formally connected with America by treaty or not. That, notwithstanding the losses and misfortunes sustained, the King's resolution, courage, and fortitude induced him to continue the war, and therefore they were obliged to incur much expense in order to fill their magazines and make the necessary preparations for this campaign and the next, yet that it was his Majesty's intention to give America all the assistance in his power. That it was as much his inclination as duty to second these dispositions, and that he had received the King's orders to confer with his colleagues thereon. He observed, however, that, although he was First Secretary of State, he must first confer with them on this subject; and from his own personal inclinations to second the King's intentions and to serve America, he was desirous of concerting with Mr Jay measures in such a manner as would prevent him from meeting with opposition from his colleagues, and therefore he spoke to him not as a minister, but as an individual.

In order to facilitate this, he said it was necessary to make some overtures for a contract, in case Mr Jay was not absolutely empowered to make one; and then he pointed out the object most essential to the interests of Spain at the present conjuncture. He said that for their marine they wanted light

frigates, cutters, or swift sailing vessels of that size. That for ships of the line, they could procure them themselves; that if America could furnish them with the former, they might be sent to their ports in Biscay, loaded with tobacco or other produce, and, discharging their cargoes, be left at the disposition of Spain. He also mentioned timber for vessels, but said that was an article not so immediately necessary, though it might be an object of consequence in future. He observed that he mentioned this at present in order that Mr Jay might turn his thoughts on that subject as soon as possible, and that he would, in order to explain himself with more precision, send him, either on Saturday or Sunday next, notes containing his ideas on this subject, and adding that he hoped that the one, viz. Jay, would assist the other, meaning himself, to manage matters in such a way as to procure the means of obtaining for America present aid.

With respect to the bills of exchange which might be presented, he said that at the end of the present year, or in the beginning of the next, he would have it in his power to advance twentyfive, thirty, or forty thousand pounds sterling, and in the mean time, should these bills be presented for payment, he would take such measures as would satisfy the owners of them, viz. by engaging, in the name of his Majesty, to pay them, observing that the King's good faith and credit were so well known, that he did not imagine this would be a difficult matter. He also said, that in consequence of what Mr Jay had written with respect to clothing for the American army, it might be in his power to send supplies of cloth, &c. which he would endeavor to do.

Mr Jay, in answer, assured him of his high sense of the frankness and candor with which he had been so obliging as to communicate the King's intentions and his own sentiments, and gave him the strongest assurances that he should, for his part, with the same frankness and candor, give him all the assistance and information in his power to forward his generous intentions in favor of his country, and that he might depend that in doing

this, he would neither deceive him in his information, nor mislead him by ill grounded expectations.

The Count then expressed his confidence in these assurances, said he had been well informed of the characters, both of Mr Jay and Mr Carmichael, (who was present at the conference,) and said, that he considered them as *les hommes honnêtes*, and that no consideration could have prevailed upon him to have treated with men who did not sustain that reputation.

The Count then proceeded to the second point, viz. with respect to the treaty in contemplation between Spain and America. He began by observing, that he now spoke as a Minister, and as such, that he would be as candid and frank as he had just been speaking as a private man; and that it was always his disposition to do so with those from whom he expected the same conduct. He then proceeded to observe, that there was but one obstacle from which he apprehended any great difficulty in forming a treaty with America, and plainly intimated that this arose from the pretensions of America to the navigation of the Mississippi. He repeated the information, which the Count had received from M. Mirales, that Congress had at one time relinquished that object; that he also knew from the same source, that afterwards they had made it an essential point of the treaty. He expressed his uneasiness on this subject, and entered largely into the views of Spain, with respect to the boundaries. (He mentioned Cape Antonio and Cape —, and expressed their resolution if possible, of excluding the English entirely from the Gulf of Mexico.) They wished to fix them by a treaty, which he hoped would be perpetual between the two countries. He spoke amply of the King's anxiety, resolution, and firmness on this point, and insinuated a wish that some method might be fallen upon to remove this obstacle. He observed, that the King had received all his impressions with respect to the necessity of this measure, previous to his being in place, and appeared to regard it as a point from which his Majesty would never recede, repeating that, still however he was disposed to give America all the aid in

his power, consistent with the situation of his affairs, to distress the common enemy; that this point being insisted on, it would be necessary for the Court of Spain to obtain the most accurate knowledge of local circumstances, with which he supposed Mr Jay and his constituents were more fully apprised than his Majesty's Ministers could be. That for this purpose they had already written to the Havana and Louisiana, in order to obtain all the necessary information, which he gave reason to believe they had not yet received. He dwelt on the necessity of this information previous to any treaty, and expressed his own regret, that ways and means could not be found to obviate or overcome this impediment.

Mr Jay here took an opportunity to mention, that many of the States were bounded by that river, and were highly interested in its navigation, but observed that they were equally inclined to enter into any amicable regulations, which might prevent any inconveniences with respect to contraband or other objects, which might excite the uneasiness of Spain.

The Count, still, however, appeared to be fully of opinion, that this was an object that the King had so much at heart, that he would never relinquish it, adding, however, that he hoped some middle way might be hit on, which would pave the way to get over this difficulty, and desired Mr Jay to turn his thoughts and attention to the subject, in which he assured him he was as well disposed to assist him, as in the means of procuring the assistance and succors for America beforementioned; always repeating the King's favorable disposition, his inviolable regard to his promises, &c. &c. On this subject he also subjoined, that whenever Mr Jay chose to go to Madrid, he desired to have previous notice of it; for in those cases, he would leave his sentiments in writing for him with Mr Carmichael, or, if he should also go to Madrid, that he would then write to Mr Jay there, to which he might return an answer by the *Parle* (a post which goes to and from Madrid) to Aranjues, every twentyfour hours.

Mr Jay expressed his full confidence in what the Count had done him the honor to communicate to him, and assured him of his satisfaction and happiness in having the good fortune to transact a business so important to both countries, with a Minister so liberal and candid in his manner of thinking and acting.

The conference ended with much civility on the one part and on the other, and with an intimation from the Count, that he should take an opportunity of having the pleasure of Mr Jay's company at dinner, and of being on that friendly footing on which he wished to be with him.

What passed in the course of this conference needs no comment, though it calls for information and instructions. If Congress remains firm, as I have no reason to doubt, respecting the Mississippi, I think Spain will finally be content with equitable regulations, and I wish to know whether Congress would consider any regulations necessary to prevent contraband, as inconsistent with their ideas of free navigation. I wish that as little as possible may be left to my discretion, and that, as I am determined to adhere strictly to their sentiments and directions, I may be favored with them fully, and in season.

The Count de Florida Blanca had upon all occasions treated me with so much fairness, candor, and frankness, that between the confidence due to him and the footing I was and ought to be on with the French Ambassador, I was embarrassed exceedingly, especially as there is little reason to doubt of their being on confidential terms with each other. I was reduced to the necessity, therefore, of acting with exquisite duplicity, a conduct which I detest as immoral, and disapprove as impolitic, or of mentioning my difficulties to the Count, and obtaining his answers. I preferred the latter, and wrote the following letter to the Count de Florida Blanca.

"Aranjues, May 12th, 1780.

"Sir,

"It is with the utmost reluctance, that I can prevail upon myself to draw your Excellency's attention from the great objects that perpetually engage it. But the liberality, frankness, and candor, which distinguished your conduct towards me the last evening, has impressed me with such sentiments of correspondent delicacy, as to place me in a most disagreeable situation.

"Deeply sensible of the benefits received by my country from their illustrious ally, prompted by duty and inclination to act not only with the highest integrity, but the greatest frankness towards him and his Minister, and influenced by the good opinion I have imbibed of the talents, attachment, and prudence of the Count de Montmorin, I have given him and his Court assurances that he should receive from me all that confidence, which these considerations dictate. These assurances were sincere; I have most strictly conformed to them, and as no circumstances of delicacy forbid it, I have communicated to him the information I gave your Excellency relative to American affairs, and the resolution of Congress for drawing bills upon me, these being the only transactions within my knowledge and department, which related to that proposed connexion between Spain and America, for the accomplishment of which, the King of France has been pleased to interpose his kind offices with his Catholic Majesty.

"But, Sir, my feelings will not allow me to permit the confidence due to one gentleman to interfere with that which may be due to another. Honor prescribes limits to each, which no consideration can tempt me to violate. You spoke to me the last evening in the character of a private gentleman, as well as of a public Minister, and in both without reserve. Let me entreat your Excellency therefore to inform me, whether I am to consider your conferences with me, either in the whole or in part, as confidential. I am apprised of the delicacy of this question. I wish I could know your sentiments without putting it. I assure you my esteem and respect are too sincere and too great, not to make me regret every measure, that can give you an uneasy

sensation. On this occasion I am urged by justice to you as well as to myself, and that must be my apology.

"Unpractised in the ways of courts, I rejoice in finding that I am to transact the business committed to me with a gentleman, who adorns his exalted station with virtues as well as talents, and looks down on that system of finesse and chicanery, which, however prevalent, wisdom rejects and probity disapproves.

"With sentiments of attachment and esteem, I have the honor to be, &c.

JOHN JAY.

To this I received the following answer.

Translation.

"Aranjues, May 14th, 1780.

"Sir,

"Sensible of the favorable opinion you are pleased to entertain of my conduct, both as a minister and a private gentleman, I have the honor to assure you, that on every occasion, you shall experience nothing but frankness and candor on my part. Besides that my own principles are invariable on these points, I am certain thereby to follow the example and good intentions of the King my master.

"The delicacy, which induced you to doubt, whether there would be any impropriety in communicating to the Ambassador of France the explanation we had in the course of our late conference, accords well with the idea I first formed of your character, and I am pleased with this mark of your attention. Besides, it appears to me that you may do it freely, especially as those explanations are founded on principles of equity and wisdom, for the benefit of the common cause. But if, hereafter,

circumstances demand a more pointed reserve, by accidents we cannot now foresee, we shall always have time to agree upon those points, which it may be necessary to keep secret.

"I am, Sir, with the most sincere attachment, and the most perfect consideration, your most humble and most obedient servant,

COUNT DE FLORIDA BLANCA."

I have not yet received from his Excellency the notes mentioned in the conference, and therefore cannot have the satisfaction of sending copies of them to Congress by this opportunity.

On the 9th of April, 1780, Sir John Dalrymple arrived here from Portugal with his lady. On the evening of the 10th I heard of it, and the next morning sent the following card to the French Ambassador at Aranjues, viz.

"Mr Jay presents his compliments to his Excellency Count Montmorin, and informs him that Sir John Dalrymple arrived here the day before yesterday from Lisbon, and it is said, intends to be at Aranjues today. What business should call this gentlemen here, or enable him to obtain license to come, are questions which I am persuaded will receive from your Excellency all the attention due to their extent and importance.

"Madrid, May 11th, 1780."

To this I immediately received the following answer on that subject, viz.

Translation.

"M. de Montmorin received this morning Mr Jay's note, and thanks him for the information. M. de Montmorin is fully sensible of the importance of it, and although he is far from entertaining the least doubt on the sentiments of the Spanish Ministry, he will not fail to take the precaution to be informed of everything connected with Sir John Dalrymple's arrival. He

advises Mr Jay to follow the same course. Courts are so beset with intrigues, that nothing should be neglected, which may tend to discover them. He repeats that he has not the slightest cause to suspect the Spanish Ministry, but on the contrary, has the strongest reasons for confiding in its integrity and honor. M. de Montmorin begs Mr Jay to accept his compliments, and to present his respectful homage to Mrs Jay."

Learning that Sir John had obtained leave to go to France in his way to England, I apprised Mr Adams of it in a letter of the 26th of April, 1780, of which the following is an extrac

"Sir John Dalrymple is here; he came from Portugal for the benefit of his lady's health, as is said. He is now at Aranjues. He has seen the Imperial Ambassador, the Governor of the city, Senior Compomanes, the Duke of Alva, and several others named to him I suppose by Lord Grantham, who I find was much respected here. He will return through France to Britain. I shall go to Aranjues the day after tomorrow, and shall form some judgment of that gentleman's success by the conduct of the Court towards America."

On waiting on the Count de Florida Blanca, a few days afterwards at Aranjues, he told me that Sir John had applied to him to obtain from him permission to go through Spain to France, and to the French Minister for a passport through that kingdom to England. The indisposition of his lady was the reason assigned for not going from Portugal by water. That in conversation, Sir John took occasion to say several things respecting the war, and the manner of drawing it to a conclusion. That the Count desired him to reduce what he would wish to say on that subject to writing, and that Sir John thereupon sent him a paper, entitled "A Historical Anecdote," of which the following is a copy.

A Project of Lord Rochford to prevent the War.

"Before the declaration of France in favor of America, Lord Rochford, formerly Ambassador in Spain and in France, formed a project to prevent the war. It was, that England should propose

a great treaty of confederation between France, Spain, Portugal, and England, the objects of which should be the three following; the first, a mutual guarantee between these four powers of their possessions in America and the two Indies, with a proviso, that a war in Europe should never be a war in those remote regions on any pretext whatever, fixing also the number of troops and vessels to be furnished by the contracting powers against the power that should contravene the peace in those distant parts. The second object was, to grant a participation in the commerce of America to France, Spain, and Portugal, as far as such participation might not be incompatible with the common interests, and without the rivalship of English America and England. The third object was, the adjustment of the contested privileges of the Americans upon principles just and honorable for them. Lord Rochford was at that time Secretary of State. He told me, that the first person to whom he had communicated this project was the late Prince of Mazarano, Ambassador of Spain, and that though old and indisposed, he arose and embraced him, and said, 'Ah! my Lord, what divinity has inspired you?' Lord Rochford also communicated it to a friend of his, who was then, and still continues one of the Ministers of the King of England, who gave it his approbation; but Lord Rochford soon after quitted the Ministry and retired to the country, by which accident the project failed of being presented to the cabinet of the King.

"I have given a relation of this anecdote, because I am one of the four or five persons who alone know the truth of it, and because I am of opinion, that it is not yet too late to revive a project, which will save a million of Christians from becoming widows and orphans. As to the first object of such a confederacy, Lord Rochford did not doubt of the proposition's being accepted by all the powers, because it was the interest of all to accept it. The losses of France in the two Indies the last war, and their misfortunes in the East Indies in the present one, where, in six weeks, they have lost all they possessed; the losses of the Spaniards in the last war in the two Indies, and even the stroke

the other day in the Bay of Honduras, by a young captain with a handful of soldiers; the facility with which Portugal lost the Island of St Catharine in the Brazils, and the misfortunes of the English armies the three last years in America, all prove that France, Spain, Portugal, and England, have their tender parts in America and the two Indies, and of consequence, that they have all an interest in a mutual guarantee of their possessions in those three parts of the world.

"As to the second object of the confederacy, I am sensible, that the idea of the other three powers participating in the commerce of America, under the limitation of its not being incompatible with the common interests of English America and England, is an idea somewhat vague, and subject to disputes. But, fortunately for humanity, there are five persons in those five countries, of characters which render them proper to draw the outlines of some determinate regulations, which will admit of no disputes, and may enrich France, Spain, and Portugal, without impoverishing England and her Colonies. In America there is Doctor Franklin, perhaps the first genius of the age, who is well acquainted with the commercial connexions between America and England; France has her Comptroller-General, who, from his youth, has been brought up in the practice of commerce; in Spain, we find M. Campomanes, who has employed the maturity of his life in studies, that give him a superiority in discussions of this kind; Portugal will be assisted by the counsels of the Duke of Braganza, who has gathered knowledge in almost every field, in courts, in libraries, and even on the exchanges of the merchants of Europe; and as for England, she has a Minister who, thoroughly versed in the true interests of commerce, will not refuse to America what he has just granted to Ireland.

"As to the third object of the confederation; England, who much boasts of her own *magna charta*, will make no difficulty in granting a *magna charta* to the liberties of America. Perhaps the best means to expedite this measure would be to give a *carte*

blanche to Dr Franklin. A generous confidence is the surest means to secure a generous man. Spain has two very solid interests in the success of such a confederacy, and against the independence of America. The first is, that if English America becomes independent, Spanish America will be overrun with the contraband of the Americans thus independent of England. 1. England is bound by treaties with Spain not to carry on the contraband trade. 2. She is restrained by the fear of this contraband's drawing a war upon her in Europe, which was the consequence of it in the times of Sir Robert Walpole. 3. The dearness of English and European commodities sets natural bounds to the quantity of this contraband. But when the Americans are independent, they will say, first, they are not bound by the treaties of the English; secondly, they will not be restrained by fear, being so far from Spain, and having defended themselves against eighty thousand English soldiers and marines, they would but little dread the forces of Spain; and thirdly, the low price of American commodities will cover the Spanish Colonies with contraband. Indeed, necessity itself will oblige the Americans either to carry on this contraband, or to make war on Spanish and Portuguese America and their Islands. They have neither gold nor silver among themselves, and without these precious metals, they can neither cultivate their lands nor carry on commerce. They will only have four sources from whence to draw them; first, their commerce with Europe; secondly, pensions from France and Spain; thirdly, a contraband trade with the Provinces of Spain and Portugal in the new world; and fourthly, a war in these Provinces.

"While the Americans continue in a state, which the English call rebellion, their commerce with Europe will be interrupted by English cruisers. Thus they will draw but a small quantity of these precious metals from this first source. The pensions of France and Spain will be much too inconsiderable to support the agriculture and manufactures of so extensive a country. Their only remaining source then for these metals will be in the contraband, or wars with the Spanish and Portuguese Provinces.

To prevent this contraband, the treaty of confederation might make provision against the contraband both of the English and Americans. It is a delicate point for an Englishman to suggest the means, but were the two nations sincerely disposed for peace, I could in a quarter of an hour suggest the infallible means.

"Spain has another interest, perhaps still greater, against the independence of the Americans, and, consequently, in favor of the treaty in question. The Americans, who will be able to fly with their sails wherever they please, will make establishments in New Zealand, the Islands of Otaheite, or some other Islands in the South Sea, from whence they will torment the Spaniards in that sea, and even the English, the French, the Portuguese, and the Dutch, in the East India Seas. Being independent, no treaty will prevent their making such establishments. They may make them consistent with the laws of nations. Captain Cook in his last printed voyages says, there are fortyseven thousand seafaring people in the Island of Otaheite alone; and Captain Wallis, who discovered those Islands, told me at Lisbon a few days ago, that the inhabitants of Otaheite went to the mast-head of the English ships, and ran on the yard-arms as well in three days' time as the English mariners, and gave me two reasons for it. The first was, that living on fish, they are all seafaring people; and the second, that those who wear no shoes are always the most dexterous in mounting the upper parts of a ship. Captain Cook also in the same voyage gives a description of a port and city in New Zealand, which might in a few weeks be made impregnable, and one needs only look at the shape of the Islands in the South Seas, in the maps we have of them, to be convinced that they have no small number of these impregnable ports.

"I show myself as much a friend to Spain, to France, to Portugal and Holland, as to England, in disclosing the following idea, which may have escaped others. Heretofore it was impossible to go to the South Seas with any safety, but in the months of December and January, and by the dreadful latitudes round Cape

Horn. But the late discoveries of Captain Cook and other Englishmen have demonstrated the practicability of going thither in every month of the year, round the Cape of Good Hope, and the fine latitude of New Zealand, and in almost the same time; the one being a passage of four and the other of five months. Because the same west wind, which blows almost the whole of the year, and retards the vessels passing by Cape Horn, carries them with rapidity by the Cape of Good Hope and New Zealand. Hence it follows, that when the Americans quarrel with Spain, perhaps on the subject of the contraband, they will send their ships on the coast of Chili from their establishments in the South Seas, by the latitudes of New Zealand, and with the west winds, which always blow in that quarter. This is a voyage of only five weeks; for Captain Cook in one voyage, and Captain Fourneaux in another, went from New Zealand to Cape Horn in less time, and the journal of the winds annexed to the voyage of Captain Cook shews, that the west winds in those latitudes bear to the east the proportion of ten to one. When their vessels are on the coasts of Chili, they will take the advantage of the land wind, which, blowing constantly from south to north, will carry them along the coasts of Chili and Peru. With this wind they will go in fourteen days to the Bay of Panama, and in the course of this voyage they will ravage the sea coasts, and make prizes of all the vessels they meet. The naval force of Spain at Lima will not have it in their power to hinder them, for the same south wind, which will push the Americans forward, will prevent the fleets of Spain going to meet them. From the Bay of Panama they will return by the great wind of the tropics, which never fails blowing from east to west, either to their settlements in the South Seas, or to sell their prizes in the seas of China or India, from whence they will perhaps again return with new vessels, newly manned, to repeat their ravages. Their return will either be by New Zealand in coming from the Indies, or by the latitude of forty north in coming from China. In this last case they will fall on Mexico, and profiting of the land winds which always blow there from north to the Bay of Panama, they will ravage Mexico as before they ravaged Chili and Peru. From the Bay of

Panama they will return by the great tropic wind, either to their own homes in the South Seas, or to the seas of Asia to renew a war, insulting, tormenting, and without remedy.

"On the other hand, when at war with England, France, Portugal, or Holland, they will direct their course from their establishments in the South Seas, and fall upon the possessions of those powers in the East Indies. They will have two great routes to go and return by; the one to the west of New Zealand, the other by the Islands between China and New Holland, and in this they will have as many passages as there are Islands. Thence follows the impossibility of waylaying their vessels, either going or on their return. These consequences may all be prevented by the treaty proposed by Lord Rochford, in which it might be stipulated that these Islands shall forever belong to their present inhabitants and their posterity, for certainly the nation who shall first possess herself of them will command the commerce of the South Seas and those of Asia.

"Europe, wishing for the independence of America, resembles a man asleep on ice, and not sensible that ice thaws, and therefore to give the greater weight to the confederation, Holland and Denmark, who have interests in both the new worlds, might be invited to become contracting parties to those articles of treaty, which regard the mutual guarantee.

"The reason of the frequent breach of treaties is, that they are made without provision for the future reciprocal interests of the contracting nations. The only ones that I know of, that pay attention to this object, are the treaties between Portugal and England; by which Portugal gains a preference for the sale of her wines in England, and England for the sale of her cloths in Portugal. The consequence is, that there never has, and in appearance never will be, a war between Portugal and England. It would not be difficult, either in the general confederation, or by separate treaties of commerce between England on the one part, and the three kingdoms of Spain, Portugal, and France

respectively on the other, to advance infinitely the commercial interests of all three, by their connexions with England. Spain having wines, oil, fruits, salt, fine wools, and some other articles, which England has not, and England having iron, with coal in the same fields for the manufacturing of it, and by the moistness of her climate long wool for cloths of a low price, also tin, fish, with some other articles, which Spain has not, it follows, that when England is rich she will buy more articles of Spain, and when Spain is rich she will buy more articles of England, and consequently, that one cannot enrich herself without enriching the other. The same reasoning applies to the natural connexions between England and Portugal. There is even a natural connexion between England and France in many articles of commerce, if the jealousy of fools, and misinformed persons did not perpetually interrupt it. I have heard from certain authority, that had the Abbé Terray continued in the Ministry of France, there would have been a tariff between France and England for the entry, on the most favorable conditions, of the wines and articles of mode of the one nation, and the manufactures of iron and wheat of the other, and England might have procured the consent of Portugal for the diminution of her commerce of wines with England by other indemnifications. England in favor of France, Spain, and Portugal, might, without injury to herself even permit the exportation of those wools, paying a duty at the exportation thereof. The exportation of the superfluous wool, would be an advantage to the proprietors of lands in England, to the King in furnishing him a new revenue, and to those three nations, in giving them an article necessary for their manufactures.

"Unfortunately for humanity, the Abbé Terray is no more; but happily for humanity, Dr Franklin, the Comptroller-General of France, M. Compomanes, the Duke of Braganza, and Lord North are all still living, and the King of Spain, with the Count de Florida Blanca, may put all these five in motion.

"For my part I have no authority from the English Ministers to present this project, but living in friendship with the greater part of them, and on an intimate footing with the others, I am certain that some of the sentiments in this memorial correspond with their manner of thinking on the subject. I confess I received a letter in Portugal, fourteen days before my departure for Spain, from Lord Rochford, who is not at present in the Ministry, but who is so taken up with a project that does him so much honor, that he has advised me to feel the pulses on the possibility of making it succeed, and that I have a letter on the same subject from the Duke of Braganza, who entered into the views of my Lord Rochford not as a politician, but as a friend to humanity.

"Encouraged by such men, and still more by the dictates of my own heart, I wrote to one of the English Ministers, that if I did not find minds too much heated, and there was no danger of giving offence, I intended to do justice to the project of my Lord Rochford, in Spain and in France, and begged him to send me an answer to Paris whether the Ministry of England approved or disapproved my intentions.

"I have only to add, that my views being to unite, and not to separate nations, I have no objection that the Ministers of France and Dr Franklin should each have a copy of this memorial."

The Count spoke of Sir John and his anecdote very properly, and concluded with assurances of the King's firmness.

The manner in which Sir John speaks of Dr Franklin, however just, I impute to a design of injuring the confidence reposed in him by his constituents.

The house of Gardoqui at Bilboa are rich, in favor with the Ministry, and friends to America. The Navy Board have sent to them for goods for the use of the navy, and have remitted to them only an inconsiderable part of the sum to which they will amount, desiring the residue on credit, and promising speedy payment. One of the House now here spoke to me on the subject; I advised him to complete the orders. It is of the utmost consequence that the Navy Board be punctual in their remittances.

American credit is not high, and ought to be higher. I am the more anxious on this subject, as that House is exceedingly well disposed, and a disappointment would not only be injurious to them, but much more so to us. Perhaps it would be a good rule if the United States were to contract debts only with Governments, and never with individuals abroad.

I received a letter last week from a Captain Hawkins at Cadiz, informing me that the Americans, who had escaped from captivity and were collected there, were fitting out a vessel for America, which they were arming, and wished to be enabled to act offensively and defensively in their way home, by having a proper commission from me for that purpose. As I had neither blank commissions nor authority to grant them, I referred him to Dr Franklin.

Congress will be pleased to consider how far it may be proper to remove these obstacles, by sending me both. This leads me again to remind your Excellency of several letters I wrote you from Cadiz, respecting American seamen coming to Spain from captivity at Gibraltar and other places. As copies of these letters have been sent by different vessels, I presume some of them have reached you. It certainly is necessary that provision be made for these people, and in a regular established manner. I am very desirous of instructions on this subject.

The credit given me by Congress on Dr Franklin is expended, and I am without other means of obtaining supplies than by private credit, which I am at a loss to satisfy. To apply to, and be maintained by the Court, is, in my opinion, too humiliating to be for the public good; and as yet I have neither received nor heard of remittances from America. It would give me pleasure to know in what manner Congress mean I should be supplied, and whether any measures have been taken for that purpose.

I am much embarrassed for the means of conveying and receiving intelligence. Being at a great distance from the sea, all my letters to and from thence here must either be conveyed by private couriers or the public post. All my letters by the latter, whether in France or Spain, are opened. By that conveyance, therefore, it would not always be proper to write either to Congress, to Dr Franklin, Mr Adams, or others, with that freedom which would often be useful, and sometimes necessary. The salary allowed me, so

far from admitting the expense of private couriers, is inadequate for the common purposes for which it was given. This is a delicate subject, and I wish it was not my duty to say anything respecting it. This place is the dearest in Europe. The Court is never stationary, passing part of the year in no less than five different places, viz. Madrid, Pardo, Aranjues, St Ildefonso, and the Escorial; hence considerable expenses arise. I forbear enumerating particulars, my design being only to mention this matter to Congress, not to press it upon them. I shall always live agreeably to my circumstances; and if, from their being too narrow, inconveniences result to the public, they ought to be informed of it. I hope what I have said will be viewed in this light only; so far as I am personally interested, I am content.

Mr Harrison, a gentleman of Maryland, now here, will be the bearer of this letter to Cadiz. I therefore embrace this good and unusual opportunity of being so minute and explicit in it.

The family of Galvez is numerous and of weight. The one on the Mississippi has written favorably of the Americans to his brothers here, three of whom are in office. It would be well to cultivate this disposition whenever opportunities of doing it offer.

The resolution providing for Spanish prisoners at New York was well judged.

Dr Franklin is more advantageously circumstanced than I am to gain and transmit to Congress intelligence of the disposition of Holland and of the Northern Powers.

From the conduct of their ministers here, I have no reason to predict much to our advantage. They are cold, and I have received nothing more than common civility from any of them, except the Ministers of Holland and Sweden, and indeed not much more from them. Perhaps they have been rendered unusually cautious by an extract of a letter from Madrid in the Leyden paper, mentioning the precious reception Mr Carmichael met with here, and the attentions he received from the foreign Ministers. You have probably seen it in the *Courier de l'Europe*.

From what I hear of the character of the Empress of Russia, I cannot but think that a prudent agent there would be very useful. They say she is sensible, proud, and ambitious. Hence I infer that such a mark of attention would be grateful, and consequently useful.

I should have given your Excellency seasonable intelligence of the Spanish fleet and armament, which lately sailed from Cadiz, as I believe to the Havana, and whose objects I suspect to be the Floridas or Jamaica, or probably both, but I omitted writing on that subject previous to the departure of the fleet, from a persuasion that any letters by the post containing such advices would not be permitted to proceed, and therefore I thought it unnecessary; nor will I now swell the pages of this letter, already very voluminous, by entering into particulars relative to it, especially as that armament will probably have begun its operations before this letter will come to your Excellency's hands.

The reports of dissensions in Congress, which prevailed here prior to my arrival, and the causes to which they were ascribed, had filled this Court with apprehensions; and it gives me pleasure to assure you, that the present appearance of union in Congress is attended here with very happy effects.

The people in this country are in almost total darkness about us. Scarce any American publications have reached them, nor are they informed of the most recent and important events in that country. The affairs of Stony Point, Paulus Hook, &c. &c. have never been heard of here, except perhaps by the great officers of state, and they could scarcely believe that the Roman Catholic religion was even tolerated there.

There are violent prejudices among them against us. Many of them have even serious doubts of our being civilized, and mention a strange story of a ship driven into Virginia by distress, about thirty years ago, that was plundered by the inhabitants, and some of the crew killed in a manner and under circumstances which, if true, certainly indicate barbarity. The King and Ministry are warm, yet I have reason to believe that the bulk of the nation is cold towards us; they appear to me to like the English, hate the French, and to have prejudices against us.

I mention these things to show in a strong light the necessity of punctuality in sending me from time to time all American intelligence of importance, and observing such conduct towards Spaniards in general, as may tend to impress them with more favorable sentiments of us. There was a little uneasiness among the mercantile people at Cadiz respecting the capture of some Spanish vessels by privateers. I hope the former have had ample justice done them; it certainly is of great importance that they should have reason to be satisfied.

Your Excellency may observe that I have written very particularly. Both this Court and that of France have very particular information respecting the proceedings of Congress.

Want of prudence, rather than virtue, I believe to be the cause. I nevertheless think it my duty to give Congress from time to time full information of their affairs here, and shall not be restrained by the apprehension of any consequences, that may result from want of secrecy there. I make it a rule to write on these subjects only to Congress, and to them very particularly.

I have the honor to be, &c.

JOHN JAY.

P. S. Congress may think it extraordinary, that Mr Carmichael's handwriting does not appear in this letter. He is, with my approbation, now at Aranjues, and I must do him the justice to say, that he is always ready and willing to do his duty as Secretary.

J. J.

FOOTNOTES:

[18] See above, dated January 26th, p. [194](#).

[19] See this letter in Arthur Lee's Correspondence, Vol. II p. 276.

[20] See above, p. [195](#).

[21] See above, p. [199](#).

[22] See p. [203](#).

[23] See p. [210](#).

TO THE COMMITTEE OF FOREIGN AFFAIRS.

Madrid, May 27th, 1780.

Gentlemen,

On the 27th of last month I had the pleasure of receiving your favor of the 11th of December, 1779, with copies of the resolutions of Congress, for drawing on Mr Laurens and myself for one hundred thousand pounds sterling each.

I had the honor of writing to Congress yesterday very fully respecting their affairs in this kingdom, and particularly on the subject of those resolutions.

I have not yet had the pleasure of hearing of Mr Lauren's arrival, about which I am anxious. Be pleased to assure Congress, that Mr Laurens shall receive from me every mark of attention, and all the aid in my power to afford. The latter I fear will not be great.

I have the honor to be, &c.

JOHN JAY.

TO JAMES LOVELL.

Madrid, May 27th, 1780.

Sir,

Eight days ago I had the pleasure of receiving a packet containing journals and newspapers.

From an endorsement I conjecture that I am indebted to you for it. There was no letter enclosed in it. I am much obliged by this attention. American intelligence is of more importance here (where they have little of it) than can well be imagined.

I have the honor to be, &c.

JOHN JAY.

WILLIAM CARMICHAEL TO JOHN JAY.

Aranjues, May 27th, 1780.

Dear Sir,

Since my letter of the 25th instant, I have very strong reason to believe, in consequence of conversations I have had with persons who ought to be well informed, that the fleet and troops, which sailed from Cadiz the 28th ultimo, are destined in the first instance to the Windward Islands, to act in concert with the squadron of the Count de Guichen, from thence as circumstances may render it proper they will proceed to Jamaica or the Floridas; for it appears to be the intention of the Spanish, as well as of the French Court, to detach a part at least of their force in the Islands to the continent, as soon as the hurricane season in the West Indies renders it dangerous for them to act

against the enemy in that part of the world. I do not mention by letter my source of information, because I do not choose to hazard the loss of intelligence, which I may gain from the same persons, by the miscarriage of letters. I shall however mention it to you *vivâ voce*, in order to enable you to judge of the credit due to my information.

I have the honor to be, &c.

WILLIAM
CARMICHAEL.

TO THE PRESIDENT OF CONGRESS.

Madrid, May 28th, 1780.

Sir,

Since closing my letter of the 26th instant, I have received from Mr Carmichael the interesting intelligence contained in the enclosed paper. [\[24\]](#) He is now here, and has communicated to me the channel through which he obtained it, from which I think his information deserves belief, and his address in obtaining it credit.

I have the honor to be, &c.

JOHN JAY.

FOOTNOTE:

[\[24\]](#) See the preceding letter.

TO THE PRESIDENT OF CONGRESS.

Madrid, May 28th, 1780.

Sir,

In the journal of the proceedings of Congress of November, 1779, I find that on the 8th day of that month they were pleased to come to the following resolution. "Resolved, that the late and former Presidents of Congress be desired to lodge, as soon as they conveniently can in the Secretary's office, copies of all public letters by them respectively written during their Presidentship." After I resigned the chair, and immediately on your Excellency's election, I delivered a book, containing copies of the public letters I had written during my Presidentship, to your Excellency, who promised to lodge it in the Secretary's office, which, I am persuaded, was accordingly done. It gives me concern therefore to find this resolution is made to extend to me, and I flatter myself Congress will do me the justice to let it appear, by the entry to be made on their journals of the receipt of this letter, that I had done that part of my duty in season, and without their express request.

I have the honor to be, &c.

JOHN JAY.

TO THE PRESIDENT OF CONGRESS.

Madrid, May 30th, 1780.

Sir,

On the 26th instant I had the honor of writing a very long and particular letter to your Excellency, by the way of Cadiz, of which a duplicate has also been sent. To the contents of that letter I have nothing new to add, except that two of the bills directed to be drawn upon me have arrived.

I shall go tomorrow to Aranjues, from whence I shall embrace the first opportunity of communicating to Congress the further progress of their affairs here.

I have the honor to be, &c.

JOHN JAY.

DE NEUFVILLE & SON TO JOHN JAY.

Without date.

Sir,

By vessels lately arrived from the continent, and from St Eustatia, there appeared here some bills drawn by the Treasurer of Loans in America on Henry Laurens, Commissioner for the States in Amsterdam. Every body has been surprised at it, and we in particular, as we were directly applied to. We said at the first, that we expected Mr Laurens would be in town very soon, begging them to keep those bills a fortnight, and that, at all events, we would accept them. We have seen others since more willing to wait; but not knowing what sums may have been drawn for already, we are in hopes to be soon released from this anxiety by the arrival of the Minister. As we think your Excellency may have some intelligence about this matter, and have it in your power at the same time to save the credit of America, if Mr Laurens by any accident should not arrive, we beg the favor to be informed how to conduct ourselves. In the mean time we will do what lies in our power to prevent all noise and trouble about them. In case Mr Laurens should not arrive, your Excellency will have time left to make or provide for remittances, as the bills are drawn at six months' sight.

We have the honor to be, &c.

JOHN DE NEUFVILLE
& SON.

DE NEUFVILLE & SON TO JOHN JAY.

Amsterdam, June 1st, 1780.

Sir,

Craving reference to our last, we have now the honor to propose to your Excellency on what terms we think all difficulty on account of the absence of Henry Laurens, as Commissioner from Congress here, may be prevented. We have written the same to Dr Franklin in France, offering him to accept all those bills, provided he gives us permission to re-draw directly on him for account of Congress, and to do it even at seven or eight months, until, by the arrival of Mr Laurens, or in some other way, this matter may be arranged, for there must certainly be provision made for those bills, and the sums we do not think will exceed two or three hundred thousand guilders before Mr Laurens's arrival here may be known in America, and matters are settled. We even offered those transactions without any view of interest, as for a commission. The importance of the business must have influence with every one, who has any regard for the United States; and this emboldened us even to trouble your Excellency with this relation, not doubting but you might equally find means to make matters easy at all events; for the terrible loss which there would be on such bills, if protested, must be prevented, and the honor of the credit of America must be saved. We hope our endeavor for it may be approved of, and have the desired end.

We have the honor to be, &c.

JOHN DE NEUFVILLE
& SON.

DE NEUFVILLE & SON TO JOHN JAY.

Amsterdam, June 8th, 1780.

Sir,

In conformity with what we have informed you, that we had engaged for the acceptance of some of the bills drawn on Henry Laurens, since nothing has been heard of him as yet, we accepted those on the first instant, and we hope your Excellency, as well as Dr Franklin, may approve of our proceeding, and of the method we have proposed for our reimbursement, in case Mr Laurens may not appear, or that they should not be provided for in time. Certain it is that those bills should be honored for the credit of America. At the same time, it is not in the power of a mercantile house to stand for the whole; yet the measure proposed may make it easy, since the sums will not be so large but that they may be easily provided for in Spain and France by the Plenipotentiary Ministers. And for ourselves, we only desire to be properly empowered to draw again for any sums we may accept. As there was no time to get the matter previously adjusted, we will go on, and see how our plan may be agreed to and approved of.

We have the honor to be always with the most devoted regard, &c.

JOHN DE NEUFVILLE
& SON.

COMMITTEE OF FOREIGN AFFAIRS TO JOHN JAY.

Philadelphia, June 16th, 1780.

Sir,

The embarrassments, which the depreciation of the currency had created in the public affairs at the time of your departure for Europe, were, as you may well remember, very distressing, and have, till lately, continued to increase. Congress, greatly anxious to avail themselves of every possible means of checking this evil, on the 23d of November last ventured on the expedient of drawing bills upon you for one hundred thousand pounds sterling, as you have been already advised by letter of December the 11th following. This

they thought they might risk, considering the importance of the object. But as the time of your arrival in Europe could not be counted upon with certainty, and as the negotiation might not be immediately practicable, and moreover, as a disappointment would be highly injurious to the public faith, they determined to draw the bills at six months' sight, which we hope will allow sufficient leisure for every preparation.

It will not be amiss to observe, that Congress have not taken this measure without some circumstances of encouragement, that a fund to satisfy the draft would not be unattainable. Since the agreeable news of your arrival, and to answer a purpose of great national utility, Congress, by their resolution of the 19th instant, have directed bills to be drawn for the additional sum of twentyfive thousand dollars, payable at sixty days' sight. The exertions necessary at this crisis require the command of a considerable sum of money; but these drafts, we hope, will not be increased till we have intelligence from you respecting your prospects and assurances. We have the pleasure to inform you, that from the measures, which have lately been adopted, and with which you are made acquainted by the journals, the finances begin to assume a better appearance, and our public affairs in general will, we hope, be delivered from many of the embarrassments under which they have labored, but we earnestly entreat you to push every possible exertion for procuring aids of money from the Court of Spain, without which we are fearful the measures of Congress fully to restore the currency and prosecute the war with good effect will fall short of the desired success.

We have the honor to be, &c.

JAMES LOVELL,
ROBERT R.
LIVINGSTON,
WILLIAM C.
HOUSTON.

TO DE NEUFVILLE & SON, AT AMSTERDAM.

Madrid, June 18th, 1780.

Gentlemen,

Accept my thanks for your favors on the subject of the bills drawn on Mr Laurens. The kind concern you take in the credit and prosperity of the United States merits their acknowledgments, and I shall take the first opportunity of communicating to Congress your very friendly propositions relative to the acceptance of the bills.

Whether Dr Franklin is in circumstances to agree to these propositions I know not. They certainly are very generous and liberal, and would be attended with very happy effects. I am persuaded, that Congress would strain every nerve to fulfill them. I have no intelligence whatever of Mr Laurens, and am much at a loss to conjecture what should detain him.

I have the honor to be, &c.

JOHN JAY.

TO DE NEUFVILLE & SON.

Madrid, June 25th, 1780.

Gentlemen,

Your favor of the 8th instant came to hand yesterday. The receipt of the letters referred to in it was acknowledged by the last post. Your plan for paying the bills drawn on Mr Laurens is noble and generous. I heartily wish it may succeed, and that things could be so adjusted as that you might not be exposed to loss or inconvenience by it. But, gentlemen, as to this matter, I have neither instructions, nor the means of preventing the evils you mention. If I had the money, or could procure it, I would, without hesitation, engage to repay you punctually, but that is not the case. That Congress will repay you with gratitude I am certain, but whether quite so

soon as your convenience may require, is more doubtful, because the absence of Mr Laurens is an event they did not foresee, and consequently did not provide against. If you could make a loan for the United States in your country, the money might be applied for the discharge of these bills. I am sure you would do Congress a very acceptable service by it. I have not yet heard from Dr Franklin on this subject. You may rely on all the aid in my power to render, and I should be very happy if it could be equal to the present exigency. I am not without difficulties respecting the bills drawn upon me. If these difficulties should cease, and I should be in a capacity to assist you, I will immediately let you know it, but of this there is as yet no great prospect.

As a man, I admire and esteem your conduct, and as an American I thank you. Be assured, therefore, that I shall omit no opportunity of convincing you of the regard and attachment, with which I have the honor to be, &c.

JOHN JAY.

TO THE PRESIDENT OF CONGRESS.

Madrid, July 10th, 1780.

Sir,

As a late and particular letter from me to your Excellency is now on the way to America, and as I purpose to write again very fully by the successor of M. Mirales, I decline saying much in this letter, which I shall send by a circuitous and hazardous route.

I have accepted bills to the amount of between eleven and twelve thousand dollars. They arrive slowly, and I am very glad of it. No news of Mr Laurens; I regret his absence. I hope the terms for the sale of the bills on me will not be lowered. Remittances have really become necessary. Distressed American seamen cost a great deal. The house of Le Couteulx has advanced money for them at Cadiz.

I had yesterday an application from the director of a hospital at St Andeira, desiring to be informed whether I would be responsible for the ordinary expenses of receiving and curing a New England master of a vessel, who had escaped from captivity penniless, having one of his legs so injured by iron fetters as to be in danger of losing it. These are calls of humanity, and I entreat Congress to enable me to obey them, and to establish specific regulations for the conduct of these affairs.

The surrender of Charleston is the subject of much speculation, and many unfavorable conjectures. I have received no public letters since I left America, except one from the Committee, enclosing the resolutions for drawing bills on me.

I have the honor to be, &c.

JOHN JAY.

DE NEUFVILLE & SON TO JOHN JAY.

Amsterdam, July 13th, 1780.

Sir,

Never letter could have been more welcome than the favor your Excellency honored us with of the 25th of the past month, since it expressed a true concern about the bills drawn on Mr Laurens, and your approbation of our conduct. As we from the beginning acted from principle in the American cause, and never will prevaricate, this is only from the same motive, but we shall be sorry if we should not be supported, and that it is out of your Excellency's power to do it. We cannot judge how far those drafts may go, and if we had not expected that your Excellency, as well as Dr Franklin, would have been willing and able to answer for a trifle, (one or two hundred thousand guilders) in such a matter as this, it would have been a folly to undertake it.

Dr Franklin wrote to us, that people would be satisfied to have the bills enregistered, but we found the contrary; several of them would have them duly protested, and until today we have again accepted them all; but how it will go further we do not know. We were very sensible to the hint your Excellency was pleased to give us, of making a loan here. We might from time to time have got some money in that way, if properly authorised; and our good will and influence certainly would have brought it further than it had been done by the House, which was formerly intrusted with it, and we have long ago desired a loan should be opened in our hands, but we never could properly obtain it. A trifle of allowance, and chiefly the largeness of the sum, which was required from us to answer for at once, prevented it; so we did not think proper to mention it again. We can and may work for glory, but on a large scale we cannot sacrifice our own interest. Every catastrophe in favor of or against America, has with our public a great influence. So the capture of Charleston would be very much against us at this moment for such a purpose; and though we could not flatter ourselves to go any length with it, a very particular circumstance might revive the American spirit; and it would even require some time before such a power was brought into due terms, whereon we could engage anything.

This is certain, that in a moment as critical as the present, a small sum would save the honor of Congress, and in that light could not be paid for too dear; which made us think on a method, that your Excellency could employ a banker, and likewise Dr Franklin; that we, drawing on either of your Excellencies, if we were sure you would approve of it, could prolong terms in all probability, and without doubt as long as should be needful, and until the arrival of Mr Laurens, and that by his means and instructions proper measures could be taken.

We must also expect, that Congress, (as on the first days of May they were informed, that Mr Laurens had not sailed,) will have been attentive to provide for those bills, and have considered the consequences, as we do in Europe. We write the same idea to Dr Franklin, and propose to him, if he should not approve of such a method, or find a better, to empower us for a loan, as we know he had formerly instructions thereon. We are too nice and anxious for the credit of Congress to make any use thereof, if it should hurt matters any way; but it is not possible to know what may be done before a

proper trial; and we are obliged at last to speak plain, that whatever bills now further should offer, we cannot accept any more. We wish our proposals may not seem incongruous; we make them with the more assurance, as we are not guided by any other motive, than by the most extended desire to prevent every difficulty, which could in any way affect the reputation of the United States.

We have the honor to be, &c.

JOHN DE NEUFVILLE
& SON.

DE NEUFVILLE & SON TO JOHN JAY.

Amsterdam, July 28th, 1780.

Sir,

Since we had the honor of writing to your Excellency, it is but just, that we should inform you of the success of our proceedings in the acceptance of the bills drawn on Henry Laurens, for which Dr Franklin, by his last favor, has engaged, offering to accept further bills, when sent to him, until the arrival of Mr Laurens, or that some good reason may appear for the contrary. As this will answer the same purpose, and we think it best, that there should not seem to be any alteration, we offer today to continue our acceptance until forbid, under guarantee of our being reimbursed in time. We are very much pleased, that the matter is thus far settled for the honor of Congress.

We have the honor to be, &c.

JOHN DE NEUFVILLE
& SON.

TO DE NEUFVILLE & SON.

Madrid, July 29th, 1780.

Gentlemen,

Your favor of the 13th instant was delivered to me last evening. I admire the generous principles, which lead you to take so decided and friendly a part in favor of America. I have too great confidence in the honor, justice, and gratitude of Congress to suspect, that they will permit you to be sufferers by your exertions in their favor. On the contrary, I am persuaded they will entertain a proper sense of your disinterested attachment, and with pleasure take every opportunity of acknowledging it.

Mr Laurens's absence is much to be regretted; his endeavors, aided by your assistance, would probably have prevented the embarrassments, which have taken place. I have not as yet received any advices of his having sailed, and your information of his not having left America in May is true. By a letter from a gentleman at Cadiz of the 21st instant I learn, that a vessel from North Carolina had arrived in fortynine days, and left Mr Laurens there on his way to Philadelphia. I am at a loss to account for this, having no intelligence from America on the subject. Perhaps his design was to sail from Philadelphia. If so, we may still look out for him. Prudence, however, demands, that every possible step be taken to alleviate the inconveniences arising from his absence. If my power extended to this case, I should, without hesitation, authorise you in a proper manner to make a loan in Holland, and be much obliged to you for undertaking it. But my instructions do not reach so far; all I can do is to advise as an individual, and as a public servant, to represent in a true light to Congress your benevolent efforts to preserve their credit. If Dr Franklin has such instructions as you suppose, and his circumstances will admit of it, I can at present see no objections to his taking some such measures as you propose, until Mr Laurens's arrival; but of this, he alone can properly judge. I shall write to him on the subject, and you may rely on my doing everything in my power. I assure you I feel myself, as an American, so much obliged by your generous zeal to serve my country, that I shall be happy in being instrumental to render the issue of it

as agreeable and honorable to you, as the principles on which you act are meritorious and noble.

I flatter myself, that the unfavorable influence, which the capture of Charleston has on the public, will be of short duration. When they reflect, that America has nobly sustained a six years' war, fought hard battles with various success, and lost and regained several of their cities, they will find it ridiculous to believe, that the fate of the Thirteen States is involved in that of one or two towns. The like impressions were made, when New York, Philadelphia, and Ticonderoga fell into the enemy's hands; and those impressions were again removed by the battle of Trenton, the evacuation of Philadelphia, the battle of Monmouth, the defeat and capture of General Burgoyne and his army, and other victories on our side. Many of these great events happened when America had no ally, and when Britain had no other objects to divide her force. It is not reasonable, therefore, to imagine, that the power of Britain has been augmented by the accession of two formidable enemies, or that the power of America has been diminished in proportion as the number of her friends increased.

Depend upon it, that as the spirit of America has always risen with the successes of her enemies they will not, on this occasion, throw away their arms, and ingloriously pass under the yoke of a nation whose conduct towards her has been marked by injustice and oppression in peace, and by malice and wanton barbarity in war.

With sentiments of sincere regard and esteem, I have the honor to be, &c.

JOHN JAY.

TO DE NEUFVILLE & SON.

Madrid, August 16th, 1780.

Gentlemen,

My last to you was dated July 29th, in answer to yours of the 13th of the same month. I have since had the pleasure to receive your favor of the 28th of July, and am happy to hear that Dr Franklin has been able to take the step you mention. I cannot forbear again to repeat the sense I have of your very friendly conduct on this occasion. I assure you I shall rejoice in every opportunity of acknowledging the obligations you have conferred on my country. Such disinterested acts of friendship are not common, and ought never to be forgotten.

With sentiments of great and sincere esteem and regard, I have the honor to be, &c.

JOHN JAY.

TO SILAS DEANE.

St Ildefonso, September 8th, 1780.

Dear Sir,

If I could easily be angry with an old friend, I should be so with you. Your silence is unkind, and the more so as you might probably have communicated things useful, as well as entertaining. Before we parted in America, you gave me a cypher, and I really promised myself much from it on your arrival in Europe. I could almost wish that the winds had blown you this way. I would give a good deal for a day's conversation with you, but that is impossible. A correspondence is the only substitute, and perhaps you have detached yourself too much from public concerns and public men to be troubled with it. I hope this is not the case. It would be wrong to extend to a whole nation the resentments excited by a few. Perhaps other reasons may have induced your silence; whatever they may be I regret them.

Adieu. I am, dear Sir, your most obedient servant,

JOHN JAY.

TO THE PRESIDENT OF CONGRESS.

St Ildefonso, September 16th, 1780.

Sir,

This letter and several copies of it are to be sent by the next post to Bilboa, Cadiz, Nantes, &c. The object of it is to inform you, that it is necessary immediately to cease drawing bills upon me for the present.

Your Excellency may soon expect a full detail of particulars; you will then receive an answer to every question that may be raised upon this letter.

His Catholic Majesty has been pleased to offer his responsibility to facilitate a loan of one hundred and fifty thousand dollars for us, payable in three years, and to promise us some clothing. This need not be kept secret. I have written several letters to your Excellency, but have received only one from the Committee since I left America. It covered the resolutions respecting these bills.

The Philadelphia bank, the ladies' subscriptions, and other indications of union and public spirit, have a fine effect here.

I have the honor to be, &c.

JOHN JAY.

INSTRUCTIONS TO JOHN JAY.

In Congress, October 4th, 1780.

On the report of a committee to whom were referred certain instructions to the delegates of Virginia by their constituents, and a letter of the 26th of

May, from the Honorable John Jay, Congress unanimously agreed to the following instructions to the Honorable John Jay, Minister Plenipotentiary of the United States of America, at the Court of Madrid.

That the said Minister adhere to his former instructions, respecting the right of the United States of America to the free navigation of the river Mississippi into and from the sea; which right, if an express acknowledgment of it cannot be obtained from Spain, is not by any stipulation on the part of America to be relinquished. To render the treaty to be concluded between the two nations permanent, nothing can more effectually contribute, than a proper attention, not only to the present but the future reciprocal interests of the contracting powers.

The river Mississippi being the boundary of several States in the union, and their citizens, while connected with Great Britain, and since the revolution, having been accustomed to the free use thereof, in common with the subjects of Spain, and no instance of complaint or dispute having resulted from it, there is no reason to fear, that the future mutual use of the river by the subjects of the two nations, actuated by friendly dispositions, will occasion any interruption of that harmony which it is the desire of America, as well as of Spain, should be perpetual. That if the unlimited freedom of the navigation of the river Mississippi, with a free port, or ports below the 31st degree of north latitude, accessible to merchant ships, cannot be obtained from Spain, the said Minister in that case be at liberty to enter into such equitable regulations as may appear a necessary security against contraband; provided the right of the United States to the free navigation of the river be not relinquished, and a free port or ports as above described be stipulated to them.

That with respect to the boundary alluded to in his letter of the 26th of May last, the said Minister be, and hereby is instructed, to adhere strictly to the boundaries of the United States as already fixed by Congress. Spain having by the treaty of Paris ceded to Great Britain all the country to the northeastward of the Mississippi, the people inhabiting these States, while connected with Great Britain, and also since the revolution, have settled themselves at divers places to the westward near the Mississippi, are friendly to the revolution, and being citizens of these United States, and

subject to the laws of those to which they respectively belong, Congress cannot assign them over as subjects to any other power.

That the said Minister be further informed, that in case Spain shall eventually be in possession of East and West Florida, at the termination of the war, it is of the greatest importance to these United States to have the use of the waters running out of Georgia through West Florida into the Bay of Mexico, for the purpose of navigation; and that he be instructed to endeavor to obtain the same, subject to such regulations as may be agreed on between the contracting parties; and that as a compensation for this, he be and hereby is empowered to guaranty the possession of the said Floridas to the Crown of Spain.

TO DE NEUFVILLE & SON.

Madrid, October 4th, 1780.

Gentlemen,

I have lately had the pleasure of receiving your favor of the 7th of September. After the proofs you have given of disinterested zeal in the cause of liberty and America, I cannot harbor a doubt of your opposing the measures of a Court industriously employed in attempts to destroy both.

Your sentiments respecting the expediency of a connexion between the United States and your Republic concur with my own, and I am persuaded that those who know and wish well to the interests of both will assiduously promote it.

As I have received no further intelligence respecting Mr Laurens, I can add nothing on that subject. I cannot doubt but that good reasons have detained him, though I do not know what they are. Congress, I am sure, will continue their attention to the objects of his appointment, and will be happy in cultivating a friendly connexion with a people whose history exhibits many instances of heroic and glorious exertions in a cause similar to their own.

Those among you who know history, and venerate the names and characters of their forefathers, cannot consent to be the instruments of despotism, to deprive others of those rights which were purchased for themselves by the blood of their own ancestors.

When or how far it may consist with the views of Congress to make mercantile appointments in your country, I cannot determine; should they ever become necessary, I cannot doubt of your being remembered. The most powerful recommendation I can give them, will be by sending them our correspondence; and for that purpose, copies of all the letters that have passed between us are now preparing, and shall, together with duplicates and triplicates, be sent by the first vessels.

As to the late ordinance of Spain establishing a paper currency, it is a subject on which I make no remarks, and for this very good reason, that the policy and propriety of that measure are objects without my sphere, on which I can have no influence, and which would not be altered by anything I might say or write about them.

The Mexican dollars, mentioned in the bills drawn upon me, I understand to be only another name for Spanish milled dollars, which you know pass here at twenty reals of vellon. How far the sale or payment of these may be affected by the paper in question I know not, though I must confess that I do not apprehend so much evil from it as some others do. These bills will be on an equal footing with all others drawn on Spain, and you will readily suppose it not to be in my power to put them on a better.

The King of Spain has been so kind as to offer to become responsible to a certain amount for monies which I may borrow for Congress, payable in three years. Be so kind as to inform me whether this could be done in your country, on their *joint credit*, how far, and on what terms.

I have the honor to be, &c.

JOHN JAY.

TO JAMES LOVELL.

Madrid, October 27th, 1780.

Dear Sir,

Your letter of the 11th of July gave me much pleasure. There is a degree of ease and cordiality in it, which, as mere letters of business do not require, I am the more obliged to you for.

It is true that I might write to Congress very often, indeed by every vessel, and there are many of them. But how are my letters to get to the sea-side? By the post? They would be *all* inspected, and many suppressed. There is scarce a man in any of the ports, except Mr Harrison at Cadiz, with whom I would trust them; so that if, under different covers, I should get them there, the danger would not end. To write often, and write nothing material, would be useless; and when you see my public letters, by this opportunity, you will perceive, that, to be well understood, I must write a great deal.

I would throw stones too, with all my heart, if I thought they would hit only the committee, without injuring the members of it. Till now I have received but one letter from them, and that not worth a farthing, though it conveyed a draft for one hundred thousand pounds sterling on the bank of hope.

One good private correspondent would be worth twenty committees, made of the wisest heads in America, for the purpose of intelligence. What with clever wives, or pretty girls, or pleasant walks, or too tired, or too busy, or do you do it, very little is done, much postponed, and more neglected. If you are naturally industrious, and love your country, you would frequently take up your pen and your cyphers, and tell me how the wheel of politics runs, and what measures it is from time to time turning out. I should be better informed and Congress better served. I now get more intelligence of your affairs from the French Ambassador, than from all the members of Congress put together.

I had written thus far, when I received a letter from M. Le Couteulx at Cadiz, enclosing a letter of the 16th of September, written at St Ildefonso from me to Congress. It had been enclosed in one to Mr Harrison, and that

again put under cover to M. Le Couteulx, and, under these two covers, it was put into the post office. Now mark its fate. The Director of the post office at Cadiz showed it to M. Le Couteulx, naked and stripped of its two covers, of which he made no mention. He said it came from Bayonne, but M. Le Couteulx, knowing my hand writing, paid the postage, and returned it to me. This is only one among many instances of the fate to which my letters are subjected. To avoid it, I must now be at the expense of sending Colonel Livingston to the sea-side with my despatches.

When at Cadiz, I heard some of our countrymen, who had been prisoners at Lisbon, speak handsomely of M. Dohrmer. They mentioned his having supplied them with necessaries, but at the same time told me that he had been employed for the purpose by Dr Franklin. Hence it happened that I declined mentioning his usefulness to Congress. I considered him as an agent of Dr Franklin, who did his duty faithfully, and thought it would be more proper for him to recommend his services to the notice of Congress than for me.

I am, dear Sir, &c.

JOHN JAY.

TO THE PRESIDENT OF CONGRESS.

Madrid, November 6th, 1780.

Sir,

The last particular letter I had the honor of writing to your Excellency was dated the 26th of May, and, with a duplicate, was carried to Cadiz by Mr Harrison, who sent one by the Peacock, Captain Davis, to Boston, and the other by the General Arnold, Captain Jenkins, to Alexandria in Virginia. They both sailed in June last, and the former, I hear, arrived safe after a short passage.

I have since written several letters to your Excellency, but as they went to the seaports by the post, none of them contained anything material, except one from St Ildefonso of the 16th of September, advising Congress of the necessity of suspending further drafts on me for the present.

Congress will recollect, that my letter of the 26th of May contained notes of a conference I had with the Minister on the 11th of that month, on the subjects of my two former letters to him, the first in answer to his questions, and the latter relative to the resolution for drawing bills upon me. It may be remembered also, that, in this conference, the Minister promised me his sentiments in writing in a few days, as well on the subject of the proposed treaty, as on the bills which were daily expected. The first I have not yet received, and it was not before the 7th of June that I was favored with the latter.

In this interval there arrived here from England, by the way of Lisbon, an Abbé Hussey. He came to Lisbon in company with Mr Cumberland, one of Lord George Germain's secretaries, who, with his family, purposed, on obtaining permission, to come to Madrid. This priest was known to many, being a pensioner of the Spanish Court, and formerly in the late Prince Massarano's family. Indeed he took no pains to conceal himself, or his business, which was to obtain permission for his friend to proceed, on account of the bad health of a daughter. Mr Carmichael watched his motions with success and industry, and was the first who mentioned his arrival to me. He hired lodgings and a coach for Mr Cumberland, and visited several persons about the Court, particularly M. del Campo, First Secretary of the Minister.

On the first of June I received a card from the Minister, desiring to see me at nine o'clock the next evening. I waited upon him accordingly. The following are notes of what passed upon that occasion.

[Notes of a Conference between his Excellency the Count de Florida Blanca and Mr Jay, in the office of the former at Aranjues, 2d of June, 1780, reduced to writing, immediately after the conference ended, by Mr Carmichael, who was present at it.]

In consequence of a card received by Mr Jay yesterday, from his Excellency the Count de Florida Blanca, appointing him a meeting at nine o'clock this evening, Mr Jay waited on him at that hour. The conversation commenced on the part of the Minister, with polite inquiries for the state of Mr Jay's health, which, he said, had induced him not to send the notes promised on the former meeting, at the time when appointed, as he had been informed that he was indisposed. He attributed to his own frequent ill state of health (a disorder of the nerves, occasioned by his necessary application to business) the disappointment and delay to which, without intending it, the business that passed through his hands was sometimes subjected. He then said, that on Sunday following, at eleven o'clock in the forenoon, if Mr Carmichael would wait on him, he would send Mr Jay the notes formerly promised him.

He added that his reason for desiring to see him at present proceeded from something mentioned to him by the French Ambassador, of which he supposed he was informed. He recapitulated what he had before mentioned of the King's good faith and favorable disposition towards America, and entered more fully into his conduct in the negotiation with Great Britain, when the Court of Spain proposed a truce between that country and the United States, observing, that as the King at that period was determined not to sacrifice our interests, it could not be supposed that now, when at war with Great Britain, his Majesty would be less disposed to maintain them. After these reflections and assurances, he told Mr Jay that the person lately from England, by the way of Portugal, was the chaplain of their former Embassy at London; that he had been there for some time on his private affairs, and had at the same time instructions concerning an exchange of prisoners, which their sufferings rendered expedient; that the death of an uncle, a chaplain of the Court, had obliged him to return; that an English gentleman and his family had come to Lisbon with him, under the pretext, or really on account of the ill health of a daughter, to whom the Duke of Dorset was much attached; that the opposition made by

his friends to the marriage had affected her health, and that this family was desirous of passing through Spain to Italy. He added, that this gentleman was one of Lord George Germain's secretaries, and would perhaps have some proposals to make for an exchange of prisoners, and possibly others of a different nature, which he assured Mr Jay should be communicated to him as candidly as he had communicated the extravagant scheme presented by Sir J. Dalrymple. He desired Mr Jay, therefore, to make himself easy on this subject, giving new assurances of the King's strict regard to justice and good faith, and of his disposition to assist America.

Mr Jay begged him to be persuaded of the perfect confidence of America and himself, and of their reliance on the good faith, justice, and honor of his Catholic Majesty; that he had no other apprehension from the circumstance of Englishmen resorting to this Court, than that the enemy would on this, as on former occasions, avail themselves of it, by endeavoring to alarm and deceive our people.

The Count de Florida Blanca assured Mr Jay, that he would shortly give him such proofs of the King's intentions, as would enable him to prevent any bad effects from such misrepresentations, and convince America of his Majesty's favorable disposition and good faith. After repeating assurances of his full confidence, Mr Jay mentioned that he had received two bills of exchange, drawn by order of Congress on him, and that he should take no measures on that subject, as he had before the honor of telling him, till he had consulted his Excellency. The Count, having asked the amount, and being told that the bills were for between six and seven hundred dollars, told him, smiling, that he might accept them, and he hoped so to arrange matters, as, in a short time, to make him easy on that head. He then said, that an expedition had been suggested to him, in which the Americans might co-operate; but, without entering into particulars, he recollected himself, and said he would send the project to Mr Jay by Mr Carmichael at the same time that he

should give him the other papers. The conference ended with mutual compliments.

June 4th. This morning the Chevalier de Burgoing, Secretary of the French Embassy, waited on Mr Jay, and afterwards on Mr Carmichael, and told them the Ambassador had informed him, that the Count de Florida Blanca had received despatches from Versailles, which demanded his instant attention, and that, therefore, he could not see Mr Carmichael until the 5th, at the hour mentioned in the conference of the 2d. Mr Jay, however, having received no direct message from the Minister, thought it proper for Mr Carmichael to wait on him at the place and hour appointed. Accordingly he went to the Bureau of Foreign Affairs, and was told by order of the Minister, that he had desired the Ambassador to acquaint Mr Jay, that he could not see Mr Carmichael that day, but desired to see him next Monday, at eleven.

June 5th. Mr Carmichael waited on the Minister, agreeably to appointment, who, on his entrance, immediately expressed his concern, that the arrival of a courier, which informed him of the intentions of the Court of Great Britain to expedite the sailing of their grand fleet, had engaged his attention so much as to prevent him from fulfilling his promise of sending the notes mentioned in the former conferences, that he would certainly do it on the Wednesday following, and desired Mr Carmichael to wait on him that day at the same hour to receive them. He then mentioned an expedition, which had been proposed to him from Bilboa, to intercept the homeward bound ships of the East India Company, by equipping some frigates in America at the expense of his Catholic Majesty, desiring Mr Carmichael to communicate this to Mr Jay, that he might turn his attention to that object, to enable him to judge of the probability of its success. He touched slightly on the subject of bills of exchange, and on the only difficulty of the treaty, viz. the navigation of the Mississippi, which he said he hoped some middle means might be hit on to obviate. He concluded by saying that he would give

his sentiments on that, and other subjects to Mr Jay in writing at the time abovementioned, and hoped that he would believe the delay hitherto proceeded from no other motives than those he had mentioned. Mr Carmichael assured him, that Mr Jay was too sensible of the importance of his other occupations, and of his candor, to impute the delay to any other cause, and after common civilities he withdrew.

This conversation needs no comment. It promised well. On or about the 19th of June, Mr Cumberland, his wife, and two daughters arrived, appeared publicly, and were openly visited and received by persons of distinction. But although it was not difficult to know who he was, and with whom he associated, his business and measures continue to this day mere objects of conjecture, further that he or the Minister has thought proper to communicate them.^[25] The impression made by his arrival on the minds of the people is worthy of remark. They supposed his errand to be secret overtures for peace, and as far as I can judge were very glad of it. There is reason to believe that he favored these conjectures from the first. He has since said publicly, that he was authorised to offer to Spain Gibraltar, and other advantageous terms.

On the 7th of June, I received from the Minister his notes on the subject of aids. They are in these words.

Translation.

Aranjues, June 7th, 1780.

"His Catholic Majesty would be very glad to be able to furnish, at the present crisis, funds for the payment of the one hundred thousand pounds sterling, proposed to be addressed to Mr Jay, in order to evince the concern which the King takes in the prosperity and relief of the United States of North America, as well as in the personal satisfaction of the abovementioned gentleman. But the demands of the present war, and the great difficulty there would be to transport hither the treasures of the King's possessions in that part of the world, render it impracticable to furnish here, the said sum in specie, as could be

wished. Some expedient, however, may be found to remedy this inconvenience. For example; if the owners of the bills of exchange would be content with the security or responsibility of his Catholic Majesty, to pay the sum already mentioned in the term of two years. The King will readily agree to such an arrangement, even if it should be found necessary to add a moderate interest. This security, given by such a sovereign as the King of Spain, would induce the owners of those bills of exchange, and the creditors of Congress to consent to a measure so advantageous, and would equally serve to sustain the credit and good faith of the same body.

"Mr Jay, therefore, is entreated to reflect on the idea just stated to him, and in answer to inform us what measures he thinks suitable to this scheme, in order that they may be laid before the King, and his orders taken thereon. If the expedient in question should be adopted, it will at the same time be necessary to take measures in concert to reimburse to the King this considerable sum, as well as others already expended in favor of the United States. The first idea which offers for reciprocal convenience is that Congress should engage to build without delay some handsome frigates and other smaller vessels of war, fixing the price of each, and the time when they will be finished.

"This point once settled, it will be proper immediately to take measures to equip these vessels as fast as they are ready; to point out what articles will be necessary to send from Spain for this purpose, and in what port they will have notice to receive them. After this it is expedient to be informed, whether the Americans themselves will engage to come to the ports of Bilboa, St Ander, Ferrol, or Cadiz, for the said articles, which they will find ready, and afterwards transport them in their own vessels of war or letters of marque to America. On this supposition it is conjectured, that it would be easy to find hands enough in America to man these new built vessels, which will sail under Spanish colors. There are certainly among the subjects of the said United States many who have made the

voyage, and are acquainted with the usual route of the ships of the English East India Company, and who know perfectly well the ports and places at which they stop. This fact established, it is proposed to equip in the ports of the United States four good frigates, and some other lighter vessels, with the effects which shall be sent from hence on account of Spain. This small squadron, under Spanish colors, shall be employed to intercept the convoys of the said Company by cruising in the proper latitudes. The measures just pointed out appear to be the most proper to reimburse, in some shape, the expenses already incurred by his Catholic Majesty, and to answer for such security as has been proposed to be given in this memoir. It being always understood, that a share of the prizes taken from the English by this small squadron shall be given to the crews, and even to Congress, in proportion to the assistance which they shall furnish for the equipment of the vessels.

"A speedy and decisive answer to all the points here enumerated is requested, and Mr Jay is too enlightened not to perceive that the common cause is interested therein."

To this paper, which deserves much attention, I returned the following answer.

"Aranjues, June 9th, 1780.

"Sir,

"The propositions which your Excellency did me the honor to send on the 7th inst. have been considered with all the attention, which their great importance demands.

"The evidence they contain of his Majesty's friendly disposition towards the United States will, I am persuaded, make correspondent impressions on the citizens of America; and permit me to assure you, that his Majesty's desire of contributing to my personal satisfaction by measures conducive to the

welfare of my country, has excited my warmest acknowledgments and attachment.

"The enlarged ideas my constituents entertain of the power, wealth, and resources of Spain, are equal to those they have imbibed of the wisdom and probity of his Catholic Majesty, and of that noble and generous system of policy, which has induced him to patronize their cause, and, by completing their separation from Great Britain, effectually to disarm the latter. Such wise and liberal designs, followed by such great and extensive consequences, would add a bright page to the annals of a reign already signalised by important events. It is, therefore, with deep regret that Congress would receive information that the aid they solicit, small when compared with their ideas of the resources of Spain, has been rendered impracticable by the expenses of a war, which, on the part of Spain, is of a recent date. Nor will their disappointment be less than their regret, when they find their credit diminished by the failure of a measure, from the success of which they expected to raise it.

"The kind disposition of his Majesty to become responsible at the expiration of two years for the amount of the bills in question, and that even with interest, is a proof of his goodness, by which I am confident the United States will consider themselves greatly obliged. But when it is considered that bills of exchange, immediately on being drawn and sold, become a medium in commerce, and pass through various hands in satisfaction of various mercantile contracts; that the drawer and every endorser become responsible for their credit at every transfer; and that the object of the merchants last holding the bills, as well as of all other merchants, is money in hand or actively employed in trade, and not money lying still, at an interest greatly inferior to the usual profits to be gained in commerce; I say, on considering these things, it appears to me that, although no objection can be made to the good faith of his Majesty, which is acknowledged by all the world, yet that the last holders of the bills will prefer recovering the amount of

them, with the usual damages on protests, to delay of payment for two years with interest.

"Should these bills, therefore, meet with this fate, his Majesty will readily perceive its influence on the credit, operations, and feelings of the United States; on the common cause; on the hopes and spirits of the enemy. The necessity or prudence which detains his Majesty's treasure in his American dominions, is an unfortunate circumstance at a time when it might be so usefully employed. There is, nevertheless, room to hope, that the great superiority of the allied fleets and armaments in the American seas will, in the course of a year or eighteen months, render its transportation safe and easy, and that the greater part of it may arrive before the bills in question would become payable. This will appear more probable, when the time necessary to sell these bills, and the time which will be consumed in their passage from America, and the time which will be employed in their journey from different ports of Europe to this place, are all added to the half a year which is allotted for the payment of them after they have been presented. I am authorised and ready to engage and pledge the faith of the United States for the punctual repayment, with interest, and within a reasonable term, of any sums of money which his Majesty may be so kind as to lend them.

"As to the aids heretofore supplied to the United States, I am without information relative to the precise terms on which they were furnished, as well as their amount. When I left Congress, they appeared to me not to possess full and positive intelligence on these points. I ascribe this, not to omissions in their commissioner, who then had the direction of these affairs, but to those miscarriages and accidents, to which the communication of intelligence to a distant country is liable in time of war. If it should appear proper to your Excellency, in order that I may be furnished with an accurate and full statement of these transactions, I will do myself the honor of transmitting them immediately to Congress; and, as they happened prior to my

appointment, I shall request particular instructions on the subject.

"With respect to the plan proposed for the repayment of such sums as Spain may lend to the United States, viz. by the latter furnishing the former with frigates, &c. &c. I beg leave to submit the following remarks to your Excellency's consideration. In the United States there are timber, iron, masts, shipwrights, pitch, tar, and turpentine; and Spain can furnish the other requisites. But neither the timber, the iron, the masts, nor the other articles, can be procured without money. The Congress are in great want of money for the immediate purposes of self-defence, for the maintenance of their armies and vessels of war, and for all the other expenses incident to military operations. The Congress, pressed by their necessities, have emitted bills of credit, till the depreciation of them forbids further emissions. They have made loans from their great and good ally, and, in aid of the system of gaining supplies by taxation and domestic loans, they have, for the reasons which I have already had the honor of explaining to your Excellency, drawn upon me the bills before mentioned. These bills will be sold in the United States for paper money, and that money will be immediately wanted for the purposes I have enumerated. If, therefore, this money was to be turned into frigates, the obvious ends of drawing those bills would not be attained. The war against the United States has raged without intermission for six years already, and it will not be in their power to pay their debts during its further continuance, nor until the return of peace and uninterrupted commerce shall furnish them with the means of doing it.

"That excellent frigates and other vessels may be built in America cheaper than in Europe, I am persuaded. And I know, that Congress will cheerfully give every aid in their power to facilitate the execution of any plan of that kind, which his Majesty may adopt, but, Sir, their necessities will not permit them to supply money to those purposes, and I should deceive your Excellency with delusive expectations, were I to lead you

to think otherwise. I would rather, that the United States should be without money than without good faith; and, therefore, neither my own principles of action, nor the respect due to his Majesty and reputation of my country, will ever suffer me (if my authority extended so far) to enter into any contracts, which I had not the highest reason to believe would be fully, fairly, and punctually performed on the part of my constituents. Nor, in case his Majesty should think proper to cause frigates to be built in America, can I encourage your Excellency to expect, that they could be easily manned there for cruises. The fact is, that the American frigates often find difficulties in completing their compliments, principally because the seamen prefer going in privateers, which are numerous, and too useful to be discouraged.

"The design of preparing an armament to intercept the English East Indiamen appears to me very judicious. The enemy draw their resources from commerce; to annoy the one, therefore, is to injure the other. Before the present war, there were several, but not a great many Americans, well acquainted with the route of the East Indiamen. But whether any number of these men could now be secretly collected is uncertain; for if by a particular selection of and inquiry for them, the enemy should become apprized of the design, they would naturally take measures to frustrate it. For my part, I should suppose, that many of these men are not necessary, and that the proper number may be had from France, if not from America.

"The idea of the United States co-operating in the execution of this plan is flattering, and the terms proposed generous. But so far as this co-operation will depend on the building of frigates there as proposed, it cannot be effected from their want of money. Whether the American frigates could be employed in such an enterprise, that is, whether the services, for which they may be already destined, will admit of it, are, with other similar circumstances, necessary to be known before that question could possibly be answered. The distance from America, and the

length of time necessary to ask for and receive information and instructions from thence, are such, that it would probably be more expedient, that engagements for these purposes should be discussed and concluded there than here. The circumstances of the United States, while invaded, will be more fluctuating than those of Spain, and measures in which they might conveniently embark at one period, may shortly after be rendered impracticable by the vicisitudes of war. It is further to be observed, that a people, rising amidst such terrible struggles, with an extensive country to defend, and that country invaded, and, as it were, on fire in several places at once, are not in good condition for foreign enterprises; but, on the contrary, that it must generally be their interest, and of course their policy, to keep their forces and strength at home, till the expulsion of their enemies shall afford them leisure and opportunities for distant and offensive operations.

"Whenever this period shall arrive, his Majesty may be assured, that the United States will not remain idle, but that, impelled by resentments too deep and too just to be transitory, as well as by unshaken attachment to their friends, they will persevere with firmness and constancy in the common cause, and cheerfully unite their efforts with those of France and Spain, in compelling the common enemy to accept of reasonable terms of peace. I can, also, with great confidence, assure your Excellency that the United States will be happy in every opportunity, which may offer during the war, of joining their arms to those of Spain, and in co-operating with them in any expeditions, which circumstances may render expedient against the Floridas, or other objects. The Americans would most cheerfully fight by the side of the Spaniards, and by spilling their blood in the same cause, and on the same occasion, convince them of their ardent desire to become their faithful friends and steadfast allies.

"I cannot prevail upon myself to conclude, without expressing to your Excellency my apprehension of the anxiety, and painful concern, with which Congress would receive intelligence of the

failure of their bills, and especially after the expectations they have been induced to conceive of the successful issue of their affairs here. What conclusions the enemy would draw from the inability of Spain to advance the sum in question, even to men actually in arms against Great Britain, I forbear to mention, nor would it become me to point out the several evil consequences flowing from such an event, to those who enjoy from nature and experience more discernment than I am blessed with.

"I still flatter myself, that some expedients may be devised to surmount the present difficulties, and that the harvest of laurels now ripening for his Majesty in America will not be permitted to wither for want of watering.

"Influenced by this hope, I shall delay transmitting any intelligence respecting this matter to Congress, till your Excellency shall be pleased to communicate to me his Majesty's further pleasure on the subject.

"I have the honor to be, &c.

JOHN JAY."

Your Excellency will doubtless observe, that this answer does not comprehend all the objections to which the Minister's plan is liable, such, for instance, as the proposal that the vessels proposed to be built in America, with the money of America, and to be navigated by Americans, should sail under *Spanish colors*, &c. I thought it most prudent to avoid taking notice of these and similar circumstances, lest objections, which might be ascribed to pride, as well as reason, might lose their force in that supposition, and, instead of convincing, serve only to irritate.

Nothing further passed between the Minister and myself except a message or two respecting each other's health, until the 19th day of June, when I sent him the following card.

"Mr Jay presents his respectful compliments to his Excellency, the Count de Florida Blanca, and takes the liberty of enclosing

the copy of a note he has just received, respecting a bill drawn upon him for three hundred and thirtythree dollars. From this his Excellency will perceive the painful situation Mr Jay is in. He forbears making any reflections on it, being persuaded that his Excellency's wisdom and sensibility render them unnecessary.

"Madrid, June 19th, 1780."

On the 20th instant I received the following answer.

Translation.

"The Count de Florida Blanca will have no difficulty in paying the bill of three hundred and thirtythree dollars mentioned in Mr Jay's note of yesterday, both on account of its small value, and in consequence of what he had the honor to offer him at their last conference; but he cannot forbear observing to Mr Jay, that it will be impossible to show the same complaisance for other bills without consulting the pleasure of the King.

"The means hitherto proposed not having been considered as agreeable to Congress, it has become necessary to seek for others, and Mr Jay will do well to think seriously on this subject, and communicate to the Count de Florida Blanca whatever his wisdom and information may suggest to him."

This looked dry, and indicated a degree of irritation, though it held up the idea of further means.

I replied to it on the 22d of June, as follows.

"Madrid, June 22d, 1780.

"Sir,

"I received the note your Excellency did me the honor to write on the 20th instant, and I take the earliest opportunity of

expressing my thanks for your Excellency's permission to accept the bills mentioned in it, which I have accordingly done.

"Agreeably to your Excellency's recommendation in the first conference, I have turned my thoughts very seriously to the objects which were the subjects of it, relative to the bills drawn upon me; they were two.

"1st. The means of paying these bills.

"2dly. The proposed contract with America for light vessels, &c.

"With respect to the *first*, it appeared to me, that the principal difficulty was removed by your Excellency's informing me, '*that at the end of the present year, it would be in your power to advance twentyfive, thirty, or forty thousand pounds sterling.*' Hence I inferred, that as much time would be taken up in the sale, negotiation, and transmission of those bills, and as so long a space as six months was assigned for their payment, after being presented, that the sums which it would be in your Excellency's power to advance at the end of the year, would probably be equal to the amount of the bills which would then become payable; and that in the mean time such further means might be provided, as would obviate difficulties with respect to those that might afterwards become due. When I reflected that I was a stranger to the resources of Spain, and that your Excellency's acknowledged abilities comprehended all the objects and combinations necessary in determining what supplies they were capable of affording, and the manner and means most proper for the purpose, it appeared to me in the light of presumption to hazard to your Excellency any propositions on the subject.

"2dly. On considering the proposed contract, it became important to distinguish between the building these vessels with the money of the United States, or with that of Spain. The latter was very practicable, and I gave your Excellency that opinion in my letter of the 9th instant. The former, on the contrary,

appeared to me not to be within the power of the United States, and candor obliged me to make this known to your Excellency in the same letter.

"I knew it to be impossible for Congress, consistent with good faith, to contract; that, notwithstanding their great want of money, the injuries of a six years' war, and their being actually invaded, they would repay immediately the monies lent them, either in ships or otherwise. It is not uncommon for ancient and opulent nations to find it necessary to borrow money in time of war, but I believe it very seldom happens, that they find it convenient to pay those debts till the return of peace. If this be the case with powerful and long established nations, more cannot be expected from a young nation brought forth by oppression, and rising amidst every species of violence and devastation, which fire, sword, and malice can furnish for their destruction.

"If attentive only to obtaining payment of these bills, and thereby relieving my country from the complicated evils which must result from their being protested, I had entered into the proposed engagements for immediate repayment, by building vessels, &c. if I had done this, notwithstanding a full conviction, that the contract so made could not be fulfilled, my conduct, however convenient in its immediate consequences, would have been highly reprehensible. This reflection, therefore, will I hope convince your Excellency of the purity of my intentions, and induce you to ascribe my objections to the contract, to want of ability, and not to want of inclination in the United States to perform it. No consideration will ever prevail upon me to practise deception, and I am happy in a persuasion, that although truths may sometimes not please, yet that when delivered with decency and respect, they will never offend either his Majesty or your Excellency.

"Believe me, Sir, the United States will not be able to pay their debts during the war, and therefore any plan whatever calculated

on a contrary position must be fruitless. I am ready to pledge their faith for repaying to his Majesty, within a reasonable term after the war, and with a reasonable interest, any sums he may be so kind as to lend them. What more can I offer? What more can they do? If there be any services they can do to his Majesty, consistent with their safety and defence, they are ready and will be happy to render them. They respect the King and the nation, and at the very time they are requesting his aid, they are soliciting to be united to him by bonds of perpetual amity and alliance. Against his enemies as well as their own, they are now in arms; and the supplies they ask are not for the purpose of luxury or aggrandizement, but for the sole and express purpose of annoying those enemies, and enabling France, Spain, and themselves, to obtain a peace honorable and advantageous to each.

"Of his Majesty's kind disposition towards them, they had received not only professions but proofs. Hence they became inspired not only with gratitude, but with confidence in his friendship. Impelled by this confidence, and a particular concurrence of exigencies already explained to your Excellency, they drew the bills in question. The issue of this measure will be highly critical, and followed by a train of consequences very important and extensive. The single circumstance of your Excellency having permitted me to accept the first of these bills, will be considered by our enemies as an unfortunate omen. By predicting from it further aids, their ideas of the resources of Spain, and the resistance of America will naturally be raised, and their hopes of subduing the one, or reducing the power of the other, will naturally be diminished. They will impute these aids to a plan of the House of Bourbon, wisely concerted and firmly persisted in, to secure themselves and all Europe against the ambition of Britain, by completing the division of her empire, and they will cease to flatter themselves, that America thus aided will become destitute of resources to carry on the war. On the other hand, America will derive fresh vigor from this mark of friendship, and their attachment to his Majesty

become proportionably more strong. By mutual good offices, friendship between nations, as between individuals, is only to be established; and it is always a happy circumstance when it subsists between those, whom nature has placed contiguous to each other. But your Excellency's time is of too great importance to be engaged by such obvious reflections.

"Permit me, Sir, still to indulge the pleasing expectation of being enabled to inform Congress, that his Majesty's magnanimity and friendship have prompted him, though inconvenient to his own affairs, to secure the credit of their bills; and I am persuaded that the benevolence of your Excellency's disposition will be gratified in being instrumental in a measure, which would make such agreeable impressions on the hearts and minds of so great a number of steadfast friends to the Spanish monarchy.

"I have the honor to be, Sir, &c.

JOHN JAY."

As this letter was, among other things, designed to establish the expectations and encouragement given me by the Minister, as to money, in the last conference, by obliging him either to deny them against truth, or admit them, at least, by his silence, I desired Mr Carmichael to deliver it with his own hands, which he accordingly did. It still remains unanswered.

Your Excellency will be at no loss to perceive, that this was an improper season for pushing on the treaty, and that it would not have been prudent to have given poignancy to the Minister's feelings for the loss of his frigates, and the trouble of our bills, by disputes about the Mississippi, &c. &c. I therefore did not remind him of the notes he had promised, nor indeed say anything at all about the matter.

About this time I met with a printed copy of an act of the State of Connecticut, reciting and adopting the resolutions of Congress of the 18th of March last, respecting the former and new paper emissions. This was the first advice I had of those resolutions. The promise of annual interest in

Europe appeared to me to be a hardy measure, though, in my opinion, the weakest side of the plan.

Finding the Minister's heart and imagination much attached to his favorite idea of getting American frigates at the expense of the United States, I gave him the following hint.

"Madrid, June 28th, 1780.

"Sir,

"I have the honor of transmitting to your Excellency, herewith enclosed, a copy of an act of the State of Connecticut, just come to hand, in which are recited certain resolutions of Congress, passed the 18th of March last.

"These resolutions are calculated to put the American finances on a permanent footing. They direct, among other things, that bills be issued, redeemable in specie, with interest, at the expiration of six years. The interest to be paid at the redemption of the bills, or at the election of the holder annually, at the American Loan Offices, in sterling bills of exchange on the commissioners in Europe.

"Your Excellency will perceive, that when this plan, so well concerted, shall be fully executed, it will furnish the United States with resources equal to all the exigencies of the war, and probably enable them to supply his Catholic Majesty with vessels, &c, &c.

"I take the liberty, therefore, of submitting to your Excellency's consideration, whether it would not be for the benefit of both nations, that his Majesty, on the one hand, should engage his responsibility for the credit of a certain proportion of the sum so to be emitted; and that the United States, on the other hand, should not only pledge their faith to indemnify his Majesty, but also furnish him with certain aids in vessels, &c.

"If your Excellency should think this hint worthy of your attention, it will be easy to improve it, and adjust the particulars.

"I have the honor to be, &c.

JOHN JAY."

This letter was accompanied with the following one, on the subject of some more bills that had just arrived.

"Mr Jay presents his respectful compliments to his Excellency the Count de Florida Blanca, and has the honor of informing him, that he has been called upon to accept bills to the amount of between ten and eleven thousand dollars; that the far greater part of them belong to Messrs Joyce of this city, who have agreed to wait for an answer until Monday next.

"Mr Jay exceedingly regrets his being obliged to give his Excellency so much trouble, but still flatters himself, that, when his Excellency considers it as his duty which imposes that necessity upon him, his goodness will excuse it.

Madrid, June 28th, 1780."

I ought also to add, that I had sent to the Count a representation on the subject of a very high handed stretch of power in the Governor of Teneriffe, towards a prize carried there by some Americans. On the next day I received the following answer to these three papers.

Translation.

"Aranjues, June 29th, 1780.

"The Count de Florida Blanca has had the honor of the three last letters, which Mr Jay has been pleased to write him.

"The first relates to a privateer detained in the Canaries. On this point he can say nothing until he has obtained some further

information thereon.

"The second respects some new bills of exchange just presented by Messrs Joyce, to the amount of between ten and eleven thousand dollars. The Count can give no positive answer hereon, without first taking the orders of the King, his master, and having a meeting with the other Ministers, and some of these having already gone to Madrid, a determination cannot be immediately had, which renders it necessary for Mr Jay to require Messrs Joyce to wait some days longer for the answer in question.

"The third contains a project of an arrangement, by which his Majesty should oblige himself for his responsibility for certain sums in favor of Congress, and they, on their part, for the indemnification of the said sums at a certain period, by furnishing some vessels, &c. Mr Jay is therefore entreated to draw out a more clear and precise plan on this subject, noting therein the sum to which the responsibility of the King should extend, and on which they may converse at their first interview.

"In the meanwhile the Count has the honor of assuring him of the sincerity of his esteem and attachment."

Congress will observe, that the Minister still kept up the idea of an interference in favor of these bills. On the 3d of July, the Count having removed to Madrid, he wrote me a note expressing the same idea. It is in these words

Translation.

"The Count de Florida Blanca presents his compliments to Mr Jay, and prays to be informed when the last bills of exchange, which he mentioned the other day as being in the hands of Messrs Joyce, and amounting to about ten or eleven thousand dollars, will become payable. At the Palace, 3d of July, 1780."

Thus things were apparently in good train, when the news of the loss of Charleston became credible. The effect of it was as visible the next day, as that of a hard night's frost on young leaves.

I requested a conference with the Minister, and had one on the evening of the 5th of July. The following are notes of it.

Madrid, July 5th, 1780.

Mr Jay waited on the Count de Florida Blanca agreeably to an appointment made by the latter to meet at his house at half past eight this evening.

After the usual compliments, the bad news relative to the surrender of Charleston, just received, became the topic of conversation. The Count mentioned the channels through which he had received it, viz. by an express despatched by the Spanish Ambassador at Lisbon, in consequence of intelligence which Governor Johnson had received and published in that city, and by letters from the Count d'Aranda, with the accounts printed at London of the affair. He expressed his sorrow on the occasion, but observed, that the Count d'Aranda flattered him, that the arrival of the Chevalier de Ternay in that part of the world would totally change the face of affairs, particularly as there would be eight vessels of the line, and more than five thousand troops instead of three thousand, and three vessels of the line which he had been informed were demanded by General Washington.

He seemed to think it strange, that the place had not been better defended, and that more vigorous measures had not been taken to impede the enemy's progress, and observed, that if the town was not in a condition to stand a siege, it would have been better to have withdrawn the troops and stores, and reserved them for the defence of the country. Mr Jay replied, that probably when all circumstances relative to this affair were known, there might be reasons which would account for the conduct of the Americans on this occasion; to the truth of which remark the

Count appeared to assent. He then mentioned the death of M. Mirales, and regretted his loss at this time. He said, he had recommended to his Majesty a person to succeed him, whom we knew, that spoke English, whom he expected soon, and to whom he would explain his ideas on the subject of the bills, and on other matters, touching which Mr Jay had written to him, and who would confer also with Mr Jay on those subjects.

Mr Jay mentioned, that if it was agreeable to his Excellency to permit M. Del Campo (a confidential secretary of the Count, who speaks English, and who translated all the letters to and from the Count) to be present, he should be able to explain his sentiments more fully and clearly. Though the Count did not object to this proposal, he appeared disinclined to it, and said, that with the assistance of Mr Carmichael, then present, they could understand each other very well.

He then proceeded to speak of the bills of exchange in the possession of the Messrs Joyce, and seemed to be surprised that that House should be possessed of so many of them. He advised Mr Jay to be cautious of those gentlemen, saying, that they were as much English in their hearts as the Ministry of that country; that he had known them long, that he thought their conduct extraordinary in being so urgent for the acceptance of these bills. Mr Jay then informed his Excellency, that he had paid those gentlemen a visit in order to obtain further time, and that they had consented to wait until Monday next. The Count mentioned a fortnight or three weeks as necessary, in order that he might have an opportunity of seeing the person he had sent for, and making some arrangements with him. He said, that it would be more agreeable to his Majesty to pay those bills at Cadiz, Bilboa, or Amsterdam, than here; lamented the precipitancy with which Congress had entered into this measure, saying, that if they had previously addressed the King on the subject, ways and means might have been found, either to transport from their possessions in America specie for the service of Congress, or to have enabled them to have drawn bills of exchange at a shorter

sight, which would have prevented the loss of one third of the money to which Congress had subjected themselves, by the terms on which the present bills were sold. Mr Jay assured his Excellency, that by letters he had received from America, from members of Congress and others, he was informed, that the terms were judged so unfavorable to the buyers, that the bills drawn on him sold heavily from that circumstance solely, and not from any doubt of their credit and payment.

This did not, however, appear to convince his Excellency, who spoke much of the deranged state of our finances and credit; of the advantages taken of Congress by merchants and others, who availed themselves of that circumstance, which he called cruel extortions, frequently expressing the King's wishes and his own to render America all the service in their power in this crisis of their affairs; but observed, that it was impossible to obtain much money in Europe while France, England, and Spain, were making use of every resource to obtain it for the enormous expenses of the war, and while the channel through which the European merchants received supplies of specie was stopped, viz. the arrival of the usual quantity from America. This induced him to mention the arrival at Cadiz of three millions of piastres, all of which was on account of the merchants, and again to dwell on what he had before said of the possibility of transmitting specie to the States from the Spanish possessions abroad, and of the effect that this would have in re-establishing the credit of our money. Mr Jay observed in reply, that if a supply of specie could be sent to America, and his Excellency thought that measure more convenient and advisable than bills, the Congress would, in his opinion, readily suspend drawing, on receiving that information; to which the Count answered, that when the person he had sent for arrived, this matter might be further discussed.

Mr Jay then proceeded to observe, that by papers which he had transmitted to his Excellency, he would see that Congress had adopted a system to redeem and destroy the former emissions,

and to emit other bills to be paid in Europe with interest in a certain term of years, and in fully establishing this system, it would be probably in their power, not only to sustain the credit of their money, but to contribute, in some measure, to assist Spain in the way proposed by his Excellency, viz. in building of frigates, &c. &c. He added, that as his Majesty's treasure was detained in America, and as much expense would be incurred by the armaments employed by Spain there, that bills on the Havana in favor of the United States might be more convenient to Spain, and equally contribute to the end proposed. The Count did not seem to disapprove of the idea, but did not enlarge upon it. He asked Mr Jay, if America could not furnish Spain with masts and ship timber. Mr Jay replied, that those articles might be obtained there. The Count then said that he would defer further remarks on this head, till the arrival of the person whom he expected would succeed M. Mirales, and appeared desirous of leaving this subject, and, indeed, all other matters relative to American affairs to be discussed when he came.

In the further course of conversation, he recurred to the subject of the bills in question, and told Mr Jay if an immediate acceptance of them was insisted on, that he might accept them payable at Bilboa, but rather seemed to wish that their acceptance might be delayed till the coming of the abovementioned person. Mr Jay expatiated on the impression, which the acceptance of these bills and every other mark of friendship would make in America at this particular crisis, and the Count, in a very feeling and warm manner, assured him that his desire to serve the States increased in consequence of their distresses. By his whole conversation he endeavored to show how much he interested himself in the prosperity of our affairs, more than once desiring Mr Jay not to be discouraged, for that with time and patience all would go well, expatiating on the King's character, his religious observation of, and adherence to his promises, and his own desire of having Mr Jay's entire confidence. Mr Jay seized this opportunity of assuring him of his full reliance on the King's justice and honor, and his

particular and entire confidence in his Excellency, asserting to him that all his letters to Congress breathed these sentiments. The Count appeared much pleased with this declaration, and, seeming to speak without reserve, hinted his hopes that the combined fleets would soon be in condition to give the law to that of England in the seas of Europe, repeating that measures would be taken, on the arrival of the person expected, to provide for the payment of the bills of exchange, and that other arrangements would be made with the same person, which would contribute to relieve, as much as it was in his Majesty's power, the present distresses of America, of which he frequently spoke very feelingly in the course of this conversation.

Mr Jay reminded his Excellency, in a delicate manner, of the supplies of clothing, &c. &c. which had been promised in a former conference, and said that if they could be sent in autumn, they would be essentially useful. The Count assured him that measures would be taken for this purpose, with the person so often hinted at in the course of the conference; that probably these goods would be embarked from Bilboa, as everything was so dear at Cadiz. He also once more told Mr Jay, that at all events he might accept the bills presented by Messrs Joyce, payable at Bilboa, though he appeared to wish that this measure might be delayed for a fortnight if possible. The conference ended with compliments and assurances on the one part and the other, the Count endeavoring to persuade Mr Jay of his Majesty's desire to assist the States, and Mr Jay assuring him of his reliance on his Excellency, and of the good effects which such proofs of his Majesty's friendship would have in America at the present juncture.

In this conference not a single nail would drive. Everything was to be postponed till the arrival of the person intended to succeed M. Mirales.

On the 11th of July I wrote the Count the following note.

"Mr Jay presents his respectful compliments to his Excellency the Count de Florida Blanca, and has the honor of informing

him, that Don Carlos Maria Maraci of this place has presented to him, for acceptance, bills amounting in the whole to one thousand six hundred and sixtyfive dollars. The Messrs Joyce consent to having their bills payable at Bilboa, but have acquainted Mr Jay that the name of the House there, by whom they are to be paid, should accompany the acceptance of the bills, it being necessary to their further negotiation.

"Madrid, July 11th, 1780."

To this note the following answer was returned.

Translation.

"In answer to the note the Count de Florida Blanca has just received from Mr Jay, dated yesterday, he has the honor to acquaint him, that he intends writing to Bilboa on the subject of the bills in the hands of Messrs Joyce, and which are to be accepted, so that it will be necessary to wait some days to fix the House at which the acceptance will be made.

"As to the bills presented by Don Carlos Maraci to the value of one thousand six hundred and sixtyfive dollars, the Count recommends to Mr Jay to request, in like manner, a delay of fifteen days for their acceptance, this time being necessary, that the Count may have an interview with a person not at present in Madrid.

"At the Palace, July 12th, 1780."

I was obliged to wait with patience, and endeavor to keep the holders of the bills from returning them, noted for non-acceptance. The Count went to St Ildefonso; the time limited for the arrival of the person expected having expired, I wrote the Count three notes on the subject of the bills, and in one requested his permission for Mr Harrison of Maryland to remain at Cadiz, from whence he was threatened to be removed in pursuance of the King's ordinance against Irishmen. To these I received the following answer, dated the 29th of July.

Translation.

"The Count de Florida Blanca presents his compliments to Mr Jay, and acquaints him that he has duly received his three last letters.

"For the satisfaction of Mr Jay, orders shall be given for Mr Harrison to remain at Cadiz, the general regulations established by the King notwithstanding.

"On the subject of the acceptance of the bills of exchange, the Count can only say that he still waits for the person in question, who has informed him that he was on the point of setting out on his journey.

"He is moreover very sensible of the attention in communicating to him the last advices received respecting the affair of Charleston, and persuades himself that Mr Jay will always observe the same complaisance.

"Saturday, July 29th."

I immediately wrote him a letter of thanks for his civility to Mr Harrison, and nothing further passed between us till the 11th of August, when I sent him the following note.

"Mr Jay presents his respectful compliments to his Excellency the Count de Florida Blanca, and has the honor of informing him, that since the date of his last, bills to the amount of six thousand and six hundred dollars have been presented to him for acceptance. Mr Jay has prevailed on the holders of these bills to wait six or eight days for his answer, on a promise that the time for their payment, if accepted, shall be computed from the day on which they were presented.

"Madrid, August 11th, 1780."

To this was written the following answer.

Translation.

"The Count de Florida Blanca has just received Mr Jay's note of yesterday, on the subject of the new bills, which have been presented to him. He is mortified not to be able to return a positive answer today, respecting the acceptance of said bills, and must repeat, that he still waits for the person of whom mention has been made in preceding notes.

"St Ildefonso, August 12th, 1780."

Mrs Jay's illness, and the death of a child, detaining me at Madrid, I requested the Count to give me notice when it would be necessary I should wait upon him, and in the mean time Mr Carmichael went to St Ildefonso.

Congress will be pleased to remember, that in the conference of July 5th, the Minister, speaking of the person intended to succeed M. Mirales, said that he spoke English, and that we knew him. I supposed, that he alluded to one of the Gardoquis, three of whom speak English, and I was well acquainted with one of them. But as another of them had been heretofore employed by the Court, it appeared most probable that he was the person meant. They are brothers and have a strong family likeness.

On the 10th, Mr Carmichael wrote me, that he had seen the Count, and was informed by him, that the person so long expected had not yet arrived, and when he did he would give notice of it. On the 12th he wrote me that a person had arrived, whom he suspected to be the one so long expected. It seems that a person much resembling the Gardoqui family had arrived at the same inn where Mr Carmichael lodged, and was seen by him.

The holders of the bills becoming extremely uneasy, I wrote the Count the following reply to his last note.

"Madrid, August 16th, 1780.

"Sir,

"The letter, which your Excellency did me the honor to write on the 12th instant, was delivered to me yesterday.

"The kind concern you are pleased to express for the delay, which suspends my receiving a positive answer respecting the bills, demands my acknowledgments, and is an additional proof of that generous sensibility, which induced your Excellency to tell me, that your friendship for America should rise with her distresses. A sentiment so evincive of magnanimity will be received by Congress with all the admiration and gratitude it merits, and will not cease to inspire me with that confidence in your Excellency, which greatness of mind seldom fails to excite.

"I ought to mention, that the holders of the bills here begin to grow impatient, and frequently repeat their applications to me for acceptance.

"With sentiments of great respect and regard, I have the honor to be, &c.

JOHN JAY."

No answer.

The next day I received a card from the house of Joyce, informing me of their having received peremptory orders to return their bills, and that they could not delay it longer than the next post. Of this I sent a copy to the Count without any observations.

No answer.

On the 18th of August, I wrote the Count the following letter.

"Madrid, August 18th, 1780.

"Sir,

"I never find myself more disagreeably circumstanced, than when my duty constrains me to be troublesome to those, whom I

wish to afford only pleasure and satisfaction. Such is my present situation. Monday next I perceive is to be a critical day. Other bills besides Messrs Joyce are then to be re-presented.

"M. Gardoqui of Bilboa writes me, that he has received bills on me for thirteen thousand three hundred and thirtyfive dollars, with orders immediately to ship the amount in goods to America. They will be presented tomorrow, and he expects an answer by Monday's post. If an immediate acceptance or refusal should be insisted on by any one of them, a protest must ensue, and American credit be reduced to the lowest ebb. What am I to do? If your Excellency should direct me to accept these bills payable at Bilboa, they will, as before, demand at what House they are to be paid.

"I must entreat your Excellency to relieve me and my country from this painful situation, and to pardon the trouble I am obliged to give you.

"With great respect and esteem, I have the honor to be,
&c.

JOHN JAY."

"P. S. The enclosed contains intelligence from America."

No answer.

Having first visited the holders of the bills, and obtained further time till Monday next, on the 24th I set out for St Ildefonso. I arrived the next day, and wrote the Count the following letter.

"St Ildefonso, August 25th, 1780.

"Sir,

"I arrived here this morning, but was prevented from immediately doing myself the honor of paying my respects to your Excellency, by fatigue and indisposition.

"In a letter I had the honor of writing to your Excellency on the 16th instant, I mentioned, that the holders of the bills began to grow impatient. On the 18th instant, I informed your Excellency by another letter, that their applications to me for acceptance had become so pressing, as that I found myself under the necessity of again requesting your directions.

"I have accepted Messrs Joyce's bills payable at Bilboa, agreeable to your Excellency's directions on the 5th of July last, and they have agreed to wait some time for the name of the House there, which may be employed to pay them. The other gentlemen were induced to delay requiring of me a decisive answer until Monday next, on my assurances, that they should then receive one.

"The inducements and reasons, which urged Congress into this measure, are known to your Excellency, and it would be no less unnecessary than improper to recapitulate the consequences, which must ensue from the success or failure of it.

"I fear your Excellency thinks I am too solicitous, too importunate. But when it is considered, that the holders of these bills are not under my control, and that they require an answer from me, I flatter myself that the trouble I give your Excellency on this subject will appear to arise from a sense of my duty, and not from the impulse of impatience.

"I sincerely congratulate your Excellency on the late important naval success against the common enemy, and have the honor to be, &c.

JOHN JAY."

No Answer.

The next morning I went to pay my respects to the Minister, but being told he was sick, I left a card. The French Ambassador, however, and others, had been with him in the morning, and he rode out as usual in the afternoon.

Mr Carmichael informed me, that in passing by a wicket-gate of the King's private gardens, he had seen the person, whom he had before seen at the inn, walking in them, and that his servant had learned from a barber of his acquaintance, that he dressed a gentleman who spoke English, and lodged at M. Del Campo's. He also informed me, that the French Ambassador had lately received a letter from Count de la Luzerne, dated the 12th of May; that he was present when it was opened, that it was in cypher, and that the Ambassador said, he supposed he was impatient to hear the news; that he afterwards expressed a desire to see this letter, and that the Ambassador referred him for it to the Secretary; that the Secretary gave him some important papers, adding, that he had *mislaid* the letter. Hence it seems, as if the Ambassador intended at first to communicate the letter, but that its contents on being decyphered forbad it.

It appeared to me proper to mention my embarrassments to the French Ambassador, who had always been friendly, and ask his advice and aid on the subject. The next day I had a conference with him, and the following are notes of it.

St Ildefonso, August 27th, 1780.

Mr Jay waited on the Count de Montmorin this morning at nine o'clock, agreeably to appointment the day before. The former commenced the conversation by observing, that in his first conferences with the Minister of Spain, at Aranjues, the Minister divided the subject into two parts, and spoke largely on that of the bills drawn on Mr Jay, and on the treaty proposed to be entered into between Spain and America. Mr Jay recapitulated the Minister's assurances relative to the former, and informed the Ambassador, that the result of this conference was a promise of the Minister to send him written notes on *both* points, a few days afterwards. That with respect to the notes relative to the treaty, Mr Jay had not received them as yet. That on the other point, he had received notes, which, as well as his answer, he had shown to the Ambassador. That on the 5th of July he had another conference with the Minister at Madrid, in which he had endeavored to turn the conversation to the several objects of his

business and mission here, but that the Minister postponed the discussion of them, until a person for whom he had sent, with a view to succeed M. Mirales, should arrive, when all the necessary arrangements should be made. He indeed told Mr Jay, that if the Messrs Joyce were pressing, he might accept their bills, payable at Bilboa, and throughout the whole conference, had given Mr Jay warm and repeated assurances, not only of the King's good faith and friendly disposition towards America, but of his own personal attachment to her interest, on both of which, as well as in his candor and promises, he desired him to place the greatest reliance.

Mr Jay proceeded further to inform the Ambassador, that being exceedingly pressed by Messrs Joyce and others, holders of the bills, for a decisive answer, which they had required to have on the Monday last past, he had signified the same to the Minister by three letters, requesting his directions, to none of which he received any answers. That he had accepted Messrs Joyce's bills, payable, as directed, by the Minister, and had prevailed on the other to wait until Monday next. That on his arrival here on Friday he wrote another letter to the Minister on the same subject, and the next day called at his house to pay his respects, but not being able to see him had left a card; that being thus circumstanced he was under the necessity of requesting the favor of him to speak to the Count, and obtain an answer from him.

The Ambassador told Mr Jay, that he ought to ask an audience of the Minister. To this Mr Jay replied, that he could not hope to have an answer to this request, as he had not been able to procure one to the different applications he had already made. The Ambassador said, that he would willingly speak to the Minister, but that he feared he should not be able to enter fully into the subject with him until Wednesday, both the Minister and himself having their time employed on objects, which at present and for some time past, had engrossed much of their attention. He then asked Mr Jay if he had written to Congress to stop

drawing bills on him. Mr Jay replied, that he could not with propriety give such information to Congress, after the general and repeated assurances made him by the Count de Florida Blanca ever since his arrival here, and particularly the Minister's declaration, that he should be able to furnish him with thirty or forty thousand pounds sterling, at the end of the present or commencement of the next year, and that in the meantime, other arrangements might be taken to pay such bills as might become due after that period. He added, that if the Count had candidly told him that he could not furnish him with money to pay the bills, he should then immediately have informed Congress of it, who would have taken of course the proper measures on the occasion, but that should he now send a true account of all that had passed between the Count de Florida Blanca and himself thereon, he could not answer for the disagreeable effects such intelligence would produce. The Count seemed to think the Spanish Minister would pay the bills that had been already presented, and had probably delayed giving Mr Jay an answer until the arrival of the person he expected, who he understood was detained by the necessity of making some arrangements in his family before he left it.

On this Mr Jay remarked, that this did not accord with the information the Minister had given him near three weeks before, that the said person was then about to set out.

The conference ended with a promise of the Count de Montmorin, that he would endeavor to speak to the Count de Florida Blanca on the subject, but that he was afraid he should not be able to do it fully until Wednesday next.

Finding that the Ambassador could not do anything till Wednesday next, and that the Minister's determined silence left no room to hope much from him very soon, I despatched letters by express to the holders of the bills, and requested a little more time. I was apprehensive that if I should accept them without the Minister's consent, it might become an objection to his providing for their payment, and appearances led me to suspect, that any tolerable excuse for such refusal would have been very grateful.

The French Ambassador did not, as usual, return my visit. I dined with him, nevertheless; but his behavior, though polite, was dry, and not cordial and open as before. He mentioned not a syllable of his having received a letter from Philadelphia. These circumstances increased my apprehensions that his letter contained some things unpleasant.

On Wednesday afternoon, 30th of August, I waited on the Ambassador, to know the result of the conversation he had promised to have with the Minister on our affairs. He did not appear very glad to see me. I asked him whether he had seen the Minister, and conversed with him on our affairs. He said he had seen the Minister, but that as Count d'Estaing was present, he had only some general and cursory conversation with him, and slipping away from that topic, went on to observe, that I would do well to write another letter to the Minister, mentioning the number of letters I had already written, my arrival here, and my desire of a conference with him. I told the Ambassador, that while four letters on the subject remained unanswered, it could not be necessary to write a fifth. That these letters had been written with great politeness and circumspection; that the last was written the day of my arrival at St Ildefonso; that I had also gone to the Minister's house, to pay my respects to him, and on being told he was sick, had left a card; and that, notwithstanding these marks of attention and respect, I still continued unanswered and unnoticed. I observed to him further, that this conduct accorded ill with the Minister's assurances; that unless I had met with more tenderness from the holders of the bills, they would have been returned noted for non-acceptance; that if such an event should at last take place, after the repeated promises and declarations of the Minister, there would of necessity be an end to the confidence of America in the Court of Spain.

He replied, that he hoped things would take a more favorable turn; that to his knowledge the Minister had been of late much occupied and perplexed with business; that I ought not to be affected with the inattention of his conduct; that I should continue to conduct the business smoothly, having always in view the importance of Spain, and remembering that we were as yet only rising States, not firmly established, or generally acknowledged, &c. and that he would by all means advise me to write the Minister another letter, *praying* an audience.

I answered, that the object of my coming to Spain was to make *propositions*, not *supplications*, and that I should forbear troubling the Minister with further letters, till he should be more disposed to attend to them. That I considered America as being, and to continue independent in *fact*, and that her becoming so in *name* was of no further importance than as it concerned the common cause, in the success of which all the parties were interested; and that I did not imagine Congress would agree to purchase from Spain the acknowledgment of an undeniable fact at the price she demanded for it; that I intended to abide patiently the fate of the bills, and should transmit to Congress an account of all matters relative to them; that I should then write the Minister another letter on the subject of the treaty, and if that should be treated with like neglect, or if I should be informed that his Catholic Majesty declined going into that measure, I should then consider my business at an end, and proceed to take the necessary measures for returning to America; that I knew my constituents were sincerely desirous of a treaty with Spain, and that their respect for the House of Bourbon, the desire of France signified in the Secret Article, and the favorable opinion they had imbibed of the Spanish nation, were the strongest inducements they had to wish it; that the policy of multiplying treaties with European nations was with me questionable, and might be so with others; that, for my own part, I was inclined to think it the interest of America to rest content with the treaty with France, and, by avoiding alliances with other nations, remain free from the influence of their disputes and politics; that the situation of the United States, in my opinion, dictated this policy; that I knew it to be their interest, and of course their disposition, to be at peace with all the world; and that I knew too it would be in their power, and I hoped in their inclination, always to defend themselves.

The Ambassador was at a stand; after a little pause, he said, he hoped my mission would have a more agreeable issue. He asked me if I was content with the conduct of France. I answered, most certainly; for that she was spending her blood as well as treasure for us. This answer was too general for him. He renewed the question, by asking whether I was content with the conduct of France relative to our proposed treaty with Spain. I answered, that, as far as it had come to my knowledge, I was. This required an explanation, and I gave it to him, by observing, that, by the Secret Article, Spain was at liberty to accede to our treaty with France whenever she

pleased, and with such alterations as both parties might agree to; that Congress had appointed me to propose this accession now, and had authorised me to enter into the necessary discussions and arguments; that, to give their application the better prospect of success, they had directed me to request the favorable interposition of the King of France with the King of Spain; that I had done it by letter to Count de Vergennes, who, in answer, had assured me of the King's disposition to comply with the request of Congress; and informed me that instructions analogous to this disposition should be given to the Ambassador at Madrid; that it gave me pleasure to acknowledge that his conduct towards me had always been polite and friendly, but that I still remained ignorant whether any, and what progress had been made in the mediation. He seemed not to have expected this; but observed, that all he could do was to be ready to do me any friendly office in his power, for that he did not see how his *mediation* could be proper, except in cases where points of the treaty were discussed, and could not be agreed upon. To this I replied, that these were only *secondary* objects of the expected mediation, and that the *primary* one was to prevail upon the King of Spain to commence the negotiation, and enter upon these discussions; but that I remained uninformed of what he might have done on that subject. The Ambassador made no direct reply to these remarks, but again proceeded to repeat his advice, that I should try one more letter to the Minister. I told him I had, after much consideration, made up my mind on that subject, and that it appeared to me inexpedient to follow his advice in this instance; and that when he should see the letters I had already written, he would probably be of the same opinion. I promised to show him the letters the next day, and took my leave. How far the tone of this conversation may be judged to have been prudent, I know not. It was not assumed, however, but after previous and mature deliberation. I reflected that we had lost Charleston, that reports ran hard against us, and therefore that this was no time to clothe one's self with humility.

On considering the earnestness with which the Ambassador had pressed me to write another letter to the Minister, I began to suspect that it might be the wish of the latter, who, conscious of having gone rather too far, might desire this way to retreat through. I concluded, therefore, to adhere to my resolution of not writing, but that if the Ambassador should confirm my suspicions by again pressing the measure, in that case to consent to send Mr

Carmichael to the Minister with my compliments, and a request that he would favor me with a conference at such time as might be most convenient to him.

The next day, Thursday, the 31st of August, I visited the French Ambassador, and showed him the four last letters I had written to the Minister. He confessed they were perfectly unexceptionable, but again advised me to write another; I told him, I could not think of it, but that I would so far follow his advice, as to send Mr Carmichael to request of the Minister the favor of a conference. The Ambassador expressed much satisfaction at this proposal, and immediately promised to speak to the Minister on the subject. He advised, however, that I should delay the measure till Saturday, on account of some urgent business which then employed the Minister. To this I agreed. I hinted to him, that the person expected to succeed Mr Mirales was in town. He said he did not know, and waived the subject. I thought if that was really the case, it could do no harm that the Minister should know I suspected it. In the afternoon, the Ambassador's secretary paid me a visit, and seemed desirous of entering into particular conversation on the subject of our affairs, but as I did not approve of talking with the Ambassador through his secretary, I avoided it, by turning the conversation to light and general topics. He asked me several leading questions, and among others, whether there was a *M. Gardoqui* in town. I told him many persons came and departed that I was ignorant of, and passed on to another subject. Two persons about the Court mentioned to Mr Carmichael this evening, that this person was arrived.

On Saturday morning, the 2d of September, I committed my message for the Minister to Mr Carmichael, with directions, first to call on the French Ambassador, and ask him whether anything new had occurred to render the delivery of it improper. He told Mr Carmichael, he had mentioned to the Minister my desire of seeing him that day, but that the Minister said, he was so much occupied that it would be impossible. He, nevertheless, told Mr Carmichael *he might go and see*. This being mentioned to me, I told Mr Carmichael to go on.

After being long detained in the ante-chamber, he had an opportunity of delivering his message, and received for answer, that the Minister could not

possibly see me till the next Tuesday evening, and that Mr Carmichael should call again on Tuesday morning, to be informed whether it would be in his power to see me *then*; that the person so long expected was arrived; that he had been preparing instructions for him, and would endeavor in the meantime to send him to converse with me.

On Sunday, the 3d of September, Don Diego Gardoqui, of Bilboa, presented me a note from the Count de Florida Blanca, in these words.

Translation.

"The Count de Florida Blanca presents his compliments to Mr Jay, and recommends to him to form an acquaintance with the bearer of this letter, being the person in question, whom he had expected from day to day."

It is observable, that M. Gardoqui's name is not mentioned in this letter, which appears the more singular, as the Count had never mentioned to me the *name* of the *person expected*. This was being very wary. Mr Carmichael told me, he took this to be the same person whom he saw first at the inn, and afterwards walking in the private gardens.

Hence it appears, that these strange delays were not unavoidable. Probably, the desire of further intelligence of the enemy's operations in America, and the undecided state of Mr Cumberland's negotiation, might have given occasion to them. To these may perhaps be added an expectation that our distresses would render us more pliant, and less attached to the Mississippi. But these are conjectures, and as men sometimes act without any settled system, it may not be prudent to scan their conduct by a supposed plan, however probable.

M. Gardoqui began the conversation by assurances of his personal attachment to our cause and country, which gave occasion to mutual and complimentary professions too unimportant to repeat. I told him, that the holders of the bills, after having shown me great forbearance and delicacy, were at length perfectly tired; that the house of Casa Mayor had sent their bills after me, but that as I was not to expect the honor of a conference with the Minister until Tuesday evening, at soonest, I had requested time till

Wednesday to give my answer. I therefore begged the favor of him to mention this to the Minister, and obtain his directions what I should do. He asked to what amount Congress had resolved to draw. I told him. He observed, that the Court ought previously to have been applied to. In answer to which, I recapitulated the reasons before given to the Minister. He dwelt largely on the necessities of the State, and I expatiated on the extensive ideas entertained of Spanish opulence in America. He assured me they were mistaken, and spoke of the difficulties occasioned by the detention of their treasures abroad. He then remarked, that we offered no *consideration* for the money we solicited. I replied, that we offered the same consideration that other nations did who borrowed money, viz. the repayment of the principal with interest. He asked me if we had nothing further to offer, and mentioned ship timber. I said we had ship timber, but that as it belonged to individuals, the public could not get it otherwise than by purchase, and that it could answer no purpose to borrow money with one hand and instantly repay it with the other, for that a repayment in money, or in ship timber, was the same thing in fact, and differed only in name. Besides, that if Spain wanted timber from America, it would be better in case he went there, that he should be charged with that business, than that it should be under the direction of Congress, for that public works were always more expensive than private. He agreed in this. He again asked me whether I could think of nothing else to offer. I told him no. Whether there was nothing on the side of the Mississippi that I could offer. I told him nothing that I could think of except land, and that I did not think it would be worth the King's while to buy a hundred thousand pounds worth of land there, considering the immense territories he already possessed. He inquired whether I thought Congress would draw for the whole sum. I answered that it was in my opinion not improbable, for that they would consider the acceptance of ten or twelve thousand dollars as a prelude to further aids, naturally supposing, that if the King afforded us any supplies at all, they would be such as would correspond with his dignity, and not be limited to that little pittance. He desired me to meet him the next day at M. Del Campo's, which I promised to do.

I shortly after saw the French Ambassador, who among other things mentioned the proposed meeting at Del Campo's, which, with various other circumstances, shows his being on confidential terms with the Minister.

In the evening M. Gardoqui again paid me a visit, and pointedly proposed my offering the navigation of the Mississippi, as a consideration for aids. I told him that object could not come in question in a treaty for a loan of one hundred thousand pounds, and Spain should consider, that to render alliances permanent, they should be so formed as to render it the interest of both parties to observe them; that the Americans, almost to a man, believed that God Almighty had made that river a highway for the people of the upper country to go to the sea by; that this country was extensive and fertile; that the General, many officers, and others of distinction and influence in America, were deeply interested in it; that it would rapidly settle, and that the inhabitants would not readily be convinced of the justice of being obliged, either to live without foreign commodities, and lose the surplus of their productions, or be obliged to transport both over rugged mountains, and through an immense wilderness, to and from the sea, when they daily saw a fine river flowing before their doors, and offering to save them all that trouble and expense, and that without injury to Spain. He observed, that the present generation would not want this navigation, and that we should leave future ones to manage their own affairs, &c.

The next day, that is, the 4th of September, I met M. Gardoqui at M. Del Campo's. After some unconnected conversation, I observed to M. Del Campo, that as all the papers between the Minister and myself had passed through his hands, it was unnecessary to give him any information, except what related to the present state of the bills drawn upon me, which I proceeded to state in a short, but particular manner. He replied by making several strictures on the impropriety of drawing bills without previous notice and consent. He remarked, that they might with more propriety have been drawn on France, with whom we were allied, and who were richer than they; that the King must first take care of his own people, before he could supply us; that Spain had been brought into the war by our quarrel, but received no advantage from us; that they had been told of our readiness to assist in taking Pensacola, &c. but instead of aids, he had heard of nothing but demands from us; that our situation was represented as being deplorable, and that the enemy talked of the submission of some of the States, and of negotiations being on foot for that purpose.

Whether this style proceeded from natural arrogance, or was intended to affect my temper, I cannot say; in either case, I thought it most prudent to take no notice of it, but proceed calmly and cautiously, and the more so as this was the first time I had ever conversed with this man. I told him in substance, though more at large, that the assurances given Congress of the friendly disposition of Spain by M. Mirales and others had been confided in, and had induced Congress to expect the aids in question. That if this application could be called a demand, it was still the first they had made to my knowledge; that men in arms against the enemies of Spain were serving her as well as themselves, and therefore might without impropriety request her aid; that our separation from Britain was an object important to Spain, and that the success, with which we had opposed her whole force for six years, showed what the power of both, if under one direction, might be capable of; that I knew nothing of Spain's having been drawn into the war by or for us, and that this was not to be found among the reasons she had alleged for it; that an attack on Pensacola could not be expected to be made by troops actually employed in repelling the enemy's assaults from their own doors, and that the principles of self-defence would not permit or justify it; that Spain had much to expect in future from our commerce, and that we should be able as well as willing to pay our debts; that the tales told of our despondency and submission resulted from the policy of the enemy, not from fact, and I believed no more of their private negotiations between America and Britain, than I did of there being private negotiations between Spain and Britain for a separate peace, which the Minister assured me was not the case; that if on the arrival of the bills, I had been told plainly that no money could be advanced, further drafts would soon have been prevented; but that a contrary conduct having been adopted, other expectations had been excited; that as to France, she had done, and was still doing much for us, and that her being our ally did not confer propriety upon every request that we could make to her. He still pressed this point, and complained that the greater part of the money heretofore advanced by Spain had been laid out in France. He saw that France was deriving great commercial advantages from us, but that our commerce never would be an object with Spain, because all her productions would find a better market in her own Colonies. He desired a note of the bills which had arrived, and then made some reflections on the proposal of a treaty. We agreed perfectly well, that mutual interest should be the basis of it, and I added, that the good opinion

entertained of the King and nation by America, was also a pleasing circumstance. He said, however that might be, America did not seem inclined to gratify Spain, in the only point in which she was deeply interested. Here followed much common-place reasoning about the navigation of the Mississippi, of which your Excellency has heretofore heard too much to require a repetition. He spoke also much of the difficulties of Spain, as to money matters, saying that their treasures in America could at present be of no use to them, as they had given orders that none should be sent home during the war, even if it continued these ten years; and this was done in order, by stopping the usual current of specie into Europe, to embarrass the measures which Britain must take to obtain her necessary supplies.

On the 6th of September, M. Gardoqui brought me word, that I might accept the bills of Casa Mayor, amounting to one thousand one hundred and ten dollars, which I accordingly did. The proposed conference was postponed, nor indeed was it obtained until the 23d of September.

On the 11th, the French Ambassador's Secretary called upon me, by the Ambassador's direction, to inform me, that an express was going to Paris, and to know whether anything further had been done in our affairs since he had seen me. I told him things continued in the same situation. He again commenced a conversation on the subject, and as he came directly from the Ambassador I entered into it. He expressed some concern for the delays I met with. I told him such things must be expected. He said he hoped I was content with France. I replied, that I apprehended France considered an interference in our negotiations, as a delicate matter, for that as she had probably held up the exclusive navigation of the Mississippi, and Gulf of Mexico, among other objects to induce Spain to take a part in the war, she might hesitate about pressing Spain into a treaty with us on terms, that would not comprehend this object. He said M. Gerard had reasoned well about those matters, but that he did not believe France would be backward, nor indeed that she had promised this to Spain to bring her into the war. I told him, I should not be surprised to find, that the delay arose from a desire of hearing further news from America, and probably from Philadelphia. He said, that could not be the case, for since M. Mirales's death, Spain had no person there to give them intelligence. I told him that Spain might be

waiting the issue of new motions respecting the Mississippi in Congress, and that I was sure Count de la Luzerne would readily be at the trouble of communicating to them any interesting information on *that* or any other subject. Whether he drew any conclusions from the manner in which this was said, I cannot say, but in a way that looked like exculpating that Minister, he told me, that Count de la Luzerne had only mentioned to the French Ambassador, that two Members of Congress, with whom he had talked over the affair of the Mississippi, thought it would be best not to bring on the question of the navigation until Spain should become possessed of the adjacent country, for that then it might be ceded with a better grace. He mentioned no names. This explains the letter herein before mentioned. The inferences which flow from it are obvious. I incline to suspect, that what I said in my letters on that head returned here by the same conveyance.

On the 13th of September, M. Gardoqui delivered me the following verbal message from Count de Florida Blanca. "That the exigencies of the State would not permit his Majesty to provide for the payment of more of the bills drawn upon me than had been already accepted." I expressed my regret that this had not been told me at first, and told him it appeared a little extraordinary that the Minister should employ himself and me three months in making and answering propositions relative to a loan which it was not in his power to make. I touched also on the assurances from time to time given me, and intimated, that something, which I could not at present see through, must have caused this change; that I lamented it the more, as it would weaken the foundations on which I wished to see a cordial union laid between the two countries.

I dined with the French Ambassador. He was a little out of spirits, and on talking to him on what had happened, I told him there was nothing now left but for me to apply to France. He encouraged the idea, and agreed with me, that the bills ought to be by all means saved from protests. He imputed the conduct of Spain to resentment against M. Necker, for opposing a certain scheme of Spanish finance, which he thought interfered with his plan. It is a curious one, but I shall omit it at present, as I fear Congress already wish this letter at an end. As the Count de Florida Blanca's message to me by M. Gardoqui was a verbal one, and might hereafter be denied or explained

away as convenience might dictate, I thought it important to establish it, and for that and other reasons which need no explanation, I wrote the Count the following letter.

"St Ildefonso, September 14th, 1780.

"Sir,

"The information I received yesterday from your Excellency by M. Gardoqui, has drawn the affair of the bills of exchange to a conclusion. He told me, that the exigencies of the State would not permit his Majesty to provide for the payment of more of those bills than were already accepted, amounting to about fourteen thousand dollars.

"As it is important that every nation at war should know exactly the state of their resources, and as America has been induced to consider the friendship of his Catholic Majesty as among the number of hers, I must request the favor of your Excellency to tell me frankly whether the United States may expect any, and what aids from Spain. The general assurances of amity, which that country has received from this, together with what has passed between your Excellency and myself relative to clothing for our troops, and supplies of specie in America, will I hope be considered as authorising this question; and the more so, as M. Gardoqui, to whose arrival your Excellency postponed the discussion of these matters, informs me he is not instructed to say anything to me on these, or indeed any other subjects.

"I have the honor to be, &c.

JOHN JAY."

On this day some glorious reports from America arrived. It seemed as if she had risen like a giant refreshed with sleep, and was doing wonders. I sent the news to the Count as usual, without appearing to be affected by his late conduct. I began again to be seen, and in a few instances to be known.

The next day, the 15th of September, M. Gardoqui delivered to me a paper by way of answer to my letter of yesterday to the Minister. It is in these words;

"The following answer has been dictated to me in his Excellency's name by Don Bernardo del Campo, to be delivered to the honorable John Jay.

"That it is not his Majesty's intention to stop assisting the States, whenever means can be found to do it, but that it will be impossible to supply them with money in Europe, there being none to spare, for that which ought to have come this year from America, has neither come, nor is it known when it will, and that which would have facilitated a far advanced negotiation is likely to produce no effect, in a great measure, *through the undermining of some persons of rank in France.*

"The States not giving timely advice, nor having taken his Majesty's previous consent, he could not arrange his affairs beforehand, in order to assure the acceptance and payment of the bills they have drawn, for which reasons, and that Congress has not to this day given any tokens of a recompense, his Majesty might have just cause of disgust, but notwithstanding he does not, nor will change his ideas, and will always retain those of humanity, friendship, and compassion, that he has had towards the colonies. That, consequently, if Mr Jay or his constituents should find money upon credit, to the sum of one hundred or one hundred and fifty thousand dollars, that his Majesty will be answerable for the said sum, payable in the space of three years; that his Majesty will besides exert all that is possible to assist them with clothing and other things, and, finally, in order that his Majesty may extend his further dispositions, it is precisely necessary that they should give sure and effective tokens of a good correspondence, proposing reciprocal measures of a compensation that may establish a solid friendship and confidence, without reducing it to words and protests of mere compliment.

"This being the substance, I would further suggest to Mr Jay's consideration, that the continuance of assisting the States by answering the sum expressed in a manner much more public

than that of paying the money privately, shows plainly the sincerity of his Majesty, although the States have not to this day proposed any equivalent to the assistance already given, and to the expenses occasioned by a war, which had its true origin from them, to all which must be added, (though by the way no credit is given to it,) that there are hints of some understanding between the colonies and England.

"St Ildefonso, September 15th, 1780.

JAMES
GARDOQUI."

It is to be observed, that this paper when first delivered was not signed, and suspecting that this omission might not be accidental, I mentioned it to M. Gardoqui a day or two afterwards. After some hesitation, and doubts of its being necessary, he signed it. I made no remarks at all to M. Gardoqui on any part of this paper except the last article, which I treated with great indignation.

On the 16th I wrote a short letter and many copies to your Excellency, informing you of the necessity of suspending further drafts upon me for the present.

Three days afterwards, I had a long and satisfactory conversation with the French Ambassador, in which he was very unreserved, candid, and confidential. He read to me part of a letter he intended to send to Count de Vergennes on our affairs, and justice calls upon me to say, that we are obliged to him for it.

On the 22d of September, I sent the following letter to Count de Vergennes by one of the Ambassador's couriers.

"St Ildefonso, September 22d, 1780.

"Sir,

"I have never taken up my pen with so much reluctance as I now do, although my design is to write a letter to your Excellency. But, Sir, there are few sensations more painful than those which they experience, who, already covered with benefits, are impelled by cruel necessity to ask for more. Such is my present situation, and hence proceeds my regret.

"My uniform and unreserved communications to the Count Montmorin, who has my fullest confidence, precludes the necessity and consequently the propriety of a minute detail of American affairs here.

"Your Excellency will recollect the resolution of Congress for drawing bills on me, as well as the reasons assigned for that measure. In my first conference with the Minister on that subject, he enlarged on the necessities of the State, but nevertheless told me, he should be able, at the end of the present or beginning of the next year, to advance thirty or forty thousand pounds sterling, and that further arrangements respecting the residue should then be made.

"I afterwards received and answered propositions for the reimbursement of this money; and from time to time, was permitted to accept such of the bills as were most pressing.

"Things remained in this state till the 5th of July, when, after many warm assurances of friendship and good will, the further discussion of these matters was postponed by the Minister until the arrival of a person intended to succeed M. Mirales, the late Spanish agent at Philadelphia, and I was told that they should then be arranged and adjusted.

"Several weeks elapsed after the time assigned for his arrival had expired. The holders of the bills became importunate, and insisting on my accepting or refusing them.

"I wrote several letters to the Minister, requesting his directions, but was not favored with an answer to any of them.

"On the 3d instant, after fruitless endeavors to see the Minister, I received the following note from him by the hands of M. Gardoqui;

'The Count de Florida Blanca sends his compliments to Mr Jay, and advises him to become acquainted with the bearer of this letter, who is the person that has been expected from day to day.'

"This gentleman made many remarks tending to show the propriety of America's offering some specific consideration for this money, and hinted at the navigation of the Mississippi, ship timber, vessels, tobacco, &c. &c. I replied, that the only consideration Congress could offer, was that which all other nations at war, who borrowed money, offered, viz. to repay the principal with a reasonable interest after the war; that I should deceive him, were I to enter into contracts to pay it sooner; that the proposition of paying it during the war, in ship timber, tobacco, or other articles, did not lessen the difficulty, for that these things were worth, and cost money in America, as well as in Europe; and that as to the Mississippi, it could not come in question as a consideration for one hundred thousand pounds. The conversation was concluded, by his desiring me to meet him at M. Del Campo's the next morning. M. Gardoqui then, and since, behaved with temper, candor, and politeness.

"The next day we saw M. Del Campo. He was liberal in his censures on the measure of drawing the bills in question on Spain. He informed me, that the King must first take care of his own people before he gave supplies to others; that Spain, instead of deriving advantage from America, heard of nothing but demands. That if Congress wanted money, they should have drawn on France, with whom they were in alliance, and who had all the profit of their trade; that we ought to have distinguished between our allies, and those who only wished us well, and that applications for aid might be proper to the one, which were not so to the other; that our affairs were in a ruinous condition, and

that it was even said some of the States were holding secret negotiations for peace with the enemy, &c. &c. &c. My replies were such as the subject naturally suggested, and as prudence dictated; there are seasons when men mean not to be convinced, and when argument becomes mere matter of form. On such occasions, we have little more in our power than moderation and temper. I gave M. Del Campo credit for his frankness, and wish I could with propriety have extended it to his delicacy.

"A day or two afterwards, viz. the 6th instant, I was permitted to accept bills to the amount of one thousand one hundred and ten dollars.

"On the 13th, M. Gardoqui, by order of the Minister, told me, that the exigencies of the State would not permit the King to provide for the payment of more of the bills than had been already accepted, amounting to about fourteen thousand dollars. This gave occasion to my letter to the Minister of the 14th, and to his answer of the 15th, which was dictated by him to M. Del Campo, and by M. Del Campo to M. Gardoqui, copies of both of which your Excellency will receive from Count Montmorin. The Minister's answer made a conference between us expedient. I requested that favor the 15th instant, and have been informed that the Count de Florida Blanca will endeavor to see me on Saturday evening next.

"I forbear remarks on this singular conduct. I wish it could be explained in a manner compatible with the reputation Spain enjoys in North America. I much fear partial resentments, which ought not to affect America, have been permitted to have an undue degree of influence, and that the Minister forgot in his zeal for a certain scheme of finance, that it was unjust to wound opponents through the sides of their friends. But whatever may have been the cause; the effect, unless removed, will be destructive, and France only can at present afford the means of doing it.

"When I consider, on the one hand, that France was our first, and is still our best, and almost only friend; that she became our ally on terms of equality, neither taking, nor attempting to take ungenerous advantages of our situation; that she has clothed and armed our troops, and is at this moment assisting us with her fleets, her armies, her treasure, and her blood; gratitude and generosity forbid me to solicit a further tax on her magnanimity. But, on the other hand, when I reflect that the loss of American credit would be a loss to the common cause, and an eventual injury to France; that such an event would be a matter of triumph to our common enemy; and of pain to our friends; that the honor of Congress, suspended on the fate of these bills, now hangs as it were by a hair, and that our enemies here and elsewhere are doing all in their power to cut it; when I consider, that America would feel more sensibly the loss of reputation in this instance, than the loss of battles in many others; I say, Sir, when I consider these things, I find it to be my duty to request your Excellency to interpose the amity of France, and that his Majesty will be pleased to add this strong link to the chain of benefits, by which he has already bound the affections of America to his family and people.

"I ought to inform your Excellency, that bills for about fifty thousand dollars remain unaccepted. The greater part of these are in the hands of merchants, who waited my answer with a degree of patience, I could not have expected; some of them ever since the month of June last. Further delays, therefore, were not to be asked or obtained, and I was reduced to the necessity, either of promising to accept them, or permit the credit of Congress to perish with them. I could not long hesitate. I promised to accept them. Fortunately, these bills have hitherto come on slowly, though, it is probable, that the assurances of Spain, which I have communicated to Congress, may quicken their pace. A period, however, will soon be put to their drawing, as I have written to them by several conveyances immediately to stop.

"I ought also to inform your Excellency, that a promise made me in June last of some clothing for our troops has been renewed, and that his Majesty has been pleased to offer us his responsibility to facilitate a loan of one hundred and fifty thousand dollars. I shall endeavor to make the most of this offer, and your Excellency may rest assured, that I shall gladly embrace every measure, which may be calculated to lessen the weight with which the American cause presses on the finances of France.

"I have the honor to be, &c.

JOHN JAY."

I also sent a copy of this letter to Dr Franklin, enclosed in one of which the following is a copy.

St Ildefonso, Sept. 22d, 1780.

Dear Sir,

"I have lately written to you several letters. Enclosed is a copy of one to Count de Vergennes, which Count Montmorin, who also writes to him on the same subject, is so obliging as to send together with this, by a courier to Bayonne.

"The papers you have heretofore received from me, with those now sent, will enable you to understand it, and I am persuaded your abilities and influence will be exerted to promote the success of the application contained in it. It appears to me absolutely necessary, that the bills drawn on me be saved at all events. If contrary to my ideas of the wisdom and affection of France, she should not lend us money for the purpose, we must endeavor to borrow it of individuals, though at a higher than usual interest; nay, on any terms, rather than not get it. Almost anything will be better than a protest; for exclusive of the disgrace, which is intolerable, the consequences of it would cost

Congress more than the expense of saving their credit, be it almost what it will.

"I am, &c.

JOHN JAY."

The Ambassador informed me, that he had received despatches from Philadelphia, which gave him and the Court great pleasure, viz.—That Congress had, at the instance of the Chevalier de la Luzerne and Don Francisco, agreed to make a diversion to the southward in order to facilitate the Spanish operations in that quarter; that a noble spirit was pervading all ranks of people; that we had been successful in Jersey, &c. &c. and in short, that the Chevalier de la Luzerne was much pleased with Congress and the general aspect of affairs in America. I lamented in silence, that I should have no other intelligence of all this, but from a French Ambassador.

He informed me further, that he believed we should now be able to get some of the clothing taken from the enemy by Admiral Cordova; that he had, and would continue to cherish the idea. We had a long conversation; he gave me much good advice, some useful information, and many assurances of cordiality and good will.

On the evening of the 23d, I was admitted to the honor of a conference with his Excellency the Count de Florida Blanca; and M. Gardoqui, who understands Spanish and English exceedingly well, performed the part of interpreter.

The following notes of the conference are very exact as to every particular.

*Notes of a Conference between his Excellency the Count de
Florida Blanca and Mr Jay, at St Ildefonso, on Saturday
Evening, September 23d, 1780.*

After the usual civilities the Count began the conference by informing Mr Jay, that the Court had received intelligence from the Havana, of Congress having so far complied with the request made to them to permit the exportation of provisions for the use

of his Majesty's fleets and armies there, as to give license for shipping three thousand barrels of flour, circumstances not admitting of further supplies at that time; that this business was conducted by Mr Robert Morris in a manner with which he was well pleased; that Congress had also, in order to promote the success of the Spanish operations against Pensacola, &c. agreed to make a diversion to the southward, to detach a considerable body of regular troops and militia to South Carolina under General Gates; that his Majesty was well pleased with, and highly sensible of, these marks of their friendly disposition, and had directed him to desire Mr Jay to convey his thanks to them on the occasion.

Mr Jay expressed his satisfaction at this intelligence, and promised to take the earliest opportunity of conveying to Congress the sense his Majesty entertained of their friendship, manifested by these measures. He told the Count it gave him pleasure to hear the business of the Spanish supplies was committed to Mr Robert Morris, and assured him, that the fullest confidence might be reposed in that gentleman's abilities and integrity. He requested his Excellency again to assure his Majesty, that he might rely on the good disposition of Congress, and of their evincing it in every way, which the situation of their affairs and the interest of the common cause might render practicable and expedient. The Count told Mr Jay, that he had proposed to the French Ambassador to send to Congress for the use of their army, clothing for ten regiments lately taken in the convoy bound from Britain to Jamaica, and in which the two Crowns were equally interested; that the Ambassador approved the proposition, but had not yet given his final answer. He then observed, that a negotiation for a peace between Britain and Spain appeared at present more distant than ever; that the former had offered his Majesty everything he could desire to induce him to a separate peace; but that the King, adhering to the same resolutions in favor of America, which had influenced his conduct in his mediation for a general peace and since, had rejected them, and that Congress might rely on his Majesty's

determination never to give up or forsake America, but on the contrary continue affording her all the aids in his power.

He told Mr Jay, that the Court of London, disappointed in their expectations of detaching Spain, had it in contemplation again to send Commissioners to America to treat with Congress on the subject of an accommodation with them; that this measure was at present under the consideration of the Privy Council, and that there was reason to suppose it would be adopted. He observed, that the English had hitherto discovered much finesse and little true policy; that first they endeavored by their intrigues in France to separate that kingdom and America, but not succeeding there, they sent Commissioners to America; that the last year they attempted to detach France, and this year Spain, and that being unsuccessful in both they would again attempt America; that the best way of defeating their designs was mutual confidence in each other. He remarked, that America could not rely on any promise of Britain, and asked if she was once detached from France and Spain, who could compel an observance of them? Mr Jay thanked the Count for this communication, and assured him, that Congress would not only adhere to their engagements from motives of interest, but from a regard to their honor, and the faith of treaties; that the opinion of Congress on this subject corresponded with that of his Excellency, and that their conduct, with respect to the former English Commissioners, gave conclusive evidence of their sentiments on the subject. Mr Jay promised in case he received any intelligence relative to this matter, his Excellency might depend on its being communicated immediately to him.

The Count appeared satisfied with this, and again repeated his former assurances of the King's good disposition towards America, &c. &c.

Mr Jay informed his Excellency, that the subject on which he was desirous of conversing with him, arose from the paper he

had received from M. Gardoqui the 15th instant, containing his Excellency's answer to Mr Jay's letter of the 14th.

Mr Jay then requested the Count to communicate to his Majesty his thanks for the offer he had been pleased to make, of his responsibility in order to facilitate a loan of one hundred and fifty thousand dollars, and also for the promise of clothing, &c. &c. and to assure him, that the gratitude of the States would always be proportionate to the obligations conferred upon them; he observed to the Count, that he intended to attempt this loan in Spain, France, and Holland, and begged to be informed in what manner he should evidence the responsibility of his Majesty to the persons, who might be disposed to lend the money, for that in this and other similar cases, he meant to be guided by his Excellency's directions. The Count replied, that as this matter fell within the department of M. Musquir, the Minister of Finance, he would consult him upon it on Tuesday evening next, and immediately thereafter inform Mr Jay of the result. He then apologized, and expressed his regret for not being able to furnish the money he had expected to supply (alluding evidently to the *thirty or forty thousand pounds* which, in the conference at Aranjues, the 11th day of May last, he said he expected to be able to supply by the end of this or beginning of next year.) He said he had been disappointed in the remittances expected from America, for he was advised, that two ships, which he had expected would arrive from thence with treasure in December or January next, would not come, and that this and other circumstances rendered it impossible for him to advance us any money in Europe. But that he would, nevertheless, agreeably to the King's intentions, give us all the assistance in his power.

Mr Jay desired to be informed, whether any steps were necessary for him to take for forwarding the clothing at Cadiz to America. The Count answered, that he waited the French Ambassador's answer on the subject, and that he had as yet no inventory of them, but that he would again speak to the

Ambassador, and make arrangements for sending them on to America as soon as possible.

Mr Jay then proceeded to regret that the pleasure he derived from these instances of his Majesty's friendship to the United States, was mingled with pain from being informed by the abovementioned paper, that the King conceived he might have just cause to be disgusted with them.

Because, 1st; they had drawn the bills of exchange without his previous consent; and, 2dly, because they had not given any tokens of a recompense. Mr Jay reminded his Excellency that these bills were drawn upon himself, and not on Spain, and although that Congress might have hoped, for reasons already assigned, to have been enabled to pay them by a loan from his Majesty, yet that every other usual measure was left open for that purpose. That an application to Spain for such a loan could give no just cause of offence, for that if it had not been convenient to her to make it, all that she had to was to have told him so, and he was then at liberty to take such measures for procuring it elsewhere as he might think proper. The Count replied, that what Mr Jay observed was true, but that certainly the bills were drawn with an expectation of their being paid by Spain, and that this might probably have been done if previous notice of the measure had been given. That he always intended to have done something towards their payment, but had been prevented by disappointments, and the exigencies of the State. Mr Jay continued to observe, that the second cause assigned for this disgust, viz. that Congress had given no tokens of a recompense, must have risen from a mistake. He reminded his Excellency, that he had never requested a donation from Spain, but that on the contrary he had repeatedly offered to pledge the faith of the United States for the repayment with interest, within a reasonable time after the war, of whatever sum his Majesty might be so kind as to lend them. To these remarks the Count said only, that interest for the money would have been no object with them; that they would gladly have lent it to us without

interest, and repeated his regret at the disappointment which had prevented them. He appeared rather uneasy and desirous of waiving the subject.

Mr Jay next called the Count's attention to a part of the paper in question, which informed him "that there were hints (though no credit was given to it) of some understanding between America and the Court of London." He observed, that this subject was both delicate and important; that so far as this understanding related to Congress, or the governments of either of the States, he was sure that this insinuation was entirely groundless; that there might possibly be intriguing individuals, who might have given cause to such suspicions; that if there were such men or bodies of men it would be for the good of the common cause that they should be detected, and their designs frustrated. He therefore requested, that if his Excellency had any evidence on this subject, he would be pleased to communicate it, and thereby enable him to give Congress an opportunity of taking such measures as circumstances might render proper. The Count said, he had nothing specific or particular as yet to communicate. That he was pursuing measures for further discoveries, and that he would mention to Mr Jay whatever information might result from them.

Mr Jay resumed his animadversions on the paper in question by observing, that it assured him it was necessary, "that Congress should give sure and effective tokens of a good correspondence, proposing reciprocal measures of a compensation, &c. in order that his Majesty might extend his further dispositions towards them." That for his part he could conceive of no higher tokens, which one nation could give to another of friendship and good will, than their commissioning and sending a person for the express purpose of requesting his Majesty to enter into treaties of amity and alliance with them, and that on terms of reciprocity of interest and mutual advantage. To this the Count replied, that to this day he was ignorant of these terms, and that no particular propositions had been made him. Mr Jay then reminded him of

his letters from Cadiz, and of the conference on the subject at Aranjues on the 2d day of June last, in the latter of which, after conferring on the subject of aids, and of the treaty, his Excellency had promised to reduce his sentiments on both to writing, and send him notes on each; that as to the first, Mr Jay had received the notes, but not on the last; that he had been in constant expectation of receiving them, and that delicacy forbade pressing his Excellency on that matter, or offering anything further till he should have leisure to complete them.

He said he thought he had given them to Mr Jay or Mr Carmichael, which both of them assured him he had not. Of this the Count appeared after a little time satisfied, when Mr Jay resumed the subject by remarking, that the order of conducting that business appeared to him to be this; that as a right was reserved by the Secret Article to his Majesty to accede to the treaty between France and America whenever he thought proper, and that the latter would go into a discussion of any alteration the King might propose, that should be founded on reciprocity of interest, the first question was whether his Majesty would accede to it as it was, or whether he would propose any and what alterations.

The Count here interrupted Mr Jay by saying, that the interest of France and Spain with respect to America were so distinct, as necessarily to render different treaties necessary. Mr Jay answered, that admitting this to be the case, the treaty with France might be made the basis, and then go on *mutatis mutandis*. The Count proceeded to say, that it would not conduce to the general pacification to hurry on the treaty; that finding Congress were not disposed to cessions, without which the King would not make a treaty, he thought it best by mutual services and acts of friendship, to continue making way for more condescensions on both sides, and not excite animosities and warmth by discussing points which the King would never yield. That, therefore, Mr Jay might take time to write to Congress on the subject, and obtain their instructions.

He said, that previous to Mr Jay's or M. Gerard's arrival at Madrid, M. Mirales had informed him that Congress would yield the navigation of the Mississippi, but that M. Gerard informed him that Congress had changed their resolution on that subject; that he had mentioned these obstacles to Mr Jay and Mr Carmichael, and it was probable that having done this, he had neglected or forgotten to give Mr Jay the notes in question. Mr Jay here reminded his Excellency, that the conference between them of the 2d day of June last turned among other points on these obstacles, and that they had then mutually expressed hopes that regulations calculated to remove them in a manner satisfactory to both parties might be adopted, and that the conferences respecting them were concluded by his Excellency's promising to give Mr Jay notes of his sentiments on the proposed treaty. The Count admitted this, and made several observations tending to show the importance of this object to Spain, and its determination to adhere to it, saying, with some degree of warmth, that unless Spain could exclude all nations from the Gulf of Mexico, they might as well admit all; that the King would never relinquish it; that the Minister regarded it as the principal object to be obtained by the war, and *that obtained*, he should be perfectly easy whether or no Spain procured any other cession; that he considered it far more important than the acquisition of Gibraltar, and that if they did not get it, it was a matter of indifference to him whether the English possessed Mobile or not; that he chose always to speak his sentiments plainly and candidly on those occasions, for which reason he generally acted differently from other politicians, in always choosing to commit himself to paper, and appealing to the knowledge of the French Ambassador and others, who had done business with him, for the proofs of this being the principle of his conduct. He concluded by saying he would give his sentiments in writing on this subject to Mr Jay.

Mr Jay made no reply to the Count's remarks on the navigation, but observing, that being little acquainted with the practice of politicians, he was happy in having to treat with a Minister of

his Excellency's principles. He added, that there were many points necessary to be adjusted in order to a treaty; that they might proceed to agree upon as many as they could, and with respect to the others, he should state them clearly to Congress, and attend their further instructions.

Mr Jay then again turned the conference to the paper beforementioned, by observing to the Count, that it appeared from it, that the King also expected from Congress equivalents to the supplies formerly afforded, and also the expenses of the war, which it alleged had its origin from them. That as to the first he could only repeat what he had before said, that a general account of them was necessary. That he neither knew the amount of them, nor the terms on which they were granted; that it was a transaction previous to his appointment; that on being furnished with the necessary information, he would transmit it to Congress, and wait their instructions; that an expectation of an equivalent to the expenses sustained by Spain in the war, was inadmissible on every principle. He read the passage in question and remarked, that America could no more be justly chargeable with the expenses of the war sustained by Spain, than Spain could be justly chargeable with the expenses of the war sustained by America. The Count replied, that Mr Jay had mistaken his meaning, and that he urged it merely to show that as the States were deriving considerable advantages from very expensive operations on the part of Spain, that consideration should incline them to more condescension towards the latter.

Mr Jay assured his Excellency that he knew it to be the disposition of Congress to contribute all in their power to the success of the common cause, and that they would on every occasion give proofs of it, and among others, that he was confident they would permit his Majesty to export from thence, *during the war*, ship timber and masts for the royal navy, and would readily consent to such measures as might be proper and necessary for facilitating it. He further observed that having been informed by M. Gardoqui that his Majesty would like to

take and finish a seventyfour gun ship now on the stocks in one of the eastern ports, on which it was said no work was doing, he would with pleasure write to Congress, and propose their transferring her to his Majesty at prime cost. That this previous step was necessary, as Congress might perhaps intend that vessel for particular services, but he was confident they would otherwise be happy in indulging his Majesty's inclinations. The Count appeared pleased with this. He said, that with respect to timber they stood most in need at present of yards, and should be glad to obtain a supply of them from Congress. That as to the ship, he wished to be informed exactly of her present state, and the materials wanted to complete and equip her, which he observed might be sent from the Havana, and whether a crew of Americans could be had to navigate her there. Mr Jay replied, that though he was sure that Congress would readily give their aid in these and other matters interesting to Spain, yet he could not forbear reminding his Excellency as a friend, that public business done under the direction of public bodies was always more expensive than when done by individuals. That, therefore, he would submit it to his consideration whether it would not be more advisable to commit the management of those affairs to the agent, intended to succeed M. Mirales, who, by being on the spot, would have opportunities of acting on exact information, and in a manner more consistent with the views of his Excellency. The Count agreed in this opinion, and promised to communicate to Mr Jay his further intentions on this subject.

Mr Jay informed the Minister, that as his further stay here would now be unnecessary, and business called him to Madrid, he purposed to return there on Monday next. The Count concurred and the conference ended.

Congress will permit me to observe that many things in this conference are important, and demand instructions. I forbear to point them out, because they are obvious; and I take the liberty of giving this hint from a knowledge of the delays attending the proceedings of large bodies.

I returned to Madrid on the day appointed; and whether to accept or not to accept the bills became a very serious question. After reviewing all the reasons for and against it, which are numerous, and which Congress will readily perceive without a particular enumeration, I determined to put a good face on the business, and accept all that should be presented, which I have accordingly done, and am daily doing. What the event will be I cannot pretend to decide. All that I can say is, that my endeavors shall not be wanting to render it successful. The responsibility of the King will not produce much, and the difficulty of borrowing money has been increased, by the number of agents sent to Europe for that purpose by several of the different States, who I am told have imprudently bidden on each other.

M. Gardoqui returned to Madrid a few days after I did, and brought me word from the Minister, that instructions should be sent to their Ambassadors in Holland and France, to assure in due form the responsibility of the King to such persons as might there incline to lend us money on the credit of it, and that the Minister would do the same here. He told me further, that the Minister hoped I would not be discouraged, nor consider this only on the dark side, for that it was still his intention to afford America every aid in his power. All this I ascribe to the exertions of America, and I am confident, that it will always be necessary for the United States to be formidable at home, if they expect to be respectable anywhere.

For my own part, I shall be disappointed, if I find Courts moving on any other principle than political ones, and, indeed, not always on those. Caprice, whim, the interests and passions of individuals, must and will always have greater or less degrees of influence. America stands very high here, at present. I rejoice at it, though I must confess I much fear that such violent exertions may be followed by languor and relaxation. What the plan of this Court is with respect to us, or whether they have any, is with me very doubtful. If they have rejected all the overtures of Britain, why is Mr Cumberland still here? And why are expresses passing between Madrid and London through Portugal? If Spain is determined that we shall be independent, why not openly declare us so, and thereby diminish the hopes and endeavors of Britain to prevent it? She seems to be desirous of holding the balance, of being in some sort a mediatrix, and of courting the offers of each by her supposed importance to both. The drawing of bills on me was

considered as a desperate measure, prompted by our imbecility, and was a bad card to play at a time we were endeavoring to form a treaty, and when prudence demanded that the importance of Spain to us should not have been brought forward, or placed in such a glaring point of view.

One good consequence, however, has resulted from it. The cordiality of Spain has been tried by it. For I know of a certainty, that it was in her power easily to have made the loan we asked. Indeed, we shall always be deceived, if we believe that any nation in the world has, or will have, a disinterested regard for us, especially absolute monarchies, where the temporary views or passions of the Prince, his Ministers, his women, or his favorites, not the voice of the people, direct the helm of State. Besides, from the manner in which the war is carrying on, it would seem as if it was the design of France and Spain that the longest *purse*, not the longest *sword*, should decide it. Whether such be really their intention, or how far it may be politic, I cannot pretend to determine. This, however, is certain, that it would be putting the affair on a hard issue for us. It is also certain, that some respect is due to appearances and probable events, and we should be cautious how we spend our money, our men, or our public spirit, uselessly.

In my opinion, we should endeavor to be as independent on the charity of our friends, as on the mercy of our enemies. Jacob took advantage even of his brother's hunger, and extorted from him a higher price than the value of the Mississippi even for a single dinner. The way not to be in *Esau's* condition, is to be prepared to meet with *Jacob's*.

From what I can learn of the King's character, I am persuaded, that a present from Congress of a handsome fast sailing packet boat would be very acceptable, and consequently very useful.

I am informed, and believe, that a loan from individuals in France is impracticable. Here nothing can be done in that way. What may be expected from the like attempts in Holland, I am unable to say.

I have received no answer to my letter to Count de Vergennes; the Ambassador informs me, that the Count has written him on the subject, and the following is an extract from his letter.

Translation.

"I doubt whether I shall be able to render Mr Jay the service he requests of me, independently of what the Ministry has furnished the Americans in the course of the year. Dr Franklin is urgent for a million extra, to meet the drafts of Congress to the 31st of December. I am sensible how important it is to prevent them from being returned protested, but the difficulty is to find the means. I shall do my best in this exigency, but am not sure of success; beyond this, it would be impossible for me to go."

Dr Franklin has obtained some more money from his Court, and I am to have twentyfive thousand dollars of it; perhaps he may be able to advance more, but how much, I cannot say.

November 1st, 1780. No orders have as yet been given respecting the clothing. I have applied and reapplied, and have been promised and repromised. I employed Mr Harrison, at Cadiz, (with the Minister's concurrence) to make the purchase, and he has several weeks been waiting for these orders.

General Gates is defeated, and Mr Laurens in the Tower. Our sky in this quarter is again darkened with clouds not in my power to dispel.

I had flattered myself with receiving before this time some regulations respecting American seamen.

The house of Le Couteulx have refused to continue their care of them, or to advance more money on that account. They complain that the American Captains under various pretexts refuse to give them passages, without being paid for them. This is cruel.

The following are copies of their letter to me on the subject, and my answer.

LE COUTEULX & CO. TO JOHN JAY.

"Cadiz, October 3d, 1780.

"Sir,

"Our supplies for the American sailors amount at this day to — We will continue to render them every service in our power, but will confess to you ingenuously, that if you do not furnish us with an order from Congress, by which you empower us to oblige all American Captains, who come here, to take a certain number of people, in proportion to their bulk, free of passage, and afterwards so many more on paying them a certain sum for their provisions, we can advance nothing; as all the Captains who come here never fail of showing good motives for not taking any of their fellow countrymen, without paying them a passage, which forces us to let the people go on board neutral vessels; and instead of fulfilling your views of sending them back as soon as possible, this is a means by which they get still further from it, and a great many engage in the English service."

TO LE COUTEULX & CO.

"Madrid, October 15th, 1780.

"Gentlemen,

"I have been honored with your favor of the 3d instant, and am much obliged by your attention to the letter it enclosed. You were not mistaken in supposing that the handwriting was mine. That letter was enclosed in one for Mr Harrison, and sent under cover to you.

"It gives me concern to find that you have so much trouble with American seamen, and I much lament that it is not in my power to comply with the terms on which alone you incline to continue it. I have written more than once to Congress on the subject, and submitted to their consideration the propriety of establishing proper regulations for the conduct of that business, but as yet I have received none. I presume that their attention has been so engaged by other matters of higher and more pressing importance, as not to have had leisure for making these

arrangements. The refusal of American Captains to give passages to their unfortunate countrymen is certainly unkind. I shall communicate to Congress, and I hope proper measures will be taken to remove that obstacle. At any rate, however, I cannot leave these unhappy captives friendless, in a strange country. The unfeeling treatment of the Captains rather stimulates than represses my commiseration, and, therefore, Gentlemen, as it is not convenient to you to proceed in your care of them, but on terms not in my power to comply with, I find myself reduced to the necessity of requesting that favor from others. For this purpose I have written to Mr Harrison of your city, and proposed his undertaking it, and have desired him in case he consented, to mention it to you. On that event I must beg the favor of you to give him such information and advice, as may be useful to him in the management of those affairs. Be pleased also to liquidate your accounts with him; they shall be paid without further delay.

"The attention and kind offices you have regularly paid to Americans, and the personal civilities that myself and family experienced from you, while at Cadiz, will always continue to excite my warmest acknowledgments, and lead me to omit no opportunity of convincing you of the esteem and regard, with which I am, Gentlemen, &c.

JOHN JAY."

I have before mentioned to Congress my difficulties as to correspondence. They continue, and I am obliged to give Colonel Livingston the trouble of carrying this letter to Bilboa, and delivering it with his own hands to the Captain of some American vessel. Congress might have letters from me every month, if orders were given to the Captains of the vessels bringing despatches for me, to send a trusty officer with them to me. I know that all are opened, and some suppressed, and I can think of no other way of avoiding these inconveniences. It is important that our correspondence be uninterrupted.

I have written very particularly, perhaps more so than may be prudent, but as I think it my duty, I pay no regard to consequences. If Congress will be

equally well satisfied with less minute information, I wish to be told so, that their direction on this head may govern me in future. I cannot forbear again observing, that few of their proceedings remain long secret. I have very good authority for saying that copies of the letters, which passed between the Committee and the late Commissioners in France, are now in the hands of a certain foreigner. How he got them I do not know, but such is the fact, and in my opinion it calls for more care in future.

If my letters meet with the same fate, my remaining here will become a useless expense to my country.

I think I have written everything material to enable Congress to know the exact state of their affairs here. If, however, there should be any questions to which an answer would be agreeable to Congress, I wish to be informed of them; for since I left America, I have made it a rule to be always in a capacity to render a reason for every part of my conduct, and state with accuracy every fact relative to it.

I have the honor to be, &c.

JOHN JAY.

FOOTNOTE:

[\[25\]](#) A full account of Mr Cumberland's proceedings in Spain may be found in his *Memoirs* published many years afterwards.

TO THE PRESIDENT OF CONGRESS.

Madrid, November 30th, 1780.

Sir,

Your Excellency will receive herewith enclosed certain papers from Morocco, viz.

No. 1. Containing a letter of the 21st of April last, to me from Audibert Caille, who styles himself the "Consul appointed by the Emperor for such foreign nations as have none of their own in his dominions, to protect the strangers who may come to traffic in his ports pursuant to two proclamations published last year."

No. 2. My answer.

No. 3. Copy of M. Audibert's appointment.

No. 4. Copy of a declaration of the Emperor, 20th of February, 1778.

No. 5. A letter from M. Audibert Caille to Congress of 6th of September, 1779. Also, six printed copies of M. Audibert Caille's certificates.

These papers ought to have been sent with my letters of May last, but recollecting as I was then about to put them up, that if the originals should be lost on the passage, it might be difficult to obtain others, I thought it most prudent to detain them to be copied, and wait for some other opportunity of getting them to the sea; none has, however, since occurred, and I did not think them of sufficient importance to render it necessary that either Mr Carmichael or Colonel Livingston should carry them to one of the sea ports.

It is proper that your Excellency should be informed, that on the 8th instant I had a conference with the Minister at the Escorial, in which I received many good *words* and friendly assurances, but time only can decide how they will terminate. I received a letter yesterday from Mr Harrison, of the 24th instant, and then no orders had arrived about the clothing. These delays may seem singular, but they are not uncommon. Mr Cumberland is still here. The French and English fleets are at sea.

Although appearances are not very flattering at present, I hope they will in time become more so. Patience, prudence, and perseverance, sometimes effect much. It is in my opinion very important that no dissatisfaction be

expressed in America at the conduct of Spain. Complaint and disgust can answer no good purpose, but may be productive of many disagreeable consequences. A cautious silence is the more necessary, as I am confident that there are persons in America, who would make a merit of collecting and transmitting the sentiments of Congress, or *members* of Congress, on subjects interesting to the views and objects of persons in power here.

Colonel Livingston would have returned this fall at the expiration of the term expressed in his leave of absence, had I not taken the liberty of advising him to remain, and taken upon myself to adjust this matter with Congress. As he is employed, and industrious in obtaining knowledge, which may enable him to be useful in future to his country, I must join with him in requesting that Congress will be so kind as to extend his leave of absence to such further period as may be agreeable to them.

The enclosed paper marked No. 6, is a copy of a State of the Revenues and Expenditures of Spain, in the year 1778. It was formed by a Secretary to one of the embassies, and a copy of it was given to Mr Carmichael. I received it the last day of July, and had no safe opportunity of sending it before. What credit may be due to this account I cannot determine, and I have reason to think that there are few men in the kingdom who can. This government, disposed to concealment and mystery in most matters, will not probably permit an accurate knowledge of their revenues to be easily attained. This account is perhaps as near the truth as any other. The gentleman, it is said, took much pains in forming it, and it also met with the approbation of some foreign Ministers; but how far those Ministers were judges of the subject I am uninformed. The remarks subjoined to this account are Mr Carmichael's, and were added to the copy I received from him.

I send copies of several letters, which passed between Messrs de Neufville and Son, of Amsterdam, and myself, relative to the bills drawn on Mr Laurens.^[26] The conduct of that House has been so friendly and disinterested, that I think Congress should be particularly informed of it, and by taking proper notice of it, induce others to follow the example.

I have the honor to be, &c.

JOHN JAY.

FOOTNOTE:

[\[26\]](#) These have been inserted in the order of their several dates.

No. 1.
FROM D'AUDIBERT CAILLE TO JOHN JAY.

Translation.

Aranjues, April 21st, 1780.

Sir,

By order of his Majesty the Emperor of Morocco, I wrote on the 6th of September in the last year to the Congress of the United States of North America, by way of his Excellency Dr Franklin, their Plenipotentiary at the Court of France, to inform them of the pacific intentions of that sovereign.

Not having yet received any answer on their part, I fear they have not received my letter, and by way of precaution, send your Excellency herewith joined an open copy, that after perusing it, you may make such use of it as you may think proper. I also send you a copy of the two manifests therein mentioned, as well as a translation of the patent of the consuls for foreign nations, with which his Majesty the Emperor has been pleased to honor me, and some copies of the certificates which he ordered me to give to the captains of ships, which sail under his flag.

I wish, Sir, that you may receive all these papers with pleasure, and I request your Excellency to honor me with an answer, that I may be able to convince his Majesty, the Emperor of Morocco, that I have executed the commission he gave me to make known to Congress, that the subjects of

the said United States might come and traffic under their own flags, in the ports of the empire of Morocco, in the like manner as they formerly did under the English flag.

Before I had the commission to write to Congress I had already written on this subject to his Excellency Dr Franklin, and I offered to interest myself cheerfully in establishing a good understanding between his Majesty, the Emperor of Morocco, and the Northern United States.

In case that Congress should be equally well pleased to be at peace with his Majesty, the Emperor of Morocco, it will be proper to instruct the captains of American armed ships to let freely pass all ships sailing under the flag of his Majesty, the Emperor, and will be provided with a certificate similar to the within mentioned copies.

I shall probably be obliged to remain here some days; as soon as my business shall be despatched, I shall set out for Cadiz, and from thence go to Salé, the place of my residence.

Whenever your Excellency may be pleased to honor me with your orders, you may address your letters to Messrs Paul Greppi, Azarino, and Company, merchants at Cadiz, who will take care to forward them to me.

I am with profound respect, &c.

D'AUDIBERT CAILLE.

No. 2.
TO D'AUDIBERT CAILLE.

Sir,

Your favor of the 21st day of April, 1780, with the papers enclosed in it, has come safe to hand.

The declaration of his Majesty, the Emperor of Morocco, does honor to his liberality and wisdom, and I shall with great pleasure transmit the copy of it, as well as of the other papers enclosed with it, to his Excellency the President of Congress.

Although I have no particular instructions on the subject, yet the knowledge I have of the sentiments of Congress enables me to give assurances of their disposition to cultivate peace and harmony with all nations. I am persuaded that his Majesty's declaration will be very agreeable to them, and that a correspondent conduct on their part towards the subjects of Morocco, will convince him of the truth of these assurances. I am much obliged to you for this mark of attention, and I flatter myself that by extending your good offices to such Americans as may resort to the ports of Morocco, they will have reason to consider you among the number of their friends.

Should anything interesting to America occur in Morocco, I request the favor of you to communicate it.

I have the honor to be, &c.

JOHN JAY.

No. 3.
COPY OF M. D'AUDIBERT CAILLE'S APPOINTMENT.

Translation.

Copy of a French translation of a writing in Arabic, the most authentic of those that are written at the Court of his Majesty the Emperor of Morocco.

"Let the name of the only God be praised; there is neither wisdom nor power but what proceeds from the Lord most high and most mighty.

"We make known by this our present and generous writing, that we have appointed the Christian, D'Audibert Caille, who is the bearer hereof, to officiate as consul for all those nations who have no consuls in our dominion, and who are, the empire of Germany, Russia, Prussia, Naples, Sardinia, Rome, Tuscany, the States of America, Genoa, Ragusa, Hamburg, Lubec, and Dantzic; all of whom may come into our ports, and each of them there traffic under the flag of his nation, such as it may be. The said consul will assist them, by our order, in whatever may be useful to them in like manner as the other consuls do towards the subjects of their nations. And all the officers and governors of our ports will acknowledge him for a consul as they do the other consuls, and whichsoever of the said nations shall come into our ports, they shall not be molested by any of our officers or commandants whatsoever, of our ports. To all our captains whom we shall order to cruise by sea, the said consul will give a passport, and we renew our order to him to hoist the flag of peace at his house, without being therein opposed by anybody. He may also hoist it in any port whatever, where he may have a house of commerce, and he shall be mediator between us and the said nations, because we esteem him. Given the 8th of the moon of Alcahda, 1193. (1st of November, 1779.)"

Signed by the
Emperor.

We, Stephen d'Audibert Caille, a French merchant resident at Salé, appointed by his Majesty, the Emperor of Morocco, consul of those foreign nations who have none in his dominions to protect them in that capacity on all occasions, and to be mediator between him and those nations, certify to all whom it may concern, that the above copy is conformable to the original, compared by Don Miguel Cassori, the interpreter of his Catholic Majesty. In faith of which we sign the present certificate, sealed with the seal of the consulate of peace at Salé. Done at Aranjues, where I happen to be in passing, the 21st of April, 1780.

S. D'AUDIBERT
CAILLE.

No. 4.
Translation.

Copy of the Declaration, which his Majesty the Emperor of Morocco (whom God preserve) orders to be notified to all the Consuls and Christian Merchants, who reside in the Ports of Tangier, Salé, and Mogadore, dated the 20th of February, 1778.

"That in future all vessels, which carry Russian, German, Prussian, Hungarian, Neapolitan, Sardinian, Tuscanian, Genoese, Maltese, or American flags, may freely enter into the ports of his dominions; and in consequence of his determination, he has given orders to the commanders of his vessels, that they let freely pass, all ships and other vessels carrying the said flags without molesting them. To the end, that they may arrive at his ports, take refreshments, and enjoy in them the same privileges and immunities, with those of the other nations with whom his Imperial Majesty maintains peace."

I, the underwritten, employed by his Imperial Majesty for foreign affairs, certify, that the contents of the preceding declaration are conformable to the truth. And in faith thereof, I sign this present certificate. At Salé, the 30th of October, 1779.

PEDRO UMBERT.

We, Stephen d'Audibert Caille, a French merchant residing at Salé, appointed by his Majesty, the Emperor of Morocco, to be consul of the foreign nations who have none in his dominions to protect them in that capacity on all occasions, and to be mediator between him and those nations, certify, whom it may concern, that the said Don Pedro Umbert, who has signed the above certificate, is employed for foreign affairs at the Court of Morocco, and that in the said quality faith is to be given to his

signature. In witness whereof we sign these presents, sealed with the seal of the consulate of peace, at Salé, the 1st of December, 1779.

S. D'AUDIBERT
CAILLE.

No. 5.
D'AUDIBERT CAILLE TO CONGRESS.

Translation.

Salé, September 6th, 1779.

In quality of a French merchant, who has resided in this town since the year 1773, and whom his Majesty, the Emperor of Morocco, has lately named consul for those foreign nations who have none in his dominions to protect the strangers who might come to traffic in his ports, in pursuance of the two manifestoes which he published last year, I have the honor to inform your Excellencies, that it is his intention to be at peace with the United States of North America, and that their subjects can come to trade freely in his ports under American colors, with the like safety with those of the principal maritime powers in Europe who enjoy peace with him. Besides the good reception, which the governors of the ports of this empire will give to the subjects of the United States of North America, I will on my part render them all the services, which may depend upon me as consul for those foreign nations who have none, and as being charged to invite them to come and traffic freely in these ports, in like manner as they formerly did under the English flag.

In order that I may be able to convince his Majesty, the Emperor of Morocco, that I have executed the commission he gave me to write as above to the Congress, I entreat your Excellencies to be pleased to honor me with an answer. If you think proper to write at the same time to his Majesty, the Emperor of Morocco, relative to what I have written to you on

his part, I will take care to obtain a very satisfactory answer; and I offer to interest myself very willingly, as far as may depend upon me, that a treaty of peace may be made between his Majesty, the Emperor of Morocco, and the United States of North America, nearly similar to those which the principal maritime powers have with him.

That this letter may the more safely pass to you, I address it to his Excellency Dr Franklin, your Plenipotentiary with his Most Christian Majesty. Your Excellencies may answer me through the same channel, or directly by the way of Cadiz, addressing your letter to the Sieurs Paul Grippi, Azarino, and Company. My address is, to Stephen d'Audibert Caille, consul for those foreign nations who have none in the dominions of his Majesty the Emperor of Morocco, residing at Salé, or simply "to D'Audibert, Santigo, and Company," which is that of my house of commerce.

I am, with the most profound respect, &c.

D'AUDIBERT CAILLE.

No. 6.

General State of the Revenues and Expenses of Spain in the Year 1778.

REVENUES.

	Reals de vel.
Provincial duties,	70,000,000
Duties on tobacco,	55,000,000
Duties on salt,	20,000,000
Duties on wool,	17,000,000
General duties,	48,060,000
Duties on brandy,	4,525,000
2 per cent duty on the Octrois, former grants of the Crown,	500,000

Taxes on the houses in Madrid,	1,200,000
1. King's domain in the Serrara,	140,000
Post office and couriers,	34,000,000
Tax on cards,	1,000,000
Stamp paper,	4,312,000
Tax on the taverns in Madrid,	196,000
Various revenues farmed,	6,418,552
2 Manufacture of glass at St Ildefonso,	1,500,000
3 Manufactures of St Ferdinando and Gaudalaxa,	1,800,000
Extraordinary effects,	35,000,000
Books of Advocates and Attorneys,	62,000
Fines in the chamber of Castille,	72,000
Effects in the same chamber,	786,800
Tax on the Grand Masters,	1,800,000
Do. arising from the secular annals and vacancies,	1,300,000
Royal lottery,	4,500,000
Cruzada,	20,000,000
4 Effects of the kingdom of Navarre,	47,500,000
American revenue ^[27] ,	200,600,000
Clergy,	13,000,000
	562,273,152

EXPENSES.

	Reals de vel.
The Court ^[28] ,	108,500,000
5 Land forces,	204,202,000
6 Marine,	100,000,000
Secretary of the Indies,	8,000,000
Department of Finance,	4,500,000
Favers and justice,	1,100,000
To support the tribunals,	8,422,769
7 Secretary of state and foreign affairs,	9,873,288
8 Extraordinary expenses,	30,000,000

474,598,251

I subjoin the result of my inquiries touching the articles marked No. 1, 2, 3, 4, 5, 6, 7, 8.

No. 1, 2, 3. The sums mentioned in the preceding statement as arising from the revenues numbered as above may be deducted, as concurrent testimony induces me to believe, that the expenses consume near the whole of the revenue.

No. 4. I have been also assured, that this article is much exaggerated.

No. 5. The expenses of this establishment have greatly increased, but I have not been able to ascertain the sum.

No. 6. I have heard from good authority, that the expenses of the marine in 1776 amounted to one hundred and twentyfour millions of reals, owing to the expedition against Portuguese America. In 1777 they amounted to eightyeight millions of reals, and in 1779 to near four hundred millions of reals; which information induces me to conclude, that there were great arrears of the expenses of 1778, or that the estimate for that year is not exact.

No. 7, 8. The expenses of these departments have greatly augmented.

FOOTNOTES:

[27] The American revenue is difficult to ascertain from this circumstance; that not arriving regularly and annually, it is necessary to have the receipts for several years to be able to form an exact calculation of the modium communibus annis.

[28] The birth of the Infant has increased the Court expenses.

TO THE COMMITTEE OF FOREIGN AFFAIRS.

Madrid, November 30th, 1780.

Gentlemen,

I have had the honor of receiving from you a letter of the 16th of June, and another of the 12th of July, 1780, with the several papers mentioned in them. With respect to the subjects of the first, you will find them fully discussed in my letter to the President of Congress, which will accompany this. The description of the bills will, I hope, answer good purposes.

How far the resolution, which immediately follows the one respecting Mr Dohrman, can be fully executed, is hard to determine. Had I funds necessary for the purpose, I should meet with few difficulties. The measure is a wise one, and my attention to it shall be unremitted. In a future letter I shall say more on this subject; as yet nothing has had time to ripen.

I must request your attention to the necessity of putting your correspondence with the public servants in Europe on a better footing. I am now at the expense of sending Colonel Livingston to the sea side with my despatches, with orders to wait for American vessels, and deliver them to the Captain with his own hands. I receive no letters by the post, but with marks of inspection, and after much delay. Some that I write never come to hand, and I know of letters having arrived from America for me, which I have never seen, and never expect to see. I know of but one man at the sea ports whom I can confide in, viz. Mr Harrison, at Cadiz. I cannot even find a courier, that I can depend on. Is it not time for America like other nations to provide against these inconveniences by proper regulations and establishments? Would it not be well to have American agents or consuls in one or more of the ports of France and Spain? Public despatches might be sent by packet boats, or other vessels to these agents, and should on no account be delivered to any other person; the agents might be ordered to send them to the Courts, to which they may be directed, by a trusty American; one of the officers of the ship, for example; and he should be ordered to wait for, and return with, the despatches of the Minister.

Would it not also be proper to provide for the safe conduct of letters to Congress after their arrival in America? I have reason not only to suspect, but to believe, that certain persons in America are attentive to these matters, and care should be taken to keep American letters out of their way.

This is an important subject and merits attention. For my own part I find several persons here, who have more intelligence from America than myself; and it is the more mortifying when considered, that they are probably often indebted for their information to the contents of letters directed to me.

I have the honor to be, &c.

JOHN JAY.

INSTRUCTIONS TO JOHN JAY.

In Congress, February 15th, 1781.

Sir,

Congress having since their instructions to you of the 29th of September, 1779, and 4th of October, 1780, relative to the claim of the United States to the free navigation of the river Mississippi, and to a free port or ports below the thirtyfirst degree of north latitude, resumed the consideration of that subject, and being desirous to manifest to all the world, and particularly to his Catholic Majesty, the moderation of their views, the high value they place on the friendship of his Catholic Majesty, and their disposition to remove every reasonable obstacle to his accession to the alliance subsisting between his Most Christian Majesty and these United States, in order to unite the more closely in their measures and operations three powers who have so great a unity of interests, and thereby to compel the common enemy to a speedy, just, and honorable peace; have resolved, and you are hereby instructed to recede from the instructions above referred to, so far as they insist on the free navigation of that part of the river Mississippi, which lies

below the thirtyfirst degree of north latitude, and on a free port or ports below the same; provided such cession shall be unalterably insisted upon by Spain; and provided the free navigation of the said river, above the said degree of north latitude, shall be acknowledged and guarantied by his Catholic Majesty to the citizens of the United States in common with his own subjects. It is the order of Congress, at the same time, that you exert every possible effort to obtain from his Catholic Majesty the use of the river aforesaid, with a free port or ports below the said thirtyfirst degree of north latitude for the citizens of the United States, under such regulations and restrictions only, as may be a necessary safeguard against illicit commerce.

I am, &c.

SAMUEL HUNTINGTON, *President.*

TO JOHN JAY

February 20th, 1781.

Sir,

The President sends you instructions passed in Congress the 15th.

Personally, I am mortified that no letters from you since September 16th have reached us. We have not waited for the minute information promised in yours of that date, nor have we received any notice of your receipt of our instructions of October 4th, before we discussed anew the old subject. There has been unfair dealing with your despatches. I apprehend that we are allowed to see only sentiments somewhat different from yours. Perhaps the enclosed memorandum may be some clue to your scrutiny.

On the 10th of January, Congress resolved to establish an office for foreign affairs, which I hope will make your station more easy and reputable. I wish most earnestly to have a choice made of the secretary, to whom I may deliver all the papers in my possession connected with his duty.

I am, Sir, your friend and humble servant,

JAMES LOVELL,
For the Committee.

TO JOHN JAY.

March 9th, 1781.

Sir,

You will herewith receive gazettes and journals, also a resolve respecting the complete ratification of the articles binding the Thirteen States as a confederated body. The delay of that business appears now like all the other circumstances of our rise and growth; for the present is really the best of all times for that particular event. Our enemies have been ripening themselves for this capital *mentitis*.

We have no letters from you or Mr Carmichael later than those mentioned in my last, a copy of which attends this.

I am, Sir, your friend and humble servant,

JAMES LOVELL.

TO THE PRESIDENT OF CONGRESS.

Madrid, March 22d, 1781.

Sir,

I ought, and wish to write your Excellency a long letter, but not by the post. The French fleet is not yet sailed. It will, in my opinion, be late in the

summer before the fleet at Rhode Island will be reinforced. This Court has promised me one hundred and fifty thousand dollars. Some clothing is now shipping on account of Congress from Cadiz.

Russia has offered her mediation to England and the States-General. The latter have accepted it. The answer of the former (if given) is not known here. If she should refuse, Russia will probably take part with the Dutch; if she accepts, she will doubtless be obliged either to agree to terms consistent with the armed neutrality, or continue the war. The consequences of either are obvious.

M. Necker has published a state of the French finances, much to his honor and their credit. Perhaps a complimentary order to translate and publish it would be useful.

Mr Cumberland will set out on his return, through France, in a few days.

This letter is intended to go by Captain Trask, from Bilboa. I am told he will sail much sooner than had been given out, and that unless my letters go by this evening's post, they would arrive too late. Hence I am obliged to write in haste, and say little, there being no time for cyphers. I have received some letters from your Excellency. Their dates shall be mentioned another time.

I have the honor to be, &c.

JOHN JAY.

TO THE PRESIDENT OF CONGRESS.

Madrid, April 25th, 1781.

Sir,

I have had the honor of receiving your Excellency's letters of the 6th and 17th of October last, with the enclosures. They arrived the 30th day of January last. There is more than reason to suspect, that the French Court were apprised of their contents before they arrived, and to believe that the construction of the treaty, by which the navigation of the Mississippi is supposed to be comprehended in the guarantee, does not correspond with their ideas on that subject. This Court continues pertinaciously to insist on our ceding that navigation, nor will they, as yet, listen to any middle line. Whether this be their real motive for declining a treaty with us at present, or whether the bills drawn upon me have inspired an expectation of profiting by our necessities, or whether they flatter themselves with a future majority of Congress on that point, or whether they choose, by continuing free from engagements with us, to be better enabled to improve to their advantage the casualties of the war, are questions which still remain undecided. Indeed, the movements of this Court in general, when compared with the great rules of national policy applicable to their situation, is so inexplicable, that I should not be surprised, if it should appear in future, that they had no fixed system whatever.

My last particular letter informed your Excellency, that having, in September last, been told that his Majesty could not advance us any money, but could be responsible for a loan to the amount of one hundred and fifty thousand dollars, I determined to continue accepting the bills, to attempt the loan, and by a representation of my situation to the French Court, endeavor to save the necessity of protesting them for non-payment.

I tried to borrow here on the security of this responsibility, but without the least success. I attempted it in France, but it would not do. I made the like attempt in Holland, and a gleam of hope appearing there, I was about improving it, when a letter from America informed me, that Mr Adams was authorised to execute the business, which had been committed to Mr Laurens. I had heard before of his being in Holland, but did not know the object which had called him there. Several letters passed between Messrs De Neufville and myself on the subject of this loan. The following is a copy of my last to them about it.

TO DE NEUFVILLE & SON.

"Madrid, January 8th, 1781.

"Gentlemen,

"I have had the pleasure of receiving your favor of the 4th ult. together with the one referred to in it.

"England has, it seems, declared war against the United Provinces, and that in a style of such eminent superiority, as I am persuaded will remind your countrymen, that the United Netherlands are not comprehended among the territories depending on the Crown of Great Britain.

"The English Ministry, by charging the States with having acted under French influence, intend to alarm their national pride, and, by making Holland the particular object of their resentment, to sow the seeds of dissensions among them, and render that most important Province obnoxious to the others. The tone of the whole declaration is that of a nation going rather to give correction to disobedient vassals, than to war upon a free and independent people. It could have been assumed only upon a persuasion, that the same supposed timidity, to which they ascribed the long forbearance of the Dutch under multiplied insults and injuries, would, on this ostentatious display of terror, reduce them to the humiliating measure of imploring forgiveness for having acted like freemen, and purchasing peace at the expense of their honor and liberty. Every other nation must expect better things of you, and can never believe, that the present generation will want firmness to assert the rights and vindicate the honor of a Republic, which owes its very existence to the glorious spirit and magnanimity of its ancestors.

"It gives me great satisfaction to hear that Mr Adams has conversed with you on the subject of a loan, and I am persuaded that business will be much advanced by it. The impropriety of two loans at a time is evident. My chief motive in proposing one at the time I did was, that no time might be lost by the absence of Mr Laurens, in prosecuting a measure, which appeared to me

highly useful to my country. I have no views or objects separate from her, and, provided she is effectually served, I am well content that the honor of doing it should devolve on others. As the management of our affairs in your country is committed to Mr Adams, I request the favor of you to give him all the aid in your power. When that gentleman went to Holland, I was ignorant of the business which called him thither; and the first knowledge I had of it was from America, long after Mr Laurens's capture. It cannot now be necessary, that my name should appear in the affair of the proposed loan, but should it be in my power to be useful, Mr Adams may rely upon my zealous endeavors to promote that, and every other measure for the public good. Indeed, as matters now stand, delicacy forbids me to interfere further than as a mere auxiliary to Mr Adams, to whom, and to whose affairs I beg you to extend the influence of that generous regard for America, which has placed you so high in the esteem of

"Gentlemen, &c.

JOHN JAY."

My last particular despatches contained a copy of my letter to Count de Vergennes, requesting his aid. I received from Count de Montmorin an extract of a letter he had received from the Minister on that subject, in which he mentions the advances made to Dr Franklin, and the improbability of his being able to assist me, but concluded with saying, he would do his best. Shortly after, I received a letter from Count de Vergennes, which left me without hopes of succor from that quarter, except that Dr Franklin promised to accept my drafts to the amount of twentyfive thousand dollars.

In December following, I had a long and interesting conference with Count de Florida Blanca, the particulars of which it is not necessary minutely to enumerate by this opportunity. He expressly promised me one hundred and fifty thousand dollars. As the bills afterwards became due, I applied for money to pay them, and received it to the amount of thirtyfour thousand eight hundred and eighty dollars.

On the 15th of March I sent him a list of the bills payable in April, which amounted to eightynine thousand and eightythree dollars.

On the 25th, I was informed that the payment of this sum could not then be possibly made, but that the balance due on the one hundred and fifty thousand dollars promised, should be paid in the course of six months.

I communicated this matter to the Ambassador of France, and I must do him the justice to say, that his conduct on this occasion merits our thanks. All he could obtain from this Court was, that the amount of the April bills should be paid me in six equal monthly payments. This arrangement still leaving me unprovided with the means of satisfying the approaching demands, the Ambassador made personal application to a rich banker here, and on his personal credit and my consenting that the aforesaid six monthly payments should be applied to the repayment, obtained a loan for me of the whole sum wanted for April. I have passed my note for it, payable as soon as possible, with interest at the rate of six per cent. But this provision not extending beyond April, the fate of the bills payable in the succeeding months still remained dubious. That nothing in my power might be left undone, I sent on the 1st of April an express to Dr Franklin representing to him my true situation, and the injuries our credit would sustain from the protest of a single bill drawn by order of Congress. I desired him to communicate my letter to Colonel Laurens, to whom I also wrote on the subject. The express returned on the 19th instant, with a letter from Dr Franklin, by which I am authorised to draw upon him as occasion may require, to the amount of one hundred and fortytwo thousand two hundred and twenty dollars, towards paying the bills that become due between May and September.

My endeavors, however, to obtain further aids from Spain, shall not be relaxed. They seem very desirous of having the ships of the line, still unfinished on the stocks at Boston and Portsmouth. I have written to your Excellency on this subject, and have as yet received no answer. When I consider that the state of our finances has so long prevented the completing those ships, and the difficulties heretofore experienced in providing for those in service; when I recollect that the finishing and fitting out those ships will bring money into our country, and probably prepare the way for

Spain's building more vessels in it, and lastly, when I consider how much these ships seem to be an object, I am almost prevailed upon to engage positively that Spain shall have at least one of them at prime cost. To exercise a power not clearly within the limits of those confided to me, is a delicate and disagreeable business. This is the first time I ever found myself disposed to hazard it, and yet so many circumstances lead me to think, that the public good would be promoted by the sale of these ships, that in case I should be again pressed on this subject, I believe I shall run the risk, from a persuasion that though such conduct ought not to be approved or encouraged by Congress, yet that when directed by the purest motives, and for the best purpose, it may obtain forgiveness.

Your Excellency will receive herewith enclosed a copy of the invoice of prize clothing, taken by Admiral Cordova, and presented by the Courts of France and Spain to Congress. The Count de Montmorin was very much an American on this occasion also. Mr Harrison, at Cadiz, has my orders to ship these goods in different vessels to America; part of them is now on the ocean, and the rest will soon follow. Your Excellency will receive a letter of advice with each parcel from Mr Harrison, of whom I have a very good opinion. He charges no commission for doing this business, being contented with the satisfaction of serving his country.

I have often mentioned to Congress the necessity of more effectual provision for our captive seamen; for want of money I cannot pay that attention to them, which their misfortunes and usefulness demand. I am already greatly in arrears on their account, and Mr Harrison, unless reimbursed, must soon stop his hand.

Portugal, though overawed by France and Spain, fears and perhaps loves England; her conduct will be determined by future events. The Minister here has promised me to interpose the good offices of his Court with that of Lisbon in our behalf. In time something good may result from it. I have not received a line from Mr Dohrman; I fear he is obliged to be very circumspect and cautious. The letters herewith enclosed from Dr Franklin were left open for my perusal, the short stay of my courier not allowing time for copies to be made of the information conveyed in and with them.

The intercepted letters will be found interesting. One of them ascertains the price paid Arnold.

I perceive that Dr Franklin desires to retire. This circumstance calls upon me to assure Congress, that I have reason to be perfectly satisfied with his conduct towards me, and that I have received from him all the aid and attention I could wish or expect. His character is very high here, and I really believe that the respectability, which he enjoys throughout Europe, has been of general use to our cause and country.

Your Excellency may rely on my cordially adopting and pursuing any measures, that can conduce to the enlargement of Mr Laurens, and I regret that no occasion has yet offered in which I could do anything towards the attainment of that desirable object.

Mr Cumberland is on the road home. I much suspect that he was sent and received, from mutual views in the two Courts of deceiving each other. Which of them has been most successful is hard to determine. I believe in point of intelligence, England has had the advantage. As to the assurances of the Minister on this subject, they are all of little consequence, because on such occasions Courts only say what may be convenient; and therefore may or may not merit confidence. Time and circumstances will cast more light on this subject.

Whatever we may get from this Court is clear gain. We have no demands upon it, and if we had, are not in a capacity to insist upon them. In my opinion, therefore, it is of the utmost importance to avoid appearances of discontent, and rather to impress other nations with an opinion of the friendship of Spain for us, than otherwise. Indeed, I really believe the King means well towards us, and that the Prime Minister is also well disposed; but whether as much can be said of the Minister's confidential and I believe influential secretary, M. Del Campo, is by no means a clear point. It is proper that Congress should know, that the gentleman intended to succeed M. Mirales was recommended by M. Del Campo, with whom he has long been on terms of intimacy and friendship.

I have nevertheless no room to doubt of this gentleman's attachment to our cause, though I am inclined to think his conduct will be conformable in a

certain degree with the views of his patron. This ought to remain a secret. He is still here, although he expects daily to be despatched.

I represented the case of the Dover cutter to the Ministry here the 22d of June last. In December I obtained a promise that it should be appraised, and the value paid to the captors, and two days ago I was again assured, that measures were taking to bring this matter to a conclusion. *Festina Lente* seems to be the first maxim in Spanish politics and operations. It is the fashion of the country and strangers must conform to it.

I congratulate Congress on the victory obtained by General Morgan, and the success of the French in the Chesapeake. The enclosed gazette contains much good news from the East Indies. These events will probably give Lord George Germain other ideas than those which appear in his intercepted letters.

M. Toscan, who goes to reside as Vice Consul of France at Boston, will carry this letter to America, and perhaps to Philadelphia. He was ready to set out when my courier returned from France. I was obliged to delay my letters till his arrival, and M. Toscan has been so obliging as to wait till I could complete them.

I have the honor to be, Sir, &c.

JOHN JAY.

THE PRESIDENT OF CONGRESS TO JOHN JAY.

In Congress, May 28th, 1781.

Sir,

Your letter of the 6th of November last, detailing your proceedings from the 26th of May down to that period, has been received by the United States in

Congress assembled. At the same time was received your letter of the 30th of November, with the several papers therein referred to.

It is with pleasure, Sir, I obey the direction of Congress to inform you, that throughout the whole course of your negotiations and transactions, in which the utmost address and discernment were often necessary to reconcile the respect due to the dignity of the United States with the urgency of their wants, and the complaisance expected by the Spanish Court, your conduct is entirely approved by them. It is their instruction that you continue to acknowledge, on all suitable occasions, the grateful impression made on these States by the friendly disposition manifested toward them by his Catholic Majesty, and particularly by the proofs given of it in the measures which he has taken, and which it is hoped he will further take, for preserving their credit, and for aiding them with a supply of clothing for their army. You are also authorised and instructed to disavow, in the most positive and explicit terms, any secret understanding or negotiation between the United States and Great Britain; to assure his Catholic Majesty, that such insinuations have no other source than the invidious designs of the common enemy, and that as the United States have the highest confidence in the honor and good faith both of his Most Christian and of his Catholic Majesty, so it is their inviolable determination to take no step, which shall depart in the smallest degree from their engagements with either.

Should the Court of Spain persist in the refusal intimated by its Minister to accede to the treaty between the United States and his Most Christian Majesty, or to make it the basis of its negotiation with you, the difficulty, it is conceived, may easily be avoided by omitting all express reference to that treaty, and at the same time conforming to the principles and tenor of it; and you are accordingly authorised so far to vary the plan of your original instructions. As his Most Christian Majesty however may justly expect, in a matter which so nearly concerns him, and which was brought into contemplation in the treaty he so magnanimously entered into with these States, the strongest marks of attention and confidence, you will not fail to maintain, in the several steps of your negotiation, a due communication with his Minister at the Court of Spain, and to include his interests as far as circumstances will warrant.

You are authorised to acquaint his Catholic Majesty that not only entire liberty will be granted, during the war at least, to export naval stores for the royal marine, but that every facility will be afforded for that purpose.

As Congress have no control over the captains of private vessels, however proper your hints may be of obliging them to give a passage to American seamen returning home from foreign ports, and to send an officer with despatches intrusted to them for foreign Ministers, it is impracticable to carry them into execution, you will therefore continue to provide for these objects for the present, in the best manner you can. As soon as the United States are in condition to establish consuls in the principal ports of the States with which they have intercourse, the difficulty will be removed; or if any other practicable remedy be suggested in the meantime, it will be applied.

The letter, of which you enclose a copy, from Stephen d'Audibert Caille, styling himself consul for unrepresented nations at the Court of Morocco, had before been received through the hands of Dr Franklin. If you shall have no objection to the contrary, you will correspond with him, and assure him in terms the most respectful to the Emperor, that the United States in Congress assembled entertain a sincere disposition to cultivate the most perfect friendship with him, and that they will embrace a favorable occasion to announce their wishes in form.

The generous and critical services rendered these United States by Messrs Neufville and Son, have recommended them to the esteem and confidence of Congress. You will signify as much to them, and that their services will not be forgotten, whenever a proper occasion offers of promoting their interests.

Your intimation with respect to complimenting his Catholic Majesty with a handsome, fast sailing packet-boat, claims attention; but the variety of public embarrassments will render the execution of it very uncertain.

Congress agree to an extension of Colonel Livingston's furlough, till the further order of Congress, which you will make known to him.

Your letter of the 16th of September last was received on the 4th day of December. No bills have been drawn on you since. That of the 28th of January was received on the 27th day of April; and in consequence of it the sale of the bills already drawn, but then remaining on hand, was countermanded.

By a letter from Mr Carmichael, dated the 22d of February, and received on the 27th of April last, Congress are informed that you had received despatches from them dated in October. These must have contained their instructions to you to adhere to the claim of the United States to the navigation of the Mississippi. A reconsideration of that subject determined Congress, on the 15th day of February last, to recede from that instruction so far as it insisted on their claim to the navigation of that river below the thirtyfirst degree of north latitude, and to a free port or ports below the same. On the receipt of this latter instruction, Congress have little doubt that the great obstacle to your negotiations will be removed, and that you will not only be able without further delay to conclude the proposed alliance with his Catholic Majesty, but that the liberality and friendly disposition manifested on the part of the United States by such a cession, will induce him to afford them some substantial and effectual aid in the article of money. The loss attending the negotiation of bills of exchange has been severely felt. A supply of specie through the Havana would be much more convenient and acceptable.

SAMUEL HUNTINGTON, *President.*

TO THE PRESIDENT OF CONGRESS.

Aranjues, May 29th, 1781.

Sir,

My last to your Excellency was of the 25th ult. and was the more particular, as Mr Toscan, who is appointed Vice Consul of France at Boston, and was the bearer of it; he sailed from Bilboa.

On the 18th instant I received from Mr Lovell three letters written on one sheet, viz. 20th of February, 9th and 31st of March last. No other copies of these letters ever reached me. They arrived at Cadiz in the Virginia; but the papers and journals said to accompany them never came to my hands, nor have I received any letters from your Excellency since January last.

On the 23d instant I waited upon his Excellency, the Count de Florida Blanca, and informed him of the facts stated in the above memorial. He said, he had not as yet heard anything upon the subject; that there was such an ordinance, and that prudence demanded that the admission of letters from abroad, especially in time of war, should be under the direction of government. That the situation of North America rendered new regulations necessary, that he would turn his thoughts to it, and do what should appear equitable. The next day I sent him Mr Harrison's memorial in a letter on the subject of it.

As this letter will go by the post, I must omit being minute about many matters, which I wish to communicate to Congress. Cyphers would probably impede the progress of this letter, if not stop it.

The captors of the Dover cutter still remain unsatisfied. My first memorial on that subject was dated and presented the 22d of June last. In the winter I was promised, that the prize should be appraised, and the value paid. At present I am assured that informations about it are taking.

M. Gardoqui, it is said, will set out in June. If a safe conveyance, which I am encouraged to expect in about a fortnight's time, should offer, I shall write your Excellency a long letter, and mention the dates of my former ones. If not, I shall take another method, not proper to explain in this letter, which, notwithstanding its different covers, will, I doubt not, be inspected before it reaches Cadiz.

I have the honor to be, &c.

JOHN JAY.

TO JOHN JAY.

Philadelphia, June 4th, 1781.

Sir,

I enclose a resolve of Congress, of May 24th, respecting an interest of Messrs Dumain and Lyon, with their petition annexed. I also add the copy of a resolve of September the 27th, 1780, and of a short letter of mine to a gentleman in Teneriffe, to serve as a memorandum in case you have not already procured justice for Mr Magnall and his associates, who took the Dover cutter. Mr McCarrick of Santa Cruz is knowing to all the circumstances of that affair. Magnall has been unfortunate from the time he left this place last October; he is now here. I do not know whether this is the matter referred to in the letter of Mr Carmichael of December 24th, where he says, "The Minister also engaged to do justice to certain Americans, who carried a British privateer to the Canaries." I send you an extract from instructions given to Dr Franklin concerning M. d'Audibert Caille, which may serve to govern your conduct towards that gentleman.

Your humble servant,

JAMES LOVELL.

TO JOHN JAY.

Philadelphia, June 15th, 1781.

Sir,

On the 4th I transmitted to you a resolve of May 24th, respecting an interest of Messrs Dumain and Lyon, with their petition annexed. You will herewith receive other copies of those papers by opportunities, which the party concerned will industriously find. I recommend the business afresh to your

attention, those worthy men having already met with vexatious delays on this side of the water.

With much esteem I am, Sir, your friend,

JAMES LOVELL.

ROBERT MORRIS TO JOHN JAY.

Philadelphia, July 4th, 1781.

Dear Sir,

The derangement of our money affairs, the enormity of our public expenditures, the confusion in all our departments, the languor of our general system, the complexity and consequent inefficacy of our operations; these are some among the many reasons which have induced Congress to the appointment of a Superintendent of Finance. I enclose you copies of their resolutions on that subject, with such other papers as will fully explain to you my appointment and powers.

The use of this office must be found in a progress towards the accomplishment of these two capital objects, the raising a revenue with the greatest convenience to the people, and the expenditure of it with the greatest economy to the public.

The various requisitions of Congress to the several States, none of them entirely complied with, create a considerable balance in favor of the United States, and the claiming this balance is delivered over to me as revenue; while on the other hand, the dangerous practice of taking articles for the public service and giving certificates to the people, has created a very general and a very heavy debt. The amount of this debt is swelled beyond all reasonable bounds, nor can the extent of it be at present estimated. These things need no explanation, but it may be proper to observe, that if the certificates were not in my way, there is still an infinite difference between

the demand of a balance from the States, and an effectual revenue. The latter can be obtained only in consequence of wise laws generally adopted, and as generally executed with vigor and decision. Were all that is necessary on these heads accomplished, something further would still remain to be done, in order that the produce of taxes should be subject to the sole and absolute disposition of the United States, or of their officers. To you who are acquainted with republican governments, it is unnecessary to observe on the delays which will arise, the obstacles which will be raised, and the time which will be consumed, in placing the revenue of America on a proper footing. Yet this is absolutely necessary before credit can be established, and the indispensable supplies obtained on terms of economy.

To reform our expenditure is an object of equal importance with the other, and it is in some degree within my power, as you will perceive it to have been subjected to my authority. But even here I find myself trammelled by the want of necessary funds. To contract, for instance, with any one, in order to obtain bread for our troops, requires the previous certainty of being able to make the stipulated payments. And so in every other case, I shall be unable to act with decision, unless I have the command of money. On the other hand, the people will bear with great reluctance the necessary imposition of heavy burthens, while they can perceive any want of arrangement, method, or economy, in the administration of their affairs.

If for a moment we suppose, that this country, amid the confusions of a revolution, and the rage of war, could be governed with all the regularity, wisdom, and prudence, of ancient and peaceable nations; yet we must be convinced, that no annual revenue she is able to raise could equal the annual expense in an offensive war against so powerful a nation, as that which we now contend with. A great balance, therefore, must remain, and it must be provided for by loans or subsidies.

To expect loans within the United States, presupposes an ability to lend, which does not exist in any considerable number of the inhabitants. The personal property, not immediately engaged, either in commerce or the improvement of lands, was never very considerable. Little as it was, it has been greatly diminished by the pernicious effects of a depreciating medium. This expedient, which was adopted in the beginning from necessity, and too

pertinaciously adhered to in the sequel, has not only exhausted the funds of those who might have been willing to trust the United States, but it has so wounded our public credit, that even the will would be wanting if the ability existed, which as I said before, it really does not.

While we have neither credit nor means at home, it is idle to expect much from individuals abroad. Our foreign credit must be nurtured with tenderness and attention before it can possess any great degree of force, and it must be fed by substantial revenue, before we can call it into active exertion or derive beneficial effects from its application.

All reasonable expectation, therefore, is narrowed down to the friendly interposition of those sovereigns, who are associates in the war. From Holland, we can properly ask nothing; nor is she, I believe, in a capacity to grant it if we did ask. The active efforts of France require all the resources of that great nation, and of consequence the pecuniary aid which she affords us can but little advance the general cause, however it may relieve our immediate distress.

We must then turn our eyes to Spain, and we must ask either loans or subsidies to a very considerable amount. Small sums are not worth the acceptance. They have the air of obligation without affording relief. A small sum, therefore, is not an object to the United States, for they do not mean to beg gratuities, but to make rational requests.

As Congress have empowered you to remove the obstacles, which have hitherto impeded your negotiations, you will doubtless proceed with prudent despatch in forming the important treaties, which are to be the basis of our national connexion. Your own integrity, and the dispositions which you certainly feel, as the true representative of your Sovereign, to gratify the wishes of his Catholic Majesty, will give you just claim to the confidence and friendly support of his Ministers. And on the other hand, his Majesty's known piety and justice, will certainly induce him to facilitate a permanent union between the two countries, and to overturn that power, whose ambition is known, felt, and detested, throughout the habitable globe.

Having a perfect confidence in the wisdom of his Majesty's Ministers, I must request that you will submit to their consideration the reasons, which operate in favor of the advances we expect. In doing this, it will immediately strike you and them, that the enemy carries on the operations against us at an expense infinitely greater than that by which they are opposed. By enabling us, therefore, to increase our resistance, and redouble our offensive efforts, the British will be reduced to the necessity of increasing their force in America, or of submitting beneath a decided superiority. Either must be fatal to them. In the first instance, they will be crushed by the weight of expense; and, in the second, they must, while they lose an actual force, and part forever with the object in contest, feel the increased weight of the American arms, and make head against those resources, applied to a marine, which are now consumed in land operations.

Money ought, therefore, to be supplied to us from the Havana, which will at the same time save the risk of transporting it to Europe, while, as I have already observed, it must, when employed among us, absolutely ruin the common enemy. For, when once they are driven from the United States, they must, at a considerable expense, defend, or, at a great loss, relinquish the rest of their American possessions; and, in either case, the resources of this country will enable France and Spain to carry on operations for the subjection of the British Islands.

With respect to our finance, I am further to observe, that the resolutions of Congress, of the 18th of March, 1780, have neither been so regularly adopted by the States as was hoped and expected, nor been productive of those consequences, which were intended. It is unnecessary to travel into the causes, or to explain the reasons of this event. The fact is clear. The new money is depreciated, and there is the strong evidence of experience to convince us, that the issuing of paper, at present, must be ineffectual. Taxation has not yet been pursued to that extent, which was necessary. Neither is it reasonable to expect that it should. Time has been required under all governments to accustom the people by degrees to bear heavy burdens. The people of America have so patiently endured the various calamities of the war, that there is good reason to expect they will not shrink at this late hour from the imposition of just and equal taxes. But many arrangements are necessary to this purpose, and, therefore, an immediate

pecuniary assistance is the more necessary to us. Our debts, under which I comprise, as well those of the individual States, as those of the Union, are but trifling, when we consider the exertions which have been made. The debt I have already mentioned on certificates is heavy, not from the real amount, but because it is beyond what the supplies obtained were reasonably worth, and because it impedes taxation and impairs its effects. But the amount of other debts so small, that a few years of peace would bring it within the bounds of a revenue very moderate, when compared with the wealth of our country. You well know the rapid increase of that wealth, and how soon it would relieve us from the weight of debts, which might be in the first instance very burdensome. There can, therefore, be no doubt, that we shall be able to pay all those, which it may be necessary to contract. But, as I have already observed, our great difficulty is the want of means in our people, and of credit in our government.

It gives me, however, very great pleasure to inform you, that the determined spirit of the country is by no means abated either by the continuance of the war, the ravages of our enemy, the expense of blood and treasure we have sustained, or the artifices, falsehoods, and delusions of an insidious foe. These last become daily more and more contemptible in America, and it appears equally astonishing, that they should longer attempt them here, or boast the success of such attempts in Europe. Uniform experience has shown the futility of their efforts, and the falsehood of their assertions. I know they take the advantage of every little success to vaunt the prowess of their troops and proclaim hopes of conquest, which they do not feel. But those, who know anything of our history or situation, must have the utmost contempt for all these gasconades. It is impossible they should make impression upon any but weak minds, and I should hardly have thought of mentioning them, but I learn by letters from Spain, that men, who are uninformed, have been led into misapprehensions from circumstances, which were here considered as trivial and even favorable.

I could hardly have supposed that our enemies had still the folly to repeat, as I am told they do, that there is an English party in America. Bribes and deceit have induced some wicked and weak men to join them; but when we consider the sums they have expended, and the falsehoods they have used, our wonder is not, that they have got so many, but that they have gained so

few. The independence of America is considered here as established; so much so, that even those of equivocal character accustom themselves to cherish the idea; for the doubt is not now, whether an acknowledgment of it will take place, but when that acknowledgment will be made. Our exertions also, in the present moment, are not so much directed to establish our liberties, as to prevent the ravages of the enemy, abridge the duration and calamities of the war, and faithfully contribute to the reduction of a power, whose ambition was equally dangerous and offensive to every other.

All reasonings on this subject must be deeply enforced, by paying attention to what has happened in the Southern States. The progress of the enemy, while in appearance it menaced the conquest of that extensive region, tended only, in effect, to exhaust him by fruitless efforts, so that at length a handful of men have rescued the whole from his possession. The attack on Virginia (if the piratical incursions there can deserve that name) has been equally futile. The commanders may indeed have enriched themselves by plunder, and many worthy families have been distressed; but what is the consequence? Indignation and resentment have stimulated even the weak and indolent to action. The wavering are confirmed, and the firm are exasperated, so that every hour, and by every operation, they create enemies, instead of gaining subjects.

Our armies, though not very numerous, are powerful. The regular troops are so much improved in discipline and the habits of a military life, that they are at least equal to any troops in the world. Our militia are becoming more and more warlike, so as to supply the wants of regular troops, when the enemy (taking advantage of that convenience, which their ships afford them) transfer the scene of action from one place to another. The number of the British diminishes daily, and of consequence, our superiority becomes daily more decisive. The greatest plenty of subsistence is to be had for our armies, and the prospects from the present harvest are beyond all former experience. I wish I could add, that clothing and military stores were as abundant as those other requisites for war. This is not the case; our soldiers, indeed, are well armed, and, in some degree, they are clothed. We have also ammunition abundantly sufficient for the common operations of the field. But many of our militia are unarmed, and the sieges, which will be

necessary to expel the enemy, must make a heavy deduction from our military stores.

The proposed siege of New York will soon be commenced, and would undoubtedly be successful, if we could maintain a decided superiority at sea. This must depend on contingencies, which are not in our power, nor perhaps in the power of any human being. I am not without hopes, even if we should not possess that superiority; but the expense will, from the want of it, be very considerably enhanced, and this is a circumstance which I cannot but deplore, for I repeat it again, the want of money can alone prevent us from making the greatest exertions. What our exertions have already been, our enemies themselves must acknowledge, and while from insidious views, they assert that they could not make an impression on us with ninety thousand soldiers and seamen, we are certainly authorised to conclude from this confession, that these States form a considerable balance in the scale against them.

I am now, therefore, again led to reiterate my request of a considerable sum of money from Spain; for I also again repeat, that small sums are not worth our acceptance, and I may add, they are unworthy the dignity of his Catholic Majesty. There can be no doubt, nor will the Spanish Ministry deny, that there is a considerable risk in transporting their money from the new world to the old, besides, that when expended there, it necessarily runs through the different channels of commerce, to feed the wants and invigorate the forces of the enemy. There is, therefore, a double policy in expending a part of it here, where it can not only be brought with safety and despatch, but be employed to an immense advantage, when compared with its effects in Europe. If it be asked, what advantages Spain will derive in particular during the war, and what recompense can be made her after the peace? I answer, that the weakening more the common enemy by a given sum, is in itself a great advantage, and that to do this, by sparing the blood of Spanish subjects, is an advantage still greater. I add, that when relieved from the enemy, we may assist her in the reduction of the Floridas and Bahamas, and, perhaps, of Jamaica. We shall then, also, be in a situation to secure Nova Scotia, thereby depriving Great Britain of her principal resource for ship-timber, and enable us to furnish that essential article to the navy of Spain, on cheaper and better terms, than it can be had elsewhere.

On this last subject, I have further to observe, that there is hardly anything in which the maritime power of Spain is so much interested; for if we do not possess that country, it will be impracticable to furnish those supplies of masts and spars, which both France and Spain may stand in need of; so that, of consequence, their positive and absolute strength at sea will be the less, while that of the enemy is positively and absolutely greater. The comparative inferiority, therefore, will be still more considerable. Nor is this all. A marine requires men, as well as ships. The fisheries and collieries are two pillars, which support the marine of Britain, so far forth as seamen are required. But it is evident, that the fisheries could not long continue in her hands, if she were deprived of Nova Scotia. Here again, we are also to consider, that there is an immense difference between that patient resistance, whose opposition must at length weary the enemy into granting our independence, and those vigorous active operations, which may wrest from them their present possessions. Money is necessary for the latter, and I can say with confidence, that money alone is necessary.

But to return. The advantages which will flow to Spain at a peace, from giving effectual aid to our finances now, will be, in the first place, the common compensation of repayment, should his Catholic Majesty prefer loans to subsidies. The having expelled the English from the Bay of Mexico, and having, by that means, prevented the contraband commerce, so destructive to his revenue, will be another striking advantage, which cannot have escaped the penetration of his Ministers. But this is not all. The opening a port in East Florida, on the shores of the Atlantic, under proper regulations and restrictions, would enable us to carry on a commerce very advantageous to Spain, because we could furnish all such supplies of provisions, &c. as their possessions might stand in need of, and in return, take at port, cocoa, logwood, Nicaragua wood, and, indeed, any other commodities, which his Catholic Majesty should find it for the advantage of his dominions to permit the exportation of. Our commerce with Spain is also, in itself, a very considerable object. At this moment, we take from thence wine, oil, fruit, silk, cloth, &c. And after the conclusion of the war, our remittances of wheat, corn, fish, and naval stores, will be of very great consequence to the commerce of that country. Another article of commerce will be the building of ships, which can be had on cheaper and better terms here than elsewhere; and there can be no doubt but that the construction of

ships in this country is equal, if not superior, to that in any other. Even now, ships might be built on his Majesty's account, though by no means so cheaply as in times of peace; besides that, as there is now no seasoned timber in the country, such ships would not be durable, and, therefore, it might, perhaps, be imprudent to get any more than are immediately necessary.

To all the other advantages, which would arise to his Catholic Majesty, I may add, (although that is not so properly within my department,) the security, which his dominions would derive from our guarantee. This is an advantage, which must be the more evident from a consideration of what might have happened, had this country continued in union with Great Britain, and had Great Britain pursued those schemes of universal empire, which the virtue and fortitude of America first checked, and which it is the object of the present war to frustrate. Our enemies do, I know, allege, that our weakness is unable to withstand them, and that our force is dangerous to Spain. The serious refutation of such absurd contradictions would involve an absurdity. It may not, however, be improper to observe, that the attention of this country, for a century past, has been, and for a century to come, most probably will be, entirely turned to agriculture and commerce. We must always, therefore, be useful neighbors, and never dangerous, except to those who may have views of dominion. Spain can never be in this predicament, though the British may and will. Their solicitude, therefore, to inspire apprehensions of us is, and ought to be, the strongest argument against entertaining them. But, if this evident reasoning did not exist, still the conduct of Congress, with regard to his Catholic Majesty, has been so just, and even generous, not only in being willing to secure his rights, but to gratify him by foregoing their own, that there is not room for the shadow of suspicion. This conduct, I should suppose, would alone have weight sufficient to procure what it is my object to request, if the other very cogent and conclusive reasons for it did not apply. And, after all, if it be considered how much greater is the interest of Spain at the vigorous continuance of the present war, than that of any other of the associates, I cannot permit myself one moment to doubt of your success. I am the more sanguine from the character of the Catholic King, and of his Ministers, for wisdom, candor, and integrity. These qualities will, I am sure, meet such corresponding dispositions in the United States, that the most thorough

harmony and coalition must inevitably take place. This is an object of the greatest importance to both countries. Mutual benefits and the reciprocation of good offices will endear a connexion between them, and their interests require that this connexion should be of the closest kind.

In every point of view, therefore, that we can consider the subject, the advance I have mentioned must appear alike beneficial. If the Governor of Cuba, or any other person, were duly authorised, stipulations might even now be entered into for furnishing all necessary supplies of provisions to the fleets and armies of his Catholic Majesty, which would certainly facilitate their operations. The advance of money also by Spain would enable the fleets and troops of France to subsist cheaper than at present, because it would tend to raise the exchange here, which is now too low.

Your own good sense will suggest to you many other most forcible arguments, as well as the proper time and manner of applying them. It is necessary to mention, that the sum of five million dollars may, perhaps, be sufficient for our present emergencies; but if a greater sum can be obtained, we shall thereby become more extensively useful. Whatever the grant may be, it will be proper that it be sent hither in some Spanish ships of war from the Havana, or advanced to us there; in which latter case, we will devise the means of bringing it away. Whether to ask for subsidies, or loans, as well as the terms on which either are to be obtained, these, Sir, are objects, which you are fully competent to determine upon. I have only to wish that your applications may meet with that success, which I am confident you will not fail to merit. As the means of facilitating your views, I shall apply to the Minister of his Most Christian Majesty here, to write on the same subject to the French Ambassador at Madrid. The generous conduct of France gives just ground of reliance on her friendly assistance; and you are too well convinced of this, not to act in the most perfect harmony with the servants of that Court, especially on an occasion so important as the present. I need not stimulate your activity, by observing how precious is every moment of time in those affairs, on which the fate of Empires depends; nor need I suggest the importance of a treaty, and particularly a subsidiary treaty with Spain, in that moment, when the judgment of Europe is to be passed on the fate of America. For, however impracticable it may be to subdue us, it is undoubtedly of moment to hasten the approach of that period, when the

acknowledgment of our independence shall give the blessings of peace to so many contending nations. To spare the present lavish effusion of blood and treasure, is a serious object with those, who feel, as you do, the emotions of benevolence; and I am confident, that the patriotism, which has inspired your conduct, will prompt you to obtain a peace honorable for your country and advantageous to her friends. The only probable method to effect these things, is a thorough union of forces and resources, to reduce the pride and power of that aspiring nation, whose ambition embroils the universe.

With all possible respect, I have the honor to be, &c.

ROBERT MORRIS.

ROBERT MORRIS TO JOHN JAY.

Philadelphia, July 7th, 1781.

Dear Sir,

This will accompany my former letter of the 4th instant, which you will perceive to be so written, as that it may be shown, if necessary, to the Spanish Minister. You will make such use of it as prudence may dictate. I would gladly now give you details of our situation and plans for reforming it, but I have not yet sufficiently obtained the one, nor matured the other. Whenever I am in capacity to apprise you fully of these things, you shall hear from me at large on the subject. At present I can only inform you that a sum of hard money will, from particular circumstances, afford us relief and turn to our advantage far beyond what might be supposed from the amount. Although I have stated the demand at five millions, yet I beg you will take as much as you can obtain, though it be far short of that sum. But at the same time, I repeat, that a very small one is not worth the acceptance. Knowing our wants to be great, you will judge properly as to what we can accept consistently with our dignity.

I enclose you a cypher, and with the duplicate of my letters I will send you another. Should both arrive safe, you will be so kind as to hand one to Mr Carmichael, letting me know which you keep and write by.

I have the honor to be your Excellency's most obedient and humble servant,

ROBERT MORRIS.

ROBERT MORRIS TO JOHN JAY.

Office of Finance, July 9th, 1781.

Dear Sir,

Observing by your correspondence with Congress, that you are put to a good deal of expense by American seamen arriving from captivity at Cadiz, where they also grow very troublesome, I offer the following proposal to your consideration. Authorise Mr Harrison, or whoever may be your agent at Cadiz, to enter into contracts with such Americans as present themselves for the bounty of their country, to proceed from Cadiz, in such ship or vessel as he may provide for the purpose, for such port within the United States as he may appoint, at the monthly wages of six or eight Spanish dollars, to be paid as soon after their arrival in America as the cargo of the vessel shall be landed. After they sign such contract, he is to supply their wants sparingly, until he collects a sufficient number to man a suitable vessel, which he may procure either by charter or purchase, whichever may be in his power, and shall appear most eligible at the time. If he charter, it should be on such terms that the owners risk their vessel, putting in their own master, and, if they choose it, part of the seamen. The vessel to be loaded with salt for account and risk of the United States; freight so much per bushel or so much per ton to America and back. But in that case, let it be always a condition, that the vessel may be ordered from the first place she arrives, to any one other port in America; because, it may happen that

she will arrive where there cannot be got a cargo to load her back, or where the salt would be of no use.

If your funds will admit of it, and vessels can be furnished cheap, this would be the more eligible mode of doing the business, because I could then either send the vessels back, or sell, as might suit best. In case of purchase, they should be fast sailers, with good sails and rigging, well found and fitted, and if armed, so much the better. Honest, active, industrious, and faithful masters must be provided for these vessels, and they must all come addressed to my order, directed for this port, with liberty however to get into any safe port they can. The master to give me immediate notice of his arrival, when I shall give proper orders, or probably have them previously ready. An account of the moneys advanced to each person on board these vessels, as well as the cost and outfit of the ship and cost of the cargo, must be sent me by each vessel, in order that proper deductions may be made from the people, and proper credits be given for the costs. You will observe, I am duly empowered by Congress to export and import for account and risk of the United States; and I think this plan so likely to benefit the public, that I very freely give my sanction to it, provided you can find the money. Your agent must give me regular advice of every expedition, and inform you also whenever he commences them. When a ship is provided and a master appointed, all the men should sign articles for the voyage in the common form.

I am, Dear Sir, &c.

ROBERT MORRIS.

ROBERT MORRIS TO JOHN JAY.

Philadelphia, July 13th, 1781.

Dear Sir,

I enclose you in this packet the plan of a national bank, which I have been induced to adopt for the following reasons. The issuing of a large paper medium converted the coin of the country into a commodity, so that much of it was exported and the remainder concealed. The depreciation of our paper has so lessened our currency, that there is not a sufficiency for commerce and taxation, without creating by the latter such distress in the former, as must injure every order of men in the community. It is necessary, therefore, to fill up the deficiency in such proportion as it may be called, and with such medium as may preserve its value.

I have already in my letter of the 4th instant stated the want of ability in the people to lend, and of credit in the government to borrow. An additional reason, therefore, for establishing a bank is, that the small sums advanced by the holders of bank stock may be multiplied in the usual manner by means of their credit, so as to increase the resource, which government can draw from it, and at the same time, by placing the collected mass of private credit between the lenders and borrowers, supply at once the want of ability in the one, and of credit in the other.

An additional reason for this institution is, to supply the place of all our other paper, which it is my design to absorb as soon as possible, and thereby to relieve the people from those doubts and anxieties, which have weakened our efforts, relaxed our industry, and impaired our wealth. But this must not be done, without the substitution of other paper, for reasons which I have already assigned, and because that our commerce would suffer for the want of that facility in money transactions, which paper alone can give.

Finally, one very strong motive, which has impelled my conduct on this occasion, is to unite the several States more closely together, in one general money connexion, and indissolubly to attach many powerful individuals to the cause of our country, by the strong principle of self-love, and the immediate sense of private interest. It may not be, perhaps, improper to show and explain this plan to the Spanish Ministry. They will then perceive how, by an advance of money, they may in this instance increase our resources and our efforts in a degree much superior to the immediate sum, and they may be assured, that on a variety of other occasions, similar benefits will result from it. I take this opportunity, however, to observe to you, that I do not mean this, or any other communication, should be absolutely made. It is, on the contrary, my unalterable opinion, that a prudent Minister on the spot should be left to act with large discretionary power, being always furnished with such details, as will enable him to judge with propriety, and act with decision.

It will undoubtedly strike your observation, that the sum of four hundred thousand dollars is very small, considering the object which it is my design to effect. I acknowledge that it is so, and when I tell you, that I was very apprehensive that we should be unable to fill a larger subscription, and when I add, that it is far from certain we shall get all of this moderate sum, you will see still more clearly the force of those observations which I have already made. But it is weakness to be deterred by difficulties from a proper pursuit. I am, therefore, determined that the bank shall be well supported, until it can support itself, and then it will support us. I mean that the stock, instead of four hundred thousand dollars, shall be four hundred thousand pounds, and perhaps more. How soon it will rise to that amount, it is impossible to foresee. But this we may venture to assert, that if a considerable sum of specie can be speedily thrown into it, the period when its force and utility will be felt and known is not far off.

After I had determined to make the application to the Court of Madrid, which is contained in my letters, it was my next object to obtain for you such support as might materially favor your operations. For this purpose I have written to Dr Franklin, and have told him, that you would receive by this conveyance, and forward to him, copies of those resolutions and letters, which may be necessary to explain my appointment and powers. I lay this

task on your Secretaries, because the want of clerks in my office, and the many things to be done, together with the short time allowed me by the departure of the vessel, prevent me from having duplicates made out. I have written to the Doctor to apply to the Court of Versailles, to further your negotiations with their influence. I am confident his application will not be unsuccessful; but how you may derive most benefit from the cooperation of the French Court, you best can tell. Major Franks, therefore, is instructed to take your orders for Passy, and return thence to Philadelphia; so that you will have an opportunity of communicating fully with the Doctor on any subject you think proper. You may write to me by any opportunity, if this should arrive safe, because our cypher will prevent you from being exposed to interested or impertinent curiosity.

To obtain for you still further assistance, I have applied (in the absence of M. de la Luzerne, who is gone to camp,) to M. de Marbois for letters to their Ambassador at the Court of Madrid. I have stated my views, my hopes, and wishes, with that candor which is proper on such occasions, and which I wish to preserve on all occasions. M. de Marbois has, in consequence, written a letter on the subject, in which he informs the Ambassador of our conversation, states the disorders of our finances, and makes polite mention of my operations, my designs, and abilities, as well as the confidence reposed in me by Congress, and by the people at large. He details the proposed plans, and particularly that of the Bank, and shows forcibly the advantages, which would result from a considerable advance of money by Spain. He assigns also very proper reasons to show why it ought to be considerable, if it be made at all. The great interest of France in this business, as well as the open and candid manner, which has marked all transactions I have hitherto had with the Minister of that nation, induces me to believe that this letter is more than a compliment, and that as it is intended, so it will operate to produce the desired effect.

That nothing in my power might be wanting to the success of a business, which you must be convinced I have very much at heart, I have also applied to Don Francisco Rendon, who at present acts here for Spain, and I have every reason to believe that he will write to the Spanish Court such a letter as I wish. But after all, much, my Dear Sir, must depend on your prudence, your activity, and your attentions to incline, to stimulate, to lead the

Ministry into our views, to remove the obstacles, surmount the difficulties, and crush the procrastinations, which retard the completion of an object so essential to your country. I am happy to add, that I have the utmost confidence in your abilities, your industry, and integrity.

There is a possibility that money may be obtained from Portugal, and though I confess there is not a very solid ground to build on, and though it must be owned that appearances are against us, yet I think it best not too much to trust appearances, either favorable or unfavorable, and to leave nothing unattempted which may be useful. It was for reasons of this sort that my letter of the 9th instant, which I enclose you a copy of, was written to Congress. In consequence of it, on the 11th they passed a resolution, of which I also enclose you a copy, and have only to add, that you will act entirely according to your own discretion on this occasion. I cannot pretend to know the situation of the Court of Lisbon, and therefore I will not attempt to measure out a line of conduct to be pursued there. You are, for every reason, more competent to this business than I am, and therefore I submit it to your management entirely.

You will observe that a material part of my letter of the 9th remains unnoticed by Congress. The Committee had not yesterday reported upon it. Should anything be done previous to the departure of this vessel, you shall know it. But you are so well acquainted with the delays incident to public assemblies, that you will not be surprised if you hear nothing further on the subject.

It is unnecessary for me to make any other mention of Major Franks, except to inform you, that after a critical examination into his conduct by a court of inquiry, he was honorably acquitted of all improper connexion with his late General.^[29] For the rest, you are perfectly acquainted with him, and will therefore take that notice of him which he deserves.

I am, Dear Sir, your most obedient and humble servant,

ROBERT MORRIS.

FOOTNOTE:

[29] Major Franks was Aid to General Arnold at the time his treachery was discovered, but he was honorably acquitted from all suspicion of having any knowledge of Arnold's designs.

Plan of a Bank, referred to in the preceding Letter.

1. That a subscription be opened for four hundred thousand dollars, in shares of four hundred dollars each, to be paid in gold or silver.
2. That the subscription be paid into the hands of George Clymer and John Nixon, or their agents.
3. That any subscriber of less than five shares, pay the whole sum on the day of his subscription.
4. That every subscriber of five shares or upwards, pay one half the sum on the day of his subscription, and the other half within three months of that day.
5. That every holder of a share shall be entitled to vote by himself, his agent, or proxy, properly appointed, at all elections for directors, and that he have as many votes as he holds shares. And that every subscriber may sell and transfer his share or shares at his pleasure, the transfer being made in the bank book, in presence and with the approbation of the proprietor or his lawful attorney, the purchaser then to become entitled to the right of voting, &c.
6. That there be twelve directors chosen from among those entitled to vote, who at this first meeting shall choose one as president.
7. That there be a meeting of the directors quarterly, for the purpose of regulating the affairs of the bank; any seven of the directors to make a board, and that the board have power to adjourn from time to time.

8. That the board of directors determine the manner of doing business, and the rules and forms to be pursued, appoint the various officers, which they may find necessary, and dispose of the money and credit of the bank for the interest and benefit of the proprietors, and make from time to time such dividends out of the profits as they may think proper.

9. That the board be empowered from time to time, to open new subscriptions, for the purpose of increasing the capital of the bank on such terms and conditions as they shall think proper.

10. That the board shall, at every quarterly meeting, choose two directors to inspect and control the business of the bank for the ensuing three months.

11. That the inspectors so chosen shall, on the evening of every day, Sundays excepted, deliver to the superintendent of the finances of America, a state of the cash account, and of the notes issued and received.

12. That the bank notes, payable on demand, shall by law be made receivable in the duties and taxes of every State in the union, and from the respective States, by the Treasury of the United States, as specie.

13. That the superintendent of the finances of America shall have a right at all times to examine into the affairs of the bank, and for that purpose shall have access to all the books and papers.

14. That any director or officer of the bank, who shall convert any of the property, monies, or credits thereof to his own use, or shall any other way be guilty of fraud or embezzlement, shall forfeit all his share or stock to the company.

15. That laws shall be passed making it felony, without benefit of clergy, to commit such fraud or embezzlement.

16. That the subscribers shall be incorporated under the name of the President, Directors and Company of the Bank of North America.

17. That none of the directors shall be entitled to any pecuniary advantage for his attendance on the duties of his office of director, or as president, or inspector, unless an alteration in this respect shall hereafter be made by the consent of a majority of the stockholders at a general election.

18. That as soon as the subscription shall be filled, Mr George Clymer and Mr John Nixon shall publish a list of the names and sums respectively subscribed, with the places of abode of the subscribers, and appoint a day for the choice of directors, to whom, when chosen, they shall deliver over the money by them received.

Observations on the above Plan.

ART. 1st. The objects and use of a bank are too obvious to need illustration. But it may not be amiss to take notice, that the first moment of its getting into action, the credit arising from its funds can be made use of by the government of the United States in anticipation of taxes, in consequence of special agreements to be made between their superintendent of Finance and the directors for that purpose; and as the capital and credit of the bank increase, so may this mode of anticipation be increased, to answer all the purposes of government. It is, however, evident at the first view, that four hundred thousand dollars are not sufficient for those purposes, nor those of private commerce, because no considerable circulation of paper can be founded on so narrow a basis; yet it is dangerous to attempt more. It is not possible to determine what is the highest sum, that could speedily be obtained by subscription. To ask more than could be obtained would have a fatal effect; to ask less is a partial evil. It is, however, an evil which admits of a remedy, as is provided in the plan.

ART. 2d. Before the corporation is formed, and much more so before the subscription is opened, by which the company is to be determined, no authority can be bestowed under the corporation. At the same time, it must

be remembered, that in circumstances like ours, the loss of time involves in it the loss of many advantages. It becomes necessary, therefore, to appoint individuals to manage the subscription and receive the money. Mr Clymer and Mr Nixon having been formerly directors of the Bank of Pennsylvania, and being thereby generally known in that line, their names naturally present themselves for this purpose.

ART. 3d & 4th. The difference as to payments of large and small, is so common an incitement to subscribers, on such occasions, as to speak for itself.

ART. 5th. The subscribers, it is expected, will consist of citizens of every State in the Union; and, possibly, foreigners may subscribe or purchase bank stock; therefore the necessity and propriety of enabling them to vote by proxy; and this being a monied institution, it is just that every share be entitled to a vote.

ART. 6th. As the stockholders will mostly be absent from the place where the bank is kept, the number of twelve seems quite sufficient for the direction, as they will generally be chosen from the residents, and there ought to be room left for rotation among these.

ART. 7th & 8th. This plan, if adopted, will be considered as the constitution of the Bank, and therefore necessary to establish in it the powers of government by by-laws, rules, and regulations, and making dividends out of the profits; it is meant that they should annually pay a dividend of five or six per cent to the proprietors of the stock, and then settling the accounts of the bank, declare publicly, if necessary to give credit and confidence, what capital remains after such dividend. It will be observed, that such dividends are confined to be made out of the profits; consequently, the capitals can never be touched.

ART. 9th. When the directors, by paying a dividend out of the profits, establish the credit of the bank firmly in the minds of the stockholders, and by declaring the capital stock at the same time to be increased, give it equal confidence in the general opinion, there is little doubt but they may open new subscriptions for increasing the capital with certainty of success.

ART. 10th, 11th & 12th. As credit is the soul of all operations of this kind, every precaution should be taken to support it. In the course of things, much of the private property of America may be dependent on the conduct of affairs at the bank. Care, therefore, should be taken to prevent fraud and mismanagement. If the transactions were opened to public inspection, it would be impossible to do the business amidst the continued interruption; besides that, in this way, the national enemies would be apprized of our resources and operations. It is necessary, therefore, by instituting a check, to guard against the ill consequences which lie in the way, as the public will have much connexion with the bank, and, at times, deposit considerable sums of money in it, and always be availing themselves of its credit. The check should be in the hands of that officer who is appointed to manage the monied interests of America.

ART. 13th & 14th. The penalties on fraud and embezzlement are derived from the same source, and are supported by the same reasoning.

ART. 15th & 16th. The necessity of incorporating the bank is obvious, and the propriety of rendering the office of a director honorable, rather than lucrative, arises from this circumstance, over and above the difference between motives of fame and interest, that at present, any adequate salaries would absorb the profits, and in future the care of their own interests as stockholders will be an additional inducement to the first characters to accept the direction, for it is not doubted but every subscriber will increase his capital in the bank, so soon as he finds not only the national advantages it will produce, but sees clearly his private interest advanced beyond his most sanguine expectations.

ROBERT MORRIS TO JOHN JAY.

Office of Finance, August 15th, 1781.

Sir,

Enclosed you have a list of sundry bills of exchange drawn on you. I wrote you relatively to these bills on the 29th day of July last, with sundry enclosures explanatory of my letter. I am now to inform you, that the advices contained in that letter must, from particular circumstances, be totally disregarded. Should any of the bills, mentioned in the enclosed list, come to your hands, you will be pleased to protest them, and assign, if you please, as a reason therefor, that you have express instructions to that purport. The uncertainty, whether you have received my cypher, prevents my using it on this occasion. The importance of the subject obliges me to write, and as I send many copies, the risk of capture and inspection is too great to be more particular.

The gazettes will furnish you with our latest intelligence. That of New York announces the arrival of near three thousand Hessian troops, and the capture of the Trumbull frigate. Neither of these is a very agreeable circumstance. However, we must wait the course of events, and struggle, as well as we can, against adverse fortune. Our affairs to the southward wear no unpleasing aspect. And, although it is impossible, at this distance, to determine what effect European movements may have on American politics, our government acquires daily a firmness and stability, which will not easily be shaken.

I have the honor to be, &c.

ROBERT MORRIS.

JAMES LOVELL TO JOHN JAY.

Philadelphia, August 15th, 1781.

Sir,

Herewith you will receive according to the resolution of Congress of the 10th, such information relative to the surrender of Pensacola, and the subsequent arrival of the garrison at New York, as I have been able to

obtain, which you will make use of according to your discretion, and the spirit of the enclosed resolution.

I am, Sir, your friend and very humble servant,

JAMES LOVELL.

P. S. August 16th.—It appears to me not amiss to enclose to you a report of a committee on the 10th, as it stands negatived on the journals of Congress.
J. L.

TO THE PRESIDENT OF CONGRESS.

St Ildefonso, September 20th, 1781.

Sir,

Your Excellency's favor of the 5th of July last, with the papers therewith enclosed, were delivered to me on the 29th ult. by Major Franks, whom the procrastination of the Minister still obliges me to detain.

The new commissions, with which Congress have honored me, argue a degree of confidence, which demands my warmest acknowledgments, and which, so far as it may be founded on an opinion of my zeal and integrity, they may be assured will not prove misplaced.

At the commencement of the present troubles, I determined to devote myself, during the continuance of them, to the service of my country, in any station in which she might think it proper to place me. This resolution, for the first time, now embarrasses me. I know it to be my duty, as a public servant, to be guided by my own judgment only in matters referred to my discretion, and in other cases faithfully to execute my instructions, without questioning the policy of them. But there is one among those which accompanies these commissions, which occasions sensations I never before experienced, and induced me to wish that my name had been omitted.

So far as personal pride and reluctance to humiliation may render their appointment contra-agreeable, I view it as a very unimportant circumstance, and should Congress, on any occasion, think it for the public good to place me in a station inferior and subordinate to the one I now hold, they will find me ready to descend from the one, and cheerfully undertake the duties of the other. My ambition will always be more gratified in being useful than conspicuous; for, in my opinion, the solid dignity of a man depends less on the height or extent of the sphere allotted to him, than on the manner in which he may fulfil the duties of it.

But, Sir, as an American, I feel an interest in the dignity of my country, which renders it difficult for me to reconcile myself to the idea of the sovereign independent States of America submitting, in the persons of their Ministers, to be absolutely governed by the advice and opinions of the servants of another sovereign, especially in a case of such national importance.

That gratitude and confidence are due to our allies, is not to be questioned, and that it will, probably, be in the power of France almost to dictate the terms of peace for us, is but too true. That such an extraordinary extent of confidence may stimulate our allies to the highest efforts of generous friendship in our favor is not to be denied, and that this instruction receives some appearance of policy from this consideration may be admitted.

I must, nevertheless, take the liberty of observing, that however our situation may in the opinion of Congress render it necessary to relax their demands on every side, and even to direct their Commissioners ultimately to concur (if nothing better could be done) in any peace or truce not subversive of our independence, which France determined to accede to, yet that this instruction, besides breathing a degree of complacency not quite republican, puts it out of the power of your Ministers to improve those chances and opportunities, which in the course of human affairs happens more or less frequently to all men. Nor is it clear, that America, thus casting herself into the arms of the King of France, will advance either her interest or reputation with that or other nations.

What the sentiments of my colleagues on this occasion may be, I do not as yet know, nor can I foresee how far the negotiation of the ensuing winter

may call for the execution of this commission. Thus circumstanced, at such a distance from America, it would not be proper to decline this appointment. I will, therefore, do my best endeavors to fulfil the expectations of Congress on this subject, but, as for my own part, I think it improbable, that serious negotiations for peace will soon take place. I must entreat Congress to take an early opportunity of relieving me from a station, wherein, in character of their Minister, I must necessarily receive (and almost under the name of opinions) the directions of those on whom I really think no American Minister ought to be dependent, and to whom, in love for our country and zeal for her service, I am sure that my colleagues and myself are at least equal.

I have the honor to be, &c.

JOHN JAY.

P. S. I had an interview last evening with the Minister. Nothing was promised or denied. A person is to be named on Sunday to confer in earnest, as it is said, with me about the treaties. I do not despair, though having so many bills to pay, and no money, perplexes me extremely. The treasury of Spain is very low; much of the money for the expenses in this war costs them between thirty and forty per hundred, by mismanagement and want of credit. This ought not to be public. His Excellency still looks at your ships on the stocks, but I shall, without refusing, not consent to their changing masters. J. J.

TO THE PRESIDENT OF CONGRESS.

St Ildefonso, October 3d, 1781.

Sir,

My letter of the 25th of April last, by Mr Toscan, informed Congress, that on the 30th day of January preceding, I had the honor of receiving their letters of the 6th and 17th of October, 1780, the latter of which states

particularly and ably the right of the United States to the free navigation of the river Mississippi, and enumerates the various reasons which induce them to decline relinquishing it.^[30]

Among these reasons is the guarantee contained in the treaty with France. I hinted to Congress, that it was more than probable, that the contents of this interesting letter were well known to the French Court before it came to my hands. I am well persuaded, that this was the case. Shortly after receiving it, I took occasion to converse generally with the Ambassador on the subject of the Spanish pretensions to that navigation, and remarked, as it were inadvertently, how unreasonable it was for them to expect, that we should relinquish a territorial right, which both justice and the guarantee of France enabled us to retain. The thought did not appear new to him, but he strongly combated this construction of the treaty, and endeavored to explain it away by observing, that the guarantee could not comprehend claims, whose objects we had never possessed, &c. &c. I mention this only to show how improper it would have been for me to have communicated this part of your Excellency's letter to the Spanish Minister. It could have answered no good purpose, because, as France would have disputed this construction, Spain could with propriety have refused to admit the force of any argument drawn from it, and it might have done much mischief, not only by bringing on an unseasonable explanation between France and us, but also between Spain and France.

If I had given the Spanish Minister a copy of every other part of this letter, except those paragraphs which contain the reasoning in question, the omission might in future have been urged by France, who I verily believe has a copy of that whole letter, as an argument for my having yielded that point as not tenable; and though my opinion might not be of much consequence, it appeared to me most prudent to avoid doubts about it. For my own part I really did, and do think, that this guarantee does comprehend the navigation in question, though I also think, that no question should be raised about it at present. So circumstanced, I thought it most advisable to make no written communications of any parts or part of this letter, but from time to time to press every argument contained in it in the course of conversations with the Spanish Minister, except those drawn from the guarantee.

The Minister, however, did not at any time enter into the merits of these arguments, nor appear in the least affected by them. His answer to them all was, that the King of Spain must have the Gulf of Mexico to himself, that the maxims of policy adopted in the management of their colonies required it; and that he had hoped the friendly disposition shown by this Court towards us would have induced a compliance on the part of Congress.

As to a free port below the northern limits of West Florida, or anywhere else in the vicinity, the Minister sometimes wished certain regulations, some middle line might be devised, to reconcile the views of both parties, but he did not see how it could be done. The King had always been accustomed to consider the exclusive navigation of the Gulf of Mexico as a very important object to Spain, more so indeed than even Gibraltar, and he was persuaded, that his Majesty would never be prevailed upon to change his ideas on that subject. At other times he spoke clearly, and decidedly against it, saying, that it was their desire to exclude all nations from the Gulf, and that it made little or no difference, whether they admitted all nations or only one.

In my letter of the 25th of April last, I informed your Excellency, that on the 25th of March preceding, the Minister sent me word, that the money necessary to pay the bills due in April could not be advanced to me. The constant inconsistency I experienced between the Minister's promises and conduct often surprised, as well as embarrassed me. This last instance appeared to me to be really cruel; for if he had intended to withhold the necessary supplies, he ought to have given me notice of it, and not by keeping up my expectations to within a few days before the holders of the bills were to call upon me for their money, (and the bills of April amounted to eightynine thousand and eightythree dollars,) reduce me to such imminent danger of being obliged to protest them. Speaking on this subject with the French Ambassador, he intimated, that the Court expected I should have made them some further overtures respecting the Mississippi. I told him I had no authority to make any others than what I had already made. He replied, that the Minister believed I had. At that time I had received no letters, public or private, which gave me the least reason to suspect, that Congress had passed the resolution of the 15th of February last,^[31] and it was not before the 18th of May, that a letter, I then received from Mr Lovell, enabled me to understand the reason of the Minister's belief. I then

recalled to mind his frequent assurances of frankness, and of his speaking without reserve, often adding, that he was well informed of our affairs, and had minute information of what was passing at Philadelphia. There can be no doubt but that some copies of the President's letters to me have fallen into his hands, and that he supposed I had received others, though this was not in fact the case. Hence it appears, that the double miscarriage, if I may so call it, of these letters, had an unfavorable influence on our hopes of pecuniary aids, for it is highly probable, that in this instance they were so critically withheld on purpose to extort overtures from me, which the Minister, though mistaken, had reason to believe I was in a capacity to make.

Your Excellency will perceive from this, how important it is, that your letters, to and from your Ministers, be transmitted in a manner not subject to these inconveniences.

It was not, as I said before, until the 18th of May, that Mr Lovell's letter, enclosing a copy of the resolution of Congress of the 15th of February, reached me. It was brought to Cadiz by the Virginia, and it is remarkable, that none of the journals, or gazettes, nor the letter from Congress, which Mr Lovell gave me reason to expect, ever came to my hands. But as all the papers brought by the Virginia passed through the hands of the Governor of Cadiz, and afterwards through the Post Office, the suppression of some of them may be easily accounted for.

As Mr Lovell's letter did not appear to be official, nor the copy of the instruction of the 15th of February authenticated, I was much at a loss to determine how far it was to be considered as a measure finally concluded upon, and this difficulty was increased by another, viz. whether my having no letter on the subject from the President was to be imputed to the miscarriage of it, or to a reconsideration of the instruction in question; for I recollected, that resolutions had in some former instances been reconsidered, and either altered or repealed a few days after their date; for these reasons it appeared to me imprudent immediately to hazard overtures on the ground of this instruction.

The next day, the 19th of May, I thought it expedient to wait upon the Minister, and again renew the subject of our proposed treaty, expecting that

if he was acquainted with the contents of my letter, something might drop from him in the course of conversation, which would lead me to judge of what he might, or might not know on that subject, and others connected with it.

He received me with more than usual cordiality. The conversation turned at first on the situation of the southern States, the late combat between the fleets in the Chesapeake, and General Greene's retreat. He appeared to apprehend much danger from what he called the delicate situation of our army there, and the blockade of the reinforcement intended for it, under the Marquis de la Fayette. I endeavored to remove such of his fears as appeared to be ill-founded, and (though without leaving room to suppose that the operations of Spain were indispensable to our safety,) represented to him the good policy and probable success of France and Spain's seriously turning their attention and force to the expulsion of the enemy from America. I then repeated what I had often before remarked to him, respecting the influence which the hesitations and delays of Spain in forming a treaty with us must naturally have on the hopes and fears of Britain. I announced to him formally the completion of our confederation by the accession of Maryland, and after dwelling on the advantages, which the States and their allies might expect from it, I endeavored to impress him with an opinion, that a cordial union between France, Spain, Holland, and America, supported by vigorous measures, would soon reduce the enemy to the necessity of listening to reasonable terms of peace.

The Count replied, generally, that he was very minutely informed of the state of our affairs. That the good dispositions of Congress towards Spain had not as yet been evinced in a manner the King expected, and that no one advantage had hitherto been proposed by America to Spain, to induce the latter to come into the measures we desired. That the views of Congress were such as would not permit his Majesty to form a treaty with the States, but that the King was an honest man, and I might again and again assure Congress, that he would never suffer them to be sacrificed to Britain, but on the contrary would with constancy maintain the friendship he had professed for them. That Britain had in vain attempted to deceive Spain; that Mr Cumberland had been sent here for that express purpose, but that, however possible it might be for Britain to vanquish, she would never be able to

deceive Spain; that he wished Congress had been more disposed to oblige the King. He knew indeed that opposition in sentiments must necessarily prevail in public bodies, but that he hoped for the best. That I ought to preach to them forcibly, for that he thought a good preacher (*un bon prédicateur*,) would do much good, thereby intimating, as I understood it, that Congress were not sufficiently apprised of the importance of Spain, and the policy of complying with her demands.

To all this I briefly remarked, that his Excellency's knowledge of American affairs must convince him, that it was not in their power to give his Majesty other proofs of their attachment than what they had already done, and that if he alluded to the affair of the Mississippi, I could only add one remark to those which I had often made to him on that head, viz. that even if a desire of gratifying his Majesty should ever incline Congress to yield to him a point so essential to their interest, yet it still remained a question whether new delays and obstacles to a treaty would not arise to postpone it.

The Count smiled, said he always spoke frankly, and that whenever I should announce to him my having authority to yield that point, I might depend on his being explicit, and candid, but as matters stood at present, he could say nothing on that head. He then informed me, that M. Gardoqui would set out for America the beginning of June. He said it might be in my power to furnish some useful hints and observations relative to the objects and conduct of his mission, adding that he reposed full confidence in me, and wished that I would also consider whether there were any particular reasons which might render it advisable, either to hasten or retard his going.

I suspected there was too much meaning in all this to admit of my entering into these discussions without time for further reflection; and, therefore, without seeming to avoid it, I told the Count I was happy to hear, that M. Gardoqui was so near his departure. That I considered myself much honored by his requesting my remarks relative to it, and that I was sure Congress would draw agreeable conclusions from his mission. That I should write by him to Congress, and as they would expect to learn from me the precise character in which they were to receive, and consider him, it became necessary, that his Excellency should favor me with that information, as well to enable me to transmit the proper advices to

Congress, as to make the remarks which he had done me the honor to request. That I conceived this to be the more indispensable, because if M. Gardoqui should carry no public testimonials from this Court to Congress, he could only be considered by them as a private gentleman, and all his intercourse with Congress would of consequence be subjected to all the inconveniences resulting from it.

This topic carried the conversation off the delicate ground to which the Count had led it. He admitted the propriety of my being exactly apprized of the nature of M. Gardoqui's commission, said that as yet it was not decided, and therefore for the present could only give me his opinion of what it would probably be.

He observed that circumstances did not render it proper, that he should go as Minister, though perhaps it might be proper to give him contingent powers. That it was the common practice, where Courts sent to each other persons charged with their affairs, in a character below that of Minister, to give no other credentials than a letter of advice from the Minister of the Court sending to the Minister of the Court receiving the person in question. That the same practice was about to be pursued by Spain towards Prussia, and had been observed in other instances; therefore, he believed the like method would be adopted in this case. That if it should be purposed to give M. Gardoqui a letter authenticating his being an agent of Spain, it would be either to the President, or the Secretary of Congress, and asked me which of the two would be the most proper.

Whether he really was uninformed on this point, or whether he asked the question merely to try my candor, cannot easily be determined. I told him honestly, that Congress had no Secretary or Minister of State for general purposes, nor for foreign affairs particularly, and that neither the President nor Secretary of Congress could regularly be considered in that light. That there was a committee of Congress, whose appointment came near to that of Secretary for foreign affairs, but that I had heard Congress were about establishing a more proper and regular mode of conducting the affairs committed to that committee, and had perhaps already done it. That therefore it was difficult for me to give his Excellency a clear and decided opinion on the subject, and the more so as the letters which I daily expected

to receive from the President, and which probably contained exact information relative to this very matter, had not yet come to my hands. He seemed very well satisfied, and extended his civilities so far as to say, that if at any time the warmth of his temper had led him into any harshness of expression, he hoped I would forget it. I told him, and that was the fact, that I did not recollect any part of his behavior to me, which required that apology. He desired me to wait upon him again on the Wednesday next.

As to the instructions of the 15th of February, I had every reason to wish it had been a secret to the Ministry. The propriety of them is a subject without my province. To give decided opinions of the views and designs of Courts always appeared to me hazardous, especially as they often change, and as different men will often draw different conclusions from the same facts. This consideration has constantly induced me to state facts accurately and minutely to Congress, and leave them to judge for themselves, and be influenced only by their own opinions.

I could not forbear, however, seeing the danger to which the proviso contained in that instruction exposed me. I have no reason to flatter myself, that, more fortunate than others, the propriety and policy of my conduct will not be drawn, at least impliedly, into doubt. If I should, on a persuasion that this cession would be unalterably insisted upon by Spain, yield that point, I am certain that many little half-created doubts and questions would be cast into, and cultivated in America. If, on the other hand, I should be of opinion that this point could be gained, and the event prove otherwise, it would soon be whispered, what rich supplies and golden opportunities the United States had lost by my obstinacy.

I permitted my mind to dwell on these considerations, merely that I might, by the utmost degree of circumspection, endeavor to render the uprightness and propriety of my conduct as evident as possible.

My only difficulty arose from this single question. Whether I could prudently risk acting on a presumption, either that Spain did not already, or would not soon be acquainted with the contents of this instruction. If such a presumption had been admissible, I should, without the least hesitation, have played the game a little further, keeping this instruction in my hand as a trump card, to prevent a separate peace between Spain and Britain, in case

such an event should otherwise prove inevitable. Had Spain been at peace with our enemies, and offered to acknowledge, guaranty, and fight for our independence, provided we would yield them this point, (as once seemed to be the case) I should, for my own part, have no more hesitation about it now than I had then. But Spain being now at war with Great Britain, to gain her own objects, she doubtless will prosecute it full as vigorously as if she fought for our objects. There was and is little reason to suppose that such a cession would render her exertions more vigorous, or her aids to us much more liberal. The effect, which an alliance between Spain and America would have on Britain and other nations, would certainly be in our favor, but whether more so than the free navigation of the Mississippi is less certain. The cession of this navigation will, in my opinion, render a future war with Spain unavoidable, and I shall look upon my subscribing to the one as fixing the certainty of the other.

I say I should have played this game a little further, if the presumption before mentioned had been admissible, because it has uniformly been my opinion, that if after sending me here Congress had constantly avoided all questions about the Mississippi, and appeared to consider that point as irrevocable, Spain would have endeavored to purchase it by money, or a free port, but as her hopes of a change in the opinion of Congress were excited, and kept alive by successive accounts of debates, and intended debates on that question, and as Congress by drawing bills without previous funds had painted their distress for want of money in very strong colors, Spain began to consider America as a petitioner, and treated her accordingly. But as by the intervention of Dr Franklin, our bills for near six months were safe, and as after this resolution of the 15th of February, there was reason to expect that the subject of it would not soon be resumed in Congress, I should, in case I could have depended on this instruction's being and remaining a secret, have thought it my duty to have given the United States a fair trial for the Mississippi, or at least for a free port near it. With this view I should have appeared to give myself no concern about the bills, applied for no aids, made no offers, and on all proper occasion have treated an alliance with Spain as an event, which, though wished for by us, was not essential to our safety, and as the price demanded for it appeared to us unreasonable, it was not probable we should agree. I think we should then have been courted in our turn, especially as the Minister was very desirous

of having our men-of-war on the stocks, and that thus dealing with them on terms of equality, would have produced some concessions on their part, as inducements to greater ones on ours. I am persuaded in my own mind, that prudent self-respect is absolutely necessary to those nations, who would wish to be treated properly by this Court, and I have not the least doubt but that almost any spirit will prosper more here, than that of humility and compliance. I had no doubt but that this plan of conduct would have been perfectly consistent with that part of the instruction, which orders me to make every possible effort to obtain from his Catholic Majesty the use of the river aforesaid, &c. For whatever might have been, or may be, my private sentiments, they shall never in mere questions of policy influence me to deviate from those of Congress.

But on the other hand there being abundant circumstantial evidence to induce a firm persuasion, that the Ministry were well acquainted with the contents of this instruction, this plan would have been idle. The moment they saw that the cession of this navigation was made to depend upon their persevering to insist upon it, it became absurd to suppose, that they would cease to persevere. All that remained for me therefore to do was, in the next conference to break this subject as decently as possible, and in such a manner as would account for my not having mentioned this instruction at our last meeting.

On Wednesday evening, the 23d of May, I waited upon the Count agreeably to his appointment. The Count seemed a little hurried in his spirits, and behaved as if he wished I had not come. He asked me rather abruptly, if I had anything particular to communicate to him, and whether I had received any further letters. I told him I had received some private ones from L'Orient, but that none from the President of Congress had as yet, reached me, though I had reason to expect one by that opportunity, as well as by the vessel lately arrived at Cadiz. I informed him of my having received from Mr Harrison a copy of his memorial to the Governor of Cadiz, complaining that letters brought for him by the Virginia, from Philadelphia, had been stopped at the gates, on pretence, that they must agreeably to an ordinance for that purpose be put into the post office, and charged with the like postage as if brought from Spanish America. He said he had not yet received a copy of the memorial, but that there was such an ordinance, and

that it was highly proper the admission of letters into the kingdom, especially in time of war, should be under the direction of government. That letters from North America rendered new regulations necessary, and that he would turn his thoughts to this subject, and do what should appear equitable. This was another proof of what I before suspected, and looked like an indirect apology for opening my letters.

It surprised me a little that he said nothing of the remarks he had desired me to make on M. Gardoqui's going to America, especially as he had appointed this meeting for that purpose. To give him further time, I started a new subject, and begged he would take the earliest opportunity of completing the business of the Dover cutter. Notwithstanding all that had before passed between us about this affair, he affected to be very ignorant of it, and asked me a number of questions. I recapitulated the circumstances of the capture, my several applications to him on the subject, his promise finally to order the prize to be appraised, and the value to be paid to the captors, the arrival of one of them at Madrid, &c. &c. He replied, with some degree of quickness and perplexity, that it was not a lawful prize, the crew not having authority to do what they did; that he had sent to the Canaries for particular information respecting the value, &c. that two of the packet boats had been taken; that he would pay some gratuity to the captors, and wished I would give him another state of the whole case in writing, to refresh his memory, which I promised to do, and have since done.

He then resumed the subject of the letter, which I expected from Congress. He expressed his regret at its not having arrived, said he was preparing instructions for M. Gardoqui, who would certainly depart in June, and that until I could give him precise information of the dispositions of Congress, he could not enter into any further conversations on the subject of the proposed treaty. I joined in regretting the miscarriage of my public letter, and the more so, as my private ones gave me reason to expect instructions, which would enable me to comply so far with his Majesty's views, as that I hoped no further delays would intervene to prevent a perfect union between Spain and the United States. That my correspondence had given me to understand that Congress viewed the speedy accomplishment of this union as very important to the common cause; and, therefore, if Spain would consent forthwith to come into it, in that case they would gratify his

Majesty by ceding to him the navigation of the Mississippi, below their territories, on reasonable terms.

He replied, that he earnestly desired to see all difficulties on this point removed, but that the treaties subsisting between Spain and other nations, as well as the particular policy and determination of Spain, rendered it necessary that she should possess the exclusive navigation of the Gulf of Mexico. After a variety of other remarks of little importance, he made a very interesting observation, which will help us to account for the delays of the Court, viz. That all these affairs could with more facility be adjusted at a general peace than now, for that such a particular, and even secret treaty with us might then be made, as would be very convenient to both. That he nevertheless wished to know exactly the views and intentions of Congress, but that I must wait for the arrival of my letters, and that he would in the meantime finish M. Gardoqui's instructions, whose going to America, he did not doubt, would make a useful impression on the English Court. I was beginning to reply to what he said when he interrupted me, by mentioning his not having time at present to prolong the conference.

Throughout the whole of this conversation, the Count appeared much less cordial than in the preceding one; he seemed to want self-possession, and to that cause I ascribe his incautiously mentioning the general peace as the most proper season for completing our political connexions. I had, nevertheless, no reason to suspect that this change in his behavior arose from any cause more important than those variations in temper and feelings, which they, who are unaccustomed to govern themselves often experience from changes in the weather, in their health, from fatigue of business, or other such like accidental causes.

As I had not as yet received any letter from the President, either by the Virginia, or the vessel lately arrived at L'Orient, nor by Colonel Laurens, who, I was informed, had brought letters for me, I concluded it would be most prudent to wait ten days, or a fortnight, before I proceeded to act on the copy of my instruction received from Mr. Lovell, expecting that such other letters as might then have arrived in France or Spain for me, would reach me in the course of that interval, if at all. And I determined, in case I should receive none, to proceed, without further loss of time, to make a

formal overture to the Minister for a treaty on the ground of this instruction. It happened, however, that the Minister was so occupied during the remaining time that the Court staid at Aranjues, by the expedition preparing to sail from Cadiz, under the Duke of Crillon, and other matters, that it was impossible to engage a moment of his attention to American affairs. The removal of the Court to Madrid necessarily consumed some time, and as soon as they were well settled there, I wrote the Count the following letter; none of the letters expected from America having come to my hands.

TO THE COUNT DE FLORIDA BLANCA.

Madrid, July 2d, 1781.

"Sir,

"When Congress were pleased to order me to Spain, with the commission of which I have had the honor of presenting a copy to your Excellency, I left my country with the most sanguine expectations, that the important objects of it would be speedily accomplished. The proofs they had received of his Majesty's friendship for them, the interests of a common cause, and the information they had received from persons whom they conceived in capacity to give it, all conspired to infuse these hopes.

"On my arrival, your Excellency gave me to understand, that the realising these expectations would turn on one point, and I have uniformly since been informed, that this point was the navigation of the Mississippi below the territories of the United States, in which Congress desired to retain a common right, but of which the maxims of policy adopted by his Majesty required the exclusive use.

"I have now the honor of informing your Excellency, that Congress, in order to manifest in the most striking manner the sincerity of their professions to his Majesty, and with a view that the common cause may immediately reap all the advantages naturally to be expected from a cordial and permanent union

between France, Spain, and the United States, have authorised me to agree to such terms relative to the point in question, as to remove the difficulties to which it has hitherto given occasion.

"Permit me, therefore, to hope, that his Majesty will now be pleased to become the ally of the United States, and for that purpose authorise some person or persons to adjust with me the several points of compact necessary to form a union, which, by being founded on mutual interest, may be no less satisfactory than it certainly will be important to both countries.

"Your Excellency will oblige me exceedingly, by putting it in my power to give Congress early, explicit, and, let me add, agreeable information of his Majesty's pleasure and intentions on the subject of this letter.

"I have the honor to be, &c.

JOHN JAY."

Although it was sufficiently evident, that the Court of France could not, for the reasons assigned in my letter to Congress, of the 6th of November, 1780, openly and warmly interpose their good offices to bring about this treaty, it nevertheless appeared to me most prudent, to behave on this occasion towards the Ambassador, as if I knew nothing of those reasons, and, therefore, sent him a copy of the foregoing letter to the Minister, enclosed in one of which the following is a copy.

TO THE COUNT DE MONTMORIN.

"Madrid, July 2d, 1781.

"Sir,

"I have the honor of transmitting to your Excellency herewith enclosed, a copy of a letter I have this day written to his Excellency, the Count de Florida Blanca. I have thereby informed him of my being authorised to remove the objections

hitherto made by the Court of Spain to a treaty of alliance with the United States, and again requested that the measures necessary for the purpose may now be taken.

"Permit me to request, that the favorable interposition of our kind and generous ally with his Catholic Majesty may be exerted to commence the proposed negotiation, and bring it to a speedy and happy conclusion.

"The confidence justly reposed by America in the amity and assurances of his Most Christian Majesty, forbid me to urge this request by any arguments, (persuasives being indelicate, when not warranted by doubts of inclination.) I am happy in reflecting, that his instructions on this subject are committed to the execution of a Minister, from whose attachment, as well as from whose talents and address, the American cause may expect to derive advantage.

"I have the honor to be, &c.

JOHN JAY."

The instructions above alluded to are those, which Count de Vergennes, in his letter to me of the 13th of March, 1780, assures me should be sent to their Ambassador here. I must confess to Congress, that I very much doubt his ever having received any other instructions, than generally to favor the treaty, and to manage his interference in such a delicate manner, as, without alarming the pride of Spain, to give both parties reason to think themselves obliged.

The French Ambassador sent me no answer to this letter, which, in my opinion, gives a greater degree of probability to my conjectures. I must, nevertheless, do him the justice to say that I have great reason to believe him to be in sentiment, and with sincere attachment, a friend to our cause; and that he considers the honor and interest of France deeply concerned in the success and support of it.

On the 11th of July, having received no answer from the Minister, I waited upon him. He told me, he had received my letter, but that the short time the Court would remain at Madrid, and the multiplicity of business that he was obliged to despatch, would not admit of his attending to our affairs till after the arrival of the Court at St Ildefonso. He then informed me, that a vessel had arrived at Cadiz, which had brought despatches for me, and that his courier had brought them to Madrid. He then delivered me a number of letters, among which was one from his Excellency the President, of the 28th of May last. [\[32\]](#)

I need not observe, that all these letters bore evident marks of inspection, for that has uniformly been the case with almost every letter I have received.

I do not recollect to have ever received a letter that gave me more real pleasure. When I considered, that almost the whole time since I left America had afforded me little else than one continued series of painful perplexities and embarrassments, many of which I neither expected, nor ought to have met with; that I had been engaged in intricate and difficult negotiations, often at a loss to determine where the line of prudence was to be found, and constantly exposed by my particular situation to the danger of either injuring the dignity and interest of my country on the one hand, or trespassing on the overrated respectability and importance of this Court, on the other; I say, Sir, that on considering these things, the approbation of Congress gave me most singular and cordial satisfaction.

I was also happy to perceive from this letter, that the plan of my late letters to the Minister and French Ambassador, of the 2d of July, above recited, happens to correspond exactly with the views of Congress, respecting the manner of conducting this negotiation.

It appearing to me, that the communication I was directed to make to this Court could not be better made than in the very words of this letter, which seemed exceedingly well calculated for the purpose, I recited them in a letter, which I wrote two days afterwards to the Minister, viz.

TO THE COUNT DE FLORIDA BLANCA.

Madrid, July 13th, 1781.

"Sir,

"I have now the honor of communicating to your Excellency a copy of certain instructions I have just received from Congress, dated the 28th of May, 1781, and which were included in the despatches, which your Excellency was so obliging as to deliver to me the evening before the last, viz.

"It is their instruction, that you continue to acknowledge on all suitable occasions, the grateful impression made on these States by the friendly disposition manifested towards them by his Catholic Majesty, and particularly by the proofs given of it in the measures which he has taken, and which it is hoped he will further take for preserving their credit, and for aiding them with a supply of clothing for their army.

"You are also authorised and instructed to disavow in the most positive and explicit terms, any secret understanding or negotiation between the United States and Great Britain, to assure his Catholic Majesty that such insinuations have no other source than the insidious designs of the common enemy, and that as the United States have the highest confidence in the honor and good faith, both of his Most Christian and his Catholic Majesty, so it is their inviolable determination to take no step, which shall depart in the smallest degree from their engagements with either.'

"It gives me pleasure to observe that these instructions confirm, in the fullest manner, the assurances and professions I have heretofore made to your Excellency respecting the sentiments and dispositions of the United States, and I flatter myself that his Majesty will be pleased to consider the assurances they contain, as receiving unquestionable proofs of sincerity from the offer I have already made to confirm them by deeds, no less important to the interests than, I hope, consistent with the views and desires of his Majesty.

"I cannot omit this occasion of presenting my congratulations on the success of his Majesty's arms at Pensacola. This event cannot fail of being followed by important consequences to the common cause, and may perhaps induce the enemy to expect greater advantages from concluding a reasonable peace, than continuing to protract an unrighteous war.

"Having understood, shortly after receiving my letters from your Excellency, that the Court had also received despatches from Philadelphia, I presumed that the communication of any gazettes from thence, which indeed contain all the intelligence I have, would be useless, and therefore did not send them; but on considering that it was possible that the papers I had might be of later date than those which your Excellency might otherwise receive, I now take the liberty of enclosing two, which contain accounts somewhat interesting. If they should be new to your Excellency, I beg that their not being sooner sent will receive an apology from the abovementioned circumstance; and that your Excellency will remain assured of the perfect respect and consideration with which I have the honor to be, &c.

JOHN JAY."

I also took the earliest opportunity of mentioning to the Ambassador of France, that my letters from America gave me reason to believe that our union was daily growing more warm and intimate, and that Congress, in writing of their affairs here, had expressed themselves in the strongest terms of attachment to his Most Christian Majesty, and not only approved of my communicating freely and confidentially with his Ambassador here, but also directed me in express terms to endeavor, in the course of my negotiations, to include and promote the interests of France.

The Ambassador was much pleased. He told me his letters assured him that the best understanding subsisted between the French and American troops, and that much good might be expected from the increasing harmony and intercourse between the two countries.

The Court removed to St Ildefonso without the Minister's having either given any instructions to M. Gardoqui, answered my abovementioned letters, or taken the least notice of my late representations to them about the Dover cutter, &c.

The events of the campaign were as yet undecided, and little money in the treasury.

On the 21st of July the Minister wrote me the following note, in which there was ample field left open for procrastination.

Translation.

"The Count de Florida Blanca presents his compliments to Mr Jay, and has the honor of acquainting him, that he has duly received his two letters of the 2d and 13th instant. The short stay of the Court at Madrid allowing time only to despatch the most pressing business, the Count de Florida Blanca has not been able to take into consideration the points, which form the object of the abovementioned letters. He proposes therefore to do it at present, in order to render an account thereof to the King, and in the meanwhile he has the honor to repeat to Mr Jay the assurances of the most perfect esteem and consideration.

"St Ildefonso, July 21st, 1781."

On the 4th of August, I arrived here. I did not see the Minister till the 8th, he being, as I was told, from home. He had made no communications to the King. He had been sick; he had been busy, and was so still. I requested to be informed when it would be most convenient to him to confer with me on the subject of my late letters, and to give me such information relative to his Majesty's intentions, as he might be prepared to communicate to me. He answered, that he could not then fix a time, being exceedingly hurried by pressing business. He asked how long I proposed to stay, I told him till the Court removed. He then promised to take an early opportunity of conferring with me on the subject of our affairs, and promised to send me word when he should be ready to receive me.

I remained in this state of suspense and expectation until the 18th of August, when having been for a week past very much indisposed with a fever and dysentery, and fearing lest that circumstance might become a ground of delay, I wrote the Count word, "that my health would permit me to wait upon his Excellency at any time and place he might do me the honor to name." He replied two days afterwards, in a manner which indicated his supposing I had gone to Madrid and had returned. He must have known better, for none of my family had been absent from hence, and one or other of them were almost daily about the palace and gardens.

Translation.

"The Count de Florida Blanca is charmed to learn, that Mr Jay has sufficiently recovered from his last indisposition to make the journey from Madrid to this place, and thanks him for his attention in communicating it to him.

"The very pressing business with which he finds himself at present surrounded does not permit him to fix the day for a conference with Mr Jay, but the moment he shall be a little disengaged, he will have the honor to advise Mr Jay of it.

"St Ildefonso, August 20th, 1781."

On the 22d I sent him a note enclosing a newspaper, which contained an account of General Greene's operations, the capture of Fort Watson, &c.

The Count answered this note by another, expressing his thanks for the intelligence, but not a word of a conference.

On the 30th of August Major Franks arrived here with interesting despatches, of which I must not here take notice, lest I interrupt the thread of this letter, which I devote particularly to the affair of our negotiations for a treaty.

There was indeed among these despatches a very sensible letter from Mr R. Morris to me about money matters,^[33] &c. excellently well calculated for being shown entire to the Minister.

I consulted with the French Ambassador on the propriety of giving the Minister a copy of it. He advised me to do it, and much commended the letter. As it might have suffered from being carelessly translated, I had it put into very good French.

I was very glad to see the Major. The nature of the despatches he brought being a secret occasioned speculation, and gave me an opportunity of drawing further advantages from his arrival. His accounts of American affairs were favorable to us, and the manner of his behavior and conversation has not done discredit to himself, nor prejudice to his country.

The Ambassador of France having assured me that the Minister had really been a good deal indisposed, I thought it would be best to write him a letter in a style somewhat adapted to his situation. He certainly appears to be fatigued, and worn down by business. He looks as I have seen some members of Congress look, after two years' attendance.

TO THE COUNT DE FLORIDA BLANCA.

"St Ildefonso, September 3d, 1781.

"Sir,

"When I consider that the delicate state of your Excellency's health demands a greater degree of leisure and relaxation, than the various business of your office will permit, it is with great reluctance, that I can prevail upon myself to remind your Excellency, that since our conference at Aranjues, the affairs of the United States at this Court have made no progress.

"The short residence of his Majesty at Madrid, I am persuaded, made it necessary to postpone the discussion of these affairs to this place; and since my arrival here on the 4th of August last, I have daily flattered myself with being enabled to communicate to Congress his Majesty's pleasure on the important subjects, which by their order I have had the honor of laying before your Excellency.

"It has also for some time past been my duty to have requested your Excellency's attention to some other objects, which, though of less public importance, are nevertheless interesting to individuals, as well as to the commercial intercourse of the two countries, but it did not appear to be consistent with the respect due to your Excellency to solicit your attention to new objects, while this former remained undespached for want of time.

"It would give me great pleasure to have it in my power to regulate all my applications by your Excellency's convenience, and though I am happy to see the connexion between our two countries daily increasing, yet as that circumstance will naturally render necessary applications to government more frequent, I fear the duties of my situation will often press me to be troublesome to your Excellency.

"On Friday evening last I received some important despatches from Congress, which I shall do myself the honor of communicating at any time, which your Excellency may be pleased to name. The gentleman who brought them, will after passing on to Paris, return immediately to Philadelphia, and will with pleasure execute any orders which your Excellency may honor him with, for either of those places. His stay here will be but short. As soon as I can ascertain the day of his departure, your Excellency shall have immediate notice of it. As Congress will naturally expect to receive by him particular information respecting their affairs here, I cannot forbear expressing how anxious I am to make him the bearer of welcome tidings; and permit me to hope, that your Excellency's sensibility will suggest an apology for the solicitude which appears in this letter.

"I have the honor to be, with great respect, &c.

JOHN JAY."

On the 5th, I received the following answer, viz.

Translation.

"The Count de Florida Blanca has been much mortified not to be able to receive the visit of Mr Jay, not only on account of the too pressing business, which has engaged all his time, but also by reason of the indisposition he has suffered, and still suffers.

"Although he be not in a situation to engage in long and serious conferences for the reasons abovementioned, he will, nevertheless, be charmed to converse a moment with Mr Jay, one of those leisure evenings when there is no business with the King; in which case, Mr Jay may, if he thinks proper, bring with him the officer in question.

"Saturday, for instance, towards eight o'clock, the interview may take place."

Wednesday, the 5th of September.

Your Excellency will be pleased to observe, that the Minister in the above note intimates a desire that I should bring Major Franks with me. I thought it best to do so; but lest his presence should be a check upon business, and as it was natural to suppose, that the Count would begin by asking him questions about our affairs, I desired the Major to relate to him the impression made in America by that article in the capitulation of Pensacola, which permitted the garrison to go to New York. I also desired the Major to retire into the ante-chamber and leave me alone with the Minister, as soon as the latter should appear to have finished with him.

At the time appointed, viz. the evening of the 8th of September, we waited upon the Minister.

The Count received us very politely. He spoke much of his want of health, and how greatly it incapacitated him for business. He then asked the Major several questions about our military operations. The Major answered them clearly, and, in speaking of the proposed siege of New York, very naturally introduced an account of the surprise and apprehensions occasioned by the permission given to the Pensacola garrison to join that of New York. The Count confessed it was ill done; said it was very unexpected, and that they ought to have been sent to Europe; that the like should not happen in future,

and that proper orders upon that subject should be despatched to their Generals. He then observed, that our fears were not altogether well founded, for that those troops were restrained by the capitulation from taking arms against the allies of Spain till exchanged, and could not operate against our troops without also operating against those of France, who were joined with them, and who, it was well known, were the allies of Spain. The Major replied, that it was feared that the enemy would attempt to evade this reasoning, by insisting that the French troops in America were only to be considered as auxiliaries to the United States, and that though that argument might be fallacious, yet, that in matters affecting America, the enemy had invariably neglected good faith, whenever they found it convenient.

The Count asked how long the Major would stay here. I told him, that I only detained him in expectation of being soon enabled by his Excellency to write something decisive by him to Congress on the subjects under his consideration. He said he hoped in the course of next week to enter into serious conferences with me on those subjects, and that he would give me notice of the day. He offered to give the Major letters to the Spanish Ambassador at Paris, and to do him any other services in his power. He then rose from his chair in a manner indicating indisposition, said he was unable to do business, and that M. Del Campo should inform me when it would be convenient for him that I should see him again. I expressed my regret at his illness, and gave him the French translation of Mr Morris's letter, adding, that I had intended to offer him some remarks on the subject of it. He said he would read it with pleasure. He spoke of Mr Morris's appointment, and after conversing a few minutes about the good consequences expected from it, and of the services done by that gentleman to Spain, in some business they had committed to his care, we parted.

Thus this conference ended as fruitless as the last.

Eight days elapsed. I heard nothing from the Minister. He was daily at Court, and every evening took his ride.

I repeatedly mentioned and complained of these delays to the French Ambassador. He regretted them, promised to speak to the Minister on the subject; but, I believe, did not. I appeared much dissatisfied, though not with him; and told him, that if Major Franks returned to America with no

other intelligence than that of repeated delays, it was more than probable that Congress would be much hurt, as well as much disappointed. He had the same fears, and advised me to detain the Major.

It became in my opinion important, that the Minister, as well as the French Ambassador, should be seriously apprehensive of my dismissing the Major with letters, that would render Congress very little disposed to make sacrifices to this Court. The manner of doing this required some caution. I could think of nothing better than to prepare a letter to the Minister, and send the Ambassador a fair copy of my draft for his consideration and advice.

The following are copies of that letter, and of the one I sent with it to the Ambassador.

TO THE COUNT DE MONTMORIN.

"St Ildefonso, September 16th, 1781.

"Sir,

"The paper herewith enclosed is the draft of a letter, which I think of writing to his Excellency, the Count de Florida Blanca.

"The subject, as well as the occasion, demands that dexterous and delicate management, of which they only are capable, who possess an accurate judgment and much experience in affairs of this kind.

"I am happy, therefore, that on such occasions I can avoid the risk of committing errors, by recurring to your friendly advice. Without compliment, but with sincerity,

I am, Sir, &c.

JOHN JAY."

TO THE COUNT DE FLORIDA BLANCA.

"Whatever may be the issue of the American revolution, whether that country shall continue independent, or be doomed to reunite her power with that of Great Britain, the good will and affection of the people of North America cannot in either case be unimportant to their neighbors; nor will the impressions made upon their minds by the benefits or injuries, which they may receive from other nations in the course of their present struggles, ever cease to have a certain degree of influence on their future conduct.

"Various circumstances led Congress at an early period to suppose, that the Court of Spain had wisely and generously determined to take a decided part in their favor. The supplies granted to them by his Catholic Majesty, soon after the British armies became numerous in America, spoke this language in strong terms, and the assurances repeatedly given me by your Excellency, that his Majesty would firmly support their cause, and never consent to their being reduced to the subjection of Britain, left no room to doubt of his friendly disposition and intentions towards them.

"Many obvious considerations prompted Congress to desire, that an intimate connexion might speedily be established between the two countries by such treaties as would take from the enemy every prospect of success, and secure to Spain and the United States the permanent enjoyment of mutual advantages and reciprocal attachment. With this view Congress were pleased to send me to Spain, and the first letter I had the honor of receiving from your Excellency gave me reason to believe, that the object of my mission was not displeasing to his Majesty; unavoidable and long delays were, nevertheless, created by differences respecting a certain important right, which America wished to retain. So strong, however, was the reliance of Congress on his Majesty's assurances of support, and such was their disposition to render the proposed treaties consistent with his inclinations, that they have since agreed to remove the only obstacle, which

seemed to prevent his Majesty from realising those assurances by substantial aids and an open declaration of his intentions.

"But unfortunately for America, and perhaps for the general cause, the delays in question have not ceased with the cause to which they were ascribed, and although the confidence reposed by Congress in his Majesty's assurances will not permit them to doubt of his determination to support their independence, yet the silent inattention, with which their offers to remove the former obstacle to a treaty have long laid unanswered, must appear to them as being very singular. Your Excellency has indeed repeatedly promised me to name a time when I should have an opportunity of conferring with you on that and other subjects submitted to your consideration, but it constantly happened that the expectations excited by these promises proved abortive.

"Knowing that Congress would expect to receive by the return of Major Franks particular information respecting their affairs here, I was anxious to send them some intelligence more welcome than I have reason to think a detail of delays and procrastination would be, in a season when they would be indulging the most flattering expectations from the measures they had taken to gratify his Majesty. For this reason I informed your Excellency, that I should detain Major Franks for the present, and your Excellency promised me on the 8th instant, that you would appoint some time in the ensuing week for entering into a serious conference about these matters, and that M. Del Campo should give me notice of it. That week, however, has passed away without having been witness to any such notice or conference.

"I think your Excellency will do me the justice to acknowledge that the utmost respect, delicacy, and patience, have been observed in all my transactions with your Excellency, and therefore I cannot forbear hinting that my constituents are at least entitled to that species of attention, which the most dignified sovereigns usually pay to the friendly propositions of

such States, as solicit either their aid or alliance in a decent manner, viz. a candid answer.

"I am sensible that Spain possesses a higher degree on the scale of national importance than the United States, and I can readily admit, that the friendship of this Court is of more immediate consequence to America, than that of America to the Spanish empire. But as his Catholic Majesty and his Ministers doubtless extend their views beyond the present moment, it would ill become me to remark, how essential it is to the happiness of neighboring nations, that their conduct towards each other should be actuated by such passions and sentiments only, as naturally tend to establish and perpetuate harmony and good will between them. Most certain it is, that in whatever manner the negotiations between Spain and North America may terminate, various good or evil consequences will in future naturally and necessarily flow from it to both.

"There is good reason to believe, that the apparent indecision of Spain, relative to an open acknowledgment of the independence of the United States, has inspired other nations with doubts and conjectures unfavorable to the American cause, and on the other hand, it is more than probable that, if his Catholic Majesty would be pleased to declare to the world, that the United States were his allies, and that he had given his royal word to support their independence, Holland and many other nations would follow his example.

"On such an event, also, it might not be difficult to form a permanent alliance between France, Spain, the Dutch and the United States, and thereby not only prevent a separate peace between the Dutch and English, but effectually reduce the latter to reasonable terms of general pacification.

"The limits of a letter forbid my enlarging on these topics. The eyes of America, and indeed of all Europe, are turned towards Spain. It is in the power of his Catholic Majesty to increase his friends and humble his enemies. I will only add my most sincere

wishes, that the annals of America may inform succeeding generations, that the wisdom, constancy, and generous protection of his Catholic Majesty, Charles the Third, and of his Minister, the Count de Florida Blanca, are to be ranked among the causes that insured success to a revolution, which posterity will consider as one of the most important and interesting events in modern history.

JOHN JAY."

The Ambassador called upon me in the evening to answer my letter.

He observed, that the delays of which I complained were not singular, but that others, and even himself, experienced the like. That he had reason to believe this Court were really disposed to treat with us, though the time when might be doubtful. That the remarks made in the draft of my intended letter were but too just; that he feared they would give offence; that at any rate, he thought I had better postpone it, and for the present write one less pointed, and more laconic. We had much conversation on the subject, unnecessary to repeat. It ended in my consenting to pursue his advice.

It is observable, that he did not offer to return me the draft of this letter, though I had agreed to suppress it.

The letter which, agreeable to the Ambassador's advice, I substituted in the place of the other, is in these words, viz.

St Ildefonso, September 17th, 1781.

"Sir,

"A reluctance to despatch Major Franks without transmitting by him to Congress the information they expect to receive, on the subject I have had the honor of submitting to your Excellency's consideration, has induced me hitherto to detain him, especially as I was encouraged to hope that your Excellency would have found leisure last week for entering into serious conference with me on those important points. The same reluctance prevails

upon me to detain him another week, and I think it my duty to inform your Excellency that he will set out on Saturday next.

"I need not remark to your Excellency, that if the letter I may then write by him should not contain the desired intelligence, Congress will naturally be led to apprehend that their expectations of forming an intimate union with Spain were not well founded.

"I have the honor to be, &c.

JOHN JAY."

On the 19th, I received the following answer.

Translation.

"The Count de Florida Blanca would have been charmed to have had it in his power to have a long conference with Mr Jay, if his ordinary indispositions had not prevented him; he will, therefore, have the honor to see him this evening about eight o'clock, if Mr Jay will give himself the trouble of waiting on him, either alone or with Major Franks, and in communicating to the King the result of their conference, he will endeavor to prevail on his Majesty to name some other person to confer with Mr Jay in case of need, in order to avoid, as much as possible, the embarrassments which Mr Jay has hitherto experienced.

Wednesday, 19th of September, 1781."

I waited upon the Count at the time appointed. The following is a copy of my notes of that conference.

Notes of a Conference held at St Ildefonso, on Wednesday Evening, the 19th of September, 1781, between his Excellency, the Count de Florida Blanca, and Mr Jay, agreeably to the appointment of the former.

The Count introduced the conference by asking for Major Franks, and why Mr Jay did not bring him with him. Mr Jay answered, that as Major Franks was not charged with the transaction of any business with his Excellency, and had, at a former interview, answered such questions relative to American affairs as the Count had thought proper to ask him, Mr Jay did not think his attendance on this occasion necessary, as he supposed his Excellency meant to enter at present into the discussion of the matters referred to in Mr Jay's last letter.

The Count then proceeded to enumerate the various obstacles arising from his ill health, the multiplicity of business, which had so long subjected Mr Jay to the delays he had hitherto experienced, and which, for his part, he could not but regret; that agreeable to his promise made to Mr. Jay soon after his arrival, and frequently afterwards repeated, he had attempted to commit to paper his sentiments on the various points on which the proposed treaties must turn, and although he had made some progress in it, he had, for the reasons abovementioned, been obliged to leave it imperfect; that daily experience convinced him that his official business was too extensive and various to admit of his application to other objects, especially as his indisposition often rendered it impracticable for him to pay a due attention to it; that he, therefore, conceived it necessary that some person, duly authorised to confer with Mr Jay on these subjects, should be appointed by his Majesty; that he intended on Sunday next to recommend this measure to the King, to whom he would at the same time communicate the copy of Mr Morris's letter to Mr Jay, which the latter had given him; that in order to the putting of this matter in proper train, it would be expedient for Mr Jay previously to commit to paper his ideas of the outlines of the proposed treaties, and particularly to state the propositions he might think proper to make relative thereto; that he had been informed, that the treaties between France and America had been preceded by the like measures; for that the American Commissioners had first offered a plan of propositions, and then M. Gerard was appointed to confer with

them before those treaties were drawn into the state they now appear, and finally concluded. That the like proceedings were rendered particularly necessary in this case, by the variety and importance of the points necessary to be adjusted between Spain and America; that in forming political connexions between nations, constant regard must be had to their reciprocal interests, and care taken, by previous arrangements, to avoid the inconveniences which would result from any clashing of interest; that three great points presented themselves, as requiring great attention, in forming the proposed connexion between Spain and America.

1st. The aids requested by America, as stated in Mr Morris's letter, were very considerable; that it would be necessary, on the part of Spain to determine what pecuniary aids it might be in their power to grant either by loan or subsidy, as well as the time, place, and manner of payment; for that great punctuality was requisite in such transactions, as well that the royal engagements might be properly fulfilled, as that Congress might not be subjected to inconveniences and disappointments; that on the part of America, it must be ascertained what compensation they should make, as well as the time and manner of doing it; and that it might be well to consider how far such compensation might be made in ship timber, or other productions of that country; that a compensation would be indispensable, for that the King, being only the guardian of his dominions, would not think himself justifiable in dispensing with the just rights of his people.

2dly. That the commercial concerns of the two countries was another point, which would call for very accurate and important regulations. That so far as this commerce would respect the United States and old Spain, the difficulty would not be very great; for that such commerce being in a considerable degree permitted to other nations, America ought also to participate in the benefits of it. But with respect to the Spanish dominions in America, as all other nations were excluded from any direct

commerce with any part of them, the United States could not reasonably expect to be on a better footing than other nations, and particularly the French, who were the near allies of Spain.

3dly. That with respect to the proposed treaty of alliance, Mr Jay must be sensible, that the several engagements, which would thereby be rendered necessary between the parties, the matters of boundary, and the navigation of the Mississippi, would give occasion to several important articles, which ought to be maturely considered and well digested. To this end, he wished that Mr Jay would immediately turn his thoughts on these subjects, and offer him such a set of propositions, as might become the basis of future conferences between him and the person whom he expected his Majesty would appoint.

The Count then took occasion to observe, that he had long wished Mr Jay had offered him such propositions, but that his Court had as yet received from Congress nothing but good words and fair assurances, and that though his Majesty had given them some little aids, yet they had discovered no disposition, by acts, to acknowledge them. Mr Jay reminded his Excellency of his having, at a very early day, undertaken to commit to paper the outlines of the proposed treaties, and that the constant expectations of his perfecting it, had restrained Mr Jay from offering anything of the like nature on the subject. That he could conceive of nothing in the power of Congress to do, which could more fully evidence their disposition to gratify his Majesty, than their having offered to recede from their claims to the navigation of the Mississippi, though the preservation of it was deemed of the highest importance to their constituents. The Count admitted the propriety of both these observations, and said he hoped that the delays, which had so long embarrassed Mr Jay, would soon be terminated.

Mr Jay expressed his anxiety to be enabled to communicate to Congress some decided intelligence, respecting the aids they might expect from this Court; to which the Count replied, that

the sum requested was great, the expenses of the kingdom very extensive, and the means of obtaining the sums necessary to defray them subject to many difficulties; that he would, as he had before mentioned, communicate Mr Morris's letter to the King, and, until that was done, he could not be in capacity to say anything further on the subject; that as the appointment of a person to confer with Mr Jay would rest with his Majesty, he could not say who in particular it would be, but he hoped, and was persuaded that it would be some person well-intentioned towards America; that he was the more confirmed in this expectation, from the friendly disposition, which the King had early and constantly manifested towards that country; that he would again repeat what he had before told Mr Jay, viz. that the King, when acting in capacity of mediator for a peace, had refused to permit that country to be sacrificed; that since the rupture with Britain, tempting and advantageous offers had been made to him to withdraw his protection from America, and conclude a separate peace; that he had rejected these offers, and still continued determined to support the States; that this conduct ought to be viewed as extremely generous, as no political connexions or engagements did then, or do as yet subsist between the two countries. Mr Jay assured his Excellency that the magnanimity of this conduct had made a deep impression on the people of America; that nothing but want of opportunity would ever prevent their expressing it more strongly than by words, and that the sense they entertained of it, had greatly influenced the late measure they had taken to comply with his Majesty's desires. The Count then pressed Mr Jay again to send him the paper above mentioned before Sunday, adding that he sincerely wished nothing might be wanted to put the business in a proper train; that for his part, he had the best disposition towards America, as well as personal regard for Mr Jay, and, after adding some complimentary expressions relative to the character of the latter, he concluded.

I was a little surprised that the Count should expect to receive from me, in the course of three days, formal propositions on the several points stated in

this conference. But it would not have been proper for me to desire further time.

On the 22d of September, I sent him the following letter and propositions.

"St Ildefonso, September 22d, 1781.

"Sir,

"I have the honor of transmitting, herewith enclosed, the propositions requested by your Excellency on Wednesday evening last.

"I have endeavored to render them as short and simple as possible, and I flatter myself that the unreserved frankness with which they are written will be no less agreeable to your Excellency, than I am sure it is consistent with the desire and disposition of my constituents.

"As the issue of this measure will in a great degree ascertain the expectations which Congress entertain from their negotiations here, and as they flatter themselves with receiving information on this subject by the return of Major Franks, they will doubtless excuse my detaining him another week, unless your Excellency should sooner be enabled to communicate to me his Majesty's pleasure relative to the proposed treaty.

"Permit me to entreat your Excellency, therefore, to enable me to transmit by him such intelligence to Congress, as may relieve them from their present distressing doubts and uncertainties.

"I sincerely hope it may be such as may make them happy in a prospect of soon seeing an intimate and lasting union established between France, Spain, and the United States, a union which, by being raised on the solid foundation of mutual interest and reciprocal advantages, may secure to each the blessings of uninterrupted tranquillity. This generous policy pervades the treaties already formed between his Most Christian

Majesty and the United States, and I am happy in being persuaded, that the magnanimity of his Catholic Majesty's conduct towards my country, on this and other occasions, will furnish materials for some bright pages in the American annals.

"I have the honor to be, Sir, &c.

JOHN JAY."

Here follow the propositions alluded to, and sent enclosed in the preceding letter.

"St Ildefonso, September 22d, 1781.

"As the time allowed Mr Jay for offering such propositions, as may become the basis of the proposed treaty between his Catholic Majesty and the United States of North America, is very short, he should fear the consequences of haste and inaccuracy, if he were not persuaded that the candor, with which they will be received, will secure him from the inconveniences to which these circumstances might otherwise expose him.

"Mr Jay presumes that it is not expected he should offer a plan of a treaty drawn at length, but only general propositions, which may be so modified and enlarged, as on due consideration and discussion may appear expedient. With this view, he begs leave to present the following as the basis of a treaty of amity and alliance, viz.

PROPOSITIONS.

I.

"There shall forever subsist an inviolable and universal peace and friendship between his Catholic Majesty and the United States, and the subjects and citizens of both.

II.

"That every privilege, exemption, and favor, with respect to commerce, navigation, and personal rights, which now are, or hereafter may be granted, by either, to any the most favored nation, be also granted by them to each other.

III.

"That they mutually extend to the vessels, merchants, and inhabitants of each other, all that protection, which is usual and proper between friendly and allied nations.

IV.

"That the vessels, merchants, or other subjects of his Catholic Majesty, and the United States, shall not resort to, or be permitted (except in cases which humanity allows to distress,) to enter into any of those ports or dominions of the other, from which the most favored nation shall be excluded.

V.

"That the following commerce be prohibited, and declared contraband between the subjects of his Catholic Majesty and the United States, viz.

"All such as his Catholic Majesty may think proper to specify.

REMARKS. "On this proposition Mr Jay can offer nothing, but an assurance of his being ready to concur in every reasonable regulation that may be proposed.

VI.

"The United States shall relinquish to his Catholic Majesty, and in future forbear to use, or attempt to use, the navigation of the river Mississippi from the thirtyfirst degree of north latitude, that is, from the point where it leaves the United States, down to the ocean.

REMARKS. "The impression made upon the United States by the magnanimity of his Majesty's conduct towards them; the assistance they hope to receive from the further exertions of the same magnanimity; the deep wound which an alliance with so great a monarch would give to the hopes and efforts of the enemy; the strong support it would afford to their independence; the favorable influence which the example of such a King would have on other nations, and the many other great and extensive good consequences which would result at this interesting period from his Majesty's taking so noble and decided a part in their favor, have all conspired in prevailing upon Congress to offer to relinquish in his favor, the enjoyment of this territorial and national privilege, the importance of which, to their constituents, can only be estimated by the value they set upon his Majesty's friendship.

"By this proposition, the United States offer to forego all the advantages and conveniences, which nature has given to the country bordering on the upper parts of that river, by ceasing to export their own, and receiving in return the commodities of other countries by that only channel, thereby greatly reducing the value of that country, retarding its settlement, and diminishing the benefits which the United States would reap from its cultivation.

"Mr Jay thinks it his duty frankly to confess, that the difficulty of reconciling this measure to the feelings of their constituents, has appeared to Congress in a serious light, and they now expect to do it, only by placing in the opposite scale the gratitude due to his Catholic Majesty, and the great and various advantages, which the United States will derive from the acknowledgment and generous support of their independence by the Spanish monarchy, at a time when the vicissitudes, dangers, and difficulties of a distressing war, with a powerful, obstinate, and vindictive nation, renders the friendship and avowed protection of his Catholic Majesty in a very particular manner interesting to them. The offer of this proposition, therefore, being dictated by

these expectations and this combination of circumstances, must necessarily be limited by the duration of them, and consequently, that if the acceptance of it should, together with the proposed alliance, be postponed to a general peace, the United States will cease to consider themselves bound by any propositions, or offers, which he may now make in their behalf.

"Nor can Mr Jay omit mentioning the hopes and expectations of Congress, that his Majesty's generosity and greatness of mind will prompt him to alleviate, as much as possible, the disadvantages to which this proposition subjects the United States, by either granting them a free port, under certain restrictions, in the vicinity, or by such other marks of his liberality and justice, as may give him additional claims to the affection and attachment of the United States.

VII.

"That his Catholic Majesty shall guaranty to the United States all their respective territories.

VIII.

"That the United States shall guaranty to his Catholic Majesty all his dominions in North America.

Lastly.

"As the foregoing propositions appear to Mr Jay the most essential, he omits proposing those less and subordinate ones, which seem to follow of course. He therefore concludes this subject with a general offer and propositions to make and admit all such articles as, in the course of this negotiation, shall appear conducive to the great objects of the proposed treaty.

REMARKS. "Nothing on Mr Jay's part shall be wanting to expedite the happy conclusion of this business, by adhering constantly to the dictates of candor, frankness, and unsuspecting confidence.

"He is ready to receive the treaty between the United States and his Christian Majesty, as a model for this, or with such alterations as, founded on the principles of reciprocity, may be more agreeable to his Catholic Majesty, it being his earnest desire to arrive at the important objects of his mission in any way his Majesty may be pleased to prefer.

"The subject of aids, either by subsidy or loan as may be most convenient to his Majesty, will require a particular convention, but as the manner, extent, and terms depend on his Majesty's pleasure, it is impossible for Mr Jay, without some knowledge of it, to offer propositions adapted thereto. All that he can at present say on that subject is, that Congress are ready to do everything in their power. He will not, however, endeavor to conceal their incapacity to do much in the way of compensation, while the enemy shall continue to make the United States the theatre of a desolating war, and the object of their predatory operations. But when those obstacles shall cease, it will be in their power, as well as their inclination, to make retribution, and render important services to his Majesty. Mr Jay will therefore continue to decline attempting to induce his Majesty to take any measures, however favorable to his country, by delusive promises, or rash engagements; but on the other hand, he is ready to enter into such reasonable ones, as he may have good reason to say shall be faithfully and punctually performed.

"A particular treaty regulating the conduct to be observed by his Catholic Majesty, and the United States, towards each other during the war, also appears to Mr Jay important to both; but as the proper plans and articles of such a treaty can only result from a free conference on the subject, he can upon this occasion only express his readiness to concur in every provision, which may be calculated to give energy and success to the operations and objects of both.

JOHN JAY."

Your Excellency will be pleased to observe, that among my remarks on the sixth proposition, I have limited the duration of the offer contained in it. I did this from a persuasion, that such limitation was not only just and reasonable in itself, but absolutely necessary to prevent this Court's continuing to delay a treaty to a general peace. Besides what the Minister dropped upon this head in his conference with me at Aranjues, I think it probable that they still wish to adhere to that idea. To me they appear desirous of avoiding the expense that the aids, which a treaty we should expect would render unavoidable, and which at present would not be very convenient for them. They wish to see our independence established, and yet not be among the first to subscribe a precedent, that may one day be turned against them. They wish not to exclude themselves, by any present engagements, from taking advantage of the chances and events of the war, not choosing on the one hand, that in case we sink, that we should be fastened to them by any particular ties, nor on the other hand, in case we survive the storm, to be so circumstanced as not to make the most of us. I think it is their design, therefore, to draw from us all such concessions as our present distress, and the hopes of aid may extort, and by protracting negotiations about the treaty, endeavor to avail themselves of these concessions at a future day, when our inducements to offer them shall have ceased. As this would evidently be unjust, I think the limitation in question can give them no offence, and I hope Congress will be pleased to communicate to me their sentiments on the subject.

I must also remark, that after what has passed, and considering how well they are acquainted with my instructions, it would not only have been useless, but absurd, to have made these propositions otherwise than agreeably to those instructions.

Congress may at first view be a little surprised at the extent of the fifth proposition, but when they compare it with the second, I am persuaded they will find it sufficiently restrained.

In forming these propositions, it was my determination to leave them so free from disputed, or disputable points, as that no plausible pretexts for delay should arise from the face of them. I am well apprised, nevertheless, that in the course of the negotiation, it will be impossible for me to prevent

their practising as much procrastination as they may find convenient. Almost the only hope I have of their seriously doing business arises from their fearing, that the instruction respecting the Mississippi will be recalled the moment that either any very decided successes on our part in America may render a treaty with Spain of less importance to us, or a general treaty of peace give us different views and prospects.

These are my conjectures and opinions. Perhaps they may prove erroneous; as facts accompany them, Congress will be enabled to judge for themselves. I will add, that from everything I can hear, the King is honestly disposed to do us good, and were he alone to be consulted in this business, I believe it would soon be concluded.

On the 23d of September, the foregoing propositions were to be laid before the King. I heard nothing further from the Minister until the 27th, when he sent me the following note.

Translation.

"Although the last letter of Mr Jay, accompanied with a certain plan, was transmitted on Saturday in the evening to the Count de Florida Blanca, and although he could not inform himself of their contents until translated from the English, he nevertheless did not fail to render an account thereof to the King in his despatch of Sunday. His Majesty having then shown himself disposed to appoint some person to confer with Mr Jay, it is become necessary to prepare a suitable instruction, and present it to the King for his approbation. The Count de Florida Blanca flatters himself, that he shall be able to arrange this affair before the departure of the Count for the Escorial, and in the meanwhile, he has the honor to transmit to Mr Jay a passport for Major Franks.

"Thursday, September 27th, 1781."

I have been given to understand, though not officially, that M. Del Campo, the Minister's Secretary, is the person who will be appointed to confer with me, and though that gentleman is constantly about the Minister, yet it

seems, that a set of formal instructions are to be prepared for him. When the Minister will be able to find either time or health to complete them is uncertain.

There is reason to believe, that still less progress would have been made in this affair, had Major Franks not have arrived. I regret his detention, but hope the reasons assigned for it will be deemed sufficient; I am perfectly satisfied with him.

Notwithstanding Congress had given me reason to expect, that the plan of drawing bills upon me had been laid aside, I have now bills to the amount of between seventy and eighty thousand dollars to pay, and no funds provided. What am I to do? Dr Franklin writes me, that so far from being able to give me further aids, he does not expect to have it in his power even to pay our salaries in future.

From the facts stated in this letter, Congress will perceive that this Court neither refuse nor promise to afford us further aid. Delay is their system; when it will cease I cannot conjecture, for that is a question which I doubt whether they themselves have as yet determined.

I am indebted largely to Mr Harrison for money advanced by him to distressed seamen. He ought to be paid, and it is so far from being in my power to do it, that I have been reduced to the mortifying necessity of desiring him for the present to hold his hand. A great many of this valuable class of people are confined in English gaols, without other means of obtaining their enlargement than by entering into the enemy's service. They complain bitterly of being neglected by their country, and I really think not without reason. Retaliation ought to be practised, and if we have not a sufficient number of marine officers and seamen in our power to make the objects of it, why would it be improper to substitute landmen?

As to Portugal, I have more than once spoken to the Minister on the subject. He admits the justice of our being treated by that as by other neutral nations. He has promised to interfere in our behalf, but nothing efficacious has yet been done. To send an agent there, could do no harm, and might do good; I am therefore for it. The Ambassador of France thinks with me, that

before that step is taken, it ought to be confidentially communicated to this Court, and I am persuaded difficulties will arise from it. I shall do my best.

M. Gardoqui's departure is uncertain. He is still attending the orders of the Court. I doubt his receiving them till the campaign closes, and perhaps not then.

I do not despair of seeing some good result, finally, from all this complication of political solecisms. It would not surprise me if we should in the end be the gainers by them. My greatest fears are about the fate of the bills. If protested, for want of payment, they will become the source of much evil.

I have the honor to be, &c.

JOHN JAY.

P. S. I have this instant received a letter from Commodore Gillon, dated at Corunna, the 28th of September, and one from Colonel Searle of the 26th of September. I herewith enclose copies of them. Their contents are interesting. J. J.

FOOTNOTES:

[30] See these letters at large in the *Secret Journal of Congress*, Vol. II. pp. 323, 326. The latter was drawn up by Mr Madison.

[31] *Secret Journal of Congress*, Vol. II. p. 393.

[32] *Secret Journal of Congress*, Vol. II. p. 404.

[33] See this letter above, p. 449.

TO THE PRESIDENT OF CONGRESS.

Madrid, October 18th, 1781.

Sir,

Major Franks delivered me the despatches committed to his care on the 30th of August. He set out for France the 5th instant. My letters by him to your Excellency will account for his remaining here so long. I also beg leave to refer to them for other more interesting particulars.

Congress will doubtless be informed that I have refused to accept some of their bills. As the enemies of America in Europe had, with some success, endeavored to render the credit of our paper suspected, it appeared to me expedient to state the reasons for these refusals very particularly, and I caused them to be recited at large in the protests. I have sent copies of them to Dr Franklin and Mr. Adams, that in case these transactions should be represented to our disadvantage, either in France or Holland, they might be enabled to set the matter right. I now send copies to Congress, to prevent their being alarmed at any general report that may arrive in America, of my having refused to accept their bills drawn upon me.

Our merchants would, in my opinion, do well to write their endorsements on bills at length, and in their own hand writing. There is reason to believe that the enemy often turn blank endorsements to good account.

M. Gardoqui is here. Those ships of the Spanish flotilla, which carried the treasure, are arrived at Cadiz. Trenches are not yet opened against Fort St Philip at Minorca. Another expedition is preparing at Cadiz; its destination is uncertain.

I have the honor to be, &c.

JOHN JAY.

ROBERT R. LIVINGSTON TO JOHN JAY.

Philadelphia, November 1st, 1781.

Dear Sir,

Your letter to Congress of April last having been read and answered by them, though not so minutely as I would wish, I forbear making any remarks upon it, because I am not yet perfectly acquainted with their sentiments, (and would not wish any which might interfere with them) having just entered upon the office, in consequence of which I open this correspondence, though long since appointed. I beg of you, agreeably to the directions of Congress, to address in future your public letters to me, and to notify the Count de Florida Blanca of this alteration in our system, our unacknowledged situation rendering it improper to do it formally.

Congress have at length completed the organization of their executive departments, by the choice of General Lincoln for their Secretary at War. It is expected that order and system will arise out of this mode of doing business, and the strictest economy.

If the great powers of Europe, with every advantage that settled governments enjoy, feel themselves under the necessity of making foreign loans, can it be expected that a war of six years, in the heart of our country, should not have abridged the resources of a State, which had every necessary for their army to import; which never manufactured for itself; which had no marine; and which, with a number of internal enemies in their bosom, had civil governments to establish? Perhaps it would be impossible to offer a better picture of the resources of this country, and the stability of her funds when they shall be well managed, than by comparing our present debt with the duration of the war and the exertions we have made. For though our enemies may allege, that our debt was relieved by the depreciation of our bills, yet it must be remembered, that that very depreciation was a tax, though an unequal one, borne by the people of these States, and as it has not produced national ruin, it must follow, that the States had sufficient resources to bear this burthen. These resources, though lessened, still remain.

The only object for which Britain continues the war, is the recovery of this country. What better plan of finance then can be adopted by France or

Spain, than by timely aids of ships and money to blast this hope, and by a speedy peace to terminate their expenses? If, on the contrary, they wish to linger out the war till Britain is more exhausted, this country affords them the easiest means of doing it.

Armies may be maintained here for one third of the expense that Britain lays out upon hers. This France has experienced. Though her affairs were not perhaps managed with the strictest economy, though her bills were extremely low, her supplies cost at least one third less than the British paid at New York, without taking into account the hire of transports, the seamen employed, paid, and fed in that service, and the number of them that fell into our hands. Be persuaded yourself, and endeavor to persuade others, that if this is a war of finance, which all modern wars are, Britain is most vulnerable in America.

I congratulate you upon the important success of our aims in South Carolina and Virginia, of which I enclose you official accounts. On the returns you will remark a number of British American nominal regiments. These were recruiting in Virginia and North Carolina, and their success will show the truth of what Britain advances with respect to the number of her partisans in America. I will venture to say, that with similar advantages, their recruiting parties would have been more successful in any country in Europe. Besides the troops mentioned in the returns, the enemy lost during the siege near two thousand negroes. Previous to the surrender, they had a naval engagement with the Count de Grasse. The *Terrible*, a British seventyfour, was burnt, so that our affairs here stand upon the most respectable footing imaginable.—[Upwards of thirty lines follow interspersed with a cypher, the key to which is not to be found.]

But this is a delicate subject, and I quit it till I am more fully acquainted with the views of Congress thereon, for I confess to you, that the sentiments I have hazarded are rather my own, than any that I know to be theirs, and should weigh accordingly with you. The provision trade with the Havana being very considerable and important to Spain, while she has fleets and armies to maintain there, it might be proper to suggest to the Spanish Ministry the advantage of allowing small convoys of frigates, which would enable us to carry it on in vessels of greater burden, and by that means

diminish the expense of freight and insurance, both of which, eventually, fall upon Spain. A few frigates would answer the purpose, as the stations of the enemy's ships are almost always known on this coast, and, indeed, they seldom have any out but frigates cruising singly.

Another thought strikes me, which, perhaps, if digested, might be ripened into a plan advantageous to France, Spain, and America. While France keeps an army here, she must draw bills, or export money. She has, for the most part, preferred the former, at the loss of forty per cent discount. The money of Spain is lodged at the Havana, and cannot be brought to Europe without great hazard; whereas the risk of sending it here under convoy is extremely small. It may be vested in European bills to such advantage, as to pay the whole expense of transportation, and even an interest, till the bills are negotiated in Europe. This plan affords France a market for her bills, Spain a cheap and easy way of bringing her money home, and America a circulating medium, which enables her to tax with advantage.

The enclosed act of Congress informs you of the appointment of Mr Hanson, of Maryland, to the Presidentship.

I shall write very frequently to you, and shall in return expect that you will omit no opportunity of letting me hear from you. A Court kalendar, if one is printed with you, with notes of your own thereon, might be of some service to us. I shall use our private cypher, as corrected by that sent by Mr Toscan, till you receive the one transmitted by Mr Thomson, in which case, as it is less troublesome, be pleased to use that, if you are sure it came safe.

I am, dear Sir, with the sincerest regard and esteem, &c.

ROBERT R.
LIVINGSTON.

ROBERT R. LIVINGSTON TO JOHN JAY.

Philadelphia, November 28th, 1781.

Dear Sir,

I wrote so fully to you not long since, that I should not trouble you at this time, if I had not determined to omit no opportunity of letting you hear from this side of the water, and enabling you at all times to meet any falsehood the enemy may find it politic to publish.

Since the capture of Cornwallis, nothing very material has happened. The ravaging parties on the northern frontiers have been defeated with great loss by the militia. The armies have taken their stations for the winter quarters; the French, in Virginia and Maryland; our troops, on the Hudson, excepting some detachments under General St Clair, destined to reinforce General Greene. They have orders to take Wilmington in their way, where the enemy have about six hundred men; it is probable they will not wait the attack. General Greene will have men enough to shut up the enemy, but not to force their strong holds. Want of money cramps all our exertions, and prevents our making a glorious winter campaign. The enemy are all shut up on two or three points of land, which is all they possess of the immense country they hope to conquer; and even these they hold by a very precarious tenure. Disaffection, which has languished for some time past, died when Cornwallis surrendered.

Congress are occupied in taking measures for an active campaign; and they feel themselves satisfied with everything both at home and abroad.

Congress have dissolved Mr Adams's powers to make a treaty of commerce with Great Britain; and, as you know, joined Dr Franklin and Mr Laurens in his other commission, if England should at length be wise enough to wish for peace.

The Marquis de Lafayette is the bearer of this. He has promised to convey it with safety to you, and to correspond with you in such a manner as to enable you to avail yourself of the knowledge which he has acquired, that may be of use to you. The resolves of Congress, of which I enclose a copy, show their sense on this subject, and the confidence which they very justly repose in him. His Aid waits for this. Adieu my dear Sir.

Believe me to be, with the highest respect and esteem, &c.

ROBERT R.
LIVINGSTON.

END OF THE SEVENTH VOLUME.

TRANSCRIBER'S NOTE.

Omitted words, shown as blank spaces in the original, have been transcribed as '——'.

Every effort was made to match the original text. Spelling variations between letters have been preserved. Apparent typos and misspellings were retained, including the following:

Page	Original text	
47	"supprised"	possible misspelling
169	"he did not embark till June 1st, 1794"	1784?
198	"Marquis de la Flolte"	possible misspelling
216	"Jean Guy Guatier"	possible misspelling
267	"The following is an extrac"	possible misspelling
285	"May 28th, 1780"	date is given as May 30th in Table of Contents
399		sum of Revenues does not appear correct
400		sum of Expenses does not appear correct

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